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House of Representatives

The House met at noon and was called to order by the Speaker pro tempore (Mr. WEBER of Texas).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
May 10, 2016.

I hereby appoint the Honorable RANDY K. WEBER, SR., to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 1:50 p.m.

MARIJUANA V. HEROIN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Tennessee (Mr. COHEN) for 5 minutes.

Mr. COHEN. Mr. Speaker, today on our calendar we have got about 10 bills dealing with a very serious issue in America: opioids and heroin. This is an awful problem we have in our Nation. There is more and more use of opioids and heroin and death resulting from it than at any time that I can recall in the past.

I had a young friend a few years back who died of a heroin overdose. I have known of other promising young people in Memphis who have died of heroin overdoses. This is a problem all over the country, but predominantly in the northeast and predominantly in Caucasian areas. It has become an issue, as it should, of importance. But none of the bills that we are going to deal with today—all of which are good, and all of which I will support—deal with the real problem; and that is, the recognition in our country that we treat all drugs as a law enforcement problem, a criminal problem, and not as a health problem; and that we treat most all drugs on the same level and give law enforcement the same incentives to arrest dealers and/or users for any drug and not encourage them and give them reasons—besides public safety—to emphasize their enforcement on opioids and heroin.

In the drug schedules which we have in our country that lay out the order in which we think drugs are the most serious, Schedule I is at the top; and in that classification are heroin, LSD, ecstasy, and marijuana.

I ask you each not to answer reflexively which of those four don't fit. Marijuana does not fit.

Our laws should show that heroin is a serious problem and that marijuana is not as serious a problem; that users should be dealt with in ways that don't put them in jail and, in the case of marijuana possession, don't cause them to lose scholarship opportunities, housing opportunities in Federal facilities, or jobs later on.

We also shouldn't have law enforcement, through asset forfeiture, get moneys from people they arrest; fund their activities by making arrests; and have it be presumed in law that moneys and/or properties that are involved in the transactions of those drug deals are involved and that law enforcement gets to keep those items. It gives law enforcement a reason to go after marijuana—which is easier to find and make money—rather than heroin.

We need to study marijuana to see what its medical uses are. We don't need to use it to incarcerate and cripple for the future jobs for young people. We need to encourage young people not to do any drugs at all, not to do alcohol, not to smoke cigarettes, and to take their time as youths to be youths, to be young, to learn, and to fill their minds with knowledge for a better life later. But if, as a youth or as an adult, they should use an illegal substance, they should be dealt with as having a problem and not be given a scarlet letter that stays with them for the rest of their lives.

So my work has been and will continue to be to try to make more sense of our drug laws; to see that the scheduling is smarter, that heroin and opioids continue to be at the top, and that marijuana is not in that listing; and to do things that encourage law enforcement to arrest people that are dealing in and selling heroin and opioids, which cause death and cause people to be addicted to the point where they will commit crimes to secure moneys to keep their habit going, and to not have equal incentives to go after marijuana that does none of those things.

BABY BODY PARTS FOR SALE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. PITTS) for 5 minutes.

Mr. PITTS. Mr. Speaker, I rise today to bring attention to the research that the Select Investigative Panel on Infant Lives is conducting. I encourage everyone to examine the exhibits from the Select Investigative Panel on Infant Lives' investigation on their Web site: energycommerce.house.gov/select-investigative-panel.

On April 20, 2016, Chairman MARSHA BLACKBURN held a hearing on the ''Pricing of Fetal Tissue'' and found

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broad consensus among witnesses that Federal law may have been violated when abortion clinics profited from the sale of baby body parts.

This grave circumstance has caused considerable concern because one of the underpinnings and so-called safeguards of the statute that allowed for the donation of fetal tissue for transplantation and research was that this tissue would not be sold.

The author of the statute, former Congressman Henry Waxman, stated during floor debate in 1993:

This amendment would enact the most important safeguards to prevent any sale of fetal issue for any purpose, not just the purpose of research. It would be abhorrent to allow for a sale of fetal tissue and a market to be created for that sale.

Yet this is what is happening today.

As seen on Exhibit B2, the ''Procurement Business''—the name is redacted—markets itself in its brochure as a way for clinics to make additional income by allowing procurement business technicians to collect fetal tissue and organs from aborted babies immediately after an abortion is completed. The brochure uses the words ''financially profitable,'' ''fiscally rewards,'' and ''financial benefit.''

The Select Investigative Panel on Infant Lives' investigation revealed that the procurement business technician performs every conceivable task in the harvesting process immediately after an abortion occurs. However, procurement businesses—essentially the middlemen between the abortion clinics on the one hand and the end users, the experimenters or researchers, on the other—still pay abortion clinics a fee, even though the clinics are not incurring any additional costs in the process.

Exhibit D1 shows the abortion clinic charged the middleman $11,365 for harvested baby parts—called POCs—and blood.

Exhibit D2 shows the abortion clinic charged the middleman, again, this time $9,060 for harvested baby parts, or POCs, and blood, even though the clinic did not incur any additional expense in the harvesting process. After obtaining the organs from the clinic, the middleman then made it easy for end users to purchase baby body parts.

Exhibit C3, the procurement business order form, or drop-down menu, for baby organs, illustrates just how easy this is. On the left side of the menu, one can choose: What type of tissue would you like to order? And under a multitude of options—a few of which are listed on the right—one could choose up here at the top, brains. These are little baby brains. Next you must select the number of specimens. And I suppose one could say six baby brains. Continuing down the list of questions, gestational range from start to end? One can select 16 to 18 weeks.

Then it asks: Add another tissue type? One could answer yes and scroll through the numerous options and have the opportunity to pick, for instance, female reproductive system and ovaries. You could then ask for five of those at 15 to 16 weeks. Then you could add, down at the bottom here, tongue.

So these are the options.

For crying out loud, this is the Amazon.com of baby body parts, a market for baby body parts. It is repulsive, outrageous, and I urge you to go to the Web site to see the exhibits.

This is a market for baby body parts where you get what you pay for.

This is utterly repulsive. Absolutely outrageous. Each one of these baby tongues or baby brains belongs to a little human baby. This business is nothing more than a fetal corpse market. How can anyone defend such an abhorrent practice?

These exhibits illustrate that, in both intent and practice, these clinics make money well above any actual costs they incur. They are making a profit. Go to the Select Panel's website energycommerce.house.gov/select-investigative-panel and see for yourself the revealing exhibits that show how these organizations may have broken the law and profited from this gruesome, inhumane practice of baby body part harvesting and trafficking.

URGING BOEING NOT TO SELL AIRPLANES TO IRAN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. ROSKAM) for 5 minutes.

Mr. ROSKAM. Mr. Speaker, I am very concerned about some news that has come to my attention and to the attention of the House recently, and that is that there is an iconic American aviation company—that is, the Boeing Company—that that has entered into preliminary talks with Iran. And the thinking is for Boeing to sell planes to Iran.

I guess when you first hear about that, you say: Well, what is the big deal? Why is everybody so uptight about this? Why can't everybody relax and just let some commerce happen?

Here is what is the big deal; here is why we ought not relax; and here is why Boeing shouldn't be in these discussions; and, ultimately, it is my sincere hope, Mr. Speaker, that Boeing does not sell planes to the Iranians:

The entire Washington foreign policy establishment; that is, the House of Representatives, the Senate, the United States State Department, and the administration all agree on one thing. They all agree that Iran is still the world's leading state sponsor of terror.

There is no credible organization; there is no credible voice today that says: No, no, no. That is not true anymore. In fact, the President has acknowledged this; the Secretary of State has acknowledged this; the national security adviser has acknowledged this.

And if that is true—and it is true—how can someone, how can a company, how can an American institution say, we are going to do business with them? And how can it be true that we are going to sell something that can be easily converted for the use of terrorism?

You see, planes are fungible. Airplane parts are fungible. Unless we think that only Boeing is beginning these sorts of discussions—we know what Airbus is doing. Airbus has made a decision to go in and do business with this terrorist regime.

Why I am urging these companies—and particularly Boeing, as an iconic American company, as a company that has come to symbolize what? American strength, American innovation, and American greatness. And then to be complicit with the Iranians and the sheer possibility and, I would argue, probability that those airplanes will be converted to warplanes.

Now, just so I am clear, I am not making an argument nor a suggestion today that Boeing is doing anything illegal. I am not making that argument.

But here is my point: just because something is legal doesn't make it good; just because something is legal doesn't make it right.

□ 1215

There are some people who are saying: Well, look, other manufacturers are selling into that marketplace. And let me ask you this, Mr. Speaker. When has history ever been kind to the excuse: Well, somebody else was doing it, so I decided to do it too? History, Mr. Speaker, is a merciless judge and disciplinarian against that sort of argument.

So what is the problem? Here is the problem. It is the Islamic Revolutionary Guard Corps that completely dominates the Iranian economy, and they certainly completely dominate the aviation sector of the economy. Iran Air was recently taken off the terrorist watch list by the State Department. Most people think that it was an agreement through the Iran nuclear deal and that it wasn't really deserved, but they were only recently on it. Regardless, the fungibility of these products can easily move into other areas of the sector.

There are some people that say: Look, it is an emerging market and we ought to be selling American products there. No, Mr. Speaker. What we ought to do is recognize that there are things that are more important than American profits, and that is the integrity of American businesses not to be complicit in this shameful activity and to sort of draw a blind eye towards this activity to say we can somehow sell these products and they won't end up in the hands of terrorists. It is naive, it is a wrongheaded move, and I urge Boeing in the strongest possible terms not to be complicit in this activity.

HONORING BILL KNAPP

The SPEAKER pro tempore. The Chair recognizes the gentleman from Iowa (Mr. YOUNG) for 5 minutes.

Mr. YOUNG of Iowa. Mr. Speaker, I come to the floor of the U.S. House of

Representatives to recognize and honor the accomplishments of an individual who exemplifies what it means to be an Iowan, to be an American.

Bill Knapp is being honored by the Van Meter High School Booster Club and American Legion Post 403 as an Iowa hero and legend, and it is for good reason. Bill has given much to the community. He spent his life giving back. Throughout his life, his career, and his philanthropic efforts, he has demonstrated, and continues to demonstrate, a commitment to our State and our country, to people.

Bill was born in 1926 and grew up on a farm in Allerton in southern Iowa. Growing up in Allerton was where Bill first learned the value of a hard day's work, of an earned day's pay. He learned the value of making do with less, anticipating the needs of others, and helping those less fortunate. He learned self-sacrifice, honesty, and integrity. He has carried with him these Iowa values throughout his life.

Bill turned 17 in 1944. Observing World War II from quite a distance in Iowa, this young man heard the call to serve our country. He did not ignore that call; he answered it. He convinced his parents to sign off on his enlistment into the United States Navy.

In the spring of 1945, Bill took part in the Battle of Okinawa as a coxswain on the USS *Catron*. Alongside many others from across the country, Bill bravely served. And unlike many of these gentlemen who were with him who didn't come back, Bill returned home.

After 2 years in the U.S. Navy and the end of the Second World War, Bill returned to Allerton. He took business courses, took to real estate, rolled up his sleeves, got to work, and soon formed Iowa Realty. Under Bill's leadership, Iowa Realty grew, prospered, and became the largest real estate company in Iowa.

Bill has had some tremendous successes, but he has never forgotten his Iowa values. Instead, he continues to embody what it means to be an Iowan. His selflessness and willingness to give back is evident in everything that he continues to do. He is known statewide. He is known nationally for his philanthropic efforts, as well as his special commitment to Iowa. He has placed a strong emphasis on helping to turn Iowa's capital city, beautiful Des Moines, into the thriving metropolis we see today.

I imagine I speak for many when I say how incredibly grateful I am for Bill's donation of land to our State, which was used for Iowa's first and only veterans cemetery in Van Meter. Thanks to Bill's generosity, our veterans in Iowa, who have so selflessly served our country, have a final resting place. It is truly hallowed ground. We, as Iowans, have a place to honor our country's heroes.

But his generosity to Iowa's veterans didn't stop. He was instrumental in the creation of the Veterans Reception Center in Van Meter, where families and friends gather and pay their respects following the burial of a loved one or friend. It has helped bring the community of Van Meter, my hometown, together.

Mr. Speaker, it is an honor to represent Iowans like Bill in the United States Congress. He is generous, he is thoughtful, he doesn't forget where he came from, and he has spent a lifetime embodying Iowan values. He has given so much, he continues to give selflessly, and he puts others before himself in ways that we will probably never know. But that is okay if we don't know. He gives because it is the right thing to do. He is a humble soul with a big heart.

I ask that my colleagues in the United States House of Representatives join me in honoring Bill, an Iowa hero and legend.

Thank you and congratulations, Bill. We are proud of you.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until 2 p.m. today.

Accordingly (at 12 o'clock and 21 minutes p.m.), the House stood in recess.

□ 1400

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. THORNBERRY) at 2 p.m.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Almighty and merciful God, we give You thanks for giving us another day.

You are the shepherd of souls. During the 114th Congress, many guest chaplains have led the House in prayer. Today, we wish to lift up these leaders and their faith communities across this country.

Their prayers for this Nation and its government lingers in this room. Bless them for their efforts to renew people in faith, hope, and love. Inspire them as they preach and guide Your people in so many districts of this Nation.

May they never lord it over those assigned to them, but instead, be examples of servant leadership to all in the flock. And when Your glory is revealed, chief shepherd of us all, may all leaders in faith and government receive the unfading crown of glory.

Bless us this day and every day, and may all we do be for Your greater honor and glory.

THE JOURNAL

The SPEAKER pro tempore. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause one, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from Michigan (Mr. KILDEE) come forward and lead the House in the Pledge of Allegiance.

Mr. KILDEE led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

COMMEMORATING VIETNAM VETERANS APPRECIATION DAY

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, last Friday, May 6, marked Vietnam Veterans Appreciation Day, a day set aside by law in South Carolina to remember and thank our brave soldiers that fought heroically in the Vietnam war. To mark this day, the Combat Veterans Group held a Day of Remembrance ceremony to honor local Vietnam veterans across the State for their service.

I was grateful to join them and pay tribute to the courage and sacrifice of our veterans. I appreciate the service of Commander of the South Carolina Combat Veterans Group Tommy Olds, featured speaker retired Captain Walter Allen Mouzon, and Executive Director Renee Joy. The program was inspiring and uplifting for dedicated Vietnam veterans.

While serving as chairman of the Military Personnel Subcommittee of the House Armed Services Committee, I have visited Vietnam twice to monitor U.S.-Vietnamese efforts to recover MIAs. I was pleasantly surprised to find a deep affection by the Vietnamese for American servicemembers and a desire for stronger American-Vietnamese relationships of friendship.

I am especially grateful for the Vietnam service of the late Captain Michael Alan McCrory, Sr., a VMI graduate, of McLean, Virginia.

In conclusion, God bless our troops and may the President by his actions never forget September the 11th in the global war on terrorism.

HOUSE REPUBLICANS ARE FAILING TO DO THEIR JOB

(Mr. KILDEE asked and was given permission to address the House for 1 minute.)

Mr. KILDEE. Mr. Speaker, here we are back again, another week in Congress where Republicans in Congress continue to fail to do their job to act to protect American families in crisis.

Whether it is the ongoing water crisis in my hometown of Flint or the threat of the Zika virus, the American people look to us for action. They deserve action to protect American families. In my own hometown of 100,000

people, the people still cannot drink their water. It is a disaster.

Typically, as Americans, we come together to act. It is this body that brings us together as a Congress to act to protect Americans in their moment of greatest need. Yet, Republicans in Congress fail to do their job.

My bill, the Families of Flint Act, would provide relief evenly divided between the Federal and State government. No hearings in committee, no votes on the floor of the House of Representatives. The American people deserve a Congress that will do its job and will act on their interests.

Mr. Speaker, I ask that we immediately take up my bill.

HOUSTON FIRE DEPARTMENT ANSWERS THE ALARM

(Mr. POE of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. POE of Texas. Mr. Speaker, last Thursday, a chemical warehouse in my Texas district exploded into a startling inferno. Fiery containers of chemicals shot into the air like rockets. The smoke and heat were intense. But the Houston Fire Department quickly answered the alarm.

Mr. Speaker, over 200 firefighters from 32 fire stations responded to the hellish inferno. Spring Branch Elementary and nearby homes were evacuated. But the smoke and fire were conquered. The school and homes were saved. Not one person was injured.

Mr. Speaker, firefighters are a special breed. They risk their lives to save our lives. They restore order from chaos. These firefighters are to be thanked and appreciated. Firefighter courage and dedication to protecting us is part of what makes them a special breed.

While others flee in haste of impending danger, the firefighter, with sirens, red lights, horns, red and white trucks, charge into the jaws of heat, smoke, and fire to defeat and conquer danger.

Mr. Speaker, Houston firefighters answered the alarm—they always answer the alarm.

And that is just the way it is.

SALUTING HOUSTON MAYOR SYLVESTER TURNER

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Mr. Speaker, I rise to salute a caring mayor, the mayor of the city of Houston, Mayor Sylvester Turner.

Over the last couple of months, which is the first of his term, many challenges have confronted his administration, one of which was the terrible, devastating floods of mid-April when so many thousands, many of them mothers and children, were displaced in my congressional district. Because of those terrible storms, $400 million of cars were lost, people lost their jobs, and businesses were destroyed.

Mayor Turner continued to be that caring, steady hand working across political lines, working with the county judge, working with council members, and the Federal Government. One thing that he steadily did was listen to the council and the advice of his staff as I sat in meetings, taking ideas, establishing a relief fund, joining now with the Osteens in Lakewood, and having this wonderful concert to continue to provide relief, but yet showing the caring and loving nurturing of a father.

In the midst of all of this, he lost a dear brother, a Vietnam vet. But steady, strong, and determined, he continued to nurture those who could not help themselves.

What a pleasure to be able to work with a mayor, one who is ready to listen and to be able to answer the concerns of a constituency, but make hard decisions.

I salute you, Mayor Turner, as someone who cares about our city, and works with all of us to make their lives better and our city the best.

ONLY 6 PERCENT OF AMERICANS TRUST THE MEDIA

(Mr. SMITH of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Texas. Mr. Speaker, Americans' confidence in the national media continues to erode.

A Media Insight Project poll found that only 6 percent now say they have a great deal of confidence in the media. Americans are rightfully skeptical of the news they receive, as they believe it is riddled with inaccuracies and bias.

Nearly 90 percent say it is important for the media to get their facts correct in their news reports, which they often do not. Many said the media coverage of a particular event was one-sided. One respondent commented that, ''I'm also a bit scared for what other things they have gotten wrong or only given half-truths to.''

Media bias is both real and unfortunate. Americans will continue to distrust the national liberal media until the media stops telling them what to think.

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, May 10, 2016.

Hon. PAUL D. RYAN,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on May 10, 2016 at 9:26 a.m.:

That the Senate passed without amendment H.R. 4238.

That the Senate passed S. 546.

That the Senate agreed to S. Res. 457.

That the Senate agreed to S. Res. 458.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until approximately 3:30 p.m. today.

Accordingly (at 2 o'clock and 10 minutes p.m.), the House stood in recess.

□ 1530

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. DUNCAN of Tennessee) at 3 o'clock and 30 minutes p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

FALLEN HEROES FLAG ACT OF 2016

Mr. NUGENT. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2755) to provide Capitol-flown flags to the immediate family of firefighters, law enforcement officers, members of rescue squads or ambulance crews, and public safety officers who are killed in the line of duty.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2755

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Fallen Heroes Flag Act of 2016''.

SEC. 2. DEFINITIONS.

In this Act—

(1) the term ''Capitol-flown flag'' means a flag of the United States flown over the Capitol in honor of the deceased individual for whom the flag is requested;

(2) the terms ''chaplain'', ''firefighter'', ''law enforcement officer'', ''member of a rescue squad or ambulance crew'', and ''public agency'' have the meanings given such terms in section 1204 of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796b);

(3) the term ''immediate family member'', with respect to an individual, means—

(A) the spouse, parent, brother, sister, or child of the individual or a person to whom the individual stands in loco parentis; or

(B) any other person related to the individual by blood or marriage;

(4) the term ''public safety officer'' means an individual serving a public agency in an official capacity, with or without compensation, as a law enforcement officer, as a firefighter, or as a chaplain; and

(5) the term ''Representative'' includes a Delegate or Resident Commissioner to the Congress.

SEC. 3. PROVIDING CAPITOL-FLOWN FLAGS FOR FAMILIES OF FALLEN HEROES.

(a) IN GENERAL.—At the request of an immediate family member of a firefighter, law enforcement officer, member of a rescue squad or ambulance crew, or public safety officer who died in the line of duty, the Representative or Senator of the family may provide to the family a Capitol-flown flag, together with the certificate described in subsection (c).

(b) NO COST TO FAMILY.—A Capitol-flown flag provided under this section shall be provided at no cost to the family.

(c) CERTIFICATE.—The certificate described in this subsection is a certificate which is signed by the Speaker of the House of Representatives and the Representative, or the President pro tempore of the Senate and the Senator, providing the Capitol-flown flag, as applicable, and which contains an expression of sympathy for the family involved from the House of Representatives or the Senate, as applicable.

SEC. 4. REGULATIONS AND PROCEDURES.

(a) IN GENERAL.—Not later than 30 days after the date of enactment of this Act, the Architect of the Capitol shall issue regulations for carrying out this Act, including regulations to establish procedures (including any appropriate forms, guidelines, and accompanying certificates) for requesting a Capitol-flown flag.

(b) REVIEW.—The regulations issued under subsection (a) shall take effect upon approval by the Committee on House Administration of the House of Representatives and the Committee on Rules and Administration of the Senate.

SEC. 5. AUTHORIZATION OF APPROPRIATIONS.

There are authorized to be appropriated for each of fiscal years 2017 through 2022 such sums as may be necessary to carry out this Act, to be derived from amounts appropriated in each such fiscal year for the operation of the Architect of the Capitol, except that the aggregate amount appropriated to carry out this Act for all such fiscal years may not exceed $40,000.

SEC. 6. EFFECTIVE DATE.

This Act shall take effect on the date of enactment of this Act, except that a Capitol-flown flag may not be provided under section 3 until the regulations issued under section 4(a) take effect in accordance with section 4(b).

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida (Mr. NUGENT) and the gentleman from New Jersey (Mr. PASCRELL) each will control 20 minutes.

The Chair recognizes the gentleman from Florida.

GENERAL LEAVE

Mr. NUGENT. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and to include extraneous matter in the RECORD on the consideration of this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. NUGENT. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2755, the Fallen Heroes Flag Act. The bill before us would allow Members of Congress to honor our heroes with a United States flag flown over this Capitol. These brave individuals include firefighters, law enforcement officers, and members of rescue squads and ambulance crews. The measure gives us the opportunity to express our Nation's gratitude towards those who have answered the call to serve and protect our communities.

Our Nation's flag flown in their honor would also include a congressional certificate signed by both the Speaker of the House and the individual's Representative or the President pro tempore of the Senate and the Senator who is providing the flag for the family.

When most people are running away from danger, our Nation's first responders run towards it. Whether it is a firefighter rushing into a burning building, an EMT responding at high speed to save someone's life, or a police officer pursuing a routine traffic stop, the job puts these individuals in harm's way on a daily basis.

As our local communities know all too well, in far too many cases, brave men and women have paid the ultimate sacrifice to keep us safe in America. I stand here today with my colleagues to thank each responder for their service and dedication to their communities. They answer our calls for help. As an institution and as a nation, it is right for us to remember the sacrifice and honor that these individuals make for America's families.

As a 38-year veteran of law enforcement myself, it is a special honor to be able to stand here today and usher this legislation forward. I want to thank all of those who helped make this possible.

Mr. Speaker, I reserve the balance of my time.

Mr. PASCRELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I want to thank my friend from Florida, a former sheriff himself.

I rise today in strong support of S. 2755, the Fallen Heroes Flag Act of 2016.

I want to thank, also, Congressman PETER KING, who has been a strong supporter of the first responder community and for championing this issue for many, many years. I want to thank Senator ROY BLUNT and Senator CHUCK SCHUMER for helping move this bill through the Senate.

This bipartisan legislation will create a program to provide flags flown over the United States Capitol to the family members of public safety officers who are killed in the line of duty at no cost to the family.

Our first responders make tremendous sacrifices to keep our communities safe. Should one of those brave men or women make the ultimate sacrifice, the least we can do to recognize their contributions to society, show our gratitude for their service, and express our sympathy to their families for their loss is present them with a flag flown over the United States Capitol.

This bill has the strong support of the National Fraternal Order of Police and the Sergeants Benevolent Association.

Mr. Speaker, I urge my colleagues to support swift passage of this bipartisan legislation so we can send it on to the President for his signature.

Mr. Speaker, as the co-chair of law enforcement issues in the Congress, I cannot support this enough. This is a very important piece of legislation and will do a lot in terms of goodwill.

Mr. Speaker, I yield back the balance of my time.

Mr. NUGENT. Mr. Speaker, I yield myself the balance of my time.

I want to thank the gentleman from New Jersey for his support. We in law enforcement—and I still say ''we in law enforcement''—do appreciate it any time Congress reaches out and does something positive for our law enforcement families, even though it is after the fact.

This is one of those times where, as sheriff, I had to preside over in-the-line-of-duty deaths. As a rookie police officer outside of Chicago, my first year on the job, one of the guys that I went to the academy with was shot and killed. I moved to Florida and became a deputy sheriff and rose up the ranks to sheriff.

One of the things that I always worried about as a father and as a husband was: What am I leaving to my family? How are they going to be taken care of in the future? And what is going on in this country today in regards to belittling law enforcement? Trust me, we make mistakes, and I think that reasonable people understand that; but when you condemn a whole profession, it is unconscionable.

I think this is the type of thing that we need to do. I do appreciate this is very bipartisan in nature and that it is really lifting up all of our first responders. We think back to 9/11, when those firemen and police officers rushed into the Twin Towers and those that lost their lives as others were leaving the towers toward safety. They did the unthinkable, and that is to rush into a burning building. Or they rush in somewhere where they know there is an armed intruder. They do it on a daily basis. They don't ask for much, but we as Members of Congress really stand up for them and their families by this simple act.

This is not a huge, huge thing, but I will tell you what; to a grieving family, it is a small token of the appreciation that the United States of America, this Congress and the Senate, can bestow on a family in their deepest sorrow. It is not going to bring back their loved one, but I will tell you, they are going to look at that flag and remember the

fallen and how great a person they were.

So it is not just what we do today; it is really about what has happened. The gentleman from New Jersey talked about the Senate; and Mr. KING, from this House, from New York, moved this legislation through. It has been a pleasure to stand here today, to come here today and talk for all those who can't talk for themselves; they can't speak for themselves.

My 38 years in law enforcement was probably the best time of my life because I was actually doing something and protecting people on a regular basis. I can't think of a greater honor than to fly a flag of this Nation over this Capitol and give that to the grieving family of a fallen first responder. Mr. Speaker, knowing that this institution is behind them, so stand the American people.

Mr. Speaker, I urge my colleagues to support this legislation. I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise in support of S. 2755, the ''Fallen Heroes Flag Act of 2016,'' which allows Members and Senators, at the request of an immediate family member of a fallen emergency responder, to have a flag flown above the United States Capitol in their memory.

As a senior member of the House Committee on Homeland Security, I am intimately aware, as are my colleagues, of the great sacrifices made by our emergency responders.

This is why I am proud that earlier this Congress the House passed H.R. 2795, the FRIENDS Act, which I introduced.

I introduced the FRIENDS Act because it embodied the important and fundamental idea that we have an obligation to ensure that the first responders who protect our loved ones in emergencies, have the peace of mind that comes from knowing that their loved ones are safe while they do their duty.

S. 2755 and the FRIENDS Act embody the spirit of bipartisanship that is needed in this Congress.

These brave men and women who risk everything by running towards danger should be honored by this Congress by streamlining the process to have a flag flown above the U.S. Capitol in their memory.

Let us not forget the 15 brave volunteer firefighters who perished in the city of West, Texas, in 2013 when a fertilizer plant exploded.

This tragedy serves as a reminder of the risks and dangers undertaken each day by our firefighters and other first responders to keep us safe.

Since 1996 in the city of Houston there have been 20 firefighters that have lost their lives protecting others.

They are District Chief Ruben Lopez, Firefighter Steven C. Mayfield, Firefighter Lewis E. Mayo III, Firefighter Kimberly A. Smith, Captain Jay Paul Jahnke, Probationary Firefighter Kevin Wayne Kulow, Captain Grady Don Burke, Assistant Chief David Louis Moore, Captain James Arthur Harlow Sr., Captain Damion Jon Hobbs, Cadet Firefighter Cohnway Matthew Johnson, Captain Thomas William Dillion, Engineer Operator Robert Ryan Bebee, Firefighter/EMT Robert Herman Garner, IV, Captain Matthew Rena Renaud, Firefighter Anne McCormick Sullivan, Firefighter Daniel D Groover, Captain Dwight ''B.B.'' W Bazile, Firefighter Richard J Cano, and Cadet Steven Whitfield II.

Since 1860, 109 Houston Police officers have fallen in the line of duty.

In 2015 officer Richard K. Martin was killed when he was intentionally struck with a car when he was laying down spike strips during a pursuit.

I have on many occasions requested that U.S. Flags be flown above the Capitol in the memory of fallen first responders and presented them to the family members.

First responders are called to serve and few outside of their ranks can understand why they do the work that they do each day placing their lives in harm's way to save a stranger.

The greatest example of the selflessness of first responders was the hundreds of fire fighters, law enforcement officers, emergency management service personnel, port authority workers, and federal officers and agents who rushed into the Twin Towers on September 11th 2001, to save lives.

On that terrible day 366 first responders sacrificed their lives so others may live.

Mr. Speaker, I support S. 2755 because this bill streamlines the process to have a flag flown in the memory of the fallen emergency responders in this country.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Florida (Mr. NUGENT) that the House suspend the rules and pass the bill, S. 2755.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

PROMOTING RESPONSIBLE OPIOID MANAGEMENT AND INCORPORATING SCIENTIFIC EXPERTISE ACT

Mr. MILLER of Florida. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4063) to improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, to improve patient advocacy by the Secretary, and to expand the availability of complementary and integrative health, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4063

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Promoting Responsible Opioid Management and Incorporating Scientific Expertise Act'' or the ''Jason Simcakoski PROMISE Act''.

SEC. 2. IMPROVEMENT OF OPIOID SAFETY MEASURES BY DEPARTMENT OF VETERANS AFFAIRS.

(a) EXPANSION OF OPIOID SAFETY INITIATIVE.—

(1) INCLUSION OF ALL MEDICAL FACILITIES.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs shall expand the Opioid Safety Initiative of the Department of Veterans Affairs to include all medical facilities of the Department.

(2) GUIDANCE.—The Secretary shall establish guidance that each health care provider of the Department of Veterans Affairs, before initiating opioid therapy to treat a patient as part of the comprehensive assessment conducted by the health care provider, use the Opioid Therapy Risk Report tool of the Department of Veterans Affairs (or any subsequent tool), which shall include information from the prescription drug monitoring program of each participating State as applicable, that includes the most recent information to date relating to the patient that accessed such program to assess the risk for adverse outcomes of opioid therapy for the patient, including the concurrent use of controlled substances such as benzodiazepines, as part of the comprehensive assessment conducted by the health care provider.

(3) ENHANCED STANDARDS.—The Secretary shall establish enhanced standards with respect to the use of routine and random urine drug tests for all patients before and during opioid therapy to help prevent substance abuse, dependence, and diversion, including—

(A) that such tests occur not less frequently than once each year; and

(B) that health care providers appropriately order, interpret and respond to the results from such tests to tailor pain therapy, safeguards, and risk management strategies to each patient.

(b) PAIN MANAGEMENT EDUCATION AND TRAINING.—

(1) IN GENERAL.—In carrying out the Opioid Safety Initiative of the Department, the Secretary shall require all employees of the Department responsible for prescribing opioids to receive education and training described in paragraph (2).

(2) EDUCATION AND TRAINING.—Education and training described in this paragraph is education and training on pain management and safe opioid prescribing practices for purposes of safely and effectively managing patients with chronic pain, including education and training on the following:

(A) The implementation of and full compliance with the VA/DOD Clinical Practice Guideline for Management of Opioid Therapy for Chronic Pain, including any update to such guideline.

(B) The use of evidence-based pain management therapies, including cognitive-behavioral therapy, non-opioid alternatives, and non-drug methods and procedures to managing pain and related health conditions including medical devices approved or cleared by the Food and Drug Administration for the treatment of patients with chronic pain and complementary alternative medicines.

(C) Screening and identification of patients with substance use disorder, including drug-seeking behavior, before prescribing opioids, assessment of risk potential for patients developing an addiction, and referral of patients to appropriate addiction treatment professionals if addiction is identified or strongly suspected.

(D) Communication with patients on the potential harm associated with the use of opioids and other controlled substances, including the need to safely store and dispose of supplies relating to the use of opioids and other controlled substances.

(E) Such other education and training as the Secretary considers appropriate to ensure that veterans receive safe and high-quality pain management care from the Department.

(3) USE OF EXISTING PROGRAM.—In providing education and training described in paragraph (2), the Secretary shall use the Interdisciplinary Chronic Pain Management Training Team Program of the Department (or success program).

(c) PAIN MANAGEMENT TEAMS.—

(1) IN GENERAL.—In carrying out the Opioid Safety Initiative of the Department, the director of each medical facility of the Department shall identify and designate a pain management team of health care professionals, which may include board certified pain medicine specialists, responsible for coordinating and overseeing pain management therapy at such facility for patients experiencing acute and chronic pain that is noncancer related.

(2) ESTABLISHMENT OF PROTOCOLS.—

(A) IN GENERAL.—In consultation with the Directors of each Veterans Integrated Service Network, the Secretary shall establish standard protocols for the designation of pain management teams at each medical facility within the Department.

(B) CONSULTATION ON PRESCRIPTION OF OPIOIDS.—Each protocol established under subparagraph (A) shall ensure that any health care provider without expertise in prescribing analgesics or who has not completed the education and training under subsection (b), including a mental health care provider, does not prescribe opioids to a patient unless that health care provider—

(i) consults with a health care provider with pain management expertise or who is on the pain management team of the medical facility; and

(ii) refers the patient to the pain management team for any subsequent prescriptions and related therapy.

(3) REPORT.—

(A) IN GENERAL.—Not later than one year after the date of enactment of this Act, the director of each medical facility of the Department shall submit to the Under Secretary for Health and the director of the Veterans Integrated Service Network in which the medical facility is located a report identifying the health care professionals that have been designated as members of the pain management team at the medical facility pursuant to paragraph (1).

(B) ELEMENTS.—Each report submitted under subparagraph (A) with respect to a medical facility of the Department shall include—

(i) a certification as to whether all members of the pain management team at the medical facility have completed the education and training required under subsection (b);

(ii) a plan for the management and referral of patients to such pain management team if health care providers without expertise in prescribing analgesics prescribe opioid medications to treat acute and chronic pain that is non-cancer related; and

(iii) a certification as to whether the medical facility—

(I) fully complies with the stepped-care model of pain management and other pain management policies contained in Directive 2009-053 of the Veterans Health Administration, or successor directive; or

(II) does not fully comply with such stepped-care model of pain management and other pain management policies but is carrying out a corrective plan of action to ensure such full compliance.

(d) TRACKING AND MONITORING OF OPIOID USE.—

(1) PRESCRIPTION DRUG MONITORING PROGRAMS OF STATES.—In carrying out the Opioid Safety Initiative and the Opioid Therapy Risk Report tool of the Department, the Secretary shall—

(A) ensure access by health care providers of the Department to information on controlled substances, including opioids and benzodiazepines, prescribed to veterans who receive care outside the Department through the prescription drug monitoring program of each State with such a program, including by seeking to enter into memoranda of understanding with States to allow shared access of such information between States and the Department;

(B) include such information in the Opioid Therapy Risk Report; and

(C) require health care providers of the Department to submit to the prescription drug monitoring program of each State information on prescriptions of controlled substances received by veterans in that State under the laws administered by the Secretary.

(2) REPORT ON TRACKING OF DATA ON OPIOID USE.—Not later than 18 months after the date of the enactment of this Act, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the feasibility and advisability of improving the Opioid Therapy Risk Report tool of the Department to allow for more advanced real-time tracking of and access to data on—

(A) the key clinical indicators with respect to the totality of opioid use by veterans;

(B) concurrent prescribing by health care providers of the Department of opioids in different health care settings, including data on concurrent prescribing of opioids to treat mental health disorders other than opioid use disorder; and

(C) mail-order prescriptions of opioid prescribed to veterans under the laws administered by the Secretary.

(e) AVAILABILITY OF OPIOID RECEPTOR ANTAGONISTS.—

(1) INCREASED AVAILABILITY AND USE.—

(A) IN GENERAL.—The Secretary shall maximize the availability of opioid receptor antagonists approved by the Food and Drug Administration, including naloxone, to veterans.

(B) AVAILABILITY, TRAINING, AND DISTRIBUTING.—In carrying out subparagraph (A), not later than 90 days after the date of the enactment of this Act, the Secretary shall—

(i) equip each pharmacy of the Department with opioid receptor antagonists approved by the Food and Drug Administration to be dispensed to outpatients as needed; and

(ii) expand the Overdose Education and Naloxone Distribution program of the Department to ensure that all veterans in receipt of health care under laws administered by the Secretary who are at risk of opioid overdose may access such opioid receptor antagonists and training on the proper administration of such opioid receptor antagonists.

(C) VETERANS WHO ARE AT RISK.—For purposes of subparagraph (B), veterans who are at risk of opioid overdose include—

(i) veterans receiving long-term opioid therapy;

(ii) veterans receiving opioid therapy who have a history of substance use disorder or prior instances of overdose; and

(iii) veterans who are at risk as determined by a health care provider who is treating the veteran.

(2) REPORT.—Not later than 120 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on carrying out paragraph (1), including an assessment of any remaining steps to be carried out by the Secretary to carry out such paragraph.

(f) INCLUSION OF CERTAIN INFORMATION AND CAPABILITIES IN OPIOID THERAPY RISK REPORT TOOL OF THE DEPARTMENT.—

(1) INFORMATION.—The Secretary shall include in the Opioid Therapy Risk Report tool of the Department—

(A) information on the most recent time the tool was accessed by a health care provider of the Department with respect to each veteran; and

(B) information on the results of the most recent urine drug test for each veteran.

(2) CAPABILITIES.—The Secretary shall include in the Opioid Therapy Risk Report tool the ability of the health care providers of the Department to determine whether a health care provider of the Department prescribed opioids to a veteran without checking the information in the tool with respect to the veteran.

(g) NOTIFICATIONS OF RISK IN COMPUTERIZED HEALTH RECORD.—The Secretary shall modify the computerized patient record system of the Department to ensure that any health care provider that accesses the record of a veteran, regardless of the reason the veteran seeks care from the health care provider, will be immediately notified whether the veteran—

(1) is receiving opioid therapy and has a history of substance use disorder or prior instances of overdose;

(2) has a history of opioid abuse; or

(3) is at risk of becoming an opioid abuser as determined by a health care provider who is treating the veteran.

(h) DEFINITIONS.—In this section:

(1) The term ''controlled substance'' has the meaning given that term in section 102 of the Controlled Substances Act (21 U.S.C. 802).

(2) The term ''State'' means each of the several States, territories, and possessions of the United States, the District of Columbia, and the Commonwealth of Puerto Rico.

SEC. 3. STRENGTHENING OF JOINT WORKING GROUP ON PAIN MANAGEMENT OF THE DEPARTMENT OF VETERANS AFFAIRS AND THE DEPARTMENT OF DEFENSE.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary of Veterans Affairs and the Secretary of Defense shall ensure that the Pain Management Working Group of the Health Executive Committee of the Department of Veterans Affairs–Department of Defense Joint Executive Committee (Pain Management Working Group) established under section 320 of title 38, United States Code, includes a focus on the following:

(1) The opioid prescribing practices of health care providers of each Department.

(2) The ability of each Department to manage acute and chronic pain among individuals receiving health care from the Department, including training health care providers with respect to pain management.

(3) The use by each Department of complementary and integrative health and complementary alternative medicines in treating such individuals.

(4) The concurrent use by health care providers of each Department of opioids and prescription drugs to treat mental health disorders, including benzodiazepines.

(5) The practice by health care providers of each Department of prescribing opioids to treat mental health disorders.

(6) The coordination in coverage of and consistent access to medications prescribed for patients transitioning from receiving health care from the Department of Defense to receiving health care from the Department of Veterans Affairs.

(7) The ability of each Department to identify and treat substance use disorders among individuals receiving health care from that Department.

(b) COORDINATION AND CONSULTATION.—The Secretary of Veterans Affairs and the Secretary of Defense shall ensure that the working group described in subsection (a)—

(1) coordinates the activities of the working group with other relevant working groups established under section 320 of title 38, United States Code;

(2) consults with other relevant Federal agencies with respect to the activities of the working group; and

(3) consults with the Department of Veterans Affairs and the Department of Defense with respect to, reviews, and comments on the VA/DOD Clinical Practice Guideline for Management of Opioid Therapy for Chronic Pain, or any successor guideline, before any update to the guideline is released.

(c) CLINICAL PRACTICE GUIDELINES.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this Act, the Secretary of Veterans Affairs and the Secretary of Defense shall issue an update to the VA/DOD Clinical Practice Guideline for Management of Opioid Therapy for Chronic Pain.

(2) MATTERS INCLUDED.—In conducting the update under subsection (a), the Pain Management Working Group, in coordination with the Clinical Practice Guideline VA/DoD Management of Opioid Therapy for Chronic Pain Working Group, shall examine whether the Clinical Practical Guideline should include the following:

(A) Enhanced guidance with respect to—

(i) the coadministration of an opioid and other drugs, including benzodiazepines, that may result in life-limiting drug interactions;

(ii) the treatment of patients with current acute psychiatric instability or substance use disorder or patients at risk of suicide; and

(iii) the use of opioid therapy to treat mental health disorders other than opioid use disorder.

(B) Enhanced guidance with respect to the treatment of patients with behaviors or comorbidities, such as post-traumatic stress disorder or other psychiatric disorders, or a history of substance abuse or addiction, that requires a consultation or comanagement of opioid therapy with one or more specialists in pain management, mental health, or addictions.

(C) Enhanced guidance with respect to health care providers—

(i) conducting an effective assessment for patients beginning or continuing opioid therapy, including understanding and setting realistic goals with respect to achieving and maintaining an expected level of pain relief, improved function, or a clinically appropriate combination of both; and

(ii) effectively assessing whether opioid therapy is achieving or maintaining the established treatment goals of the patient or whether the patient and health care provider should discuss adjusting, augmenting , or discontinuing the opioid therapy.

(D) Guidelines to govern the methodologies used by health care providers of the Department of Veterans Affairs and the Department of Defense to taper opioid therapy when adjusting or discontinuing the use of opioid therapy.

(E) Guidelines with respect to appropriate case management for patients receiving opioid therapy who transition between inpatient and outpatient health care settings, which may include the use of care transition plans.

(F) Guidelines with respect to appropriate case management for patients receiving opioid therapy who transition from receiving care during active duty to post-military health care networks.

(G) Guidelines with respect to providing options, before initiating opioid therapy, for pain management therapies without the use of opioids and options to augment opioid therapy with other clinical and complementary and integrative health services to minimize opioid dependence.

(H) Guidelines with respect to the provision of evidence-based non-opioid treatments within the Department of Veterans Affairs and the Department of Defense, including medical devices and other therapies approved or cleared by the Food and Drug Administration for the treatment of chronic pain as an alternative to or to augment opioid therapy.

SEC. 4. REVIEW, INVESTIGATION, AND REPORT ON USE OF OPIOIDS IN TREATMENT BY DEPARTMENT OF VETERANS AFFAIRS.

(a) COMPTROLLER GENERAL REPORT.—

(1) IN GENERAL.—Not later than two years after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report on the Opioid Safety Initiative of the Department of Veterans Affairs and the opioid prescribing practices of health care providers of the Department.

(2) ELEMENTS.—The report submitted under paragraph (1) shall include the following:

(A) Recommendations on such improvements to the Opioid Safety Initiative of the Department as the Comptroller General considers appropriate.

(B) Information with respect to—

(i) deaths resulting from sentinel events involving veterans prescribed opioids by a health care provider of the Department;

(ii) overall prescription rates and prescriptions indications of opioids to treat non-cancer, non-palliative, and non-hospice care patients;

(iii) the prescription rates and prescriptions indications of benzodiazepines and opioids concomitantly by health care providers of the Department;

(iv) the practice by health care providers of the Department of prescribing opioids to treat patients without any pain, including to treat patients with mental health disorders other than opioid use disorder; and

(v) the effectiveness of opioid therapy for patients receiving such therapy, including the effectiveness of long-term opioid therapy.

(C) An evaluation of processes of the Department in place to oversee opioid use among veterans, including procedures to identify and remedy potential over-prescribing of opioids by health care providers of the Department.

(D) An assessment of the implementation by the Secretary of the VA/DOD Clinical Practice Guideline for Management of Opioid Therapy for Chronic Pain.

(b) QUARTERLY PROGRESS REPORT ON IMPLEMENTATION OF COMPTROLLER GENERAL RECOMMENDATIONS.—Not later than two years after the date of the enactment of this Act, and not later than 30 days after the end of each quarter thereafter, the Secretary of Veterans Affairs shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a progress report detailing the actions by the Secretary during the period covered by the report to address any outstanding findings and recommendations by the Comptroller General of the United States under subsection (a) with respect to the Veterans Health Administration.

(c) ANNUAL REVIEW OF PRESCRIPTION RATES.—Not later than one year after the date of the enactment of this Act, and not less frequently than annually for the following five years, the Secretary shall submit to the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives a report, with respect to each medical facility of the Department of Veterans Affairs, to collect and review information on opioids prescribed by health care providers at the facility to treat non-cancer, non-palliative, and non-hospice care patients that contains, for the one-year period preceding the submission of the report, the following:

(1) The number of patients and the percentage of the patient population of the Department who were prescribed benzodiazepines and opioids concurrently by a health care provider of the Department.

(2) The number of patients and the percentage of the patient population of the Department without any pain who were prescribed opioids by a health care provider of the Department, including those who were prescribed benzodiazepines and opioids concurrently.

(3) The number of non-cancer, non-palliative, and non-hospice care patients and the percentage of such patients who were treated with opioids by a health care provider of the Department on an inpatient-basis and who also received prescription opioids by mail from the Department while being treated on an inpatient-basis.

(4) The number of non-cancer, non-palliative, and non-hospice care patients and the percentage of such patients who were prescribed opioids concurrently by a health care provider of the Department and a health care provider that is not health care provider of the Department.

(5) With respect to each medical facility of the Department, information on opioids prescribed by health care providers at the facility to treat non-cancer, non-palliative, and non-hospice care patients, including information on—

(A) the prescription rate at which each health care provider at the facility prescribed benzodiazepines and opioids concurrently to such patients and the aggregate such prescription rate for all health care providers at the facility;

(B) the prescription rate at which each health care provider at the facility prescribed benzodiazepines or opioids to such patients to treat conditions for which benzodiazepines or opioids are not approved treatment and the aggregate such prescription rate for all health care providers at the facility;

(C) the prescription rate at which each health care provider at the facility prescribed or dispensed mail-order prescriptions of opioids to such patients while such patients were being treated with opioids on an inpatient-basis and the aggregate of such prescription rate for all health care providers at the facility; and

(D) the prescription rate at which each health care provider at the facility prescribed opioids to such patients who were also concurrently prescribed opioids by a health care provider that is not a health care provider of the Department and the aggregate of such prescription rates for all health care providers at the facility.

(6) With respect to each medical facility of the Department, the number of times a pharmacist at the facility overrode a critical drug interaction warning with respect to an interaction between opioids and another medication before dispensing such medication to a veteran.

(d) INVESTIGATION OF PRESCRIPTION RATES.—If the Secretary determines that a prescription rate with respect to a health care provider or medical facility of the Department conflicts with or is otherwise inconsistent with the standards of appropriate and safe care, the Secretary shall—

(1) immediately notify the Committee on Veterans' Affairs of the Senate and the Committee on Veterans' Affairs of the House of Representatives of such determination, including information relating to such determination, prescription rate, and health care provider or medical facility, as the case may be; and

(2) through the Office of the Medical Inspector of the Veterans Health Administration, conduct a full investigation of the health care provider or medical facility, as the case may be.

(e) PRESCRIPTION RATE DEFINED.—In this section, the term ''prescription rate'' means, with respect to a health care provider or medical facility of the Department, each of the following:

(1) The number of patients treated with opioids by the health care provider or at the medical facility, as the case may be, divided by the total number of pharmacy users of that health care provider or medical facility.

(2) The average number of morphine equivalents per day prescribed by the health care provider or at the medical facility, as the case may be, to patients being treated with opioids.

(3) Of the patients being treated with opioids by the health care provider or at the medical facility, as the case may be, the average number of prescriptions of opioids per patient.

SEC. 5. MANDATORY DISCLOSURE OF CERTAIN VETERAN INFORMATION TO STATE CONTROLLED SUBSTANCE MONITORING PROGRAMS.

Section 5701(l) of title 38, United States Code, is amended by striking ''may'' and inserting ''shall''.

SEC. 6. MODIFICATION TO LIMITATION ON AWARDS AND BONUSES.

Section 705 of the Veterans Access, Choice, and Accountability Act of 2014 (Public Law 113–146; 38 U.S.C. 703 note) is amended to read as follows:

''SEC. 705. LIMITATION ON AWARDS AND BONUSES PAID TO EMPLOYEES OF DEPARTMENT OF VETERANS AFFAIRS.

''The Secretary of Veterans Affairs shall ensure that the aggregate amount of awards and bonuses paid by the Secretary in a fiscal year under chapter 45 or 53 of title 5, United States Code, or any other awards or bonuses authorized under such title or title 38, United States Code, does not exceed the following amounts:

''(1) With respect to each of fiscal years 2017 through 2021, $230,000,000.

''(2) With respect to each of fiscal years 2022 through 2024, $360,000,000.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida (Mr. MILLER) and the gentleman from North Carolina (Mr. BUTTERFIELD) each will control 20 minutes.

The Chair recognizes the gentleman from Florida.

GENERAL LEAVE

Mr. MILLER of Florida. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend or add any extraneous material to their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. MILLER of Florida. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4063, as amended, the Promoting Responsible Opioid Management and Incorporating Scientific Expertise—or the Jason Simcakoski PROMISE—Act.

When our Nation's servicemembers transition from military life to civilian life, they carry with them the skills, experiences, memories, and relationships that will last a lifetime. Unfortunately, many of them also carry significant pain as a result of injuries that they incurred while in service to this great Nation.

Veterans, in general, experience chronic pain at a higher rate than their nonveteran counterparts. What is more, chronic pain is one of the most frequent conditions facing the veterans of Iraq and Afghanistan.

Effectively managing this pain, which often occurs alongside a number of other comorbid conditions, is a challenge for which the Department of Veterans Affairs has been increasingly turning to opioid-based medications to meet that challenge.

Now, while opioids, when used appropriately, can be effective in treating pain, opioid medications are extremely high risk. Unfortunately, VA's own research has found that veterans are at an increased risk for many adverse outcomes that may accompany opioid use, including substance abuse, overdose, and self-inflicted injuries.

Given that, VA's recent reliance on opioid medications to manage veteran pain is alarming. According to a CBS News report on VA data, the number of opioid prescriptions written by VA providers rose an astonishing 259 percent from 2002 to 2013. During that same time period, VA's total patient population increased only 29 percent.

The sad reality behind an overreliance on opioids became apparent at the VA Medical Center at Tomah, Wisconsin, last year. In response to a series of complaints made in 2011 and 2012, the VA Office of the Inspector General conducted a review of alleged inappropriate prescribing of controlled substances and abuse of authority at the Tomah VA Medical Center. The IG found that the number of opioids prescribed in Tomah was ''at considerable variance'' with the other VA medical facilities in that region and was a cause for ''potentially serious concerns.''

□ 1545

It is no wonder that the veterans being treated in Tomah commonly referred to it as ''Candy Land'' and to the facility chief of staff as the ''Candy Man.'' Jason Simcakoski was one veteran who was being treated by the Tomah VA Medical Center.

In August of 2014, Jason died from the combined effect of the multiple prescription medications he received as an in-patient. He put his trust in a system that ultimately failed him.

He left behind a young daughter and a grieving family, some of whom are with us today. Unfortunately, the failures in Tomah, the failures that led to Jason's death, are not isolated. There are countless others just like him in the VA across this country.

Chronic pain and the conditions that frequently accompany it are undoubtedly complex, and concerns about an overreliance on opioids are certainly not unique to the Department of Veterans Affairs.

But the VA alone has the responsibility to treat our Nation's most heroic citizens, meaning VA does have a unique responsibility to act responsibly.

The bill before us would help the Department do just that by improving and expanding opioid safety initiatives, strengthening the VA/Department of Defense joint working group on pain management, mandating that VA medical facilities disclose information to State-controlled substance monitoring programs, and requiring VA review, investigate, and report on the use of opioids among veteran patients.

The manager's amendment to H.R. 4063 would require the Department and DOD to update their joint clinical practice guidelines for the management of opioid therapy to reflect the latest medical practices.

The bill would also direct VA to ensure that every employee who prescribes opioids receives education and training on pain management and safe prescribing practices and every VA medical facility has a designated pain management team.

It would further require VA to maximize the availability of Food and Drug Administration-approved opioid receptor antagonists to ensure that veterans most at risk of opioid overdose have access to and training on potentially life-saving drugs that can counter the devastating effects of an opioid overdose.

I am grateful to the vice chairman of the full Veterans' Affairs Committee, GUS BILIRAKIS, for sponsoring this legislation. I urge all of my colleagues to join me in supporting it.

I reserve the balance of my time.

COMMITTEE ON ARMED SERVICES,
HOUSE OF REPRESENTATIVES,
Washington, DC, May 9, 2016.

Hon. JEFF MILLER,
Chairman, Committee on Veterans' Affairs, House of Representatives, Washington, DC.

DEAR MR. CHAIRMAN: I am writing to you concerning the bill H.R. 4063, the Jason Simcakoski PROMISE Act. There are certain provisions in the legislation which fall within the Rule X jurisdiction of the Committee on Armed Services.

In the interest of permitting your committee to proceed expeditiously to floor consideration of this important bill, I am willing to waive this committee's right to sequential referral. I do so with the understanding that by waiving consideration of the bill the Committee on Armed Services does not waive any future jurisdictional claim over the subject matters contained in the bill which fall within its Rule X jurisdiction. I request that you urge the Speaker to name members of this committee to any conference committee which is named to consider such provisions.

Please place this letter into the committee report on H.R. 4063 and into the Congressional Record during consideration of the

measure on the House floor. Thank you for the cooperative spirit in which you have worked regarding this matter and others between our respective committees.

Sincerely,

WILLIAM M. ''MAC'' THORNBERRY,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON VETERANS' AFFAIRS,
Washington, DC, May 10, 2016.

Hon. WILLIAM M. ''MAC'' THORNBERRY,
Chairman, Committee on Armed Services, House of Representatives, Washington, DC.

DEAR MR. CHAIRMAN, Thank you for your letter regarding H.R. 4063, as amended, the Jason Simcakoski PROMISE Act.

I agree that the Committee on Armed Services has valid jurisdictional claims to certain provisions in this legislation and I appreciate your decision not to request a referral in the interest of expediting consideration of the bill.

I agree that by foregoing a sequential referral to H.R. 4063, as amended, the Committee on Armed Services is not waiving its jurisdiction.

This exchange of letters will be included in the Committee's report on H.R. 4063, as amended.

If you have any further questions or concerns, please contact Christine Hill, Staff Director for the Subcommittee on Health.

Thank you for your commitment to the well-being of our nation's veterans.

With warm personal regards, I am,

Sincerely,

JEFF MILLER,
Chairman.

Mr. BUTTERFIELD. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4063, as amended, the Jason Simcakoski PROMISE Act.

I would like to thank my friend from Florida, the vice chair of the committee, Congressman GUS BILIRAKIS, for introducing this bill and for his passionate leadership on this very important issue.

Mr. Speaker, I also would like to take a moment to thank Chairman MILLER for his extraordinary leadership on this bill and on issues that pertain to veterans generally. I thank the chairman so much for all of his work. In fact, the rumor among our colleagues is that he runs the most bipartisan committee on Capitol Hill. I thank him for his leadership.

The epidemic of opioid addiction and overdose deaths is a national problem. It is a public health crisis, Mr. Speaker, that affects constituents living in all of our districts and all of our States.

Opioid use disorder is a chronic relapsing disease of the brain. Yet, the stigma associated with opioid use disorder keeps people from seeking, accessing, or maintaining treatment.

In 2014, according to The New York Times, over 47,000 people died from a drug overdose. That is 125 Americans each day who lost their lives due to addiction or abuse. Of these, more than 61 percent involved opioids.

Across the country, Mr. Speaker, nearly 260 million prescriptions are written for opioids, enough, according to the Centers for Disease Control, for every American adult to have their own bottle of pills that can be highly, highly addictive.

In my home State of North Carolina, fatal drug overdoses have jumped 75 percent since 2002. According to an article in February from The Charlotte Observer, nearly half of the accidental drug overdose deaths in 2010 were associated with prescriptions that had been filled within 60 days of death.

It is estimated that North Carolina has spent over $582 million in healthcare costs stemming from opioid abuse. This is nearly $59 for each man, woman, and child in my home State of North Carolina. This is a healthcare problem, Mr. Speaker, that affects all levels of our society. One of the main drivers is the overprescription of opioids to manage pain.

Veterans are at an even greater risk. The statistics on veterans experiencing chronic pain are absolutely staggering. Over 50 percent of all veterans enrolled and receiving care at VA medical facilities experience chronic pain, with over half a million veterans managing pain with prescribed opioids. Compared to the general population, veterans are prescribed opioids at a much, much higher rate.

But there is a growing awareness that the long-term prescription of opioids to manage chronic pain can have severe and sometimes tragic—yes, tragic—consequences. It has been reported that veterans, our beloved veterans, are twice as likely to die from accidental overdose compared to nonveterans.

As a Member of Congress that represents the ''Nation's Most Military Friendly State''—and we like to say that all of the time—and as an Army veteran, as I am myself, I am alarmed and committed to bringing about a solution.

But addressing this crisis will not be easy. The Veterans' Affairs Committee members know that so very well. It is not going to be easy. It will take the work of all of us working together. It will take education. It will take research into more effective and less addictive ways to treat chronic pain.

It will take the combined work, Mr. Speaker, of our States and the Federal Government to address what the CDC has termed ''the worst drug addiction epidemic in the country's history,'' and the chief medical officer of my State's medical board has called it ''an unequivocal health crisis.''

This bill, Mr. Speaker, we are debating today marks a major step forward, and it will go a very long way in helping to lessen this public health emergency.

Mr. Speaker, I reserve the balance of my time.

Mr. MILLER of Florida. Mr. Speaker, I yield 5 minutes to the gentleman from Florida (Mr. BILIRAKIS) of the 12th District of Florida, the vice chairman of the full committee, somebody who has been a stalwart on this and many other veteran issues.

Mr. BILIRAKIS. Mr. Speaker, I thank the chairman and the ranking member. I appreciate it.

I rise in support of my bill, H.R. 4063, the Promoting Responsible Opioid Management and Incorporating Scientific Expertise, or the Jason Simcakoski PROMISE Act.

This important bill helps us fulfill our promise to past, current, and future veterans, our true American heroes, Mr. Speaker.

I introduced the PROMISE Act in response to the tragic death of Marine Corps Corporal Jason Simcakoski at the Tomah, Wisconsin, VA Medical Center.

Jason's death, caused by a mixed drug toxicity and the combination of various medications, was an avoidable tragedy. My colleagues and I worked with local veterans, veterans organizations, and other stakeholders to get this done right.

I am honored to discuss the need for this bill in the presence of Jason's family, who join us in the Capitol on this memorable day. We could not do it without them.

The PROMISE Act can't bring Jason and others like him back. But, like Jason's family expressed to me, this will ensure future veterans get the treatment they need for their physical and invisible wounds.

Currently, VA treatment for chronic pain is largely the prescription of opioids without consideration of a patient's personal history or preferences. Unfortunately, there is a lack of data on veteran opioid use. There are also inefficiencies in the VA identifying abuse of opioids and with patient follow-up to determine effectiveness of these drugs on a case-by-case basis.

The PROMISE Act is the congressional action needed to rectify these problems. The PROMISE Act increases safety for opioid therapy and pain management, ensures more transparency at the VA, and encourages more outreach and awareness of the patient advocacy program for veterans.

My bill also acknowledges that VA patient services do not stop at the initial consultation. It requires the VA to maintain realtime tracking of data on opioid use to help prevent overmedication and misuse or overuse of medication.

I want to thank Speaker RYAN; Representative BUTTERFIELD, of course; our great chairman, Mr. MILLER from Florida, a real good friend of mine; Representative KIND, Representative RICE, and many others who supported this bill and worked to make this happen.

I urge my colleagues to support this bill to uphold our commitment and promise to those that pay the ultimate sacrifice.

Mr. BUTTERFIELD. Mr. Speaker, I yield such time as he may consume to the gentleman from Wisconsin (Mr. KIND), and I thank Mr. KIND for coming to the floor. There is not a Member of this body who works harder than him on issues that pertain to veterans.

(Mr. KIND asked and was given permission to revise and extend his remarks.)

Mr. KIND. Mr. Speaker, I thank my good friend from North Carolina for yielding me this time.

Mr. Speaker, I rise in strong support of the Jason Simcakoski PROMISE Act.

Jason was a veteran who unfortunately saw his life end way too soon while receiving treatment at the Tomah VA Medical Center in the heart of my congressional district.

I want to thank, first of all, Subcommittee Chairman BILIRAKIS for the leadership and support that he has shown this legislation. He has been a real joy to work with.

I want to thank Chairman MILLER for the leadership he has provided the committee and for the concern and the attention that he has given to all of our veterans throughout our country.

I want to thank Representative BUTTERFIELD and the other members of the committee for the strong bipartisan support that this legislation enjoys on the floor today.

Jason was born in Stevens Point, Wisconsin, in 1978 in my congressional district. He is the son of Marvin and Linda Simcakoski. He is a graduate of Stevens Point Pacelli High School.

Shortly after his graduation, he joined the Marine Corps, where he reached the rank of corporal, receiving the Sea Service Deployment Ribbon with one star, a Certificate of Commendation, the Rifle Sharp Shooters Badge, and the Good Conduct Medal. He was honorably discharged in February of 2002. Jason loved being a marine, and he was very proud to serve his country.

He married Heather in 2010 in Stevens Point, and they had a beautiful daughter named Anaya. I am proud that many members of Jason's family came out to Washington this week to see the passage of this bill today: his mother Linda, his wife Heather, his daughter Anaya, who are in the Chamber with us today. His father, Marvin, who was also intimately involved in helping draft this legislation and see it through, was unfortunately unable to attend.

But I commend all of them because this is how legislation is meant to work, by reaching out to veterans organizations, getting direct feedback from the veterans themselves, their families, healthcare providers. We have known for some time that we have had a pain management problem not just in the VA medical system, but throughout our entire healthcare system.

This unfortunately came to light through numerous investigations at the Tomah VA Medical Center over the course of the last few years, which ultimately helped and precipitated the legislation that we have before us today.

□ 1600

Jason's family's guiding star in all of this, based on the numerous conversations that I have had with them and that they have had with Chairman BILIRAKIS and even with Speaker RYAN, was to ensure that the care and the treatment that our veterans receive be enhanced so that no veteran and no family would have to go through and endure what they did.

Jason was receiving pain management and was under the opioid medication at Tomah. This legislation, I think, advances that goal. I don't think anyone can be here with absolute certitude and promise a family or future veterans that mistakes won't happen in the future; but I think what is contained in this legislation is a significant step in the right direction, with the understanding that more work is needed.

The bill would require a review and an update of the VA's Clinical Practice Guideline for the Management of Opioid Therapy for Chronic Pain. It requires all opioid prescribers at the VA to have enhanced pain management and safe opioid prescribing education and training. It improves the realtime tracking of and access to data on the opioid use of veterans in order to prevent overmedication. It provides additional resources to assist the VA's ability to counter overdoses. It expands the Opioid Safety Initiative to all VA medical facilities. It updates the Joint Working Group of the VA and DOD to focus on opioid prescribing practices, the use of alternative pain therapy, and the coordination when a servicemember transitions from the DOD into the VA care setting. It also encourages the use of alternative and complementary forms of pain management. Lastly, it requires the VA to report on prescription rates so we can better assess the problem and find solutions.

This is a work in progress not just within the VA system, not just with the reforms that are currently being implemented at the Tomah VA Medical Center in my congressional district, but throughout the entire healthcare system. We as a Nation have not done a very good job of managing pain at all levels. I am glad and I am proud that this Congress sees the need to move forward on a comprehensive opioid legislation bill. Hopefully we can get that to the finish line yet this year. There is also a major VA reform bill that we are working on—excellent vehicles in order to include some of the provisions of this legislation as we move forward.

If there is any hope and promise that out of the tragedy of Jason's death good things can come of it, I think the legislation that we have before us today, the Jason Simcakoski PROMISE Act, gives us that hope and gives us that opportunity. I couldn't think of a more powerful legacy in Jason's name than this legislation.

I ask all of my colleagues to give their support of this legislation today. Again, I thank the leadership of the Committee on Veterans' Affairs for the help, the assistance, and the focus that they have provided on this important piece of legislation.

The SPEAKER pro tempore. Members are reminded that it is not in order to introduce to the House individuals present in the gallery.

Mr. MILLER of Florida. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. I thank the gentleman from Florida for yielding and for his efforts and the efforts of all of those who are involved in this legislation.

Mr. Speaker, my concern here is twofold. First of all, as a pharmacist with over 30 years of experience and practice, this is a deep concern of mine.

Secondly, I believe we have a duty to our servicemen and -women who have sacrificed their lives to serve and protect our country. Studies have shown that soldiers and veterans use opioid painkillers far more frequently than civilians because their military training and combat lead to far more injuries. In fact, a report by the American Public Health Association found that the fatal overdose rate among VA patients is nearly double the national average. Something needs to be done. The VA is doing a disservice to our veterans by prescribing too many opioids at too high quantities. That is why H.R. 4063 is so important.

H.R. 4063 directs the Department of Defense and the Department of Veterans Affairs to jointly update the VA/DOD Clinical Practice Guideline for the Management of Opioid Therapy for Chronic Pain so it adequately reflects the current environment we face with opioid abuse. It also directs the VA to modify and establish initiatives and protocols to better address the misuse of opioids by our veterans.

These changes, I believe, will be one step toward ensuring that the services provided to our men and women of the military will improve their overall care and will move us closer to fulfilling our duty of servicing our servicemen and -women.

I ask all of my colleagues to support this legislation.

Mr. BUTTERFIELD. Mr. Speaker, I yield myself such time as I may consume.

It is bipartisan legislation like this that makes me proud to be a Member of the United States Congress. I want to thank each one of my colleagues for his role in making this day happen.

I thank Jason's family. I am not going to single them out except to make reference to them. I just want to thank Jason's family for making the journey to Washington today for this very important and momentous occasion.

Mr. Speaker, I yield back the balance of my time.

Mr. MILLER of Florida. Mr. Speaker, I yield myself such time as I may consume.

I wish that we did not have to discuss this tragedy today on the floor. Jake is not with us, not by his choice. His wife is a widow; his daughter is now fatherless; his parents lost a son.

Why? Why did he die of a drug overdose inside of the very hospital in which he sought protection?

Mr. Speaker, I hope that all Members will support this legislation today. It is not that it will bring Jake back, but it may prevent this from occurring to another veteran in the future.

I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise in strong support of H.R. 4063, the ''Promise Act.''

H.R. 4063 directs the Department of Veterans Affairs (VA) and the Department of Defense (DOD) to jointly update their respective clinical practice guidelines.

The practice guideline pertains to the management of Opioid Therapy for Chronic Pain.

The guidelines spell out procedures for: (1) prescribing opioids for outpatient treatment, (2) (con-tra-in-di-ca-tions) contraindications for opioid therapy, (3) treatment of patients with post-traumatic stress disorder, (4) psychiatric disorders, or a history of substance abuse or addiction, (5) and management transitioning patients.

The guidelines also prescribe routine and random urine drug tests, as well as treatment options to augment opioid therapy designed to minimize opioid dependence.

This bill examines the VA's evidence-based therapy treatment model for treating veterans' mental health conditions.

The Department of Veterans Affairs (VA) will be expected to update safety measures for opioid therapy, expand the use of alternative medicine, and conduct audits of the VA health care system through a nongovernment entity.

The VA will be required to request documentation of medical license violations during the past 20 years and any settlement agreements for medical-related disciplinary charges from the medical board, of each state.

All VA medical facilities will implement the opioid safety initiative and train employees to effectively dispense pain management techniques through the establishment of pain management teams.

Enhancing national oversight, the VA is also expected to track and monitor opioid use and access to state program information, increase the availability of Food and Drug Administration-approved opioid receptor antagonists, and modify the computerized patient record system, as well as internal audits.

Adjusting the computerized patient record system will ensure that health care providers accessing veterans' records are notified of their use of opioid therapy.

This system also informs health care providers of substance use disorder or opioid abuse histories.

The Promise Act of 2016 institutes pilot programs within the VA to evaluate the feasibility of wellness programs complementing veteran pain management and related health care services.

I support this legislation because it will promote safety measures for opioid therapy and alternative medicine.

H.R. 4063 is a positive step in the right direction and I urge my colleagues to join me in supporting its passage.

Mrs. LAWRENCE. Mr. Speaker, I stand today in support of H.R. 4063, the Jason Simcakoski PROMISE Act. As those who defend our liberty return home from service, their fight for freedom internalizes. The homecoming of our nation's veterans often marks their entrance into a new war—a constant battle against a visceral and intangible enemy: substance abuse. As we pass this important legislation, we afford our veterans the adequate support to fight this uphill battle, thus allowing our nation's fallen soldiers to rise as they repeatedly repel attacks from addiction. We must pass the PROMISE Act, because if we do not look out for the protectors of our freedom, who will look out for us?

Through my experiences as an EOE investigator at the USPS, I saw firsthand the divisive consequences of substance abuse on addicts, their loved ones, and communities as a whole. The PROMISE Act will bring nationwide uniformity to opioid addiction prevention efforts by implementing opioid treatment and therapy guidelines, expanding VA safety initiatives, and establishing research-based committees to measure the quality of treatment methods. While some may question why we are voting today to help those who have broken our nation's laws, just consider: who were the citizens that protected our freedom and nurtured our liberty when they were called upon? Now that our soldiers are the ones in need, who are we to deny them?

Just as veterans took on the duty of defending our communities, we must come together to halt the increasing opioid addiction rate for the sake of veterans and the good of America as a whole. The PROMISE Act will serve to acknowledge veterans' selfless sacrifice by establishing a forgotten American ideal: that we as a nation will always care for those who protect and defend our freedom. While no amount of money could ever buy back that which was sacrificed in the name of liberty, the passage of this legislation will alleviate some of the hardships faced by opioid-dependent veterans. As we look to find the most effective methods for treating opioid addiction, the PROMISE Act will serve as a strong step toward reversing our nation's substance abuse epidemic.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Florida (Mr. MILLER) that the House suspend the rules and pass the bill, H.R. 4063, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The title of the bill was amended so as to read: ''A bill to improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, and for other purposes.''.

A motion to reconsider was laid on the table.

ARIEL RIOS FEDERAL BUILDING

Mr. CURBELO of Florida. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4957), to designate the Federal building located at 99 New York Avenue, N.E., in the District of Columbia as the ''Ariel Rios Federal Building.''

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4957

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. DESIGNATION.

The Federal building located at 99 New York Avenue, N.E., in the District of Columbia shall be known and designated as the ''Ariel Rios Federal Building''.

SEC. 2. REFERENCES.

Any reference in a law, map, regulation, document, paper, or other record of the United States to the Federal building referred to in section 1 shall be deemed to be a reference to the ''Ariel Rios Federal Building''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Florida (Mr. CURBELO) and the gentleman from Indiana (Mr. CARSON) each will control 20 minutes.

The Chair recognizes the gentleman from Florida.

GENERAL LEAVE

Mr. CURBELO of Florida. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on H.R. 4957.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. CURBELO of Florida. Mr. Speaker, I yield myself such time as I may consume.

H.R. 4957 would designate the Federal building located at 99 New York Avenue, N.E., in the District of Columbia, as the Ariel Rios Federal Building.

I am pleased to be a cosponsor of this legislation, along with the chairman and ranking member of the Subcommittee on Economic Development, Public Buildings, and Emergency Management—my colleague from Pennsylvania (Mr. BARLETTA) and my colleague from Indiana (Mr. CARSON).

Special Agent Ariel Rios joined the Bureau of Alcohol, Tobacco, Firearms and Explosives in 1978, where he became one of the most effective agents who was assigned to then-Vice President George H. W. Bush's task force. Special Agent Rios worked as an undercover agent as part of the task force.

During his undercover assignment in 1982, he and another agent arranged to meet two suspects at a motel in Miami, Florida, to purchase large quantities of drugs and machine guns. A confrontation ensued and, during a struggle, Special Agent Rios was shot and was seriously wounded. He died shortly after in the hospital on December 2, 1982.

Special Agent Rios received a number of posthumous awards, including the Secretary of the Treasury's Exceptional Service Award and a Meritorious Service Award from the Dade County Chiefs of Police Association. The previous location of the ATF headquarters on Pennsylvania Avenue bore his name for 27 years. During that time, the ATF relocated to a new headquarters building, and the old building was occupied by another agency and was renamed. H.R. 4957 would appropriately name the current location of the ATF headquarters after Special Agent Rios.

I am very proud to recognize this American hero who so sadly perished while protecting the people of Miami, my hometown, from crime and drugs. As a Member with the honor of representing south Florida in Congress, I thank Special Agent Rios for his service to our country, and I thank his family for their sacrifice of such a brave person on behalf of all of us.

Mr. Speaker, I reserve the balance of my time.

Mr. CARSON of Indiana. Mr. Speaker, I yield myself such time as I may consume.

I thank Representative CURBELO.

I am pleased that this bill is being considered by the House this afternoon during National Police Week. I also appreciate Subcommittee Chairman BARLETTA's support of this measure and the support of the other members of the Committee on Transportation and Infrastructure, who also agreed to be original cosponsors of this great bill, which would name the current headquarters of the Bureau of Alcohol, Tobacco, Firearms and Explosives, or the ATF, after fallen Special Agent Ariel Rios.

As was mentioned by my colleague, Agent Rios was born in 1954. He attended the John Jay College of Criminal Justice in Manhattan, and he graduated with a degree in criminal justice in 1976. Agent Rios immediately started his career in criminal justice by working for the Department of Corrections in both Washington, D.C., and in New York City. Later, he joined the ATF in 1978 and developed a reputation as an effective law enforcement officer.

In 1982, Agent Rios was working as a member of Vice President George H. W. Bush's anti-drug task force. It was here that he was shot and killed while working undercover to unravel a drug ring in Miami, Florida.

In 1985, Congress saw fit to honor the ultimate sacrifice that Special Agent Rios made. Congress acknowledged the fact that he was the first ATF agent to die in the line of duty by naming the headquarters of the ATF building the Ariel Rios Memorial Building. This name stood for nearly 30 years until the building was renamed for President Clinton in 2012 so as to reflect the fact that the old building now housed the EPA. Unfortunately, the ''Ariel Rios'' name was not transferred to the new ATF headquarters.

This bill seeks to correct this omission and name the new ATF headquarters as the Ariel Rios Federal Building.

As a former police officer, I have a special appreciation for the risks that face officers each and every day. Agent Rios' death serves as a reminder that when law enforcement officers walk out the door and leave their families for the day, they are putting their lives on the line to protect our communities.

It is fitting that the House is considering this legislation during National Police Week, which is an annual event when thousands of law enforcement officers from around the world travel to Washington, D.C., to participate in events that honor those who have been killed in the line of duty. By naming the ATF headquarters after Mr. Rios, a front line law enforcement officer, we offer a very public tribute to the commemoration of the sacrifices that too many officers have made.

This legislation comes at the request of many current and former agents who would not rest until this recognition was restored to Special Agent Rios. Because of their tireless efforts, the House will vote today to restore the name of Special Agent Rios to the ATF headquarters. This is an overdue and well-deserved acknowledgment of both Special Agent Rios and of the nearly 20,000 law enforcement agents who have died in the line of duty in the United States of America.

In closing, Mr. Speaker, I am very pleased that so many on both sides of the aisle from our committee have agreed to cosponsor this legislation. I am also honored that Mr. ROGERS, the chairman of the Committee on Appropriations, supports this bill.

Former President George H. W. Bush has written Congress in support of naming this building after Special Agent Rios, as have several former Directors of the ATF and as have several organizations that represent law enforcement officers.

I am very proud that this legislation is being considered today, and I urge my colleagues to support my bipartisan bill that honors Special Agent Rios.

Mr. Speaker, I yield back the balance of my time.

□ 1615

Mr. CURBELO of Florida. Mr. Speaker, I yield myself such time as I may consume.

I thank my colleague from Indiana (Mr. CARSON) for his leadership on this issue.

This, of course, is a simple naming bill, but it honors one of the many men and women who paid the ultimate price to keep Americans safe. This has a special place in my heart, obviously, because this took place in my community where Special Agent Rios lost his life.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Florida (Mr. CURBELO) that the House suspend the rules and pass the bill, H.R. 4957.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. CARSON of Indiana. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

KINGPIN DESIGNATION IMPROVEMENT ACT OF 2016

Mr. MARINO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4985) to amend the Foreign Narcotics Kingpin Designation Act to protect classified information in Federal court challenges.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4985

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Kingpin Designation Improvement Act of 2016''.

SEC. 2. PROTECTION OF CLASSIFIED INFORMATION IN FEDERAL COURT CHALLENGES RELATING TO DESIGNATIONS UNDER THE NARCOTICS KINGPIN DESIGNATION ACT.

Section 804 of the Foreign Narcotics Kingpin Designation Act (21 U.S.C. 1903) is amended by adding at the end the following:

''(i) PROTECTION OF CLASSIFIED INFORMATION IN FEDERAL COURT CHALLENGES RELATING TO DESIGNATIONS.—In any judicial review of a determination made under this section, if the determination was based on classified information (as defined in section 1(a) of the Classified Information Procedures Act) such information may be submitted to the reviewing court ex parte and in camera. This subsection does not confer or imply any right to judicial review.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Pennsylvania (Mr. MARINO) and the gentleman from Rhode Island (Mr. CICILLINE) each will control 20 minutes.

The Chair recognizes the gentleman from Pennsylvania.

GENERAL LEAVE

Mr. MARINO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and to include extraneous materials on this measure.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Pennsylvania?

There was no objection.

Mr. MARINO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, on behalf of the Foreign Affairs Committee, I am pleased to call up the Kingpin Designation Improvement Act, which was favorably reported this week by the Judiciary Committee on which I also sit.

This bipartisan bill, introduced by the gentleman and gentlewoman from New York, Mr. KATKO and Miss RICE, helps to ensure that classified information used in the designation of foreign drug kingpins may be protected from public disclosure so that it cannot be used by drug lords and terrorists.

Under current law, the Treasury Department's Office of Foreign Assets Control, otherwise known as OFAC, is able to designate international drug traffickers as kingpins. These designations are published in the Federal Register, and the individuals are added to the list of specially designated nationals, which effectively blocks any U.S.-based asset and their access to the U.S.

financial system. This is a potent weapon against international drug traffickers.

Since the enactment of the Foreign Narcotics Kingpin Designation Act 16 years ago, OFAC has designated more than 1,800 individuals, all of them non-U.S. persons. These include not only high-profile drug traffickers, but also individuals who are using drug proceeds to support international terrorism.

Now, listed persons can seek removal of those sanctions by challenging them in Federal court. The tricky part arises when OFAC designations are based on classified information. We do not want to hand drug lords and terrorists the sources and methods we have for uncovering their nefarious activities. We also do not want OFAC to be deterred from making the designations our national security requires because they are worried that such classified info may be publicly disclosed.

For these reasons, other key OFAC sanctions laws, like the International Emergency Economic Powers Act, provide protections for classified information. Under that statute, OFAC can submit such information ex parte and in camera directly to the judge outside of public view.

H.R. 4985 just incorporates that same protection in the Narcotics Kingpin Designation Act. Also, it is worth remembering that these designations are not something done secretly in the dead of night. They result from the coordination of five Federal agencies. They are published publicly, and they are reported to 10 congressional committees, 5 in the House and 5 in the Senate, some of which receive the classified background on the designated persons.

I want to thank Foreign Affairs Chairman ROYCE, Ranking Member ENGEL, Judiciary Chairman GOODLATTE, and Ranking Member CONYERS for moving this bipartisan bill promptly to the floor.

H.R. 4985 is an important tool in our fight against high-level narcotics traffickers and deserves our unanimous support.

I reserve the balance of my time.

Mr. CICILLINE. Mr. Speaker, I rise in support of this legislation and yield myself such time as I may consume.

I would like to thank Representative KATKO and Representative RICE for introducing this bill, H.R. 4985, the Kingpin Designation Improvement Act, which helps ensure that Federal courts can review sanctions against drug kingpins without forcing law enforcement or the intelligence community to publicly release classified information.

H.R. 4985 would amend the Foreign Narcotics Kingpin Designation Act modeled on the International Emergency Economic Powers Act. The Kingpin Act allows the President to designate and apply economic sanctions against any significant foreign narcotics trafficker. This authority provides a powerful tool to combat narcotics trafficking around the world.

For example, just last month, the Treasury Department's Office of Foreign Assets Control, which administers these sanctions, targeted a Mexican drug cartel and the three brothers who run it, freezing their assets and banning U.S. persons from doing business with them.

As with the International Emergency Economic Powers Act, designations made under the Kingpin Act may be challenged in court. However, unlike IEEPA, the Kingpin Act contains no explicit authority for judges to privately review classified information. This gap in authority means it is only a matter of time until the government will be forced to choose between disclosing classified material and allowing a confirmed narcotics trafficker to avoid justice.

H.R. 4985 would address this issue by adding a new section that explicitly authorizes the government to allow judges to privately review classified information when individuals challenge their designation as kingpins under the act. This provides a simple fix to a gap in current law, bringing the Kingpin Act in line with the International Emergency Economic Powers Act and improving our ability to ensure the law functions as intended.

I thank the gentleman from Pennsylvania for its introduction, and I urge my colleagues to support the legislation.

I reserve the balance of my time.

Mr. MARINO. Mr. Speaker, I yield such time as he may to consume to the gentleman from New York (Mr. KATKO), the author of this bill.

Mr. KATKO. Mr. Speaker, let me start by thanking Judiciary Committee Chairman GOODLATTE for his efforts and his committee's efforts in shepherding this bill through the committee, where it received unanimous support.

I also want to thank my colleague across the aisle, Representative RICE. We have partnered together on many bills that have passed the House to help keep our country safe and to keep it free from drug trafficking. Both of us having a background as prosecutors on a Federal level will help us going forward.

This legislation makes important changes that strengthen the Kingpin Act and enhance the protection of classified information. The Kingpin Act has played an important role in our Nation's efforts to fight drug trafficking for nearly two decades. In the last two decades, I was heavily involved with drug trafficking as a Federal organized crime prosecutor, so I understand the importance of the statute on a firsthand basis.

The act established a process to sanction individuals involved in international narcotics trafficking. More than 1,800 individuals, all non-U.S. persons, have been designated as drug kingpins by the Treasury's Office of Foreign Assets Control under the Kingpin Act. This designation precludes these traffickers from using the U.S. financial system and, in so doing, places a major obstacle in front of their efforts to move and use their ill-gotten gains.

Many of the individuals placed on the kingpin list are put there on the basis of classified information. The law provides a process by which these individuals can seek removal from the list in Federal court, but, unfortunately, the law currently doesn't protect classified information in such delisting cases. This opens up the possibility that some kingpins won't be sanctioned at all or will be removed from the kingpin list, despite significant evidence of their illicit activities, in order to protect classified information.

This bill simply makes it clear that the Office of Foreign Assets Control may submit classified information in defense of its kingpin designations in a nonpublic, protected setting in order to safeguard classified information. This bill will make it easier to sanction international drug kingpins who cause enormous problems both in the United States and in their home countries. It will make it harder for these criminals to carry out their dangerous and destructive drug trade.

Mr. Speaker, I am grateful for the House's consideration of this bill, alongside several other important measures, to fight back against the opioid epidemic gripping much of our Nation, and certainly in my district as well.

My district has been extremely hard-hit by this epidemic as well as a scourge of dangerous synthetic substances, which I hope to address at a later time during this Congress. Almost every family in my district has been affected by this epidemic or knows someone who has.

We need to fight back against the kingpins for profiteering off this misery. It is gratifying to see the House working together across the aisle to tackle these enormous problems, and our country will be better off for it.

Mr. CICILLINE. Mr. Speaker, I yield myself such time as I may consume.

I want to thank the gentleman from New York for the introduction of this bill. It closes an important gap in the statute, which will enhance the safety of our country and provide essential review confidentially.

I urge my colleagues to support the bill.

I yield back the balance of my time.

Mr. MARINO. Mr. Speaker, I just want to echo what my good friend from Rhode Island (Mr. CICILLINE) has stated.

As a former prosecutor, and Mr. KATKO, who was a former prosecutor, and my good friend from Rhode Island (Mr. CICILLINE), who was a mayor and had jurisdiction over law enforcement agencies, we all know what the importance of this legislation is.

I want to thank the authors of this. I want to thank the staff members who worked on this. This is going to improve the lives of not only Americans, but people around the world.

I yield back the balance of my time.

Mr. ROYCE. Mr. Speaker, I want to thank my good friend from Virginia, Judiciary Chairman GOODLATTE, his Ranking Member, Mr. CONYERS, and the gentleman and gentlelady from New York—Mr. KATKO and Miss RICE—for their work on H.R. 4985, the Kingpin Designation Improvement Act, which deserves our support.

In the context of today's floor debate, it is important that we discuss the extensive role of Iran's primary regional proxy—Hezbollah—in the international drug trade.

Earlier this year, the U.S. Drug Enforcement Administration announced that they have, in cooperation with law enforcement agencies from 7 other nations, disrupted a global criminal enterprise Hezbollah was using to finance its participation in the Syrian conflict, as well as to plan for a future war with Israel.

Unfortunately, this is nothing new. For years, Hezbollah has had business connections with South American drug cartels, and has been using them to enter the narcotics trafficking business. In 2011 and 2013, the Department of the Treasury and other agencies designated core Hezbollah members and affiliates for engaging in international narcotics networks.

As a result, the Hezbollah International Financing Prevention Act of 2015, which I authored and passed into law in December, required specific Administration reporting on Hezbollah's international narcotics trafficking networks.

Unfortunately, once a terrorist organization enters this business, they seldom leave. Sanctions relief for Iran as a result of the Administration's flawed deal with that regime, and the resulting inflow of Iranian money to Hezbollah will not likely cause them to turn away from the lucrative drug industry. Rather, it may enable Hezbollah to double down on their efforts to finance their destructive regional activities.

For example, instead of 150,000 rockets on Israel's northern border, Hezbollah could afford to field 300,000, financed by the Iranian regime and Hezbollah's trafficking of narcotics into our communities.

With this in mind, it is important that we have robust Narcotics Kingpin Designation Act authorities in place, which this legislation ensures. I support the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Pennsylvania (Mr. MARINO) that the House suspend the rules and pass the bill, H.R. 4985.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

□ 1630

TRANSNATIONAL DRUG TRAFFICKING ACT OF 2015

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 32) to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 32

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Transnational Drug Trafficking Act of 2015''.

SEC. 2. POSSESSION, MANUFACTURE OR DISTRIBUTION FOR PURPOSES OF UNLAWFUL IMPORTATIONS.

Section 1009 of the Controlled Substances Import and Export Act (21 U.S.C. 959) is amended—

(1) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively; and

(2) in subsection (a), by striking ''It shall'' and all that follows and inserting the following: ''It shall be unlawful for any person to manufacture or distribute a controlled substance in schedule I or II or flunitrazepam or a listed chemical intending, knowing, or having reasonable cause to believe that such substance or chemical will be unlawfully imported into the United States or into waters within a distance of 12 miles of the coast of the United States.

''(b) It shall be unlawful for any person to manufacture or distribute a listed chemical—

''(1) intending or knowing that the listed chemical will be used to manufacture a controlled substance; and

''(2) intending, knowing, or having reasonable cause to believe that the controlled substance will be unlawfully imported into the United States.''.

SEC. 3. TRAFFICKING IN COUNTERFEIT GOODS OR SERVICES.

Chapter 113 of title 18, United States Code, is amended—

(1) in section 2318(b)(2), by striking ''section 2320(e)'' and inserting ''section 2320(f)''; and

(2) in section 2320—

(A) in subsection (a), by striking paragraph (4) and inserting the following:

''(4) traffics in a drug and knowingly uses a counterfeit mark on or in connection with such drug,'';

(B) in subsection (b)(3), in the matter preceding subparagraph (A), by striking ''counterfeit drug'' and inserting ''drug that uses a counterfeit mark on or in connection with the drug''; and

(C) in subsection (f), by striking paragraph (6) and inserting the following:

''(6) the term 'drug' means a drug, as defined in section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Michigan (Mr. CONYERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on S. 32, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

International drug traffickers are profiting off the misery of American citizens, including our children. In recent years, our Nation has experienced an epidemic of opioid abuse. A significant part of that epidemic involves the trafficking of illicit heroin across our borders and into our communities and homes. Every Member in this Chamber today has a heartbreaking story about a constituent or a constituent's child who has been lost to this scourge.

The irony, Mr. Speaker, is that international drug traffickers know our drug trafficking laws as well as, if not better than, most Americans do. They know that if they simply employ a middleman to take the drugs from them and transport them into the U.S., it makes it much harder, if not impossible, for U.S. law enforcement to prosecute them under those drug trafficking laws.

Why is it more difficult, you might ask. Because under current law the government must prove that a trafficker knew the drugs were headed for the United States. Drug trafficking organizations in Colombia, Peru, Ecuador, and other Central and South American source nations sell their illicit products to Mexican traffickers who, in turn, traffic the drugs into the United States.

This makes it difficult, under current law, for Federal prosecutors to make cases against such source nation manufacturers, wholesale distributors, brokers, and transporters since direct evidence of their intent that the drugs are bound for the United States is difficult, if not impossible, to develop.

The result is that source nation malefactors who produce and distribute illegal narcotics escape prosecution under U.S. law because they feign ignorance of the drug's ultimate destination. This has happened with increasing regularity over the past several years, and it is Congress' responsibility to address this problem.

S. 32, the Transnational Drug Trafficking Act of 2015, is identical to H.R. 3380, legislation that was introduced by my Committee on the Judiciary colleagues, the gentleman from Pennsylvania (Mr. MARINO) and the gentleman from Puerto Rico (Mr. PIERLUISI).

This bill makes crucial changes to our Federal drug laws to give law enforcement additional tools to combat extraterritorial drug trafficking. It does this by amending the Controlled Substances Import and Export Act to stipulate that, when a narcotics trafficker or manufacturer has a ''reasonable cause to believe'' that the illegal narcotics he produces or traffics will be sent into the U.S., the U.S. may prosecute him. This amendment will permit Federal prosecutors to pursue extraterritorial drug traffickers who are not directly smuggling drugs into the United States but who facilitate it.

S. 32 also amends the Controlled Substances Import and Export Act to address the increasingly prevalent problem of trafficking in listed chemicals, which are chemicals regulated by the

DEA because they are used in the manufacture of controlled substances. During a recent codel to South and Central America, several of my colleagues and I heard firsthand how drug trafficking organizations have relied upon shadowy chemical suppliers in the manufacture of methamphetamine, heroin, cocaine, and other dangerous narcotics. S. 32 would enable Federal prosecutors to reach chemical traffickers who knowingly facilitate and benefit from the illicit production and smuggling of listed chemicals.

Both of these amendments will allow Federal law enforcement to go after not the lowly drug mules moving drugs into the United States, but the criminals who facilitate at a high level, within the source nation, the trafficking of narcotics and precursor chemicals into the United States. As one law enforcement official has said to me, it is better to fight this battle there than here.

In addition to these important reforms, S. 32 also amends the criminal counterfeit law to include an intent requirement for trafficking in counterfeit drugs. I am pleased the House is taking up this important bill, which the Senate has already passed unanimously, so that it can move expeditiously to the President's desk.

I urge my colleagues to support this important legislation.

Mr. Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON ENERGY AND COMMERCE,
Washington, DC, May 10, 2016.

Hon. BOB GOODLATTE,
Chairman, Committee on the Judiciary, Washington, DC.

DEAR CHAIRMAN GOODLATTE: I am writing to notify you that the Committee on Energy and Commerce will forgo action on S. 32, Transnational Drug Trafficking Act of 2015, so that it may proceed expeditiously to the House floor for consideration.

This is done with the understanding that the Committee on Energy and Commerce's jurisdictional interests over this and similar legislation are in no way altered. In addition, the Committee reserves the right to seek conferees on S. 32 and requests your support when such a request is made.

I would appreciate your response confirming this understanding and ask that a copy of our exchange of letters on this matter be included in the Congressional Record during consideration of the bill on the House floor.

Sincerely,

FRED UPTON,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, May 10, 2016.

Hon. FRED UPTON,
Chairman, Committee on Energy and Commerce, Washington, DC.

DEAR CHAIRMAN UPTON: Thank you for your letter regarding S. 32, the ''Transnational Drug Trafficking Act of 2015,'' for which the Committee on Energy and Commerce received an additional referral.

I am most appreciative of your decision to forego formal consideration of S. 32 so that it may proceed to the House floor. I acknowledge that although you are waiving formal consideration of the bill, the Committee on Energy and Commerce is in no way waiving its jurisdiction over the subject matter contained in those provisions of the bill that fall within your Rule X jurisdiction. In addition, I would support your effort to seek appointment of an appropriate number of conferees on any House-Senate conference involving this legislation.

Finally, I am pleased to include this letter and your letter in the Congressional Record during floor consideration of S. 32.

Sincerely,

BOB GOODLATTE,
Chairman.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

I would like, first, for everyone to know that we here in the Congress are working to address the current heroin epidemic. We know that illegal drugs continue to present a public health crisis that impacts individuals and families in communities across the United States. S. 32 attempts to address the illegal importation of the drugs coming into the United States by amending section 959 of the Controlled Substances Act.

We have a bit of a problem here, but no one has worked on this longer or harder than Ms. SHEILA JACKSON LEE. It is in that spirit that I yield such time as she may consume to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the chairman and the ranking member for capturing what we in the Committee on the Judiciary have been doing over the last couple months. We have been working in a very effective, bipartisan manner to deal with the whole scheme, if you will, of criminal justice reform. We have been extensively involved in what has become a major epidemic across this Nation.

I listened to a number of legislative initiatives, one dealing with a veteran who died from a drug overdose that was just debated here on the floor of the House. As I was flying in today, we knew there was an incident in my district where a motorcyclist was killed by a driver, a young woman who was under the influence of opioids. We know that this Transnational Drug Trafficking Act is an important act, and we want to continue in our bipartisan effort.

It is important for me to note a concern that I do not believe the sponsors intended, but which I believe must be addressed. This bill is intended to help us do more to combat the importation of illegal drugs into our country, but it could also subject more people to mandatory minimum sentencing, an unfortunate feature of our criminal justice system that we must address.

The United States has been suffering from the damaging effects of illicit drug trafficking for decades. The majority of the drugs wreaking havoc in the United States originate in foreign countries, moving from one country to the next under the direction of powerful and wealthy drug kingpins. I think all of my adult life, Mr. Speaker, we have heard the words ''drug kingpins''—you cannot live in urban America without hearing about them; you cannot live in Texas without hearing about them—many of whom never see or touch the drugs or enter the boundaries of this country themselves.

Foreign drug kingpins in Colombia, Ecuador, and Peru are leading producers of cocaine imported into the United States. These kingpins lead operations which sell to traffickers in Mexico, who receive the drugs from Central America, South America, or Mexico and then smuggle the drugs into the United States.

Certainly, drugs come from all over. The Obama administration reported instances of Afghan drug trafficking working with West African drug trafficking organizations to smuggle heroin into the United States. It is around the world.

I support the idea that these drug kingpins are dangerous, but S. 32 is intended to help Federal prosecutors successfully prosecute foreign drug traffickers whose criminal activity outside the U.S. threatens the health, safety, and security of Americans at home.

Section 959 makes it a crime to manufacture or distribute controlled substances or certain chemicals used to make controlled substances intended or knowing that the substance or chemical will ultimately be brought illegally into the U.S. or within 12 miles of the coast of the U.S. In recent years, Federal prosecutors reported difficulties enforcing this statute in some instances.

Some drug traffickers are aware of the methods used to charge and then extradite foreign criminals into the U.S. for prosecution. Drug traffickers simply avoid any discussion of the destination of the drug shipments. S. 32 would amend section 959, making it easier for prosecutors to obtain a conviction against drug traffickers who operate in other countries. That is certainly an important mission.

I am troubled, however, that lowering the intent requirement in the statute without limiting its use to leaders and organizers would expose even low-level offenders to mandatory minimum sentences. We are working now to stop that tide so that we can restore the criminal justice system to be just and fair. This would happen, depending on the quantity of drugs involved.

Historically, mandatory minimums created in the late 1980s to target kingpins have been largely applied to low-level, nonviolent offenders. Mandatory minimums have led to unwarranted and unfair sentences and overincarceration. As the ranking member of the Subcommittee on Crime, Terrorism, Homeland Security, and Investigations, I am engaged with colleagues on both sides of the aisle to address the problem of mandatory minimum sentencing. I am concerned that S. 32 may make matters worse.

In the Committee on the Judiciary, Ranking Member CONYERS proposed a

very thoughtful amendment to H.R. 3380, the House companion to this bill, to specify that the reduced intent standard would only apply to leaders and organizers of foreign drug trafficking organizations. The amendment would have made certain that the substantial resources, time, and money necessary to extradite foreign criminals will be expended only on those individuals whose prosecution would disrupt the chain, the pipeline, or dismantle drug trafficking networks. If this bill was amended as recommended, it would be a useful tool to help target leaders of transnational organized crime from Africa to Afghanistan, to South and Central America and beyond, networks in the U.S. and abroad, priorities and objective detail in the President's strategy to combat transnational organized crime.

In a climate in Congress when we are working on a bipartisan basis to make our criminal justice system more just and effective and to reduce mandatory minimums, the best course is for us to limit the scope of this bill to high-level drug traffickers—a simple fix. While we do not have the opportunity to amend this bill today, I ask that my colleagues vote against it so that we may continue to work to address this concern, which would not undermine the goals of the bill.

S. 32 also corrects an error in section 2320 of title 18, the statute that governs trafficking in counterfeit goods and services. In order to prove the offense of trafficking in drugs with counterfeit marks, there must be proof that the accused knowingly used a counterfeit mark on or in connection with a trafficked drug. I support those changes.

The underlying change and spirit of the bill is a positive one. We are working here together. This scourge is something we must attack.

May I simply say, Mr. Speaker, I commend the sponsors of this bill for their desire to improve our ability to pursue, convict, and ultimately imprison top-level drug traffickers who have plagued our Nation for decades and beyond. Although I believe this bill still requires a simple change to address the unintended issue impacting mandatory minimum sentencing, I look forward to us working in the manner in which we can work, and I look forward to this concluding in a positive way.

Mr. Speaker. Although I support the goals of the Transnational Drug Trafficking Act, I must note a concern that I do not believe the sponsors intended but which I believe must be addressed.

This bill is intended to help us do more to combat the importation of illegal drugs into our country.

But, it could also subject more people to mandatory minimum sentencing—an unfortunate feature of our criminal justice system that we must address.

The United States has been suffering from the damaging effects of illicit drug trafficking for decades.

The majority of the drugs wreaking havoc in the U.S. originate in foreign countries, moving from one country to the next, under the direction of powerful and wealthy drug kingpins—many of whom never see or touch the drugs or enter the boundaries of this country themselves.

Foreign drug kingpins in Columbia, Ecuador, and Peru are the leading producers of cocaine imported into the U.S.

These kingpins lead operations which sell to traffickers in Mexico, who receive the drugs in Central America, South America, or Mexico and, then, smuggle the drugs into the U.S.

In 2011 the Obama Administration reported instances of Afghan drug trafficking operations working with West African drug trafficking organizations to smuggle heroin into the U.S.

I support enhanced efforts to combat international drug trafficking.

S. 32 is intended to help federal prosecutors successfully prosecute foreign drug traffickers whose criminal activity outside of the U.S. threatens the health, safety, and security of Americans at home.

At present, Section 959 of Title 21 targets criminal conduct committed outside of the United States.

Section 959 makes it a crime to manufacture or distribute controlled substances or certain chemicals used to make controlled substances, intending or knowing that the substance or chemical will ultimately be brought illegally into the U.S. or within 12 miles of the coast of the U.S.

In recent years, federal prosecutors have reported difficulties enforcing this statute in some circumstances.

Since drug traffickers are aware of the methods used to charge and, then, extradite foreign criminals into the U.S. for prosecution, drug traffickers simply avoid any discussion of the destination of their drug shipments.

This tactic leaves prosecutors with no direct evidence that the traffickers know the ultimate destination of their drugs or the drugs produced using their chemicals.

S. 32 would amend Section 959, making it easier for prosecutors to obtain a conviction against drug traffickers who operate in other countries.

Prosecutors would no longer be required to prove the accused intended or actually knew the drugs or chemicals would be brought illegally into the U.S.

S. 32 would reduce the level of intent necessary to prove the accused's guilt, requiring prosecutors to only prove that there was reasonable cause for the accused to believe the drugs or chemicals used to make the drugs would be brought illegally into the U.S.

I am troubled, however, that lowering the intent requirement in the statute, without limiting its use to leaders and organizers would expose even low-level offenders to mandatory minimum sentences, depending on the quantity of drugs involved.

Historically, mandatory minimums created in the late 80's to target kingpins have been largely applied to low-level, non-violent offenders.

Mandatory minimums have led to unwarranted and unfair sentences and over-incarceration.

As the Ranking Member of the Subcommittee on Crime, I am engaged with colleagues on both sides of the aisle to address the problem of mandatory minimum sentencing.

I am concerned that S. 32 may make matters worse.

In the Judiciary Committee markup, Ranking Member CONYERS proposed an amendment to H.R. 3380, the House companion to this bill, to specify that the reduced intent standard would only apply to leaders and organizers of foreign drug trafficking organizations.

The amendment would have made certain that the substantial resources, time, and money necessary to extradite foreign criminals would be expended only on those individuals whose prosecution would disrupt or dismantle drug trafficking networks.

If this bill was amended as recommended, it would be a useful tool to help target leaders of transnational organized crime networks in the U.S. and abroad—priorities and objectives detailed in the President's Strategy to Combat Transnational Organized Crime.

In a climate in Congress when we are working on a bipartisan basis to make our criminal justice system more just and effective and to reduce mandatory minimums, the best course is for us to limit the scope of this bill to high-level drug traffickers.

While we do not have the opportunity to amend this bill today, I ask that my colleagues vote against it so that we may continue to work to address this concern, which would not undermine the goals of the bill.

S. 32 also corrects an error in Section 2320 of Title 18, the statute that governs trafficking in counterfeit goods and services. In order to prove the offense of trafficking in drugs with counterfeit marks, there must be proof that the accused knowingly used a counterfeit mark on or in connection with a trafficked drug, and I support this change.

In conclusion, Mr. Speaker, I commend the sponsors of this bill for their desire to improve our ability to pursue, convict, and, ultimately, imprison top-level drug traffickers, although I believe the bill still requires a change to address the unintended issue impacting mandatory minimum sentencing.

Mr. GOODLATTE. Mr. Speaker, it is my pleasure to yield such time as he may consume to the gentleman from Pennsylvania (Mr. MARINO), a member of the Committee on the Judiciary and the chief sponsor of the House companion legislation to the bill before the House at this time.

□ 1645

Mr. MARINO. Mr. Speaker, I thank the chairman for yielding and for his leadership in committee and today on this important bipartisan piece of legislation.

I also would like to thank my colleague, Congressman PIERLUISI, for his stalwart support and work on this bipartisan bill.

The chairman of the Judiciary Committee is correct in recognizing that Federal law often fails to keep up with lawbreakers. As a former U.S. attorney, I am acutely aware of the ways criminal organizations adapt their practices to skirt Federal law and harm American citizens. This bill directly responds to one scenario that has played out time and again in our Federal courts.

I would like to start by making a key point about the purpose of this bill and the type of organizations it targets. Our focus through this bill is the leaders of sophisticated, often multinational drug-trafficking organizations

with expansive networks of distribution internationally.

This includes source nation manufacturers primarily in South and Central America. They are a significant source, if not the largest source, of deadly drugs on the streets and in homes across America. It also includes the leaders of large ''middleman'' wholesale trafficking and distribution organizations.

I want to stress that the bill does not target petty dealers or low-level smugglers in the final chain to the narcotics' final destination. Instead, the focus is on higher levels of the drug-trafficking chain beyond our borders. These are the decisionmakers who have twisted our law for their own profit.

Federal law requires prosecutors to prove that defendant manufacturers and traffickers knew the narcotics were destined for the U.S. Under their direction, drugs are manufactured and packaged for illegal wholesale distribution in these countries outside of the U.S. In many instances, the final destination is the United States. But these individuals can hide their knowledge or insert additional middlemen to potentially evade prosecution.

One recent case in the D.C. Federal district court perfectly depicts this problem. On trial were two Guatemalan nationals, leaders of an organization that received tons of cocaine over 13 years from manufacturers in Colombia and Venezuela. They built runways and warehouses to store and receive such massive quantities of narcotics. They then distributed the drugs to additional middlemen in Mexico.

It was known that these drugs reached the U.S. But the defendants claimed that, once they passed them on, they had no knowledge of its ultimate destination. At trial, this was their only defense. Currently, the law allows them to claim ignorance and simply put the blame on those who do their bidding.

My district and many of my colleagues' districts face a growing heroin epidemic. Our efforts this week to counter this crisis are crucial to stopping it.

My final point. This bill is about dismantling international drug-trafficking organizations. It is about bringing to justice the source nation manufacturers and middlemen wholesalers behind the flow of deadly narcotics across our borders, nothing else.

I urge my colleagues to support the bill so we can make that happen today.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, there is no doubt that we must stop the flow of illegal drugs coming into the United States from foreign countries.

I want to commend our colleagues who have worked with Ms. JACKSON LEE on this, and I want to commend the chairman of the full committee, Mr. GOODLATTE, as well for dealing with this very important subject.

Mr. Speaker, we must avoid subjecting more people to mandatory minimum sentences. As a matter of principle, I oppose mandatory minimum sentences because they are unjust and unwise.

The flaws in mandatory minimum sentencing have led to extraordinary injustices, prison overcrowding, and excessive cost to taxpayers. They have been shown to have a disparate impact on minorities.

While I am committed to combating the importation of illegal drugs in this country, I must oppose the expansion of mandatory minimum sentences, which is what S. 32 would do.

In the Judiciary Committee markup, I offered an amendment to limit the scope of the changes that would be made by this bill to the leaders or organizers of the drug organizations, in other words, the real kingpins.

Whether or not it is the intent of this bill to target low-level offenders, too often it is precisely these individuals who are easier to arrest, easier to convict, and subject to mandatory penalties.

Now, while I understand that we are today considering a Senate-passed bill, I maintain that we should take the time to address this issue. This bill's expansion of those convicted under the statute should be limited to kingpins, those to whom mandatory minimum penalties were originally intended to apply in the first place.

So, accordingly, I sincerely ask my colleagues to vote against this bill so that we may address this concern.

Mr. GOODLATTE. Mr. Speaker, I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, in closing, without question, illegal drugs imported into the United States have harmed our citizens and our communities in innumerable ways. It is critical that appropriate steps be taken to address this problem.

Although S. 32 is a well-intentioned effort to do so, I believe that this bill should be amended to address a concern related to mandatory minimum sentencing. On this basis, I oppose the bill in its current form.

I urge my colleagues to join me and the ranking subcommittee member of the Judiciary Committee from Texas, Ms. JACKSON LEE, in supporting this bill.

Mr. Speaker, I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I urge my colleagues to support this legislation.

I yield back the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I rise in opposition to S. 32, the Transnational Drug Trafficking Act of 2015. While I support the underlying goal of combating drug trafficking, existing federal criminal laws already prohibit and punish this conduct. This bill however weakens existing mens rea standards, and therefore could lead to the application of mandatory minimums to action which the defendant did not know was illegal.

This bill therefore is a perfect example of four of the most common problems in crime policy.

First, it is a textbook example of overcriminalization, namely the careless creation and addition of federal crimes without reviewing if that conduct is already sufficiently prohibited and can be prosecuted under existing federal criminal laws. Existing federal laws prohibit importation and exportation of controlled substances, possession with intent to distribute such substances, or attempt or conspiracy to do so and therefore already prohibit the very conduct S. 32 was drafted to reach.

Our federal code contains over 5,000 offenses carrying criminal penalties, but a precise count eludes not only the Congressional research service but also the Department of Justice, the agency charged with prosecuting those offenses. The House Judiciary Committee's bi-partisan Overcriminalization Task Force, upon which I served as Ranking Member, found that our Congressional appetite to add new federal offenses to demonstrate that we were ''tough on crime,'' instead of relying on existing state or federal statutes, was a significant driver. If we are serious about cleaning up our federal code, it starts with ensuring that the first question we ask when introducing, marking up, or voting on a bill is whether that bill is necessary. There is no such evidence in the record that the Department of Justice has been unable to investigate or prosecute these such cases under existing law, nor is there any evidence that the present punishment for violation of these laws is insufficient.

Second, the mens rea standard in S. 32 is weaker than the criminal intent standards of existing federal drug statutes carrying mandatory minimums. This means that the government can convict based on a lower standard of proof. Again, the need for a robust mens rea standard is a key Constitutional requirement that ensures that citizens are not deprived of their liberty, absent a showing that they were aware that their conduct was prohibited and they intended to engage in that unlawful conduct. In the wake of discussions about the importance of mens rea in protecting defendants who act with innocent intent and/or no notice of the illegality of their conduct, it is disappointing to see a step in the wrong direction that makes it easier for the government to convict them based upon a weaker standard.

Third, applying S. 32 would lead to unintended consequences due to this weaker mens rea standard. Specifically, not only does S. 32 criminalize ''intending'' or ''knowing'' that one of the prohibited chemicals will be used to manufacture a controlled substance, but also ''having reasonable cause to believe that the controlled substance will be unlawfully imported into the United States.''

Many legitimate industrial chemicals, such as anhydrous ammonia found in fertilizer or ephedrine found in sinus medication, and natural substances, such as the alkaloid fluid extracted from the bulbs of poppy plants, can also be used to process and synthesize some illicitly produced drugs.

Thus, the problem S. 32 presents is that it may sweep too broadly. For example, a fertilizer manufacturer or pharmaceutical company or florist in Europe could be criminally liable and subject to a mandatory minimum penalty. That is because under S. 32's rubric, any manufacturer, importer, or distributor of any substance that some illicit chemist seeks to turn into an existing, or as-of-yet-developed, controlled substance would be vulnerable to

federal criminal charges. The problem is that S. 32's ''reasonable cause to believe'' benchmark is intellectually bankrupt''—is it ''reasonable cause to believe that the entity they are shipping it to has requested it for illicit purposes'' or merely ''reasonable cause to believe that these are the types of chemicals that could be turned into illicit drugs?''

Lastly, this bill expands the universe of conduct to which a mandatory minimum applies. Research and evidence in the past few decades has demonstrated that mandatory minimums are ineffective deterrents, waste the taxpayers' money, force judges to impose irrational sentences, and discriminate against minorities, particularly with regards to drug offenses. Unfortunately, there are too many mandatory minimums in the federal code. If we expect to do anything about that problem, the first step has to be to stop passing new ones. The mandatory minimums in the code today did not get there all at once—they got there one at a time, each one part of a larger bill, which on balance might have been a good idea. Therefore, the only way to stop passing new mandatory minimums is to stop passing bills that contain mandatory minimums. Giving lip service to the suggestion that you would have preferred that the mandatory minimum had not been in a bill, then voting for it anyway, just creates another mandatory minimum and guarantees that those who support mandatory minimums will include them in the next crime bill. And more mandatory minimums will be created and the failed war on drugs will continue.

If our goal is to ensure that we prosecute transnational drug traffickers, let us provide adequate funding to local, state, and federal law enforcement agencies to do so under multiple federal statutes that already achieve that goal, without raising these problematic implementation and fairness concerns.

In summary, while I support the underlying goal of S. 32, I have grave concerns about its redundancy, its erosion of the mens reas standard commonly used in these offenses, its broad sweep and its use of mandatory minimums. Therefore, I urge my colleagues to vote no on S. 32.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, S. 32.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

GOOD SAMARITAN ASSESSMENT ACT OF 2016

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5048) to require a study by the Comptroller General of the United States on Good Samaritan laws that pertain to treatment of opioid overdoses, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5048

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Good Samaritan Assessment Act of 2016''.

SEC. 2. FINDING.

The Congress finds that the executive branch, including the Office of National Drug Control Policy, has a policy focus on preventing and addressing prescription drug misuse and heroin use, and has worked with States and municipalities to enact Good Samaritan laws that would protect caregivers, law enforcement personnel, and first responders who administer opioid overdose reversal drugs or devices.

SEC. 3. GAO STUDY ON GOOD SAMARITAN LAWS PERTAINING TO TREATMENT OF OPIOID OVERDOSES.

The Comptroller General of the United States shall submit to the Committee on the Judiciary of the House of Representatives, the Committee on Oversight and Government Reform of the House of Representatives, the Committee on the Judiciary of the Senate, and the Committee on Homeland Security and Governmental Affairs of the Senate a report on—

(1) the extent to which the Director of National Drug Control Policy has reviewed Good Samaritan laws, and any findings from such a review, including findings related to the potential effects of such laws, if available;

(2) efforts by the Director to encourage the enactment of Good Samaritan laws; and

(3) a compilation of Good Samaritan laws in effect in the States, the territories, and the District of Columbia.

SEC. 4. DEFINITIONS.

In this Act—

(1) the term ''Good Samaritan law'' means a law of a State or unit of local government that exempts from criminal or civil liability any individual who administers an opioid overdose reversal drug or device, or who contacts emergency services providers in response to an overdose; and

(2) the term ''opioid'' means any drug, including heroin, having an addiction-forming or addiction-sustaining liability similar to morphine or being capable of conversion into a drug having such addiction-forming or addiction-sustaining liability.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Michigan (Mr. CONYERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on H.R. 5048, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

H.R. 5048, the Good Samaritan Assessment Act of 2016, was introduced by our colleague, Congressman FRANK GUINTA, co-chair of the House Bipartisan Task Force to Combat the Heroin Epidemic. This legislation directs the Government Accountability Office to study the various Good Samaritan laws in effect in States across the country.

Generally speaking, every State has some form of Good Samaritan law, which protects from prosecution citizens who render aid in good faith to someone in need of assistance. As a general matter, courts will not hold a Good Samaritan liable if he or she rendered care as a result of an emergency, the emergency or injury was not caused by the Good Samaritan himself, and the care was not given in a negligent or reckless manner.

In the context of opioids, Good Samaritan law refers to laws that provide immunity for responding to an opioid overdose by rendering aid or by calling 911.

Today more than half the States and the District of Columbia have enacted some form of Good Samaritan law that provides immunity or limits liability for those who report an opioid overdose or render care to a person experiencing such an emergency.

In my home State of Virginia, the general assembly passed a Good Samaritan law in 2015, which provides immunity for individuals who contact emergency services to report an overdose, provided the caller remains at the scene of the overdose until law enforcement responds, identifies himself when law enforcement responds, and cooperates with any criminal investigation.

Given the recent proliferation of these laws at the State level and Congress' desire and duty to address the opioid epidemic, it is fitting we assess how the various Good Samaritan laws work to protect our citizens and help save lives. H.R. 5048 will direct the GAO to help us get the information we need.

I urge my colleagues to support this legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 5048, the Good Samaritan Assessment Act. This legislation is part of a series of bills the House is considering this week in an effort to address the growing public health crisis in our Nation that is being caused by a surge in heroin use and abuse of other opioid drugs.

Without question, abuse of opioid drugs can have serious long-term effects, including physical and functional changes to the brain affecting impulse, reward, and motivation. But opioid abuse can have a more immediate and serious consequence. An overdose can threaten the life of the victim.

In recent years, heroin and prescription opioid drug overdoses have risen sharply in the United States. According to the Centers for Disease Control and Prevention, drug overdose deaths more than doubled between 1999 and 2014. In 2014 alone, more than 47,000 people died from drug overdoses, the highest of any previous year.

Fortunately, many of these tragic deaths can be prevented through the administration of an opioid reversal drug such as naloxone. But to be effective in saving lives, these drugs must be administered on an emergency basis.

First responders answering emergency calls or caregivers who are treating drug users are frequently in the best position to administer a lifesaving reversal drug in time to be effective.

An overdose victim's family and friends as well as other drug users are often the first people to be aware that an individual is suffering a drug overdose. Nevertheless, these individuals can hesitate or even fail to call 911 out of fear that they may be prosecuted or otherwise held liable if something goes wrong.

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Similarly, first responders and other potential caregivers may hesitate or fail to administer emergency medical treatment for fear of possible adverse consequences.

To alleviate such concerns and help ensure that overdose victims receive timely medical treatment, the Office of National Drug Control Policy has been working with States and municipalities to enact so-called Good Samaritan laws.

These laws are intended to protect from civil or criminal liability first responders, caregivers, and others who call for emergency assistance in overdose cases or administer opioid reversal drugs.

Currently, 35 States and the District of Columbia now have at least some form of a Good Samaritan or a 911 drug immunity law, but the protections afforded by these laws vary significantly from jurisdiction to jurisdiction.

H.R. 5048 directs the Government Accountability Office to study and report to the appropriate committees of Congress on the efforts of the Office of National Drug Control Policy to expand Good Samaritan protections.

In addition, the study would examine any law that exempts from civil or criminal liability individuals who contact emergency service providers in response to a drug overdose or who administer opioid reversal drugs to overdose victims.

The report must also include a compilation of Good Samaritan laws currently in effect. The analysis and data required to be generated by H.R. 5048 will greatly assist Congress in understanding the various policies adopted by the States.

Accordingly, I sincerely urge my colleagues to support H.R. 5048.

Mr. Speaker, I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, REVIVE! is the Opioid Overdose and Naloxone Education program for the Commonwealth of Virginia. REVIVE! provides training to professionals, stakeholders, and others on how to recognize and respond to an opioid overdose emergency with the administration of naloxone.

REVIVE! is a collaborative effort led by the Virginia Department of Behavioral Health and Developmental Services, working alongside the Virginia Department of Health, the Virginia Department of Health Professions, recovery community organizations such as the McShin Foundation, OneCare of Southwest Virginia, the Substance Abuse and Addiction Recovery Alliance of Virginia, and other stakeholders.

Virginia has been severely impacted by opioid abuse, particularly the abuse of prescription drugs. In 1999, the first year for which such data is available, approximately 23 people died from abuse of fentanyl, hydrocodone, methadone, and oxycodone, the leading prescription opioids abused, commonly referred to as FHMO.

By 2013, the most recent year for which complete data is available, 386 individuals died from the abuse of FHMO, an increase of 1,578 percent, with fentanyl being the primary substance fueling this increase.

In 2013 alone, there was an increase of more than 100 percent in deaths attributed to fentanyl use. In 2013, as before in 2011, drug-related deaths happened at a higher per capita level, 11 deaths per 100,000, than motor vehicle crashes, 10.1 per 100,000.

The 2013 data provides evidence of other disturbing trends in Virginia, including a sharp rise in heroin deaths. In 2010, only 49 deaths in Virginia were attributed to heroin use. By 2013, that figure had risen to 213, an increase of 334 percent in only 4 years, while cocaine deaths remained relatively level.

The changes in drug-related deaths in Virginia in 2013 are not limited to which substances had the greatest impact. The geography of the opioid epidemic in Virginia is shifting as well.

In past years, the western portion of Virginia, the portion that I represent, typically accounted for approximately one-third of drug-related deaths in any given year. In 2013, for the first time since these records have been maintained, the prevalence of drug-related deaths was spread evenly over the Commonwealth, as the eastern region of Virginia saw an increase of more than 51 percent in drug-related deaths in a single year.

Mr. Speaker, I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself the balance of my time.

Ladies and gentlemen, H.R. 5048 will help to provide valuable information that will assist comprehensive efforts needed to combat the growing scourge of opioid abuse that is affecting millions of Americans and help reduce the tragic loss of life resulting from drug overdoses.

Accordingly, I urge support of the passage of H.R. 5048.

Mr. Speaker, I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I am pleased to yield such time as he may consume to the gentleman from New Hampshire (Mr. GUINTA), the chief sponsor of the legislation, to close debate.

Mr. GUINTA. Mr. Speaker, I rise today in support of this legislation, the Good Samaritan Assessment Act of 2016.

This legislation simply directs the GAO to study State and local Good Samaritan laws that protect caregivers, law enforcement personnel, and first responders who administer opioid overdose reversal drugs or devices, as well as those who contact emergency service providers in response to an overdose from civil or criminal liability.

A Good Samaritan law offers legal protection to people who give reasonable assistance to those who are or who they believe to be injured, ill, or otherwise incapacitated.

These laws vary from jurisdiction to jurisdiction but generally they prevent an individual who has voluntarily helped a victim in distress from being successfully sued or prosecuted for wrongdoing. Their purpose is to keep people from being reluctant to help an individual in need for fear of legal repercussions.

This legislation is crucial toward understanding which Good Samaritan laws are working well to provide a framework for others to follow.

In my home State of New Hampshire, last year we had 430 people die from a drug-related overdose. The number continues to climb because the coroner's office has not concluded the autopsies from last year.

Imagine a family member who is trying to grieve over their loved one who had the illness of addiction and somebody stood over that body and was afraid to help.

I think that this legislation is important, and I am glad that it is striking a bipartisan tone, because this is about saving lives. This is about providing assistance to those who are in moments of deepest despair in their life.

I work on this issue not just on behalf of my constituents and the 50,000 people across the country who have passed due to this sickness, but I also do it in the name of my friend, Abi Lizotte, who is a survivor, who is 8 months clean, with a 6-month old child, who testified at a hearing in New Hampshire about the possibility of success because she had somebody who assisted her.

This addiction has ripped the country apart. We have an obligation as a Congress to act, and I am so pleased with the leadership of Chairman GOODLATTE and so many Republicans and Democrats who have shared the same hope and understanding that life is worth fighting for.

So I urge my colleagues to support this legislation. I appreciate the committee's work, the chairman's work, the bipartisan work.

Mr. GOODLATTE. Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise in support of H.R. 5048, the "Good Samaritan Assessment Act of 2016."

Our nation currently faces epidemic levels of opioid drug users and addicts, with a corresponding increase in the number of opioid drug overdoses and deaths.

According to the Centers for Disease Control, drug overdose death rates more than doubled between1999 and 2014.

Each day, more than 100 Americans die as a result of an overdose, making drug overdoses the leading cause of death in the United States.

Compounding this tragedy is the fact that many of these deaths could have been prevented if the victim had received emergency medical treatment.

Opioid reversal drugs such as Naloxone have proven effective in reversing opioid drug overdoses and reviving victims.

But a victim's chances of surviving an overdose can depend on how quickly medical assistance is received.

Those closest to a victim—family, friends, or other drug users—are commonly the first to become aware that an individual is suffering an overdose and needs emergency medical assistance.

Their prompt call to 911 can mean the difference between life and death.

Similarly, first responders or other persons serving as caregivers to individuals with drug problems are often in the best position to promptly administer a reversal drug.

However, such life-saving assistance may not be made available in time if a witness to an overdose delays or fails to call 911, or a caregiver or first responder does not promptly administer an overdose reversal drug or device, due to fear that they might be prosecuted or otherwise held responsible for their involvement, or held liable if something goes wrong.

To encourage people to seek medical attention for someone suffering an overdose, and to have first responders trained, equipped, and able to administer opioid reversal drugs or devices, states and localities need to enact Good Samaritan laws that protect from criminal or civil liability individuals who seek or provide life-saving assistance in drug overdose situations.

In 2013, only ten states and the District of Columbia had such drug overdose Good Samaritan laws.

The Office of National Drug Control Policy (ONDCP) has been working with states and municipalities to enact Good Samaritan laws providing protections to individuals who call for emergency assistance and first responders, law enforcement personnel, and caregivers who administer opioid reversal drugs or devices.

Thanks in part to ONDCP's efforts, 35 states and the District of Columbia now have some form of Good Samaritan or emergency drug treatment immunity law.

Under this bill, the General Accounting Office would provide the appropriate House and Senate committees with a report on the results of ONDCP's work, as well as a compilation of the various Good Samaritan laws currently in effect.

While the report will not take a position on any formulation of such laws, this information will be helpful to Congress and the states in cataloging and understanding the various approaches states are taking with respect to this issue.

With more information, we can make better decisions and adopt the best approach.

Therefore, I urge my colleagues to support H.R. 5048.

Mrs. LAWRENCE. Mr. Speaker, I rise today in support of H.R. 5048 the Good Samaritan Assessment Act of 2016. Addiction to opioids and other prescription pain relievers have become an epidemic in the United States. According to the National Institute on Drug Abuse, about 2.1 million Americans have an addiction to opioid drugs. While the use or prescription can assist individual pain, the risk for addiction is becoming a major problem. This has resulted in people being put into situations to try to save someone's life a drug overdose. According to current law, any emergency personnel who administers drugs to combat an overdose can be prosecuted.

If individuals are worried that they will be punished for saving someone's life, many lives could be lost to drug overdoses. According to estimates between 2002–2014 the number of deaths from heroin have quadrupled and prescription opioids have killed more Americans than all other drugs combined. In my district, I have seen many people affected by drug abuse issues and the Good Samaritan Assessment Act will not only help save the lives of people in our district, but American's nationwide. This bill will start the process to allow individuals to not be criminally charged for people administering drugs to save someone's life.

The Good Samaritan Assessment Act of 2016 will require the Comptroller General of the United States to study Good Samaritan laws that pertain to opioid overdoses and other purposes. By passing this legislation to do research there would be more efforts to encourage Good Samaritan laws to be put into place in the United States.

I would like to close by saying that I am proud of our chamber for taking this important step to make sure that Americans would not face the possibility of being criminally prosecuted for trying to save someone's life. I also want to thank my colleagues for recognizing the importance of being a good samaritan, and actively helping those in need.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 5048.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

OPIOID PROGRAM EVALUATION ACT

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5052) to direct the Attorney General and the Secretary of Health and Human Services to evaluate the effectiveness of grant programs that provide grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5052

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Opioid Program Evaluation Act'' or the ''OPEN Act''.

SEC. 2. EVALUATION OF PERFORMANCE OF DEPARTMENT OF JUSTICE PROGRAM.

(a) EVALUATION OF JUSTICE DEPARTMENT COMPREHENSIVE OPIOID ABUSE GRANT PROGRAM.—Not later than 5 years after the date of enactment of this Act, the Attorney General shall complete an evaluation of the effectiveness of the Comprehensive Opioid Abuse Grant Program under part LL of the Omnibus Crime Control and Safe Streets Act of 1968 administered by the Department of Justice based upon the information reported under subsection (d) of this section.

(b) INTERIM EVALUATION.—Not later than 3 years after the date of enactment of this Act, the Attorney General shall complete an interim evaluation assessing the nature and extent of the incidence of opioid abuse and illegal opioid distribution in the United States.

(c) METRICS AND OUTCOMES FOR EVALUATION.—Not later than 180 days after the date of enactment of this Act, the Attorney General shall identify outcomes that are to be achieved by activities funded by the Comprehensive Opioid Grant Abuse Program and the metrics by which the achievement of such outcomes shall be determined.

(d) METRICS DATA COLLECTION.—The Attorney General shall require grantees under the Comprehensive Opioid Abuse Grant Program (and those receiving subawards under section 3021(b) of part LL of the Omnibus Crime Control and Safe Streets Act of 1968) to collect and annually report to the Department of Justice data based upon the metrics identified under subsection (c).

(e) PUBLICATION OF DATA AND FINDINGS.—

(1) PUBLICATION OF OUTCOMES AND METRICS.—The Attorney General shall, not later than 30 days after completion of the requirement under subsection (c), publish the outcomes and metrics identified under that subsection.

(2) PUBLICATION OF EVALUATION.—In the case of the interim evaluation under subsection (b), and the final evaluation under subsection (a), the National Academy of Sciences shall, not later than 90 days after such an evaluation is completed, publish the results of such evaluation and issue a report on such evaluation to the Committee on the Judiciary of the House of Representatives and the Committee on the Judiciary of the Senate. Such report shall also be published along with the data used to make such evaluation.

(f) ARRANGEMENT WITH THE NATIONAL ACADEMY OF SCIENCES.—For purposes of subsections (a), (b), and (c), the Attorney General shall enter into an arrangement with the National Academy of Sciences.

SEC. 3. EVALUATION OF PERFORMANCE OF DEPARTMENT OF HEALTH AND HUMAN SERVICES PROGRAM.

(a) EVALUATION OF DEPARTMENT OF HEALTH AND HUMAN SERVICES PROGRAMS.—Not later than 5 years after the date of enactment of this Act, except as otherwise provided in this section, the Secretary of Health and Human Services shall complete an evaluation of any program administered by the Secretary that provides grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse based upon the information reported under subsection (d) of this section.

(b) INTERIM EVALUATION.—Not later than 3 years after the date of enactment of this Act, the Secretary shall complete an interim evaluation assessing the nature and extent of the incidence of opioid abuse and illegal opioid distribution in the United States.

(c) METRICS AND OUTCOMES FOR EVALUATION.—Not later than 180 days after the date of enactment of this Act, the Secretary shall identify outcomes that are to be achieved by activities funded by the programs described

in subsection (a) and the metrics by which the achievement of such outcomes shall be determined.

(d) METRICS DATA COLLECTION.—The Secretary shall require grantees under the programs described in subsection (a) to collect and annually report to the Department of Health and Human Services data based upon the metrics identified under subsection (c).

(e) PUBLICATION OF DATA AND FINDINGS.—

(1) PUBLICATION OF OUTCOMES AND METRICS.—The Secretary shall, not later than 30 days after completion of the requirement under subsection (c), publish the outcomes and metrics identified under that subsection.

(2) PUBLICATION OF EVALUATION.—In the case of the interim evaluation under subsection (b), and each final evaluation under subsection (a), the National Academy of Sciences shall, not later than 90 days after such an evaluation is completed, publish the results of such evaluation and issue a report on such evaluation to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate. Such report shall also be published along with the data used to make such evaluation.

(f) ARRANGEMENT WITH THE NATIONAL ACADEMY OF SCIENCES.—For purposes of subsections (a), (b), and (c), the Secretary shall—

(1) enter into an arrangement with the National Academy of Sciences; or

(2) enter into a contract or cooperative agreement with an entity that is not an agency of the Federal Government.

(g) EXCEPTION.—If a program described under subsection (a) is subject to an evaluation substantially similar to the evaluation under subsection (a) pursuant to another provision of law, the Secretary may opt not to conduct an evaluation under subsection (a) of such program.

SEC. 4. DEFINITION.

In this Act, the term ''opioid'' has the meaning given the term ''opiate'' in section 102 of the Controlled Substances Act (21 U.S.C. 802).

SEC. 5. NO ADDITIONAL FUNDS AUTHORIZED.

No additional funds are authorized to be appropriated to carry out this Act.

SEC. 6. MATTERS REGARDING CERTAIN FEDERAL LAW ENFORCEMENT ASSISTANCE.

Section 609Y of the Justice Assistance Act of 1984 (42 U.S.C. 10513) is amended—

(1) in subsection (a), by striking ''There is'' and inserting ''Except as provided in subsection (c), there is''; and

(2) by adding at the end the following:

''(c) For fiscal year 2022, there is authorized to be appropriated $16,000,000, to provide under this chapter Federal law enforcement assistance in the form of funds.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Michigan (Mr. CONYERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous materials on H.R. 5052, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

H.R. 5052, the Opioid Program Evaluation Act, or OPEN Act, is a bill that would require an evaluation of the Comprehensive Opioid Abuse Reduction Grant Program that will be authorized by H.R. 5046, and other opioid-related grant programs administered by the Department of Health and Human Services.

This bipartisan bill, sponsored by the gentleman from California (Mr. MCCARTHY), the majority leader, and the gentleman from Maryland (Mr. HOYER), the minority whip, requires the Attorney General, through an arrangement with the National Academy of Sciences and the Secretary of HHS, through an arrangement with the National Academy of Sciences, or other entity, to:

Identify outcomes that are to be achieved by the activities funded by Congress to address opioid abuse;

Develop the metrics by which each program's performance will be evaluated;

Complete an interim evaluation assessing the nature and extent of opioid abuse and illegal opioid distribution in the United States;

And carry out an evaluation of the effectiveness of the programs.

Additionally, to increase transparency and facilitate the evaluation of the performance of the programs, the bill requires grantees to collect and annually report data on the activities conducted pursuant to these programs.

Evaluations such as these can be Congress' best measure of how well a Federal program or agency is operating. At their conclusion, we hope to learn, for example, whether a substantial number of criminal justice agency personnel have received training on substance abuse disorders and co-occurring mental illness and adapted their procedures accordingly.

We also hope to learn the extent to which offenders offered a treatment alternative to incarceration have benefited from a response that integrates substance abuse services into the traditional criminal justice system.

I agree with the bill's sponsors that Congress must demand greater achievement and increased transparency and accountability with respect to our Federal grant programs. Therefore, I thank the bill's sponsors for the contribution this bill makes to the effort to address opioid abuse, as well as to our congressional oversight efforts.

I urge support of this important bill.

Mr. Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON ENERGY AND COMMERCE,
Washington, DC, May 3, 2016.

Hon. BOB GOODLATTE,
Chairman, Committee on the Judiciary, Washington, DC.

DEAR CHAIRMAN GOODLATTE: I am writing to notify you that the Committee on Energy and Commerce will forgo action on H.R. 5052, a bill to direct the Attorney General and the Secretary of Health and Human Services to evaluate the effectiveness of grant programs that provide grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse, and for other purposes, so that it may proceed expeditiously to the House floor for consideration.

This is done with the understanding that the Committee on Energy and Commerce's jurisdictional interests over this and similar legislation are in no way altered. In addition, the Committee reserves the right to seek conferees on H.R. 5052 and requests your support when such a request is made.

I would appreciate your response confirming this understanding and ask that a copy of our exchange of letters on this matter be included in the Congressional Record during consideration of the bill on the House floor.

Sincerely,

FRED UPTON,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, May 4, 2016.

Hon. FRED UPTON,
Chairman, Committee on Energy and Commerce, Washington, DC.

DEAR CHAIRMAN UPTON: Thank you for your letter regarding H.R. 5052, a bill to direct the Attorney General and the Secretary of Health and Human Services to evaluate the effectiveness of grant programs that provide grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse, and for other purposes, which the Judiciary Committee ordered reported favorably to the House on April 27, 2016.

I am most appreciative of your decision to forego formal consideration of H.R. 5052 so that it may proceed to the House floor. I acknowledge that although you are waiving formal consideration of the bill, the Committee on Energy and Commerce is in no way waiving its jurisdiction over the subject matter contained in those provisions of the bill that fall within your Rule X jurisdiction. In addition, I would support your effort to seek appointment of an appropriate number of conferees on any House-Senate conference involving this legislation.

Finally, I am pleased to include this letter and your letter in the Congressional Record during floor consideration of H.R. 5052.

Sincerely,

BOB GOODLATTE,
Chairman.

□ 1715

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of H.R. 5052, the Opioid Program Evaluation Act, otherwise known as the OPEN Act. The OPEN Act is part of a comprehensive, bipartisan series of proposals being considered by Congress to combat the opioid abuse epidemic that is afflicting millions of Americans. For example, the Comprehensive Opioid Abuse Reduction Act will provide critical funding assistance to States so that they can create and implement a wide variety of strategies, including alternatives to incarceration, that are designed to reduce opioid abuse.

These grant programs have tremendous promise, as they will enable criminal justice agencies to focus on what is likely to be the most effective

solutions based on their specific, individual needs. Jurisdictions, for example, may choose to implement the Law Enforcement Assisted Diversion approach established with success in Seattle and which is beginning to be used in other cities.

The Comprehensive Opioid Abuse Reduction Act would also assist with the provision of medication-assisted treatment and help first responders prevent deaths by allowing them to obtain and administer drugs that revive overdose victims. Strategies like these are worthy of our continued support.

At the same time, it is important that we track the actual results of these programs so that we can objectively determine the most successful strategies for combating opioid abuse and adjust our efforts and resource allocation accordingly.

The OPEN Act is a commonsense measure that will provide a meaningful way to assist the effectiveness of these grants. Under this act, the Departments of Justice and Health and Human Services will identify outcomes achieved by activities funded under these grant programs. The OPEN Act requires these agencies to develop the metrics by which the achievement of such outcomes can be objectively analyzed. Those outcomes and metrics will, in turn, be studied by the National Academy of Sciences or other independent evaluators and reported on to Congress. Armed with this information, Congress will then be able to assess the success of the programs funded by these grants.

I, therefore, support H.R. 5052 and commend it without reservation to my colleagues.

Mr. Speaker, I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, it is my pleasure to yield such time as he may consume to the gentleman from California (Mr. MCCARTHY), the majority leader, who is also the chief sponsor of this legislation.

Mr. MCCARTHY. Mr. Speaker, I thank the gentleman for yielding, and I want to thank the chairman for his work in dealing with opioid abuse throughout the country.

Mr. Speaker, where I come from in Kern County, California, over 160 people are sent to the emergency room for opioid overdoses every single year. Every single one of those stories is tragic.

Addiction tears families apart, it uproots communities, and it deprives people of the basic freedom to live the lives they want. Opioid addiction is only getting worse in this country. The most recent Centers for Disease Control and Prevention data show that 78 Americans die every single day from overdose—78 Americans.

We need to do something about it. Ultimately, it is individuals, families, and the communities that are on the front line in the fight against addiction. But Congress can do something, too. The Federal Government can and should support community efforts to stop opioid abuse and help those in recovery.

So we have over one dozen bills we will pass this week that target at the center of the opioid addiction: the drug trade, prescription abuse, health care, prevention, you name it.

But it is not enough to pass laws and start new programs. After all, a lot of government programs sound good, but they don't mean as much if they don't work. Most programs, if not every government program, are created with the very best of intentions; but good intentions don't make good government.

When Congress decided to set up a program using money and resources from the American people, we had better be sure that what we are doing is making a difference and actually helping those in need as best we can. That is why Congressman STENY HOYER and I drafted the Opioid Program Evaluation Act, better known as the OPEN Act, because we need to actually help stop the abuse, not just create programs to talk about it. We need to prevent addiction from happening. We need to help those addicted to recover, and we can't afford to waste time and money accomplishing these goals.

Ultimately, we need to use the power of data to determine if these programs actually work. It is that simple. We live in the age of data, and innovators around the country and around the world are using data to do everything from providing better service to customers, to preventing disease and to preventing crimes across this country.

We can learn from that. We need to bring data and innovation into government. When we do that, we can ensure government programs work as intended and that it is in the most effective way possible. That is what this bill will do. It gives healthcare officials, researchers, and engaged citizens the opportunity to see exactly what their government is doing and then to use the information to make the best possible treatment for those who are addicted to opioids.

For months now, I have been working with other Members on the Innovation Initiative with this exact goal: to modernize government. This is just the latest bill shaping our policies and reforming the way Washington works.

Mr. Speaker, I urge the Members to join and support this bill.

I want to thank the minority whip for his work, his thoughtfulness, and his research in making this happen.

Today is a vote for accountability. Vote for more than just words. Vote to effectively fight the opioid epidemic.

Mr. CONYERS. Mr. Speaker, I am pleased to yield such time as he may consume to the gentleman from Maryland (Mr. HOYER), the distinguished minority whip of the Congress and the coauthor of this measure.

Mr. HOYER. Mr. Speaker, I thank my friend, the ranking member and former chairman of the Judiciary Committee, and, if I could say, in a bipartisan bill, maybe the next chairman of the Judiciary Committee, with all due respect to my friend Mr. GOODLATTE. I thank the gentleman very much for bringing this bill to the floor.

I thank the majority leader for his comments, and I rise in support, obviously, of this legislation, which I am proud to cosponsor with my friend, the majority leader, Mr. MCCARTHY, from California.

Mr. Speaker, this bill, as he said, will help ensure that future investments in the fight against opioid addiction are allocated in the most effective way possible. We owe that to the American people, and we owe it to the effectiveness of our efforts against this scourge on our country.

Our bill requires the Departments of Justice and Health and Human Services to develop, as you have heard, metrics by which opioid-related grant programs will be evaluated: Do they work? Are they worth the investment? It will facilitate data collection and analysis in order to determine best practices—what works and what doesn't—so policymakers can best target resources.

The opioid epidemic is a major public health challenge that requires and demands bipartisan cooperation and leadership across the branches and offices of our government at the Federal, State, and local levels. This crisis has already quadrupled—quadrupled—the rate of overdose deaths between 2000 and 2013 and continues to plague communities across the country.

Between 2007 and 2014, 237 people in southern Maryland died as a result of prescription opioid overdoses, and 287 more died from using heroin, a drug to which those addicted to opioid painkillers often turn when they can no longer access prescription medications. This is a critical problem affecting lives and families across the Nation, which is why the Congress must take action and is doing so on a bipartisan basis.

In addition to the OPEN Act, the House is considering a number of bipartisan bills this week that will likely be adopted as part of an amendment to the legislation passed in the Senate, the Comprehensive Addiction and Recovery Act, CARA.

Democratic Members have been instrumental in writing these bills in such a way that the policies and programs they create have the greatest chance of saving lives and preventing addiction. The good news is they have worked with their Republican colleagues, and their Republican colleagues have worked with them. These bills reflect the seriousness with which Democrats and Republicans have been leading on this issue and the bipartisan nature of efforts in Congress to address the challenge.

But it isn't enough to enact these bills and the ones put forward by my Republican colleagues. We need to ensure that our efforts to combat opioid addiction receive the funding necessary

to succeed. That funding is not in this bill, nor is it in some of the other bills that will be considered. It is nice to say that we ought to get something done, but if we do not apply the resources to accomplish the objective, it is empty rhetoric and political posturing.

President Obama has requested $1.1 billion to fight opioid addiction, but the majority has not yet committed to acting on that request, nor has it committed to funding the bipartisan legislation that we expect to pass this week. The legislation is good, but if we don't give it the resources to be implemented, it will not bring the relief that is needed.

So as we work together to take these important steps to prevent opioid abuse and promote recovery, Congress needs to work together to ensure that these efforts are not left unfunded. I am certain that there is a way we can work together to pay for them and help our communities fight this epidemic that has destroyed so many lives and devastated communities and families across this country.

Again, I want to thank the Republican leader, Mr. MCCARTHY. He and I have found opportunities to work together, and we believe those have had positive results. He has partnered with me on this OPEN Act, and I hope we can keep working together to fund these initiatives and help end the scourge, the cancer, of opioid abuse and addiction in our country. If we do so, Americans will thank us, and they will think we have done a better job, frankly, than they think we are doing.

Mr. CONYERS. Mr. Speaker, I yield myself the balance of my time.

I want to say to my colleagues I deeply appreciate the observations and perceptions on both sides of the aisle in dealing with this subject.

The approaches to dealing with opioid abuse should be based on evidence of their effectiveness and ability to save lives. The OPEN Act will provide the information necessary to properly make that evaluation. Accordingly, I sincerely urge my colleagues to support H.R. 5052.

Mr. Speaker, I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I urge my colleagues to support this good legislation.

I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise in support of H.R. 5052, the ''Opioid Program Evaluation Act of 2016,'' otherwise known as the ''OPEN'' Act.

This is an important bill intended to provide a mechanism to evaluate the effectiveness of the grant programs being considered by Congress to address the serious and growing problem of opioid abuse.

The current surge in the use of heroin and other opioid drugs such as hydrocodone and oxycodone requires a strong, national response.

Opioid abuse leads to physical and functional changes to parts of the brain affecting, impulse, reward, and motivation.

In recent years, it is estimated that the number of heroin users in the United States has grown to over 680,000 people.

Similarly, the use of other opioids, such as hydrocodone and oxycodone has grown by 100 percent and 500 percent respectively.

To fight this crisis involving illegal opioids and the abuse of prescription opioids, we must employ a multi-faceted approach that actually achieves results.

This bill would evaluate the effectiveness of H.R. 5046, the ''Comprehensive Opioid Abuse Reduction Act,'' a bill reported by the Judiciary Committee.

That bill was written with the goal of assisting States in the implementation of a variety of strategies, including:

Providing treatment alternatives to incarceration; training criminal justice agency personnel on substance use and co-occurring mental illness; increasing collaboration between State criminal justice agencies and State substance abuse systems; purchasing opioid reversal drugs and devices for first responders and providing training to carry and administer opioid reversal drugs and devices; and implementing medication-assisted treatment programs used or operated by criminal justice agencies.

As opioid abuse grant programs move forward, it is important we find a way to evaluate the success of these strategies and the effectiveness of the programs in implementing them.

This is why I support the requirements of the OPEN Act.

Specifically, the OPEN Act will:

Instruct the Departments of Justice and Health and Human Services to identify outcomes to be achieved and develop metrics for evaluating success in achieving those outcomes; enlist the National Academy of Sciences to evaluate and report to Congress on the outcomes and metrics of the grant programs; require grantees to report annually on the progress made through the grants; and instruct the Departments of Justice and Health and Human Services to complete an evaluation of the effectiveness of their grant programs after five years.

I am confident that the comprehensive approach we are taking to address opioid abuse will help address the Nation's growing epidemic.

For these reasons, I support the OPEN Act and the goal of ensuring the best possible response to treat and prevent opioid abuse in America, and I urge my colleagues to join me in supporting this bill.

The SPEAKER pro tempore (Mr. JENKINS of West Virginia). The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 5052, as amended.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. GOODLATTE. Mr. Speaker, on that, I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

□ 1730

BULLETPROOF VEST PARTNERSHIP GRANT PROGRAM REAUTHORIZATION ACT OF 2015

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (S. 125) to amend title I of the Omnibus Crime Control and Safe Streets Act of 1968 to extend the authorization of the Bulletproof Vest Partnership Grant Program through fiscal year 2020, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 125

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Bulletproof Vest Partnership Grant Program Reauthorization Act of 2015''.

SEC. 2. EXTENSION OF AUTHORIZATION OF APPROPRIATIONS FOR BULLETPROOF VEST PARTNERSHIP GRANT PROGRAM.

Section 1001(a)(23) of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3793(a)(23)) is amended to read as follows:

''(23) There is authorized to be appropriated to carry out part Y, $25,000,000 for each of fiscal years 2016 through 2020.''.

SEC. 3. EXPIRATION OF APPROPRIATED FUNDS.

Section 2501 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796ll) is amended by adding at the end the following:

''(h) EXPIRATION OF APPROPRIATED FUNDS.—

''(1) DEFINITION.—In this subsection, the term 'appropriated funds' means any amounts that are appropriated for any of fiscal years 2016 through 2020 to carry out this part.

''(2) EXPIRATION.—All appropriated funds that are not obligated on or before December 31, 2022 shall be transferred to the General Fund of the Treasury not later than January 31, 2023.''.

SEC. 4. SENSE OF CONGRESS ON 2-YEAR LIMITATION ON FUNDS.

It is the sense of Congress that amounts made available to carry out part Y of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796ll et seq.) should be made available through the end of the first fiscal year following the fiscal year for which the amounts are appropriated and should not be made available until expended.

SEC. 5. MATCHING FUNDS LIMITATION.

Section 2501(f) of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796ll(f)) is amended—

(1) by redesignating paragraph (3) as paragraph (4); and

(2) by inserting after paragraph (2) the following:

''(3) LIMITATION ON MATCHING FUNDS.—A State, unit of local government, or Indian tribe may not use funding received under any other Federal grant program to pay or defer the cost, in whole or in part, of the matching requirement under paragraph (1).''.

SEC. 6. APPLICATION OF BULLETPROOF VEST PARTNERSHIP GRANT PROGRAM REQUIREMENTS TO ANY ARMOR VEST OR BODY ARMOR PURCHASED WITH FEDERAL GRANT FUNDS.

Section 521 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3766a) is amended by adding at the end the following:

''(c)(1) Notwithstanding any other provision of law, a grantee that uses funds made

available under this part to purchase an armor vest or body armor shall—

''(A) comply with any requirements established for the use of grants made under part Y;

''(B) have a written policy requiring uniformed patrol officers to wear an armor vest or body armor; and

''(C) use the funds to purchase armor vests or body armor that meet any performance standards established by the Director of the Bureau of Justice Assistance.

''(2) In this subsection, the terms 'armor vest' and 'body armor' have the meanings given such terms in section 2503.''.

SEC. 7. UNIQUELY FITTED ARMOR VESTS.

Section 2501(c) of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 379611(c)) is amended—

(1) in paragraph (2), by striking ''and'' at the end;

(2) in paragraph (3), by striking ''; or'' and inserting ''; and'';

(3) by redesignating paragraph (4) as paragraph (5); and

(4) by inserting after paragraph (3) the following:

''(4) provides armor vests to law enforcement officers that are uniquely fitted for such officers, including vests uniquely fitted to individual female law enforcement officers; or''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Michigan (Mr. CONYERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on S. 125, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

Since 1999, the Bulletproof Vest Program, or BVP, has awarded more than 13,000 jurisdictions a total of $393 million in Federal funds for the purchase of over 1 million bulletproof vests. The Bulletproof Vest Grant Program is a critical resource for State and local jurisdictions that has proven to save lives.

We must be sure that our law enforcement officers are protected from the risks inherent in the job. In 2016 alone, there have been 17 police officers killed by gunfire. In March, a bulletproof vest saved the life of Officer Andy Harris, who was shot when he responded to a shots fired call. He is but one of many officers saved by a bulletproof vest.

Based on data collected and recorded by the Department of Justice, protective vests were directly attributable to saving the lives of at least 33 law enforcement and corrections officers in 20 different States in a single year. At least 14 of those lifesaving vests had been purchased, in part, with BVP funds.

This bill reauthorizes BVP grants at $25 million per year and extends the authorization through 2020. The bill has the support of all major law enforcement organizations, and has been approved by the Senate. With this authorization, we will immediately be impacting the safety of our law enforcement officers.

Law enforcement officers across the United States put their lives on the line every day to protect their communities and fellow citizens. As they continually make sacrifices for us, we must ensure that we provide them with resources to protect their lives as they protect ours.

Today's approval of legislation reauthorizing a critical bulletproof vest grant program for State and local law enforcement officers will save lives. I thank Representative LOBIONDO and Senate Judiciary Committee Ranking Member LEAHY for their work on this issue and dedication to our Nation's law enforcement officers.

I urge my colleagues to support this legislation.

I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

Members of the House, I rise in strong support of S. 125, the Bulletproof Vest Partnership Grant Program.

This bill, which would provide matching grants to State, local, and tribal law enforcement agencies so that they can purchase bullet-resistant vests for their officers, is important for several reasons.

To begin with, S. 125 will facilitate the provision of critical protection to law enforcement officers, who often risk their lives while serving our communities. While some of the approximately 800,000 law enforcement officers throughout the United States do have some form of bullet-resistant armor, far too many of these brave men and women are not afforded the same protection due to State and local budget constraints.

Since its inception, the Bulletproof Vest Partnership Grant Program has assisted State and local law enforcement agencies in obtaining the necessary protection equipment to safeguard the lives of their officers. To date, this program has provided more than 1 million officers with lifesaving vests. During the past 30 years, bullet-resistant vests have saved the lives of more than 3,000 law enforcement officers.

The timeliness of this bill provides a perfect opportunity to acknowledge National Police Week. Right now, thousands of law enforcement officers are in Washington, D.C., to honor their fellow officers who paid the ultimate sacrifice.

Each year, the National Law Enforcement Officers Memorial holds a vigil to recognize the newly engraved names of officers who died while serving and protecting the people in our communities.

We must do everything in our power to protect those who protect us. The Bulletproof Vest Program will help prevent the deaths of officers, and we hope that even fewer names will have to be added to the National Law Enforcement Officers Memorial.

The bill is critical because it provides up to 50 percent of the costs for an officer's new armor vest. The officer's department, in turn, pays the remaining costs. Importantly, small police departments that service areas with less than 100,000 residents receive priority funding under this measure.

Finally, S. 125 responds to the critical concern that bullet-resistant vests—to achieve their intended goals of protecting an officer from life-threatening gunshots—must meet certain standards. To this end, the bill requires a law enforcement agency to purchase body armor that meets strict performance standards set by the National Institute of Justice.

Additionally, the agency must have a policy that encourages officers to wear their vests while on duty. And, the agency must ensure that these vests properly fit female officers as well.

For all of these reasons, I strongly support S. 125.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, we are prepared to close, and I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. PASCRELL).

Mr. PASCRELL. Mr. Speaker, I rise today in very strong support of S. 125, the Bulletproof Vest Partnership Grant Program Reauthorization Act.

Our brave law enforcement officers put their lives in harm's way every day to protect our communities. The least we can do is provide them with the proper safety gear.

That is why we must authorize the highly successful Bulletproof Vest Partnership Grant Program to ensure that all of America's law enforcement officers have access to the lifesaving protection they need. My friend, Mr. REICHERT, from the coast, and myself, pledged when we became cochairs of public safety in the Congress many, many years ago that not only do we need more police on the beat, but we need to protect them. There is no question in my mind we have allowed the bad guys to outarm the good guys, and we have to take a look at that.

Since it was established in 1999, this program has provided grantees with approximately $247 million for more than 1 million lifesaving vests in over 13,000 State and local law enforcement agencies throughout the country. I did not hear any of those communities turn back the money. You are talking about 13,000 State and local law enforcement agencies.

There is a place for the Federal Government. There are responsibilities we cannot circumvent. While many officers are protected by bullet-resistant armor, there are an alarming number of officers in departments across our country that cannot afford this same

protection due to local budget constraints.

As long as I am in Congress, I will continue to do all that I can to work closely with law enforcement officials, not just talking with them and patting them on the back, so they have adequate resources to protect themselves while patrolling our streets.

I urge my colleagues to support swift passage of this bipartisan legislation that will help improve the protection of our law enforcement officials.

Mr. GOODLATTE. Mr. Speaker, I continue to reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume for my closing remarks.

First, I would like to recognize the distinguished Senator from Vermont, PATRICK LEAHY, as being very, very influential in developing the measure before us under discussion now.

In closing, I note that we expect our law enforcement officers to protect those who are unable to protect themselves. But to do so, however, we must ensure that these brave men and women are themselves protected.

In 2012, for example, armor-resistant vests were credited with saving the lives of 33 law enforcement officers in 20 different States. Fourteen of those vests were purchased with the help of Bulletproof Vest Partnership Program funds.

In my home district in Michigan, the police departments for Highland Park, Melvindale, Romulus City, Wayne County, and others have received funds through this important program.

While some of the approximately 800,000 law enforcement officers throughout our country do have some form of bullet-resistant armor, far too many of these brave men and women are not afforded the same protection due to State and local budget constraints.

It is with great pleasure and privilege that I assure every Member of the House that S. 125 will ensure that this program continues to provide such vitally needed assistance.

I urge support for this measure.

I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield such time as he may consume to the gentleman from Texas (Mr. POE), a member of the Judiciary Committee, and he will close debate on our side.

Mr. POE of Texas. Mr. Speaker, I thank the gentleman from Virginia for yielding time.

Mr. Speaker, last month, a few weeks ago, Alden Clopton was on patrol after midnight. He is a deputy constable in Houston, Texas. He works for the constable's office at Precinct 7.

Constables are just like deputy sheriffs and police officers. They have all the power under the State of Texas laws as any other police officer.

He was on routine patrol with his rookie partner trainee, Ann Glasgow, and they made a traffic stop in a tough part of town in Houston, Texas. As the investigation is taking place, Mr. Speaker, some outlaw snuck up behind Alden Clopton and pulled out a pistol and shot at him six times in the back.

Some of those bullets made their mark and some of those bullets missed. He owes his life, he says, to the bulletproof vest that he was wearing. Constable May Walker, a constable at Precinct 7, said he survived because he was wearing a vest.

□ 1745

You may have never heard of Alden Clopton, but he is a peace officer who comes from a peace officer family. His wife is a deputy sheriff; his three brothers are all in law enforcement; and his son is a cop in Mississippi, I believe. He lives today because he had a bulletproof vest on. As the ranking member has said and as the chairman has said, we owe it to peace officers to protect them when they go out in society and do society's dirty work for us—to protect and serve us.

This week is National Police Week. We honor our police officers—those who protect us, those who work the thin blue line to protect us from those who would do us harm. This is an appropriate piece of legislation to show peace officers like Alden Clopton and all of those throughout the country that we have their backs—that we support them—and that Congress is going to do what is necessary to protect them while they protect us.

And that is just the way it is.

Mr. GOODLATTE. Mr. Speaker, I yield back the balance of my time.

Mr. LOBIONDO. Mr. Speaker, the Senate counterpart to my legislation, H.R. 228, that will reauthorize the Bulletproof Vest Partnership Act, comes during a momentous week in law enforcement—National Police Week, starting this Sunday.

Thank you, as well, to the gentleman from Indiana, Mr. VISCLOSKY, for working with me on this legislation since its original passage in 1999.

Recent tragic events highlight the threats our men and women in uniform face each day.

However, these all-important vests cannot protect the lives of those who do not have access to them.

Now more than ever, it is imperative that we give law enforcement the tools they need so they may do their jobs and carry out their duties safely and effectively.

The Bulletproof Vest Partnership program is one of those critical tools.

In fact, we know from some of the most recent statistics, that 14 of 33 officers saved by bulletproof vests, were purchased using funds from the Bulletproof Vest Partnership program.

Since 1999, over 13,000 jurisdictions across the country have participated in the BVP program.

I encourage those law enforcement officials and concerned citizens listening, especially those in South Jersey, to apply for this vital program.

The deadline to do so, May 16th, is quickly approaching.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, S. 125.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

FEDERAL LAW ENFORCEMENT SELF-DEFENSE AND PROTECTION ACT OF 2015

Mr. GOODLATTE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 2137) to ensure Federal law enforcement officers remain able to ensure their own safety, and the safety of their families, during a covered furlough.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 2137

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Federal Law Enforcement Self-Defense and Protection Act of 2015''.

SEC. 2. FINDINGS.

Congress finds the following:

(1) Too often, Federal law enforcement officers encounter potentially violent criminals, placing officers in danger of grave physical harm.

(2) In 2012 alone, 1,857 Federal law enforcement officers were assaulted, with 206 sustaining serious injuries.

(3) From 2008 through 2011, an additional 8,587 Federal law enforcement officers were assaulted.

(4) Federal law enforcement officers remain a target even when they are off-duty. Over the past 3 years, 27 law enforcement officers have been killed off-duty.

(5) It is essential that law enforcement officers are able to defend themselves, so they can carry out their critical missions and ensure their own personal safety and the safety of their families whether on-duty or off-duty.

(6) These dangers to law enforcement officers continue to exist during a covered furlough.

SEC. 3. DEFINITIONS.

In this Act—

(1) the term ''agency'' means each authority of the executive, legislative, or judicial branch of the Government of the United States;

(2) the term ''covered Federal law enforcement officer'' means any individual who—

(A) is an employee of an agency;

(B) has the authority to make arrests or apprehensions for, or prosecute, violations of Federal law; and

(C) on the day before the date on which the applicable covered furlough begins, is authorized by the agency employing the individual to carry a firearm in the course of official duties;

(3) the term ''covered furlough'' means a planned event by an agency during which employees are involuntarily furloughed due to downsizing, reduced funding, lack of work, or any budget situation including a lapse in appropriations; and

(4) the term ''firearm'' has the meaning given that term in section 921 of title 18, United States Code.

SEC. 4. PROTECTING FEDERAL LAW ENFORCEMENT OFFICERS WHO ARE SUBJECTED TO A COVERED FURLOUGH.

During a covered furlough, a covered Federal law enforcement officer shall have the

same rights to carry a firearm issued by the Federal Government as if the covered furlough was not in effect, including, if authorized on the day before the date on which the covered furlough begins, the right to carry a concealed firearm, if the sole reason the covered Federal law enforcement officer was placed on leave was due to the covered furlough.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Virginia (Mr. GOODLATTE) and the gentleman from Michigan (Mr. CONYERS) each will control 20 minutes.

The Chair recognizes the gentleman from Virginia.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and to include extraneous materials on H.R. 2137, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

Mr. GOODLATTE. Mr. Speaker, I yield myself such time as I may consume.

As we honor our law enforcement heroes for the annual Police Week, I rise in support of H.R. 2137, the Federal Law Enforcement Self-Defense and Protection Act of 2015.

Federal law enforcement officers face potentially dangerous situations on a daily basis whether they are on duty or off duty. Accordingly, they are permitted to carry their government-issued firearms on their persons even when they are not on duty. However, during the 2013 government shutdown, at least three Federal agencies forbade their law enforcement officers from carrying their government-issued firearms or credentials during the furlough. This decision potentially endangered these officers' lives by putting them at an unnecessary risk. Further, it prevented these highly trained officers from being able to respond to a critical incident or threat.

The Federal Law Enforcement Self-Defense and Protection Act will ensure that officers are able to defend and protect themselves on and off duty by allowing all covered Federal law enforcement officers to continue to carry their government-issued firearms during a furlough or a government shutdown. Allowing our highly trained and experienced Federal law enforcement officers to carry their firearms during a furlough not only ensures their safety and protection, but the safety and protection of their families and those around them.

As we honor our Nation's law enforcement officers this week during the annual National Police Week, let's ensure that the brave men and women of the Federal law enforcement community have the capability to defend themselves and others and to respond to threatening situations even in a time of furlough.

I thank the bill's sponsor, Mr. COLLINS of Georgia, for his work on this important measure, and I urge my colleagues to support this bipartisan legislation.

I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume.

Members of the House, I rise in support of H.R. 2137, the Federal Law Enforcement Self-Defense and Protection Act.

This bill would authorize Federal law enforcement officers to carry their government-issued firearms during government shutdowns and administrative furloughs that result from lapses in appropriations. Essentially, this measure would help ensure that those who protect us are able to continue to do so even during an official furlough. The ability of our Federal law enforcement officers to respond to critical incidents should not be impeded, particularly when violent crimes are committed in their presence.

H.R. 2137 does not expand Federal law enforcement officers' authority to carry firearms. The bill merely authorizes these officers to continue to carry their federally issued firearms as if a furlough had not occurred. This legislation recognizes the very real threat of harm that many of our officers face, particularly special agents, on a regular basis—a threat that does not simply disappear because of a government shutdown.

In 2012, for example, more than 1,800 Federal law enforcement officers were assaulted and, of those, approximately 200 sustained serious injuries. Even when off duty, Federal law enforcement officers remain the target of assault. For example, between 2011 and 2014, 27 law enforcement officers were killed while they were off duty.

Although this legislation only concerns Federal officers, I want to take a moment to recognize the State, local, and Federal officers who have sacrificed their lives in serving our communities.

This week, law enforcement officers throughout the United States have come to Washington to show their support for our fallen officers during National Police Week. In the spirit of National Police Week, it is vitally important that our Federal officers are able to protect people in our communities, themselves, and their family members from the continuing threats they encounter. Given the fact that H.R. 2137 facilitates this critical goal, I am eager to support this bill.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Speaker, I yield such time as he may consume to the gentleman from Georgia (Mr. COLLINS), a member of the Judiciary Committee and the chief sponsor of this legislation.

Mr. COLLINS of Georgia. Mr. Speaker, I appreciate the opportunity to rise today in support of H.R. 2137, the Federal Law Enforcement Self-Defense and Protection Act.

I thank Chairman GOODLATTE and Ranking Member CONYERS for their support of this legislation and for their commitment to getting it to the floor today. With their support, H.R. 2137 passed the Judiciary Committee on a voice vote.

I also thank my friends, Congresswoman GABBARD from Hawaii, Congressman REICHERT from Washington, and Congressman PASCRELL from New Jersey, for joining me in introducing H.R. 2137 and for their strong support of this bill.

Finally, I thank Senator TOOMEY for introducing the companion legislation in the Senate.

Mr. Speaker, I introduced this legislation to provide better protections for law enforcement officers, and I am glad to see that it is moving forward. It is particularly fitting that we consider this bill this week during National Police Week. Thousands of law enforcement officers are here from all over the country to commemorate their partners who have fallen in the line of duty and to recognize their sacrifices and contributions. I thank them for their service.

This is also a special week for this Congressman from the Ninth Congressional District of Georgia because I am a proud son of a Georgia State trooper. I know firsthand how hard they work and of the sacrifices they make in their time away from their families. He made sure that my brother and I had all of the chances at life that he had. I thank him because I know when he was off duty, as I was growing up, he was no less concerned about protecting the community. The dangers that were associated with his job didn't stop just because he came home to us. I think this holds true for all law enforcement officers.

Our law enforcement officers are highly trained and they are well aware of the responsibilities that are associated with their jobs. In light of that training and of the dangers faced by officers, Federal law enforcement officers are typically allowed to carry their firearms 24 hours a day, 7 days a week, 365 days a year. It just seems like common sense. Federal law enforcement officers don't cease to be officers when they are off duty. Crime doesn't stop simply because an officer isn't working on a particular day. The Federal Law Enforcement Self-Defense and Protection Act recognizes that and takes important steps to ensure that law enforcement officers can better protect themselves.

In 2013, during the Federal Government shutdown, at least three Federal agencies determined that the Antideficiency Act required them to forbid their law enforcement officers from carrying their agency-issued firearms or their personally owned firearms that were authorized by the agency. This interpretation of the law meant that at least 1,800 officers were disarmed.

During this time, there were reports confirming that at least one disarmed Federal law enforcement officer was

attacked while off duty. Fortunately, she was able to get away unharmed, but the incident highlights the real dangers that officers face even while off duty. In fact, in 2012 alone, more than 1,800 Federal officers were assaulted with 206 of them having sustained serious injuries. From 2008 to 2011, more than 8,500 Federal law enforcement officers were assaulted; and in the last 3 years, 27 Federal law enforcement officers have been killed while off duty.

The threats and dangers are real. That is why, at a minimum, we should ensure that the policies to protect law enforcement officers are clear and consistent. However, there are reports that officers were disarmed inconsistently at other agencies. It is clear that the policies varied by agency. This level of inconsistency does not make sense, just as the policy to disarm officers doesn't make sense.

H.R. 2137 ensures that it is clear that Federal law enforcement officers can carry their weapons in the event of a lapse of appropriations or of an administrative furlough. Under the bill, officers retain the right to carry their government-issued firearms for personal protection or to respond to a critical incident.

Importantly, this bill does not protect those who are on administrative leave or those who have lost the right to carry. It does not expand firearms carry authority to law enforcement officers who do not currently possess it, but it does ensure that there is a consistent policy for those officers who are able to carry and who are furloughed through no fault of their own.

The legislation is narrowly tailored, but it has a large impact. H.R. 2137 recognizes that Federal officers could be confronted by job-related threats whether they are on duty or off. It recognizes that officers need to be able to protect themselves, their families, and their communities. This bill is a bipartisan agreement that protects our law enforcement officers, who put their lives on the line to protect us, and it makes sure that it is a priority. This bill is supported by the Federal Law Enforcement Officers Association, the Fraternal Order of Police, and the National Association of Police Organizations.

H.R. 2137 is a sign of the recognition that we must do everything in our power to ensure that law enforcement officers have access to the tools they need to protect themselves and the public. Speaking also as a State trooper's kid, it reminds me that my dad, for all that he did in the 30-plus years that he worked, was on duty when he was not on duty. This is simply a recognition that all of our officers carry that same trust, and we want to give them the tools to do what they need to do.

Mr. CONYERS. Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE), a senior member of the Judiciary Committee.

Ms. JACKSON LEE. I thank the authors of this legislation, as well as the previous speaker, my friend, for his articulation of this bill, and I thank all of the Members who are on the floor joining in support of H.R. 2137, the Federal Law Enforcement Self-Defense and Protection Act of 2015. I thank Mr. CONYERS, the ranking member, for yielding to me.

Mr. Speaker, let me express my recognition and appreciation of the thousands of families who will come to honor those police officers who have fallen in duty—many of them, their loved ones. We honor law enforcement officers who gave their lives in the line of duty. The loss of one officer's life is one too many. In considering the myriad of dangers our officers face, we must ensure they have the appropriate authority to protect our communities and themselves.

I support this legislation because it will make it clear that the brave Federal law enforcement officers who protect us will not be forced to lock away their government-issued firearms in the event of official furloughs, such as those occasioned by government shutdowns.

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Our Federal law enforcement officers must be prepared to respond to numerous threats faced each day by our country, and this bill will help them do so without expanding any existing authority or creating new ones.

This bill ensures our Federal law enforcement agencies uniformly provide our special agents and other law enforcement officers with the necessary support to respond to critical incidents.

Our officers are highly trained and understand the importance associated with possessing government-issued weapons.

Let me conclude my remarks by again expressing my appreciation to the authors and the chairman and the ranking member of the full committee.

I look forward as we move forward on legislation such as the Law Enforcement Integrity Act. We want to continue to give our police officers the skills and tools to be able to do the work that they love, and that is protecting the men and women of this Nation.

Again, I offer my appreciation, respect, and sympathy as we honor those who have fallen in duty to all of their families.

I ask support for H.R. 2137.

I wish to express my full support for the Bulletproof Vest Partnership Grant Program Reauthorization Act of 2015.

I am a cosponsor of the House version of this bill, and I support adoption of this Senate-passed bill so that we can send it to the President for signature.

In an effort to keep our citizens safe, law enforcement and correctional officers put their lives on the line each day, in every state and territory of the United States.

Gun violence poses a lethal threat to all of us, and our law enforcement officers are often particularly at risk while protecting us.

Reauthorization of the Bulletproof Vest Partnership Grant Program will provide our officers with needed protection when they come face-to-face with individuals who seek to do harm to the officers and others.

Last year, 42 law enforcement officers were killed by gunfire.

Seventeen law enforcement officers have already been killed by gunfire this year.

In some instances, greater availability of protective vests may have saved the lives of these officers.

This program not only promotes the purchase of protective vests and body armor, but it also encourages officers to protect themselves by wearing the equipment.

In order to receive funds, grantee jurisdictions must certify during the application process that they have a mandatory wear policy.

This requirement ensures that all uniformed patrol officers in a grantee jurisdiction will wear protective vests or body armor while on duty.

Each vest purchased through the program must pass strict performance standards set by the National Institute of Justice.

The program also gives special consideration to jurisdictions with fewer than 100,000 residents.

Without these grants, small jurisdictions might f not be able to include this life-saving equipment in their budgets—leaving officers vulnerable to the daily dangers of policing.

Last year, in my district, the Houston Community College Police Department received $8,260.45 from the BVP program, enabling the purchase of 24 protective vests.

And the Jacinto City Police Department was able to purchase 7 armor vests with $2,135.90 received through the BVP program.

The state of Texas received a total of $1,090,175.60 in matching funds from this program in 2015, which made the purchase of 2,834 new protective vests possible.

Since its inception in 1999, the Bulletproof Vest Partnership Grant Program has helped provide more than 1 million vests as of December 2014, to law enforcement officers in more than 13,000 jurisdictions.

The number of women in law enforcement continues to grow.

Yet much of the protective armor currently offered is primarily designed for male officers.

To be certain female officers receive the same level of protection as their male counterparts, the BVP program gives priority to jurisdictions that provide uniquely-fitted vests, including protective vests that conform anatomically to females.

From conducting traffic stops to responding to domestic violence calls, our law enforcement officers often face extreme danger.

Those dangers are evidenced this week—National Police Week—as we honor the brave men and women who gave their lives to protect us and our communities.

As we honor our law enforcement officers during National Police Week, with particular recognition for the sacrifice of fallen officers and their families, it is fitting that we complete work on this legislation today so that it may become law.

Therefore, I urge my colleagues to support S. 125.

Mr. GOODLATTE. Mr. Speaker, I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield 3 minutes to the gentleman from New Jersey (Mr. PASCRELL).

Mr. PASCRELL. Mr. Speaker, I rise today in very strong support of H.R. 2137.

I thank Representative DOUG COLLINS. This is a good, gutsy bill. I thank my co-chair of the Law Enforcement Caucus, Representative DAVE REICHERT, who is always there for every law enforcement person in this country, regardless of which level that law enforcement officer serves, be it Federal, state, county, or local, and Representative TULSI GABBARD for introducing this bipartisan legislation.

Federal law enforcement officers risk their own safety to make our communities safer every day. We need to make sure that they have the tools they need to do the job.

Law enforcement officers were ordered—and you have heard this before—to lock up their government-issued weapons and were prohibited from carrying their government-issued credentials while carrying their personally owned weapon during the last government shutdown.

This decision potentially endangered one female agent. We just heard that described. Thankfully, she was able to deescalate the situation and walk away unharmed.

This incident serves as a reminder that criminals don't care if Federal officers are furloughed, and it highlights the very real need to ensure that law enforcement officers have the means to protect themselves regardless of their duty status.

This bill will allow the brave members of the Federal law enforcement community to have the capability to defend themselves and respond to threatening situations even in a time when they are off or furloughed.

I urge my colleagues to support swift passage of this bipartisan legislation.

Mr. GOODLATTE. Mr. Speaker, I reserve the balance of my time.

Mr. CONYERS. Mr. Speaker, I yield myself such time as I may consume for my concluding remarks.

Members of the House, in 2004, Congress, in recognition of the serious dangers faced by the Federal law enforcement officers, passed the Law Enforcement Officers Safety Act, which authorizes Federal law enforcement officers to carry concealed weapons in any jurisdiction in the United States.

Passage of H.R. 2137 would ensure that, when appropriations lapse or another government shutdown occurs, which we hope it won't, Federal law enforcement officers authorized to carry firearms will continue to be able to carry their government-issued firearms throughout the shutdown's duration for personal protection and to respond to critical incidents.

I urge support for this bill. I thank all of the Members who contributed to it.

I yield back the balance of my time.

Mr. GOODLATTE. Mr. Speaker, this is a good piece of legislation. I urge my colleagues to support it and support our law enforcement officers.

I yield back the balance of my time.

Mr. POE of Texas. Mr. Speaker, as we honor police week, I rise in support of another common sense bill that would benefit the men and women who serve our nation in federal law enforcement.

The Federal Law Enforcement Self-Defense and Protection Act is a simple bill, it allows a federal law enforcement officer to carry their government issued firearm during a furlough in the same way that they could carry their weapon if there was no furlough.

The risks that federal law enforcement officials face are the same whether or not they are on furlough or not. Some federal law enforcement officials have even been specifically targeted because of their positions.

These brave men and women should not be put in jeopardy due to a budget shortfall or an inability to pass a budget. The risks they face are the same, they have the right to defend themselves.

I thank Rep. COLLINS for bringing this bill forward, and I urge your support today.

That's just the way it is.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, H.R. 2137.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

RECOVERING MISSING CHILDREN ACT

Mr. PAULSEN. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 3209) to amend the Internal Revenue Code of 1986 to permit the disclosure of certain tax return information for the purpose of missing or exploited children investigations, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 3209

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Recovering Missing Children Act''.

SEC. 2. DISCLOSURE OF CERTAIN RETURN INFORMATION RELATING TO MISSING OR EXPLOITED CHILDREN INVESTIGATIONS.

(a) IN GENERAL.—Section 6103(i)(1) of the Internal Revenue Code of 1986 is amended—

(1) by inserting ''or pertaining to the case of a missing or exploited child,'' after ''may be a party,'' in subparagraph (A)(i),

(2) by inserting ''or to such a case of a missing or exploited child,'' after ''may be a party,'' in subparagraph (A)(iii), and

(3) by inserting ''(or any criminal investigation or proceeding, in the case of a matter relating to a missing or exploited child)'' after ''concerning such act'' in subparagraph (B)(iii).

(b) DISCLOSURE TO STATE AND LOCAL LAW ENFORCEMENT AGENCIES.—

(1) IN GENERAL.—Section 6103(i)(1) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(C) DISCLOSURE TO STATE AND LOCAL LAW ENFORCEMENT AGENCIES IN THE CASE OF MATTERS PERTAINING TO A MISSING OR EXPLOITED CHILD.—

''(i) IN GENERAL.—In the case of an investigation pertaining to a missing or exploited child, the head of any Federal agency, or his designee, may disclose any return or return information obtained under subparagraph (A) to officers and employees of any State or local law enforcement agency, but only if—

''(I) such State or local law enforcement agency is part of a team with the Federal agency in such investigation, and

''(II) such information is disclosed only to such officers and employees who are personally and directly engaged in such investigation.

''(ii) LIMITATION ON USE OF INFORMATION.—Information disclosed under this subparagraph shall be solely for the use of such officers and employees in locating the missing child, in a grand jury proceeding, or in any preparation for, or investigation which may result in, a judicial or administrative proceeding.

''(iii) MISSING CHILD.—For purposes of this subparagraph, the term 'missing child' shall have the meaning given such term by section 403 of the Missing Children's Assistance Act (42 U.S.C. 5772).

''(iv) EXPLOITED CHILD.—For purposes of this subparagraph, the term 'exploited child' means a minor with respect to whom there is reason to believe that a specified offense against a minor (as defined by section 111(7) of the Sex Offender Registration and Notification Act (42 U.S.C. 16911(7))) has or is occurring.''.

(2) CONFORMING AMENDMENTS.—

(A) Section 6103(a)(2) of such Code is amended by striking ''subsection (i)(7)(A)'' and inserting ''subsection (i)(1)(C) or (7)(A)''.

(B) Section 6103(p)(4) of such Code is amended by striking ''(i)(3)(B)(i)'' in the matter preceding subparagraph (A) and inserting ''(i)(1)(C), (3)(B)(i),''.

(C) Section 7213(a)(2) of such Code is amended by striking ''(i)(3)(B)(i)'' and inserting ''(i)(1)(C), (3)(B)(i),''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to disclosures made after the date of the enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Minnesota (Mr. PAULSEN) and the gentleman from New Jersey (Mr. PASCRELL) each will control 20 minutes.

The Chair recognizes the gentleman from Minnesota.

GENERAL LEAVE

Mr. PAULSEN. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and to include extraneous material on H.R. 3209, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Minnesota?

There was no objection.

Mr. PAULSEN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker and Members, this week we have thousands of members of the law enforcement community here in Washington to celebrate Police Week.

Every day police officers throughout our country wear the uniform with pride, and they understand the tremendous responsibility that comes with it, putting the safety of others before the safety of themselves.

They protect us, they protect our families, and they protect our neighborhoods. We owe it to these police officers to give them every reasonable

tool possible to solve crimes and keep our communities safe.

Unfortunately, police officers are currently being denied a critical resource when it comes to solving child abduction and missing children cases. While many may picture the perpetrators of these crimes as strangers, the reality is actually very difficult to fathom, and that is because every year there are more than 200,000 cases of children that are abducted by a parent or a relative.

The psychological and emotional damage inflicted on a child in these cases can be devastating. Abducted children often are moved from city to city and prohibited from going to school or participating in youth activities due to a fear by the perpetrator of being caught. Many of these children are told that the parent that they are separated from is dead or no longer wants them.

Statistics show that an abducted child is at a higher risk for physical abuse, and some psychologists believe that family abduction is one of the most devastating forms of child abuse.

Here is the opportunity, Mr. Speaker. Research shows that, in a significant number of child abductions, the perpetrator will file a tax return using this child's Social Security number, providing a current address, and a potential case-breaking discovery.

One report found that as many as 46 percent of these cases could be solved if law enforcement had access to this information. While this type of critical tax information can be accessed to solve other serious crimes, current law does not allow police officers to access Federal tax records to help them find an abducted child. Without such a valuable tool, it could be very difficult for law enforcement to solve these cases when the suspect has left the area and has taken action to conceal their new location.

The bipartisan Recovering Missing Children Act will allow investigators to access this critical information and reunite families. This is a commonsense fix that fills the information gap, potentially solving thousands of cases and saving lives.

It is endorsed by the National Center for Missing and Exploited Children, the Fraternal Order of Police, the Sergeants Benevolent Association, the National Association of Police Officers, the Major County Sheriffs' Association, and the Major Cities Chiefs Association.

Mr. Speaker, I include in the RECORD two letters in support of H.R. 3209.

APRIL 7, 2016.

Hon. KEVIN BRADY,
Chairman, Committee on Ways and Means, Washington, DC.
Hon. SANDER LEVIN,
Ranking Member, Committee on Ways and Means, Washington, DC.

DEAR MR. CHAIRMAN & REPRESENTATIVE LEVIN: On behalf of the undersigned organizations, we write to advise you of our strong support for H.R. 3209, the ''Recovering Missing Children Act,'' and to request that the Committee consider and mark up this legislation at the earliest possible opportunity.

The National Center for Missing and Exploited Children reports that more than 200,000 children are abducted by their parents or other close relatives every year. According to findings from the Treasury Inspector General for Tax Administration, however, new addresses for these missing children can be identified as often as 46 percent of the time through analysis of taxes subsequently filed using either the suspected perpetrator's or the missing child's Social Security Number. Unfortunately, despite the value that this evidence would have in combating child abductions, the IRS is currently constrained from providing the relevant tax information to law enforcement.

To the extent that law enforcement needs access to every available tool to aid in the swift recovery of missing children, H.R. 3209 would solve this problem by filling the information gap. Specifically, the bill would amend current law to add the case of a missing child to the list of exceptions that allow the IRS to release tax return information to law enforcement. Given the sensitivity of taxpayer data, the bill would limit the disclosure of relevant tax information solely to those law enforcement officers who are engaged in the recovery of a missing child or the subsequent investigation and prosecution of the alleged abductor. As a result, we believe the ''Recovering Missing Children Act'' strikes the proper balance between protecting taxpayer privacy and facilitating the ability of law enforcement to reunite missing children with their families.

H.R. 3209 represents a commonsense solution to the unintended consequences of laws protecting taxpayer information that is limited to specific scenarios of child abduction. On behalf of our organizations and the men and women of law enforcement that we are proud to represent, we therefore stand ready to work with you and the other Members of the Committee to advance the ''Recovering Missing Children Act'' as expeditiously as possible.

Sincerely,

FEDERAL LAW ENFORCEMENT OFFICERS ASSOCIATION;
FRATERNAL ORDER OF POLICE;
INTERNATIONAL ASSOCIATION OF CHIEFS OF POLICE;
MAJOR CITIES CHIEFS ASSOCIATION;
MAJOR COUNTY SHERIFFS' ASSOCIATION;
NATIONAL ASSOCIATION OF POLICE ORGANIZATIONS;
NATIONAL NARCOTIC OFFICERS' ASSOCIATIONS' COALITION;
SERGEANTS BENEVOLENT ASSOCIATION NYPD.

NATIONAL CENTER FOR MISSING & EXPLOITED CHILDREN,
Alexandria, VA, January 12, 2016.

Hon. ERIK PAULSEN,
House of Representatives, Washington, DC.

DEAR REPRESENTATIVE PAULSEN: On behalf of the National Center for Missing & Exploited Children (NCMEC) and the families and children we serve, I am writing to express our support for your legislation, the Recovering Missing Children Act (H.R. 3209). This bill provides law enforcement with an additional tool in their search for missing and exploited children.

As you know, NCMEC was created as a private, non-profit organization in 1984 and designated by Congress to serve as the national clearinghouse on issues related to missing and exploited children. NCMEC provides services to families, private industry, law enforcement, victims, and the general public to assist in the prevention of child abductions, the recovery of missing children, and the provision of services to combat child sexual exploitation. NCMEC performs 22 functions, including those related to assisting law enforcement, families, and others regarding family abductions.

Child abduction by a parent is a crime under both federal and state law. These children suffer emotional abuse, including lack of identity and grief over the loss of a parent. The abductor may give the child a false explanation for the abduction and/or indicate that the searching parent no longer wants the child. Abductors who move the child between cities, or between countries, make it difficult for law enforcement and the searching parent to locate and recover the child.

In order to ensure that law enforcement has access to information that could lead to the recovery of a missing or exploited child, we believe the Internal Revenue Service (IRS) database is one resource that could provide key information to help law enforcement. A 2007 study by the Department of Treasury Inspector General for Tax Administration (TIGTA) confirmed that the IRS database contains information that could help law enforcement investigating these cases. For example, according to the study, addresses that were different from those where the children and/or alleged abductors lived at the time of the abductions were found for 46% of the missing children (237 out of 520) and 34% of the alleged abductors (104 out of 305). Thus, making it apparent that IRS information could help law enforcement investigating cases involving missing and exploited children.

The current framework of the Internal Revenue Code makes it very difficult, and often impossible, for federal law enforcement investigating missing child cases to use the exceptions from Section 6103 to access IRS information.

A clarification in the law is necessary to ensure the disclosure of IRS data that could lead to the recovery of a missing or exploited child. As such, we believe the legislation you have sponsored—the Recovering Missing Children Act—could enhance law enforcement's ability to locate missing and exploited children.

NCMEC is proud to lend our support to this important legislation and we are grateful for your dedication to the safety of our nation's children.

Sincerely,

JOHN F. CLARK,
President and CEO.

Mr. PAULSEN. Mr. Speaker, I thank my colleague, Representative JOE COURTNEY, for his leadership and bipartisan advocacy on this issue.

I also thank my friend, Mr. PASCRELL, who is on the Ways and Means Committee, for his leadership, along with Congressman REICHERT, who is a member of the Law Enforcement Caucus, for getting behind this legislation, showing again that both parties can work together on meaningful legislation that improves the lives of American families.

As we prepare for the National Missing Children's Day coming up on May 25, I encourage my colleagues to support this bill today so we can give investigators the tools that they need to crack the case and bring a missing child home.

I reserve the balance of my time.

Mr. PASCRELL. Mr. Speaker, I yield myself such time as I may consume.

I am proud to be a cosponsor of H.R. 3209, the Recovering Missing Children Act. I thank my friend, Representative ERIK PAULSEN, for introducing it. It is strong, it is reasonable, and it is the right thing to do. Representative JOE COURTNEY has waited and worked for this legislation for a long time.

As a father and a grandfather, I can't even begin to imagine what parents go through in the event their child goes missing. I can't imagine it. I really can't. And I certainly can't imagine hearing that law enforcement is handicapped in its ability to do everything possible to help bring their child back.

Mr. Speaker, there are 200,000 kids that are abducted by a family member every year. That is something for another day perhaps, but it is part of this problem here.

In 2007, a study by the Treasury Inspector General for Tax Administration, TIGTA—we use that term a lot in the Ways and Means Committee—found that tax return information could be helpful in many cases involving missing children.

TIGTA reviewed whether IRS data would show addresses for persons claiming tax benefits with respect to those missing children after the time of the abduction or their suspected abductors. That sounds pretty bizarre, but that is happening.

TIGTA looked at 520 missing children's cases and found that the IRS data showed new addresses for 46 percent of the cases. Similarly, IRS data showed new addresses for 34 percent of suspected abductors.

Federal law rightly prohibits the IRS from disclosing confidential taxpayer information except in a limited number of exceptions. For example, this information may be released to Federal Government employees if ordered by a Federal judge in preparation for a nontax-related criminal prosecution.

H.R. 3209 would add criminal investigations related to missing or exploited children as one of these exceptions. We should be thankful to the author of this legislation because this is a critical exception that should have been done a long time ago.

The bill would also allow this information to be released to State and local law enforcement officials who are working with the Federal agency in its missing or exploited child investigation.

Mr. Speaker, I urge my colleagues to support this important bill.

I reserve the balance of my time.

Mr. PAULSEN. Mr. Speaker, I yield 4 minutes to the gentleman from Washington (Mr. REICHERT), who has long been an advocate for law enforcement and has always been on the front lines helping law enforcement with their initiatives and helping victims.

Mr. REICHERT. Mr. Speaker, I thank both Mr. PAULSEN and Mr. PASCRELL for their support and for the energy and the effort they put behind this legislation.

As I was sitting here waiting for my turn to speak, I was thinking to myself that I will be 66 years old here in a few weeks. So half of my life, 33 years, was in law enforcement. It kind of stunned me for a second.

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I have been in Congress now 11½ years. I have found that there are some very, very good friends here in Congress who support law enforcement. This is not a partisan issue. Mr. PASCRELL and I have been great partners as co-chairs of the Law Enforcement Caucus, and he is a valiant fighter for law enforcement, firefighters, all first responders. We make a great team. As you can see, there are others who have joined us here today.

In my 33 years, Mr. Speaker, I have had the opportunity to work on patrol, to search for kids in that moment in time where you get a call to a shopping mall and a mother has turned her head for a minute or a father has just let go of the hand of the child for a second and turned around and the child is gone. You can just see the panic in their eyes and the fear in their face. But a few minutes later, they are found wandering around in a toy shop or hiding somewhere, playing hide-and-seek, and they have their child back within minutes.

But, Mr. Speaker, there are other families that aren't so fortunate, that I have had the honor of meeting, where their child had been missing for years. Some are fortunate enough, Mr. Speaker, to get their child back. I have been at the other end of that, where you search and you find. I found a young man up in the mountains of Alaska who had been taken by his father and whisked away in an old camper and hidden in the mountains of Alaska. We found him safe and returned him to his mom.

Mr. Speaker, I have also had the sad experience of finding a missing child dead. I have had to be the one who went to the home and notified the mom and dad: We found Cindy, but she is not alive. Someone killed her.

These are tough cases. When I was working these cases, I would say to the family: We are going to get your child back, and we will find the person responsible for taking your child. When I was a detective, I said the same thing: We are going to be tough, and we will find them.

Today, with this Federal legislation, we are even saying it in stronger words. Now the local law enforcement agencies have the power of the Federal Government. That information that we needed back in the day when I was an officer on the street or a detective on the street, I didn't have. But today we are going to give them that power and authority.

The message today is: those who take children from their homes, those who take children off the streets, we will find you—we will find you—because I don't want police officers knocking on a door and telling a parent that their child won't be coming home.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. PAULSEN. Mr. Speaker, I yield an additional 2 minutes to the gentleman.

Mr. REICHERT. Mr. Speaker, when I was a detective on the Green River Task Force, we solved over 2,000 cases of missing women, young women, and girls over that period of time. We solved 51 murders, and we worked closely with the families. Those detectives who went home every night did not go home and stop thinking about these cases. I know that every one of those detectives and every one of the families involved in that investigation today appreciate the action of Mr. PAULSEN, Mr. PASCRELL, and all those who support this bill.

I know families that actually kept their child's bedroom exactly the way it was the day they went missing, for 5 or 6 years. They didn't change a thing because they always have hope. They always have hope that their daughter or their son will be coming home, until the day that door gets a knock and the officer arrives and says: We found little Johnny, or, Little Johnny won't be coming home.

Mr. Speaker, I urge everyone to support this legislation. I appreciate so much the action by everyone involved in bringing this forward.

Mr. PASCRELL. Mr. Speaker, I yield 4 minutes to the gentleman from Connecticut (Mr. COURTNEY). He has worked very hard on this issue for a very, very long time.

Mr. COURTNEY. Mr. Speaker, I thank Mr. PASCRELL for yielding time, and I thank my good friend and colleague ERIK PAULSEN for his great work in getting us to this point today where finally we are going to move this measure forward.

It is almost 5 years to the day that Mr. PAULSEN and I introduced this legislation, along with a number of others, in 2011, to deal with this really, just almost inexplicable anomaly in the law which basically says that one arm of the government—the IRS—can actually know the whereabouts of a missing child but can't share that information with another arm of government—namely, State and local law enforcement—which, in most cases, almost 100 percent of cases involving missing children, is the level of government that actually deals with the investigation and attempts to recover children.

So you have a situation where you have got all these resources and efforts happening at the State and local level scurrying around, trying to find leads for abducted children, yet the government is sitting on information in terms of tax returns that were filed with the Social Security number of the child who is missing or the suspected abductor, and the two levels of government can't talk to each other.

This legislation will break down that barrier and allow, again, timely information to be shared for the thousands of children, which we know from data that the missing children foundation and other law enforcement groups have been sharing with Congress over a number of years.

So again, as was said earlier, the data is astonishing: 200,000 abductions are reported each year; 12,000 tend to last longer than 6 months. In 2007, the Treasury Department looked at 1,700 Social Security numbers of missing kids and found that, as Mr. PASCRELL said, over a third had been used in returns after the abduction.

For some it is really kind of hard to imagine how an abducting relative or even stranger could have the nerve to file a tax return and claim the Social Security and child exemption for the child that they have in their possession, but the data shows that, in fact, that happens. It may be because they are anxious to get the refund; it may be because they don't want to be violating a second set of laws in terms of not filing a tax return. But the fact of the matter is that there are thousands of children that the government knows their whereabouts, and this law will allow that information to be shared. For every family that will benefit from it, it really is just an amazing opportunity for us to really relieve the stress and pain that these horrible cases inflict year in and year out.

As I said, it took 5 years. We have a great coalition of outside groups that are supporting it. As Calvin Coolidge once said: ''Nothing in the world can take the place of persistence . . . The slogan 'Press On' has solved and always will solve the problems of the human race.'' This, I think, is an example of it. It took 5 long years, but the House is now poised to move forward on H.R. 3209, Recovering Missing Children Act, and again we want to get swift passage and move this through the Senate and to the President's desk so that we can, again, provide a lot of relief and solace to families that are anxiously looking for their loved ones.

Mr. PAULSEN. Mr. Speaker, having no other speakers, I reserve the balance of my time.

Mr. PASCRELL. Mr. Speaker, I yield myself the balance of my time to close.

When Mr. REICHERT said before that we will track you down and find you, he meant it, because he was on many a chase in his 33 years in law enforcement, and he always gave special attention to those that involved children.

I want to congratulate Representative PAULSEN. Most of the time, almost all the time, he always provides a reasonable resolution to problems. I mean that.

I know that we simply cannot have information at our fingertips that can help bring an abducted child home and not allow law enforcement to use it. Allowing law enforcement to use information that can help locate missing and abducted children is a no-brainer. We need to establish a system that protects taxpayers' privacy but also allows law enforcement to do its job. This bill does just that.

I urge my colleagues to support this commonsense legislation. It has been a good, bipartisan few hours.

Mr. Speaker, I yield back the balance of my time.

Mr. PAULSEN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I won't go on too much longer. We have had great testimony and offerings today by folks who have been working in a very bipartisan way on a very key component that has been around for 5 years but will absolutely make a difference in solving missing child abduction cases. It is common sense, it is bipartisan, and most importantly, it will help reunite families with missing children.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Minnesota (Mr. PAULSEN) that the House suspend the rules and pass the bill, H.R. 3209, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period of less than 15 minutes.

Accordingly (at 6 o'clock and 27 minutes p.m.), the House stood in recess.

□ 1830

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. POE of Texas) at 6 o'clock and 30 minutes p.m.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on motions to suspend the rules previously postponed.

Votes will be taken in the following order:

H.R. 4957, by the yeas and nays;

H.R. 5052, by the yeas and nays.

The first electronic vote will be conducted as a 15-minute vote. The second electronic vote will be conducted as a 5-minute vote.

ARIEL RIOS FEDERAL BUILDING

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 4957) to designate the Federal building located at 99 New York Avenue, N.E., in the District of Columbia as the ''Ariel Rios Federal Building'', on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Florida (Mr. CURBELO) that the House suspend the rules and pass the bill.

The vote was taken by electronic device, and there were—yeas 401, nays 0, not voting 32, as follows:

[Roll No. 180]

YEAS—401

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Farenthold
Farr
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
Marino
Massie
Matsui

McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rokita
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Sensenbrenner
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—32

Castor (FL)
Clawson (FL)
Duckworth
Ellison
Esty
Fattah
Fincher
Frankel (FL)
Grijalva
Gutiérrez
Hastings
Herrera Beutler
Hudson
Huffman
Langevin
Latta
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Meng
Norcross
Perlmutter
Richmond
Rohrabacher
Rooney (FL)
Sanchez, Loretta
Scott, David
Slaughter
Takai
Whitfield
Yarmuth

□ 1850

Mr. RANGEL and Ms. KAPTUR changed their vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. LANGEVIN. Mr. Speaker, on rollcall vote No. 180, I was unavoidably detained. Had I been present, I would have voted ''aye.''

Mr. HUDSON. Mr. Speaker, on rollcall No. 180, I was inadvertently detained. Had I been present, I would have voted ''yea.''

OPIOID PROGRAM EVALUATION ACT

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 5052) to direct the Attorney General and the Secretary of Health and Human Services to evaluate the effectiveness of grant programs that provide grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse, and for other purposes, as amended, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Virginia (Mr. GOODLATTE) that the House suspend the rules and pass the bill, as amended.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 410, nays 1, not voting 22, as follows:

[Roll No. 181]

YEAS—410

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Boyle, Brendan F.
Brady (PA)
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (GA)
Carter (TX)
Cartwright
Castro (TX)
Chabot
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DeSaulnier
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Ellmers (NC)
Emmer (MN)
Engel
Eshoo
Esty
Farenthold
Farr
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hahn
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Hice, Jody B.
Higgins
Hill
Himes
Hinojosa
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Israel
Issa
Jackson Lee
Jeffries
Jenkins (KS)
Jenkins (WV)
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
Marino
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Nolan
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poe (TX)
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rokita
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Stutzman
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—1

Serrano

NOT VOTING—22

Castor (FL)
Clawson (FL)
Duckworth
Fattah
Fincher
Frankel (FL)
Grijalva
Gutiérrez
Hastings
Herrera Beutler
Latta
MacArthur
Maloney, Carolyn
Maloney, Sean
Marchant
Meng
Norcross
Rohrabacher
Rooney (FL)
Sanchez, Loretta
Slaughter
Takai

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1856

So (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

□ 1900

HONORING THE MEMORY OF TONY CASTILLO

(Mr. COFFMAN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COFFMAN. Mr. Speaker, I rise today to honor the memory of Tony Castillo, a longtime friend of mine from my hometown of Aurora, Colorado, who recently passed away.

Tony and I had a friendship that started in our youth. We had so much in common. Tony and I both came from military families. Our late fathers had both married war brides in the aftermath of World War II. They were career enlisted soldiers who were transferred to Fitzsimons Army Medical Center for their last assignment in 1964 when we were both just 9 years old. Our military families both came from previous assignments in Europe.

While I followed in my father's footsteps and joined the military, Tony stayed in Aurora and eventually married the love of his life, Nita Adkins of Pueblo, Colorado. Tony and Nita raised two extraordinary children, Ben and Jess, in a loving family that has been inseparable.

Tony was an extraordinary example of a great friend, a loving husband, a devoted father, and he will always be remembered and missed by all who knew him.

Mr. Speaker, I rise today to honor the memory of Tony Castillo, a longtime friend of mine, from my hometown of Aurora, Colorado, who recently passed away.

Tony and I had a friendship that started in our youth. We had so much in common. Tony and I both came from military families. Our late fathers had both married war brides in the aftermath of World War II. They were career enlisted soldiers who were transferred to Fitzsimons Army Medical Center for their last assignment in 1964 when we were both just 9 years old. Our military families both came from previous assignments in Europe.

While I followed in my father's footsteps and joined the military, Tony stayed in Aurora and eventually married the love of his life, Nita Adkins of Pueblo, Colorado.

Tony and Nita raised two extraordinary children, Ben and Jess, in a loving family that has been inseparable.

Tony was an extraordinary example of a great friend, a loving husband, a devoted father, and will always be remembered and missed by all who knew him.

NATIONAL FOSTER CARE MONTH

(Mr. LANGEVIN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANGEVIN. Mr. Speaker, as co-chair of the Congressional Caucus on Foster Youth, I rise today in recognition of May as National Foster Care Month.

Growing up, my parents welcomed many foster children into our family, providing them with a stable and nurturing environment.

One of the biggest challenges for youth in foster care is finding their forever family. Even youth who age out of foster care still need a place to call home after they turn 18, and whether through reunification, adoption, or an individual plan, every foster youth deserves a permanent home.

Mr. Speaker, these children belong to all of us, and we are all responsible for their well-being. I urge my colleagues to join me in recognizing May as National Foster Care Month.

RECOGNIZING MEMBERS OF PENN STATE'S RED CELL ANALYTICS LAB

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to recognize members of Penn State University's Red Cell Analytics Lab, a unique organization intended to educate students on how to combat threats in an age of ever-evolving technology.

Last weekend, I visited with members of the lab, and I listened in awe to how they are working with local law enforcement to keep students, staff, and spectators safe at events such as Penn State football games and the university's annual dance marathon, or THON.

Quite simply, these students have become experts at recognizing threats and security holes—essential skills in today's world where governments, technology firms, and corporations must stay one step ahead of those who seek to do us harm. I was happy to learn that members of the Red Cell Analytics Lab move on to great careers, working for companies in our financial and technology sectors, along with the Federal Government.

It is unfortunate that these talents are necessary in today's world, but I am glad they are being cultivated at Penn State University.

THE HEROIN EPIDEMIC

(Mr. RYAN of Ohio asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. RYAN of Ohio. Mr. Speaker, this week, we are going to take up a package of bills that I support dealing with the massive heroin epidemic plaguing places like Ohio, but all over the country.

In my congressional district, we saw, a few months back, over 22 overdoses. In Trumbull County alone, 7 deaths; in Summit County, city of Akron, 56 people died of a heroin overdose, compared to just 40 in 2013. Now, in Ohio, these drug overdoses have been the leading cause of accidental deaths in our State, bypassing car accidents.

This House this week is going to do the responsible thing and pass key legislation and hopefully combine with the Senate legislation. But there is a missing piece on the recovery side. We need to make sure that, as we address this issue, it is comprehensive: it is about addiction and it is about treatment, but it also must be about recovery.

So I commend my colleagues on both sides of the aisle for these important pieces of legislation that are coming forth. I will support them, but knowing that we have got a lot more work to do and that the bottom line is we need money behind these programs.

The President put in his budget over $1 billion. We need to make sure that the resources get down to the local community so that we can help stem the tide of this epidemic in our country.

SUPPORTING TSC GLOBAL AWARENESS DAY AND MAX LUCCA

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, today I rise to lend my voice in support of TSC Global Awareness Day on May 15.

Tuberous sclerosis complex, or TSC, is a rare genetic disease that causes uncontrolled tumor growth across the face, body, and organs of affected individuals. Unfortunately, there is no cure for TSC.

South Florida's own Max Lucca—look at that sweet young face—was diagnosed with TSC when he was only 2 weeks old. Now he is 8, and Max Lucca has thrived because of the constant love and care provided by his parents, Vanessa and Max. Max Lucca enjoys baseball—as you can see—and hanging out with his best buddy.

So please think of this sweet young boy, Max Lucca, and others living with TSC on May 15 for TSC Global Awareness Day, and let's work together to find new treatments and a cure for this tragic disease.

GIVING HOPE TO DUCHENNE MUSCULAR DYSTROPHY PATIENTS

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, I rise today to speak about a genetic disorder, Duchenne muscular dystrophy, that has caused heartbreak for families across the country. The genetic mutation, found typically in boys, weakens muscles and leaves most sufferers confined to wheelchairs. Due to lung or heart failure, most afflicted with Duchenne pass away before their 25th birthday.

However, there is hope with new medical advancement that could increase the lifespan and improve the quality of life for those living with Duchenne. A new drug was used in a medical trial where every participant was able to walk for 4 years after starting the treatment, and on top of that, there were no negative side effects. However, the FDA has yet to approve this new drug, even with such promising results.

Mr. Speaker, Duchenne muscular dystrophy is an awful condition that more or less guarantees a short life for those who live with it. Medical advancement is giving hope to those patients for a longer and a better life, but bureaucratic redtape is preventing those folks from accessing it. It is time for the FDA to remove those roadblocks and to move forward for a new, possible, life-improving treatment.

SALEM TOWNSHIP FIRST RESPONDERS

(Mr. ROTHFUS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROTHFUS. Mr. Speaker, on April 29, a natural gas pipeline exploded in Salem Township, Westmoreland County, Pennsylvania, immediately destroying one home, injuring a resident, and forcing the evacuation of a dozen other homes.

I rise to thank the first responders who selflessly and swiftly arrived on the scene:

Forbes Road Volunteer Fire Department Chief Bob Rosatti led incident command during the crisis, and he is to be commended for the tremendous job he did. In addition to Chief Rosatti's department, the following volunteer fire departments also responded: Slickville, White Valley, Export, Crabtree, Greensburg, Delmont, Hannastown, Grandview, New Alexandria, Jeannette, Harrison City, Washington Township, Saltsburg, Tunnelton, and Sardis.

These departments were joined by seven other local, county, and State agencies. The firefighters, police, and emergency teams who choose these selfless and courageous professions make our communities safer, better places to live, and for this, we should all be grateful.

THE IRAN DEAL

(Mr. DESANTIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DESANTIS. Mr. Speaker, Ben Rhodes from the administration said that the Iran deal would be the ObamaCare of the administration's second term. When I heard that, I thought, ''Sheesh,'' because a lot of us don't think highly of ObamaCare. We don't think it has worked out well. We didn't think the Iran deal was going to work out well. But now that actually has a deeper meaning.

ObamaCare was sold to the American people on a set of deceptions: if you like your plan, you can keep it; if you like your doctor, you can keep him; you are going to pay $2,500 less per family for health insurance. Now, it turns out, so was the Iran deal.

They concocted a narrative—a false narrative—that, with the election of Rouhani, a moderate who really wanted to have an opening, this was a once-in-a-generation opportunity for America to seize this day and strike a deal with Iran—even though they are the world's leading state sponsor of terrorism—and bring peace to the world.

That was all false. This started before Rouhani was elected. He is not a moderate. This was a deal made in conjunction with Iran's hard-liners; and as we are seeing now with how they are behaving, it is benefitting Iran's hard-liners.

ObamaCare we can fix. It will be tough. But we may not be able to recover if Iran gets a nuclear weapon.

NATIONAL NURSES WEEK

(Mr. GUINTA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUINTA. Mr. Speaker, I rise to recognize National Nurses Week, a time to celebrate the contribution of over 3 million registered nurses around our country. They are our friends and neighbors who care for our loved ones and treat us when we are sick.

A nurse is usually the first person we talk to at the doctor's office, even first thing in the morning. A nurse may be the first person we meet in life. Increasingly, as the American population ages, nurses are filling larger roles.

In New Hampshire, especially rural regions, we need them more than ever. At job fairs I hosted in Manchester and Laconia, healthcare employers are scouring the State for help. I cosponsored the Home Health Care Planning Improvement Act to allow nurse practitioners to visit more patients at home.

Nurses are on the front lines of the heroin epidemic in the Granite State and around the country. Some are Members of Congress, putting their kindness, compassion, and understanding to work in government. During National Nurses Week, please thank a nurse for his or her contributions.

□ 1915

PUBLIC LAND ACCESS BY THE GO ACT

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, the current process to obtain outfitter and guide permits for hiking, hunting, and fishing exhibitions on our public lands for recreation events is too expensive and very complicated. Guides and outfitters should not have to navigate arbitrary rules, inconsistent practices, and unresponsive Federal agencies.

As a result, I have introduced the Guides and Outfitters Act, known as the GO Act, H.R. 5129, which will renew the authorization for these recreation permits while eliminating burdensome red tape.

This measure will also cap permit fees, ensure that fees are charged only for activities on the actual public lands, not on private lands, provides categorical exclusions for previously studied uses to reduce delays, and allows online applications.

The GO Act is consistent with my commitment to increasing public access to the public lands, making Federal agencies more responsive to the communities in which they operate and removing unnecessary bureaucratic red tape that keeps people off of their lands.

NATION'S OPIOID EPIDEMIC

The SPEAKER pro tempore (Mr. YOUNG of Iowa). Under the Speaker's announced policy of January 6, 2015, the gentlewoman from Massachusetts (Ms. CLARK) is recognized for 60 minutes as the designee of the minority leader.

GENERAL LEAVE

Ms. CLARK of Massachusetts. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks and include extraneous material on the subject of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Massachusetts?

There was no objection.

Ms. CLARK of Massachusetts. Mr. Speaker, I would like to thank my colleagues for joining us this evening for this critically important discussion.

I thank the chairs of the bipartisan task force on the opioid epidemic for their leadership and tenacity in pushing reforms. I thank Congresswoman KUSTER and Congressman GUINTA.

This week the House will debate solutions to our Nation's opioid crisis. If there has ever been a time to put away partisan differences and ideological rhetoric, it is now. I am proud of the work of the task force in supporting bipartisan bills to help stem the tide of this epidemic.

This is a public health crisis that reaches into every community. It is an equal opportunity killer, without regard for age, gender, race, or economic background. It does not care if you are a Democrat or a Republican.

In Massachusetts, just last year we lost nearly 1,400 lives to this opioid crisis. Half of all of the deaths in Massachusetts of opioid overdoses involve heroin, but prescription opioid overdoses are also surging. Between

2013 and 2014, they increased by over 90 percent. In my State more than others, the epidemic is claiming the lives of our young people ages 25 to 34.

Too many parents are trying to save their child from opioid addiction's deadly grip, and they are counting on us for help. That is why we are here this evening—to do everything we can to save lives.

At the center of this debate are the families at home who speak out and bravely share their stories so no other parent has to endure the pain of losing their child.

Tonight I am thinking of Debbie Deagle, who I met in October during a town hall in Revere, Massachusetts. In front of a large audience she told the story of Stephen, her only child, who she lost to opioid addiction. In her words, she was inconsolable and it was difficult to make it through each day. She was also angry because not a month had gone by in the last 15 years she hadn't heard of somebody overdosing, but nobody wanted to talk about it and everybody was too ashamed.

Debbie talked about the shame her son felt. She described him as brilliant, her miracle child. She raised him as a single mother and, while it was hard, his beautiful life was a gift she cherished.

He was smart, witty, a songwriter, and a musician. He had a bright future. He had graduated with honors from St. John's Prep and went to Northeastern University, where he became a computer science major, which was his gift.

It was four impacted wisdom teeth his freshman year of college and the opioids that he took for pain that started him on his road to addiction. When his substance abuse disorder derailed Stephen's life, Debbie started reading blogs where people commented: They are only junkies. They should just cull the herd. That is what got her angry. She thought: These aren't animals. These are children.

On their own, Debbie and her son battled addiction, insurance companies, and the courts. In the end, it was a battle they lost. On January 8, 2015, Stephen Deagle passed away after his excruciating struggle with opioids, and his mother lived her worst nightmare saying goodbye to her only son.

When we asked Debbie if we could share her story, her request was simple: Please get Congress to do something. We deserve real solutions now.

So my request to this Congress is to listen to Debbie and the pleas of too many other moms like her. This crisis is an urgent calling for Congress to act and save lives.

This week we will have the opportunity to pass legislation that will give critical tools to address this crisis. Ultimately, however, we must also provide the financial resources to our State and local partners to change the course of this epidemic.

I thank you for all the work that is being done.

I yield to the gentleman from New Hampshire (Mr. GUINTA).

Mr. GUINTA. Mr. Speaker, I thank Congresswoman CLARK for yielding, and I extend my gratitude to her for joining me tonight in this Special Order.

I am also grateful for the opportunity to join bipartisan members—Republican and Democrat—from around the country to talk about heroin abuse, an increasingly deadly public health crisis.

Last year I joined with my colleague from New Hampshire, Congresswoman KUSTER, to create The Bipartisan Task Force to Combat the Heroin Epidemic. We strive to fight the tragedy of opioid addiction and fatal overdose from around the Nation.

Since its creation last October, our task force has grown to 80 members. Our growth and impact is a testament to the depth of the crisis and the focus of the Members of this body.

In my home State of New Hampshire, abuse and overdose claimed the lives of 430 people in 2015. To put that number in perspective, that is 1 out of every 3,000 residents died of an overdose last year. The CDC reports that, nationally, overdose deaths have tripled over the last 10 years.

I am proud of the work we have done so far to combat this epidemic. But as many struggling families and ailing communities know, there is much more work to be done.

A few weeks ago the Bipartisan Task Force to Combat the Heroin Epidemic proposed a legislative agenda. Our bills would assist law enforcement, treatment providers, and recovery personnel in their battle against the epidemic.

During this Heroin and Opioid Awareness Week, we will see our legislation come to the floor for a vote. I am pleased that my colleagues have tirelessly worked to protect our loved ones from this epidemic, and I am proud to cosponsor many bills coming to the floor this week, including the House response to the Comprehensive Addiction and Recovery Act.

To address the comprehensive nature of this epidemic, we must provide a comprehensive legislative package to bolster the efforts of those helping our communities.

I have filed several amendments to this package for this week. They will increase grants for medication-assisted treatments and long-term recovery.

I also have filed legislation that would reauthorize recovery court programs for 3 years, and I am grateful that my bill, the Good Samaritan Assessment Act of 2016, passed by suspension in the House earlier today. I hope this provision will be included in the conference report.

Very simply, these provisions are absolutely crucial to aiding those in need. My colleagues and I have committed to seeing the House of Representatives pass the strongest and most comprehensive plan possible.

I believe we will do our due diligence to pass this plan, go to conference with the Senate, and put a bill on the President's desk before June.

Our plan is urgently needed. Nearly 129 people die every day from an opioid overdose. In my district and around the country, I hear from families and friends who know someone coping with substance use disorder.

We will only make a dent in this great challenge by listening to its victims. We need to hear fathers like Doug Griffin of Newton in New Hampshire's First District. His daughter, Courtney, fell victim to heroin abuse at just 20 years old.

Doug remembers Courtney as a bright, lively girl with a great sense of humor and a deep passion for life. She played music. She loved s'mores. Courtney told Doug she planned to become a marine and serve her country.

But 3 years later she was lost on the streets, in and out of rehab facilities. Prescription pills, fentanyl, and street heroin ensnared Courtney into a fatal web of addiction. She lost the will to live.

Because Courtney's pain was so great and because she had so few options for treatment, Doug says he and his family hid the truth from the outside world. To help others, they are speaking out now, just as this body is this evening.

Doug is courageously telling everyone he knows about the warning signs of heroin abuse and the deficiencies in our public response. Millions of Americans share Courtney's story and Doug's anguish. It is only by speaking out and sharing grief that we will remove the stigma preventing far too many from seeking help.

Tonight it is about telling the truth. It is about finding the solutions we need and why we need them. It is about putting political disagreements aside and cooperating for the common good, for the common good not just of our constituents, but our country.

As the House considers this vital legislation, I encourage my colleagues to listen to their constituents, hear their stories, share their struggles, and help them fight back. We could win this public emergency, and it starts this week with the comprehensive CARA legislation.

I thank my colleagues from both sides of the aisle for working so judiciously and in a manner that I think puts people ahead of anything else that this body is doing. I commend my colleagues, and I am honored to work with them on this legislation.

Mr. Speaker, I thank the congresswoman from the Commonwealth of Massachusetts just to the south of my district.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank Mr. GUINTA.

Mr. Speaker, I yield to the gentleman from Connecticut (Mr. COURTNEY).

Mr. COURTNEY. Mr. Speaker, I thank Congresswoman CLARK for organizing this really important discussion here this evening.

The scope of the problem in terms of what is facing our Nation is pretty astonishing when you look at the statistics from the Centers for Disease Control.

In 2004, 7,000 Americans lost their lives to heroin overdoses. Fast-forward 10 years and that number is now over 27,000. Again, the statistics land in suburban America, rural America, and urban America.

But at the end of the day, behind every one of those numbers is a story of a human being and a family. That is why this discussion is so important tonight.

Next to me I have a chart showing the face of Justice Kelly, who is a 21-year-old from Tolland, Connecticut. Tolland, Connecticut, is the quintessential small-town New England community. It is about 5 miles from where I live. Her mother, Jennifer, moved there hoping that this was going to be a great community to raise her child, and she went through the public school system.

Battling depression, she fell victim to heroin addiction and for the last number of years has been battling this with methadone treatment in and out of facilities and programs.

Last summer she really finally went to her family and just begged them to get access to a long-term rehab program. Unfortunately, the waiting lists were months. The facilities in Connecticut, like so many other parts of the country, were full.

In August of 2015, when she again was in a predicament where she lost her asthma medication, the combination of suffering from asthma and a heroin overdose resulted in her being rushed to the hospital with an overdose condition.

The good news is that the folks at the emergency room were able to save her life. But as her mother said, ''As we pulled into the parking lot of the ER, I knew at that moment I was losing her. All I remember from that moment on was being more scared than I have been in my entire life. I saw a whole team of people come outside and try and save my baby's life. I stood there helpless and alone. All I could do was look to God.''

She now is in a permanent vegetative state, as the photograph next to me indicates, and there really are no signs of improvement.

Her mother went on to say, ''They saved my daughter's life that day, but it's been a very hard journey. Justice's injury is so severe that the likelihood Justice will ever recover is very slim. More than likely, I will have to make the decision to bring my baby home with hospice.''

This story shows that this problem extends far beyond even the fatalities. It also is going to leave people with chronic life-changing conditions, like this beautiful young girl from Tolland, Connecticut.

□ 1930

Mr. Speaker, this issue is now coming to the floor this week with a number of measures authorizing different changes and approaches to this program.

I want to, again, emphasize the fact that I come from the State with the highest per capita income, but even in Connecticut, people cannot find access to treatment beds. That is why at some point we have to bring this discussion to a higher level and realize that we need to get resources out to the communities so that law enforcement can at the front lines deal with this issue in emergency situations, so that we have treatment options for families like the Kelly family in Tolland, Connecticut, and so that we go upstream in terms of prevention and education so as to get to the root causes of the pathways to heroin and opioid addiction. This is going to require an all-hands-on-deck approach.

Yes, let's support the legislation that is coming forward this week, let's make smart policy changes, and let's authorize different programs. At the end of the day, we need to put our money where our mouth is in that we need to treat this like it is a natural disaster. As a Nation, we would instantly respond to a hurricane that is taking human lives at a clip much slower, in fact, than what is happening with the heroin opioid crisis.

Let's move forward with the $600 million request for emergency supplemental funding, which is before the Appropriations Committee, so that we will not just talk about solving this problem but, again, put the resources out there so that the police, the addiction counselors, the treatment folks, and all of the families who are out there who are desperate for help will know that our country is going to treat this as the true crisis that it is and will know we will get the resources all across the country.

Again, I thank Representativ CLARK for organizing this discussion. Jennifer Kelly, Justice's mother, thanks the gentlewoman for letting us have an opportunity to tell the story about her daughter.

As a Nation, let's move forward with all of the resources and good ideas because that is the only way we are ever going to come to terms with this problem and solve it.

Ms. CLARK of Massachusetts. Please extend our thanks to Jennifer's family for sharing that story, and I thank the gentleman for his advocacy.

Mr. Speaker, I yield to the gentleman from New York (Mr. KATKO).

Mr. KATKO. I thank the gentlewoman.

Mr. Speaker, during my 15 years as a Federal prosecutor in Syracuse, New York, I witnessed firsthand on a daily basis the devastating impacts of drug use, in general, and of heroin, in particular, and the terrible impacts it had on the well-being of our children, on the lives of those directly involved, and on the safety of our community. Tragically, the devastating impact of heroin and other opioids has gotten much worse in recent years.

As a Federal prosecutor, I have seen every possible drug known to man on the streets. I have never seen anything that has had the devastating effects that heroin has had on our communities. Literally, fatal incidents are happening on a regular basis.

One of my top priorities during my time in Washington has been to facilitate a community dialogue on this public health epidemic to discuss ways of treating and preventing addiction. At every forum, at every town hall, at every business I visit, at every hospital I visit, I hear from my constituents of the devastation this epidemic is inflicting on our communities. I hear tragic stories about friends or family members succumbing to heroin addiction. I hear from medical workers and first responders about the strain this epidemic is placing on their resources. I hear stories of pain and loss, and I want to share a few of those with you to illustrate what I am talking about.

During the course of the six town halls I have conducted or have participated in throughout my district over the last several months, we have routinely heard of the stories of victims. In particular, families have told of the loved ones they have lost. One individual really caught my attention. They all caught my attention, but this one was pretty devastating.

Morgan Axe was a beautiful young woman and a great athlete—just a great kid overall—who battled addiction with heroin for several years. At 24 years old, she became pregnant and she stopped taking heroin completely in order to protect her baby. She stopped taking any drugs that would have helped her with her cravings, and she was doing great. At the fifth month—at 5 months of being clean—a boyfriend thought it would be a good idea to give her a dose of heroin. We have the telephone records to show it. She took that heroin and she died, as did her baby.

Her mother had to come to that forum and talk about this. I applaud her for the openness with which she talked about it, for the pain that she shared with us, and for the lessons that can be learned from this. It can happen to anybody. It is not an inner city drug. When we were growing up, we used to think of heroin users as individuals who would be under a bridge somewhere or in an alley, but that is not the way it is. It affects those in the suburbs, the wealthy, the poor, and everyone in between.

I have one other quick story. When I was renting my congressional office, the individual who was showing me the office had a sad look in his eye. He began to tell me the story about his daughter, who was the Final Four MVP for the NCAA Junior College Lacrosse the year before. She died of a heroin overdose because she got into heroin after that championship.

It is an epidemic with enormous consequences, and it is getting worse. The epidemic of addiction is claiming the

lives from every age, class, and race, like I mentioned. I know that society doesn't like to talk about drugs, addiction, and overdose, but this is a problem that we can no longer ignore, and it is one that we must absolutely, positively, address. The scourge must be stopped.

I am absolutely proud to be part of the House action that is being taken this week on several measures that will help to fight against this growing opioid epidemic and through the passage of my drug kingpin bill earlier today. Much remains to be done, and I hope that Congress will build on the actions this week and will continue to work on efforts in a bipartisan manner so we can fight back and save people from addiction.

Ms. CLARK of Massachusetts. I thank the gentleman for sharing Morgan's story with us.

Mr. Speaker, I yield to the gentleman from the western part of the Commonwealth, Mr. NEAL.

(Mr. NEAL asked and was given permission to revise and extend his remarks.)

Mr. NEAL. I thank Congresswomen CLARK and ANN KUSTER and Congressman FRANK GUINTA for the good work that they have done in calling attention this evening to this crisis that now threatens to overwhelm rehabilitation centers across the country. What I want to specifically cite in my comments for the next few minutes is a very human story. Her name is Bethany, and she wrote to me on January 18 of this year.

Dear Congressman NEAL:

I am writing to you regarding the heroin prescription pill crisis our State and Nation is currently entrenched in. I am a physician assistant who graduated from Wake Forest Baptist Medical School in their Physician Assistants program in 2003. I have worked in various outpatient clinics, as well as at Bay State Medical Center in Springfield, Massachusetts, and at the Cooley Dickinson emergency room operations in Northampton, Massachusetts. I have treated overdose patients, have been alongside physicians who have pronounced patients deceased from an overdose, as well as having referred patients to crisis support teams, outpatient treatment, and rehabs.

After all of this, I never expected that I would become addicted to prescription painkillers after a series of surgeries and illness. I suffered in silence, alone in fear, shame, and guilt. I was a functioning professional who referred my addicted patients to various resources, but when I tried to reach out for help, I hit roadblocks.

For instance, the emergency room I worked in was outsourced so that when I went to the emergency room director on two separate occasions to ask to go to the Employee Assistance Program, I was told that those resources were only available to hospital employees. I tried outpatient therapy and 12-step programs, but I kept sliding backwards.

After years of struggling, I couldn't keep silent any longer. I confessed my addiction to a coworker. I felt that, finally, help would come. Instead, I was fired for cause and without benefits. The fear that had kept me silent for all of those years was now my reality. My husband was a stay-at-home dad.

And now how could we support our three children?

I felt like my life was falling apart. Little did I know that what I was doing was actually falling into place. With family support, I found a rehab program for 6 months where I could go with two young children. I saw my oldest on the weekends.

After graduating rehab, I interviewed and signed up with the Massachusetts professional reporting system. For 5 years, I have called in daily. I am subjected to at least 15 random drug tests a year. I go to 2 to 4 hours of recovery meetings every week and attend a professionals in recovery meeting weekly. It was in the professionals meetings that I finally found a sense of belonging. It was the vital piece of the puzzle that had been lacking as I searched for recovery but kept backsliding.

She writes in this letter to me of her strong faith and how it helped to get her through this very difficult time in her life, but she also points out that the system is broken, that the emergency room funding for reaching individuals is inadequate, that pain management is inadequate, that pain scales, treatments are inadequate.

She writes:

I found myself overtreating pain at times because I was taught that we could get sanctioned from not treating pain. I felt obligated to treat someone's subjective pain without objective findings or reason.

She writes of all of the challenges that she faced, all having started because of surgeries and illnesses that she had that required medication that, in fact, in the end, she could not successfully escape.

She testified in a forum that I held. She was courageous enough to get up and talk about the problems that she had.

Do you know what?

She is doing better.

So we call attention to those tonight who might find a path forward from the grim reality of heroin that sells on the streets of Springfield and Hartford for $3 a bag. This was an individual who had a normal working relationship with colleagues. This was an individual who went to work faithfully, had a professional designation, and found herself caught up in the opioid crisis because of the prescriptions that had been given to her early on.

I know of the maintenance plan that is being proposed and of the suggestions that are being offered for more physicians to secure training and how opioids might be extended to those who need them, but I would implore this Congress to act favorably upon that proposal and that legislation.

We all regularly go to caucus meetings, we go to a host of get-togethers, at which we always attempt to upgrade our skills. There is nothing that will upgrade your skills like the coarseness of a campaign—I can tell you that—but we all find that professional opportunity to challenge ourselves to do better in this institution.

That should not be unlike those who are outside of the institution. Where you regularly require courses for attorneys, CPAs, and others, why not for physicians so they may receive the training that today would be readily available with the assistance of this Congress, hopefully after the vigorous activity that we will take this week?

I close as I opened. I thank Congresswoman CLARK for her leadership, Congresswoman KUSTER for her leadership, and Congressman GUINTA for his leadership on this issue. I am telling you, across western and central Massachusetts, this is devastating families. There is an opportunity here for the Congress to respond.

Ms. CLARK of Massachusetts. I thank Mr. NEAL for the critical story that Bethany shared with him and that the gentleman shared with us. We know how devastating this crisis has been in western and central Massachusetts, and we thank the gentleman for all of his leadership on it.

Mr. Speaker, I yield to the gentlewoman from New York (Ms. STEFANIK).

Ms. STEFANIK. I thank Ms. CLARK.

Mr. Speaker, first, I want to take a moment to thank my colleagues Mr. GUINTA, Ms. KUSTER, and Ms. CLARK for their work and tireless efforts to combat the heroin epidemic that is sweeping across our Nation.

Over the last 15 years, heroin-related deaths have quadrupled, leaving families and communities across this country shattered. This crisis has been felt acutely in my district where the region is a major pipeline for illicit drug trafficking.

Last November, law enforcement in Washington County, New York, made 11 arrests in one morning of individuals who were illegally selling heroin, cocaine, and prescription drugs. In New York's North Country, I have seen and heard from those in recovery and from those still struggling that heroin addiction and prescription drug abuse is a lifelong challenge. In my district, heroin addiction tragedies have caused parents to bury their children and have left spouses widowed and young children parentless.

These drugs reach out and impact even the strongest members of our communities. Addiction is a disease that does not discriminate. The support offered by treatment centers like St. Joseph's Addiction Treatment & Recovery Center in Saranac Lake is critical to those who suffer from this disease. Several veterans whom I had the opportunity to visit with at St. Joseph's have seen the harsh reality of war and are now fighting battles at home—one against heroin and opioid addiction and another against posttraumatic stress disorder.

Heroin abuse touches our communities, our homes, and our families in ways that have grave effects on everyday people and everyday lives. As heroin use has increased, police departments across this Nation have seen a rapid rise in related crimes, such as sex trafficking, domestic disputes, larceny, burglary, and prostitution—all tied to heroin use.

This week, I am honored to stand with my colleagues from both sides of

the aisle to advance legislative solutions to this widespread and insidious crisis. As a member of Representatives GUINTA's and KUSTER's bipartisan task force to combat heroin abuse and assist law enforcement efforts, we have worked tirelessly to find solutions. The legislation we present this week provides critical tools to medical personnel and law enforcement for stemming the flow of drugs and enhancing treatment options and availability.

These are real problems that need to be addressed through innovation, cooperation, and thoughtful action. I am confident that we can secure a better heroin-free future for our Nation. These efforts are not the end of the House's work on this issue. We will continue to seek solutions to this crisis that has touched families across my district and across our Nation.

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On behalf of the families, communities, and veterans in New York's 21st Congressional District and across the country, I urge my colleagues to join those of us here tonight as we work to eliminate the heroin epidemic facing this country.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank Ms. STEFANIK for telling us of the work of St. Joseph's and highlighting the importance of the impact of this crisis on veterans.

I yield to the gentlewoman from Ohio (Ms. KAPTUR).

Ms. KAPTUR. Mr. Speaker, I first thank my colleagues, Congresswoman CLARK for leading this effort, Congressman GUINTA, as well as Congresswoman ANN KUSTER, who have worked tirelessly to move the heroin task force agenda forward. I applaud their persevering efforts and House leadership's acknowledgement of the danger and devastation the heroin and opioid epidemic has caused across our great Nation.

This serious situation impacts every county in the 9th District of Ohio, stretching across all of northern Ohio. We have been impacted more heavily due to the major Ohio turnpike, I–80/I–90, and easy transport networks that link to international smuggling access points.

The largest of our district's five counties, Cuyahoga County, recently declared a public health emergency because of record rates of overdoses. The county lost a staggering 181 citizens in the first 4 months of 2016, a rate of overdose death that, if continued, would more than double the 2015 numbers for that county.

Mayors across our district report to me the dramatic increase in emergency calls connected to the epidemic. For northern Ohio, spikes in opioid overdoses are outpacing the ability of local hospitals and rehabilitation facilities to respond effectively.

This week's legislative activity is imperative to communities across America. I encourage our colleagues in leadership to work expeditiously to conference the legislation. Send it to the President with funding immediately. People's lives and local community stability and safety are waiting for our action.

Tonight I would like to share the stories of three young adults—two named Matt and one named Tracy—who have been victimized by the heroin and opioid epidemic.

The first is Matt who was 29 from Toledo, Ohio, who never thought he would become a drug addict. He never knew anything about drugs. He never even smoked cigarettes as a youth. He had a great upbringing and a good home with an amazingly loving family. He went to private schools from kindergarten through high school, then to college at a Division I university on a full athletic scholarship for baseball after graduating with a 4.0 GPA.

So what happened, you ask?

He tore his rotator cuff as a sophomore in college and was given a prescription for 90 percent Percocet. It only took about a week before he became physically dependent and totally reliant. Percocet became the gateway portal to self-annihilation.

To sum up, his next year, Percocet pills got expensive, and he dropped out of college. And one day, not being able to find any pills because of the price and lack of availability, he was offered heroin, which was cheaper and stronger. And from that day on, he was hooked and injected heroin for 9 years.

Matt transformed into a shell of who he used to be, a shell of who he wanted to be and who he always imagined to become. Matt lost everything and everyone in his life because of heroin. After 13 arrests in four different states, he is now a convicted felon. He overdosed and died, having been kept alive for 5 days by machines in ICU.

How could this have happened to such a promising young man?

Heroin and opioid abuse sees no boundaries. It is death masquerading as medicine.

In Toledo, there are only 16 federally funded detox beds for an estimated 10,000 opiate addicts. We simply have to have legislation that allows for more detox facilities. There are programs like Team Recovery that have made a difference in the lives of individuals like Tracy, whose story I will place in the RECORD.

Let me just say that if there are families out there who need assistance, one can call 1–800–662–4357 for advice and direction. That is an addiction hotline, 1–800–662–HELP. The life you save may be your own or that of a relative, friend, or loved one.

Mr. Speaker, I want to first thank my colleagues FRANK GUINTA and ANN KUSTER who have worked tirelessly to move the Heroin Task Force agenda forward. I applaud their persevering efforts and House Leaderships' acknowledgment of the danger and devastation the heroin and opioid epidemic has caused across this great nation.

This serious situation impacts every county in our 9th Ohio district that stretches across all of northern Ohio. We have been impacted more heavily due to the major Ohio Turnpike, I-80–90, and easy transport networks that link to international smuggling access points.

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Tonight, I want to share the stories of three young adults—two named Matt—and one named Tracy. Individuals from our district who have been victimized by the heroin and opioid epidemic.

The first is Matt, who was 29, from Toledo, Ohio. He never thought he would become a drug addict. He never knew anything about drugs, not even wanting to smoke cigarettes as a youth. He had a great upbringing in a good home, with an amazingly loving family. He went to private schools from kindergarten through high school, then to college at a Division 1 university on a full athletic scholarship for baseball after graduating with a 4.0 GPA. So what happened, you ask?

He tore his rotator cuff as a sophomore in college and was given a prescription for 90 Percocet. It only took about a week before he became physically dependent and totally reliant. Percocet became the gateway portal to self-annihilation.

To sum up—his next year, Percocet pills got expensive and he dropped out of college. One day, not being able to find any pills because of the price and lack of availability, he was offered heroin, which was cheaper and stronger. From that day on he was hooked, and injected heroin for 9 years.

Matt transformed into a shell of who he used to be, a shell of who he wanted to be—and who he always imagined to become. He lost everything—and everyone—in his life because of heroin.

After thirteen arrests in four different states, he is now a convicted felon. He overdosed and died, having been kept alive for 5 days by machines in ICU. How could this have happened to such a promising young man? Heroin and opioid abuse sees no boundaries. It is death masquerading as medicine.

In Toledo, there are only sixteen federally funded detox beds for an estimated 10,000 opiate addicts. Another young man also named Matt was one of the lucky ones who was able to secure a detox bed through Ohio's Drug Abuse Response Team, or DART program. Today, it has been almost eight months since he was able to secure the bed, which has changed his course completely.

In detox, along with three friends, all of which remain sober, Matt started Team Recovery, an advocacy group for addicts that makes recovery available and achievable. Team Recovery strives to change the stigma attached to addiction and make people realize addicts are not bad people. They are people who need medical help.

Team Recovery speaks to Ohio students between 6th grade and college-age, about

drugs and alcohol, and offers assistance to family members and friends of those who need healing and support. They hope to eventually spread their efforts across the nation.

Today, Matt has turned his life around and reconnected with family and friends. He speaks daily with police, judges, coroners, doctors, treatment providers, police & fire chiefs, all in an effort to collaborate in this fight against opiates. His message is positive and clear. Recovery is possible, and it is beautiful.

Working alongside Matt at Team Recovery is Tracy, 39 years old, who point blank told me that she is a recovering addict. Tracy started smoking marijuana when she was 15, to numb the pain from past sexual abuse, not otherwise knowing how to cope in a healthy way. She moved from Toledo, to Chillicothe, Ohio in 2001, where she met a man who introduced her to opioid pills and cocaine. At age 24, she started using cocaine and it wasn't long before she used it every day.

Eventually, she started to smoke it and even inject.

For 6 years her addiction was so bad she lost everything: jobs, friends, family, everything she owned, even her dignity and morals. She was alone fighting the worst battle of her life.

In 2007, she was caught with possession of cocaine, after reoffending shortly after, she was sent to prison. Rather than give Tracy any chance to seek treatment, she was sent to prison for 5 years.

In prison, she realized there were just as many drugs in prison as on the street. Being there did not help. She needed treatment, not a prison sentence. It is nearly impossible to find a treatment facility because there are so few available.

From the age of 15 until May 4, 2007, Tracy abused drugs. What drove her to sobriety? She was so tired of losing everything, living couch to couch, doing illegal things to get drugs and having her dignity and morals stripped away because she was chasing a high. She was ready for a change, to take back the life she lost during her addiction.

Today, her life has changed dramatically. A week ago, on May 4th, she celebrated 9 years of sobriety. Now, she uses her experience of moving past addiction to help others. She is in college, studying psychology to become a substance abuse counselor. She started a job at a recovery house as a resident advisor and is also an active member of Team Recovery.

The legislative action the House will address this week will provide much needed correction to our justice and health systems—which have not adapted fast enough to this crisis.

I wish to emphasize a few lessons Team Recovery highlighted to me. These are the recommendations of individuals who understand the plight of heroin and opioid addiction better than most:

1. There needs to be more funding for detox beds. They should not be limited to 16 beds per facility.

2. Medicaid should not cap facilities to 16 detox beds.

3. Prevention, education, and awareness are paramount! The innovative approach of Team Recovery's school presentations allows students to better relate, impacting their understanding and behavior.

4. Better monitoring of prescription prescribing and over-prescribing is needed. Creating stricter limitations on prescription counts is highly necessary.

5. Suboxone and Methadone (opioids) are not the solution to an opiate epidemic for everyone, but cannot be ruled out as an option for some.

6. Vivitrol is a key resource and should be utilized more.

7. Recovery is possible but detox and treatment are paramount. Jail without addiction treatment fails those who need help.

8. Opioids impact the way the brain functions. Recovery can take months, if not years, if it is to be effective.

Finally, if anyone listening is facing this terrible monster of addiction, or you know a friend or loved one who is, call 1–800–662–HELP.

That's 1–800–662–4357 for advice and direction.

The life you save may be your own, or that of a relative, friend or loved one.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank Ms. KAPTUR for putting a face to this addiction with the moving stories of Matt and Tracy.

I yield to the gentleman from Ohio (Mr. CHABOT).

Mr. CHABOT. Mr. Speaker, I thank Ms. CLARK and Mr. GUINTA for their hard work in making this Special Order happen tonight and in moving forward on this very, very important issue.

Mr. Speaker, opioid use is an epidemic in this country, and unfortunately the problem is only getting worse.

I want to also commend Senator ROB PORTMAN for his leadership in introducing and passing in the other body CARA, legislation to combat opioids, especially heroin. I would expect that whatever we pass here in the House—and we are considering a number of bills—will ultimately be reconciled with the Senate and Mr. PORTMAN's bill over in the Senate. This will help many struggling Americans.

I talked to a member of a city council in one of the smaller communities in my district back in—I represent the greater Cincinnati area—in Lorain County. It happened to be North Bend.

According to the last census, there are only 857 people who live in the entire village, so it is pretty small. But the first councilperson that I talked to talked about the heroin problem they are having in this community. This is a very small community, kind of a normal, middle class area. There are great people, families, hardworking people. Yet, heroin is becoming a scourge in this community.

William Henry Harrison, one of our earlier presidents—he has his monument and was buried—is from this community. It is just amazing to me to think that if it is hitting a small community like this, it is hitting virtually everywhere.

Simply put, we must find workable solutions to this epidemic. High income, low income, urban, suburban, rural, it really doesn't matter. This epidemic is impacting communities all across this country.

In fact, in my home State of Ohio, 13 out of 16 congressional districts are designated as high intensity drug trafficking areas by the Office of National Drug Control Policy. Back in 2014, just a little over a year ago, we had a staggering 2,744 heroin deaths in our State alone. Obviously, States all over the country are having this problem as well.

Mr. Speaker, in searching for an answer to this problem—I happened to be the dean of the Republicans in Ohio—we had a briefing with the head of the Office of National Drug Control Policy, Michael Botticelli. We actually learned an awful lot about what is happening in our State and nationally.

Basically what we learned is that there are two fronts. It is reducing the supply and it is eliminating the demand. Supply reduction is a complex issue. Since much of the heroin is coming across the Mexican border, obviously, increased border security is important. Treatment is absolutely important.

The Drug Enforcement Agency often has take-back days where people can drop off old prescriptions to licensed agents for disposal. What we have seen are that an awful lot of especially young people who are getting hooked on heroin start out with prescription drugs, and oftentimes it is something that they got from a family member in their own home.

Despite additional control mechanisms, if there is one thing we have learned over the years, it is almost impossible to completely cut off the supply of any particular drug. So we must also eliminate the demand.

We need to focus on drug treatment and prevention programs. For example, in Cincinnati, we have something called the Talbert House, which is one of many nonprofits that help folks in southwest Ohio and northern Kentucky to combat substance abuse. So there are many, many programs that we already have. We need to have more.

I want to, again, commend the fact that this is happening in a bipartisan manner. We have a lot of Members in the House, both Republicans and Democrats, who have come together and have a lot of good plans. They have talked with the folks in their districts. I commend my colleagues for working on this together in a bipartisan manner.

Let's reconcile what we pass here with the Senate, let's get this passed into law, and let's move this forward on this very, very critical issue.

I thank the gentlewoman from Massachusetts for pulling this Special Order together this evening.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank the gentleman from Ohio for reminding us that even rural America has not been spared this epidemic.

I yield to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, this is an emotional night for me. I thank the gentlewoman from Massachusetts (Ms. CLARK) for guiding us. I

also thank Representatives GUINTA and KUSTER. I am so moved by the fact that we are here on a bipartisan statement.

As I spoke to Ms. KUSTER and indicated, as a ranking member of the Subcommittee on Crime, Terrorism, Homeland Security, and Investigations count me in, as she began to expand the tragic window of the impact of drug addiction, particularly opioids. Let me speak very quickly because I have a lot to say.

This is an epidemic that has gone beyond reason. Between 2000 and 2014, almost half a million people died from drug overdoses. In 2014 alone, more than 47,000 people died of drug overdoses. The largest percentage of overdose deaths in 2014 were attributed to opioids like prescription painkillers, methadone, morphine, and heroin.

Today in the Rules Committee, we made it clear that we want to work with doctors and law enforcement. We also said that we understand the use of painkillers during end of life. We understand that, so we are not here to condemn. We are here to help.

I am so glad that the Judiciary Committee will have on the floor this Comprehensive Addiction and Recovery Act that responds to this crisis. It is a treatment bill where we will bring together law enforcement and substance abuse treatment persons.

This emergency is compounded due to the perilous connection between prescription painkillers and heroin. Approximately three out of four new heroin users report that their use began with their abuse of prescription drugs.

Not only were 11 million people at risk of overdosing due to their abuse of prescription painkillers, 11 million people were also at risk of becoming addicted to heroin with its attendant risks.

We have heard the stories, and let me share some with you very quickly. I read one on the plane as I came up. It was a very painful story. A woman was detained in a fatal car wreck. In that car was her little 2-year-old and a little 7-year-old. She was on hydrocodone. She sideswiped two cars and then killed a person on a motorcycle. That person's family does not have them anymore. This woman will be subjected possibly to life imprisonment. Those children will not have a mother.

What about the situation in Ohio?

We don't know what the circumstances were, but eight persons of a family were killed execution style. Drugs were behind it.

What about this mother who supplied hydrocodone and alcohol to her son and his date on prom night?

There is an epidemic that we must confront. There are those who would do wrong, but those who are addicted.

This is evidenced by a study, ''How the Heroin Epidemic Differs in Communities of Color.'' It is important, as I stand here and look at the suburban and rural areas, that we, again, remember how it has doubled among African Americans, Latinos, and Native Americans and that we look to the kind of resources that would include all.

In conclusion, let me share these numbers with you that I think are so very important. They are startling. The increase in overdose by rates: 267 percent by the White population from 2010 to 2014. 213 percent by African Americans from to 2010 to 2014. 137 percent by Hispanic. And Native Americans, 236 percent. Not one person can be counted out that needs to be included in our work here on the floor of the House.

I am glad that we are making this statement today and next week because now America knows the Congress is speaking, the bully pulpit will be heard, and I hope we can save lives.

I am pleased to join my colleagues of the Bipartisan Task Force to Combat the Heroin Epidemic to speak on this important issue impacting all Americans.

I want to thank Congressman FRANK GUINTA (R–NH) for his leadership in elevating this issue to a national forum that has drawn unprecedented attention and concern.

We must take action because today a leading killer of Americans is drug overdose.

Between 2000 and 2014, almost half a million people died from drug overdoses.

Many of these deaths were preventable.

In 2014 alone, more than 47,000 people died of drug overdoses.

The largest percentage of overdose deaths in 2014 was attributed to opioids—like prescription painkillers, methadone, morphine, and heroin.

Specifically, 28,647 people overdosed and died because of an opioid in 2014.

We are experiencing an emergency that impacts citizens in every state, city, and town in this country—that is prescription painkiller and opioid abuse.

This emergency is compounded due to the perilous connection between prescription painkillers and heroin.

Prescription painkiller abuse is the strongest risk factor for future heroin use.

Approximately three out of four new heroin users report that their use began with their abuse of prescription painkillers.

Heroin use becomes appealing to those addicted to prescription painkillers because it is cheaper and easier to obtain.

Due to its potency, heroin use tends to lead to addiction.

Heroin addiction is often deadly, leading to overdose or other chronic diseases.

The rate at which the occurrence of heroin overdose deaths increased is cause for alarm.

In the four years between 2010 and 2014, heroin overdoses more than tripled.

More than 10,500 people died from heroin overdoses in 2014.

In 2013, more than 8,200 people died from heroin overdoses.

In that same year, 11 million people admitted to improper use of prescription painkillers.

Not only were 11 million people at risk of overdosing due to their abuse of prescription painkillers, 11 million people were also at high risk of becoming addicted to heroin—with its attendant risks and dangers.

This current crisis requires an immediate and comprehensive response and the bill before us today is one element of a broader strategy.

I am proud to say that I have worked with my colleagues on the Judiciary Committee and with members of the Heroin Task Force to introduce and cosponsor legislation that help combat this deadly epidemic.

Legislation Supported by Jackson Lee

1. Bipartisan Comprehensive Legislation:

H.R. 953—Comprehensive Addiction and Recovery Act of 2015; Representative SENSENBRENNER, F. JAMES, Jr. [R–WI–5] (Introduced 2/12/15); 124 Cosponsors (84 Dems—including SJL, 40 Reps); *No Sentencing Enhancements or Penalties.

H.R. 3719—''Stop the Overdose Problem Already Becoming a Universal Substance Epidemic Act of 2015'' or the ''STOP ABUSE Act of 2015''; Representative GUINTA, FRANK C. [R–NH–1] (Introduced 10/08/2015); 8 Cosponsors (4 Dems, 4 Reps); *No Sentencing Enhancements or Penalties.

H.R. 4697—Prevent Drug Addiction Act of 2016; Representative ESTY, ELIZABETH H. [D–CT–5] (Introduced 03/03/2016); 2 Cosponsors (Reps); *No Sentencing Enhancements or Penalties.

2. Legislation to Improve Pain Management Practices:

H.R. 4499—the ''Promoting Responsible Opioid Prescribing Act of 2016'' and as the ''PROP Act of 2016''; Representative MOONEY, ALEXANDER X. [R–WV–2] (Introduced 02/09/2016); 31 Cosponsors (18 Rep, 13 Dem); *No Sentencing Enhancements or Penalties.

H.R. 2805—Heroin and Prescription Opioid Abuse Prevention, Education, and Enforcement Act of 2015; Representative BROOKS, SUSAN W. [R–IN–5] (Introduced 06/17/2015); 41 Cosponsors (23 Reps, 18 Dems); *No Sentencing Enhancements or Penalties.

H.R. 1821—Opioid Overdose Reduction Act of 2015; Representative NEAL, RICHARD E. [D–MA–1] (Introduced 04/15/2015); 6 Cosponsors (4 Reps, 2 Dems); *No Sentencing Enhancements or Penalties.

H.R. 2335—Stop Tampering of Prescription Pills Act of 2015; Representative KEATING, WILLIAM R. [D–MA–9] (Introduced 05/14/2015); 9 Cosponsors (5 Dems, 4 Reps); *No Sentencing Enhancements or Penalties.

H.R. 4599—Reducing Unused Medications Act of 2016; Representative CLARK, KATHERINE M. [D–MA–5] (Introduced 02/24/2016); 14 Cosponsors (10 Dems, 4 Reps); *No Sentencing Enhancements or Penalties.

H.R. 4063—Jason Simcakoski PROMISE Act; Representative BILIRAKIS, GUS M. [R–FL–12] (Introduced 11/18/2015); 30 Cosponsors (17 Reps, 13 Dems); *No Sentencing Enhancements or Penalties.

3. Legislation to Improve Treatment:

H.R. 2536—''Recovery Enhancement for Addiction Treatment Act'' or the ''TREAT Act''; Representative HIGGINS, BRIAN [D–NY–26] (Introduced 05/21/2015); 25 Cosponsors (18 Dems—including SJL, 7 Reps); *No Sentencing Enhancements or Penalties.

H.R. 4076—The Reforming and Expanding Access to Treatment Act or the ''TREAT Act''; Representative TURNER, MICHAEL R. [R–OH–10] (Introduced 11/18/2015); 6 Cosponsors (all Dems); *No Sentencing Enhancements or Penalties.

H.R. 3865—Cradle Act; Representative JENKINS, EVAN H. [R–WV–3] (Introduced 10/29/2015); 38 Cosponsors (30 Reps, 8 Dems—including SJL); *No Sentencing Enhancements or Penalties.

H.R. 4586—Lali's Law; Representative DOLD, ROBERT J. [R–IL–10] (Introduced 02/23/2016); 3 Cosponsors (2 Dems, 1 Rep); *No Sentencing Enhancements or Penalties.

H.R. 2872—Opioid Addiction Treatment Modernization Act; Representative BUCSHON, LARRY [R–IN–8] (Introduced 06/24/2015); 5 Cosponsors (4 Reps, 1 Dem); *No Sentencing Enhancements or Penalties.

Sentencing Reform Legislation:

H.R. 3713—Sentencing Reform Act of 2015; Representative GOODLATTE, BOB [R–VA–6] (Introduced 10/08/2015); 65 Cosponsors (48 Dems—including SJL original, 17 Reps)

We must make our best efforts to prevent individuals from moving from painkillers to heroin by making treatment for addicts more accessible by encouraging the use of evidence-based programs, such as medication-assisted treatment.

Life-saving overdose reversal drugs, like naloxone, are most valuable in the hands of trained individuals who regularly come in contact with individuals who are prone to drug overdoses.

It is important that we support these measures that will increase the use and availability of naloxone and other overdose reversal drugs to first responders.

Addiction is a disease that affects the brain and eventually changes the behavior of addicts, causing them to experience mental health issues and encounter legal problems.

Treatment is the most reasonable and effective approach to diverting these individuals away from homelessness and prison.

[From WETA FRONTLINE, Feb. 23, 2016]

HOW THE HEROIN EPIDEMIC DIFFERS IN COMMUNITIES OF COLOR

(By Sarah Childress)

Most of the media attention in the current nationwide heroin epidemic has focused on the uptick in overdose deaths among suburban, white, middle-class users—many of whom turned to the drug after experimenting with prescription painkillers.

And it's among whites where the most dramatic effect has been seen—a rise of more than 260 percent in the last five years, according to the Centers for Disease Control.

But the epidemic has also been seeping into communities of color, where heroin overdose death rates have more than doubled among African Americans, Latinos and Native Americans, but gone largely overlooked by the media.

People develop addictions for a variety of reasons, which makes it difficult to gather concrete data on what's happening in each community, said Dr. Wilson Compton, deputy director at the National Institute of Health's National Institute on Drug Abuse. ''To a certain extent, these are hidden behaviors, and we only notice people at the end of their lives sometimes,'' he said. ''So we don't always know all of the pathways that lead to this.''

FRONTLINE spoke to experts and community outreach workers around the country to try to understand the differences. While some have followed a similar trajectory as the white community, a closer look at the epidemic in some communities of color reveals a different story.

And outreach workers in several cities say that while funds and attention have been directed to aid white opioid and heroin users in the suburbs, they are still struggling to get the resources they need to support minorities who are dealing with the same addiction.

''Our job is to help those services really make it deep into the community,'' said Jacqueline Robarge, founder and director of Baltimore-based Power Inside, which serves drug users who are mainly African-American women. ''And if they aren't going to arrive, we want to have an accounting that these people have been suffering for decades. It really is disingenuous if the resources are only going to be directed at the suburbs and the counties where, basically, the white folks are getting high.''

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Ms. CLARK of Massachusetts. Mr. Speaker, I thank Ms. JACKSON LEE for her advocacy and leadership and always championing our communities of color who have also been devastated by this crisis.

I yield to the gentleman from Pennsylvania (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Speaker, I thank the gentlewoman for yielding and thank her and Mr. GUINTA for this very important evening where we are talking about a plague on our country.

I am pleased to stand here today to join my colleagues from both sides of the aisle in resolve to find real solutions for the heroin and opioid epidemic hitting our communities and our Nation. Our Bipartisan Task Force to Combat the Heroin Epidemic is actively bringing together law enforcement, treatment, and recovery experts to share critical information that has been helping us to better understand the issue.

This House is working on crafting better laws that will help law enforcement tackle this problem so that treatment and recovery professionals can effectively offer lifesaving treatments to those currently suffering from addiction.

Our words must be followed by action. We are working with all levels of government, from the Federal down to the local level, as well as the private sector and nonprofits to fix this problem.

For example, I introduced the Co-Prescribing Saves Lives Act with my Democratic colleague, Congressman BILL KEATING, which would encourage physicians to co-prescribe naloxone alongside opioid prescriptions and make naloxone more widely available in Federal health settings. Naloxone is a safe and effective antidote to opioid-related overdoses, including heroin and fentanyl, and is used as a critical tool in preventing fatal opioid overdose, having reversed more than 26,000 overdoses between 1996 and 2014.

I have cosponsored and supported several other bills, such as the ones we are working on this week, to advance stronger, up-to-date solutions to this brutal epidemic.

But it is the human side of the story that motivates us. Every district has their stories, and I commend the families that are speaking out so that others don't experience the pain and loss that they have.

Vonda Probst from Friedens, Pennsylvania, lost her son Jared Carter to a heroin overdose 2 years ago. Jared enjoyed motorcycle riding, four wheeling, fixing old cars, and being outdoors. He would have turned 30 last summer. There are far too many stories like Jared's in Pennsylvania and throughout the Nation, stories about lives full of potential and value that are cut short by drug abuse.

Chad Schilling was another individual from my district whose family has spoken out. Chad died last month at the age of 32. He was the third member of his high school's 2001 football team. ''It can happen to anybody,'' Jeff Schilling, Chad's dad, said. ''I don't care if you're poor, you're homeless, you're wealthy, it can happen to you. So get help.''

And then there is Tony Swalligan. As stated in an editorial in Johnstown's Tribune-Democrat, Kathi, Tony's mother, wants others to know that she is both grieving and angry that heroin claimed Tony, her baby, the youngest of 10, who was just 23 years old.

She said: ''As a woman of faith, I'm taking this to God and asking him to damn heroin. That's how I feel: Damn heroin.''

''You only have to come over to the funeral home,'' Tony's mother said, ''to know there's absolutely nothing fun about heroin. And it's not just themselves they're killing. They're doing this to their whole family. You think, 'Ooo, I want to get high.' But you're killing your whole family.''

His mother said: ''What part of 'heroin is highly addictive' don't our young people understand? Do they all think they're 6 feet tall and bulletproof?''

It is these stories that are all too often, but we must, we can find effective solutions to the opioid epidemic for these families. I am confident, by working together, we can turn the tide and save lives. I thank, again, my colleagues for organizing this very important hour.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank Congressman ROTHFUS for sharing the stories of Jared, Chad, and Tony and really putting a face and a name to this epidemic.

I now yield to the gentlewoman from Maine (Ms. PINGREE).

Ms. PINGREE. Mr. Speaker, I want to thank my colleagues very much for organizing this Special Order and for the bipartisan approach to dealing with such a challenging issue.

I would like to rise today to share some of the stories, as my colleagues have, about my constituents whose lives have been impacted by addiction.

We are now so well aware that addiction to prescription opioids is on the rise nationwide. In my home State of Maine, that trend has also been accompanied by a drastic increase in the use of heroin and other illicit drugs. Sadly, now heroin and other drugs provide a cheaper, more readily available alternative to diverted prescription medicines. The unpredictable formulations of these drugs, which can vary drastically in toxicity, have made Maine's

epidemic of addiction particularly deadly.

In cities, small towns, and rural areas across the State, people are dying each week. Everyone knows someone—a family member, a friend, a neighbor—who has overdosed. No one is immune. People from every background, income level, and generation are at risk.

One of the individuals we have tragically lost was a brother of a staff member of mine. His name was David McCarthy, and his struggle with addiction was captured in a feature this summer in The Washington Post, entitled, ''And Then He Decided Not to Be.'' David, who had been sober for several months, relapsed on the evening before he left home to return to his winter job at a ski resort.

His family came forward to speak openly and honestly about his death because they believe, as I do, that removing the stigma and silence around addiction is an essential part of treating it as the serious illness that it is.

One of the most poignant aspects of this family's experience is that the day after David's death, his brother Michael overdosed on the same batch of heroin. In Michael's case, however, he was found while he was still alive, and the same paramedics who responded to David's death happened to have a physician with them who administered an overdose reversal drug to revive him, so he survived. With his family's support, he has now entered a long-term treatment program. Access to those resources, like readily available Narcan and quality treatment opportunities, quite literally saves lives.

I am deeply frustrated and disappointed that my colleagues here in Congress have been unable to come together to provide funding to address this epidemic. I am very glad to see the House working on legislation this week related to opioid abuse, but the reality is, without funds appropriated to support the new programs created, many of these bills are nothing more than political rhetoric.

I am afraid that some lawmakers would prefer to have people suffering from addiction continue to turn to our already overburdened emergency rooms for care, to continue asking them to enter treatment, only to be turned away because they can't pay, or asking those people who are addicted to continue struggling to recover while also dealing with homelessness, food insecurity, and a range of other challenges. That is just unacceptable.

Every victim of this epidemic represents an incredible loss, not only to the people who love them, but to all of us, in the form of missed potential.

This summer I had the pleasure of meeting Chris Poulos, a University of Maine law graduate who was working to get his security clearance for a fellowship at the White House Office of National Drug Control Policy. The process was especially difficult for him because he is a convicted felon who was arrested for drug possession during a period of addiction to opioids and other drugs; but now Chris is devoting his considerable talent and intellect to helping others—not despite, but because of his own recovery. The State of Maine and our country are better off because he could access treatment when he needed it.

Our constituents need treatment, and they need it now. States can't face the epidemic alone, and they shouldn't have to. The difference Federal funding can make became clear to me recently when I visited Crossroads, a recovery center in my district. Through a Federal grant, they established a treatment program for pregnant and parenting women which allows them to remain unified with their children while working on their recovery.

One participant, Helen, came to the program while pregnant with her fourth child. The caring staff at Crossroads worked with her to ensure that she was able to bond with her baby after his birth and help facilitate her transition to a long-term sober housing program. I am proud that Federal funding played a part in her recovery. I firmly believe that helping Helen to get clean is a great investment in her, in her children, and in our society.

During my visit to Crossroads, though, I heard about the many people who struggle to access affordable treatment or find themselves left without any support when they have completed it. They, too, need us urgently.

Congress needs to come together and appropriate emergency funds to combat the epidemic of opioid abuse in our country. Clearly, it is a matter of life and death.

Ms. CLARK of Massachusetts. Mr. Speaker, I thank the gentlewoman from Maine. I thank her for sharing the personal story of David and Michael. I know that, in my extended office family, we grieve and remember and will continue to work for change for Kyle and Emmett, who we have lost in the past year as well. We will remember all the names that were mentioned in this first hour of Stephen, Jennifer, Morgan, Bethany, Matt, Tracy, Jared, Chad, Tony, David, and Michael.

I thank my colleague from New Hampshire again for his work on this bipartisan task force.

Mr. Speaker, I yield back the balance of my time.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.R. 4641, ESTABLISHING PAIN MANAGEMENT BEST PRACTICES INTER-AGENCY TASK FORCE, AND PROVIDING FOR CONSIDERATION OF H.R. 5046, COMPREHENSIVE OPIOID ABUSE REDUCTION ACT OF 2016

Mr. STIVERS (during the Special Order of Ms. CLARK of Massachusetts), from the Committee on Rules, submitted a privileged report (Rept. No. 114–551) on the resolution (H. Res. 720) providing for consideration of the bill (H.R. 4641) to provide for the establishment of an inter-agency task force to review, modify, and update best practices for pain management and prescribing pain medication, and for other purposes, and providing for consideration of the bill (H.R. 5046) to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize the Attorney General to make grants to assist State and local governments in addressing the national epidemic of opioid abuse, and for other purposes, which was referred to the House Calendar and ordered to be printed.

COMBATING THE HEROIN AND OPIOID EPIDEMIC

The SPEAKER pro tempore. Under the Speaker's announced policy of January 6, 2015, the gentleman from New Hampshire (Mr. GUINTA) is recognized for 60 minutes as the designee of the majority leader.

GENERAL LEAVE

Mr. GUINTA. Mr. Speaker, I ask unanimous consent that Members have 5 legislative days to revise and extend their remarks in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Hampshire?

There was no objection.

Mr. GUINTA. Mr. Speaker, I want to thank my colleague, the gentlewoman from Massachusetts (Ms. CLARK), who is doing great work in this area. New England is particularly stressed with an opioid epidemic, as are many other States around the country, but her work is important because we share a cross-State border. We need to continue to work together on this particular issue.

I yield to the gentleman from Illinois (Mr. DOLD), a leader on the heroin and opioid epidemic and bringing legislation to the floor.

Mr. DOLD. Mr. Speaker, I want to thank my good friend for yielding. I want to thank Representative GUINTA for his leadership with the Bipartisan Task Force to Combat the Heroin Epidemic. I also want to thank Representative KUSTER and Representative CLARK for their leadership on this issue.

Mr. Speaker, between 2001 and 2014, there was a threefold increase in prescription drug overdoses. What was amazing is that during that same period of time there was a sixfold increase in heroin overdoses in the United States. This is truly an epidemic. Today every 19 minutes, someone dies from a heroin overdose.

In Chicago's collar counties, we lose one individual every 3 days. In Cook County, it is more than one a day. As the co-chair of the Illinois Suburban Anti-Heroin Task Force, I have seen the unimaginable suffering that heroin has brought into families in our community. Naloxone, however, has proven to be hugely successful as a lifesaving

antidote. When used, naloxone helps restore breathing that has been stopped by an overdose of heroin.

In Lake County, Illinois, alone, over the course of a little bit over a year, over 74 lives have been saved with naloxone. This program equips police with the overdose antidote and trains them how to administer this medication. What was fascinating was that the police force didn't have to be asked to do this. They actually requested to have the opportunity because they were coming to these scenes over and over and over again, usually about 5 to 7 minutes before first responders and the fire department would come, before the paramedics would be there. They didn't want to actually watch these young people, these individuals, these people who were addicted just wither away and die. So they were given naloxone, they were given the training, and thus we have seen the success in one county across our country.

My work with the Lake County Opioid Initiative inspired me to introduce Lali's Law with Representative CLARK. Our bill is named in honor of Alex Laliberte, a young man from Stevenson High School, who passed away just before his finals in his sophomore year.

Now, what is amazing about Alex is that Alex was a normal guy. He played sports, had lots of friends, had good grades, your typical all-American, redblooded young man. Yet when he was in college in that first part of his sophomore year, he started to get sick, and he went into the hospital. His parents and his teachers, nobody really knew what was wrong, but he was actually going through withdrawal from prescription drugs. He would get better and then, all of a sudden, would repeat this process, until eventually he passed away.

Lali's Law will help increase access to naloxone by providing grant money to States as they implement standing order programs that will allow pharmacists to dispense naloxone over the counter without a person-specific prescription. With increased access, the World Health Organization says that we will be able to save at least 20,000 additional lives each and every year.

□ 2015

Naloxone is one piece of the puzzle to combat the opioid epidemic. Another piece is getting addicts saved by naloxone—those that have had that second chance at recovery—into treatment.

This summer the Lake County Opioid Initiative is rolling out another program with the help of police officers who are trying to become that link between the addicts. They are trying to get those suffering from addiction into treatment centers that can actually help them. They want to bring them in.

They say: We don't want to put you in handcuffs. We don't want to put you behind bars. We actually want to get you into treatment. So bring your paraphernalia in, bring the drugs in here, and let's try to get you into an area where you can get that treatment that you need.

We are also encouraging people to properly dispose of their excess medications, especially prescription opioids. The Lake County Underage Drinking and Drug Prevention Task Force has set up drug take-back boxes throughout Lake County at police departments.

What is amazing is that, over the course of the last year, they have collected 12,000 pounds of prescription drugs. This is just in the police station.

So we went to Walgreens and said: Please help us. Please help us get this word out. Please help us make it easier for us to allow people to get their prescriptions that they don't need—the excess—back. They are able to and said they would happily to do that.

I am so pleased to announce that Walgreens said they are going to put 500 prescription take-back boxes throughout the country. This is a huge step forward. CVS is working on education programs. So we appreciate those outside of the Congress that are helping us in this regard.

I am thrilled that we are taking up these incredible bills, these great bills, these steps forward that will help our communities combat the opioid epidemic by leveraging resources in our judicial and public health systems.

I encourage my colleagues to take a look at these very seriously. I encourage my colleagues not only to vote for these, but I encourage my colleagues to go back to their community and educate their citizens, their families, their organizations in their district, about this incredible epidemic.

There are parents I encounter today that say, ''It is not in my neighborhood,'' and it is, ''It is not in my school,'' and it is. The evidence is far too overwhelming.

Frankly, this is why this week, in a bipartisan effort, Republicans and Democrats alike are coming together to shed light on what we see each and every day.

Because there is no way in the world we can have another parent walk into a bedroom to find another child that has overdosed without doing all that we can to try to prevent that tragedy from happening ever again.

So, again, I want to thank FRANK GUINTA, I want to thank ANN KUSTER, and I want to thank all of those that have come tonight to help combat this incredible epidemic.

Mr. GUINTA. I want to thank the gentleman from Illinois (Mr. DOLD), for his leadership in Lali's Law and making sure that that bill comes to the floor for passage, as it is incredibly important to his district and honors Alex and his challenge.

I yield to the gentlewoman from New Hampshire (Ms. KUSTER), my friend and the co-chairman of the Bipartisan Task Force to Combat the Heroin Epidemic, who is working diligently with me on this task force to do everything we can to help citizens of our State and the Nation.

Ms. KUSTER. I thank Mr. GUINTA for his leadership and all of the participants in this bipartisan Special Order who are putting a face on the heroin epidemic all across the country.

This evening I rise, as co-chair of the Bipartisan Task Force to Combat the Heroin Epidemic, to join my colleagues on both sides of the aisle who have spoken to highlight the impact that this devastating impact has had in our home State of New Hampshire and all across the country.

Just a few months ago our task force held a similar Special Order to focus on the human impacts of this crisis and how it is affecting families and friends and colleagues in communities all across our districts. While the crisis has continued, the good news is that we are now making important progress toward a solution here in Congress.

I am appreciative of the important work that the Senate undertook in passing the Comprehensive Addiction and Recovery Act, and I want to thank Democratic and Republican leadership as well of the relevant committees for their hard work in recent weeks in bringing legislation to the floor of the House this week.

At the same time, I call upon my colleagues to ensure that this important work fulfills its intended purpose by providing the necessary assistance to treatment and recovery efforts that are so critical to responding to this crisis.

Recently, in January, I spoke about my dear friend Kriss' stepdaughter, Amber, who tragically died from an overdose after a treatment bed was unavailable for her after leaving incarceration. This story, of course, illustrates the tragic consequences that limited treatment capacities can have for vulnerable members of our communities.

Another heartbreaking story in my district involves Carl, the son of my constituent and good friend, Sue Messinger.

At 24 years old, Carl had been using heroin on and off for about a year before he finally approached his parents to talk about his addiction. To put it simply, his parents were stunned.

Carl was a recent college graduate who earned good grades and had his eyes set on applying to dental school. It was almost inconceivable to them that such a high-achieving young man could fall victim to opioid addiction. But as they learned that day and as we all now know too well, there is no one face of addiction.

After discussing his addiction at length with his parents and asking for their help and support as he began his journey to recovery, Carl's parents were able to secure him a place at a detox program over 50 miles away from home, the only one that would take him as a cash-paying client because their insurance would not cover an opioid detox program.

Six days later Carl successfully completed the detox and was discharged to

return home to his parents. Over the next several weeks, Carl continued on his road to recovery. He passed every drug test and remained resolutely committed to avoiding all drugs and alcohol. His family was so pleased to see him getting better with each and every day.

But when Carl came down with an upper respiratory infection shortly thereafter, a fatal error occurred in treating the infection. Unaware of Carl's history of addiction and his recent completion of detox, the doctor who saw Carl for his respiratory infection prescribed Cheratussin AC syrup, a narcotic cough suppressant.

Triggered by the codeine in the cough syrup, Carl's addiction was instantly reawakened. When Carl could resist the craving no longer, he decided to inject. The substance he injected, however, was pure fentanyl, 50 times more powerful than heroin. He died of an overdose in his family's home.

There were no labels on the bottle that indicated that cough medicine could trigger such drug-seeking behavior and no way for Carl or his parents to know that his cough medicine could pose such a fatal danger.

Since his death, his mother Sue has spoken out about the need to reform labeling requirements to make sure that no other family has to endure what she has had to live through. Carl was an educated, kind, driven young man who came from a supportive family, and this tragedy could occur to anyone.

The tragedy of Carl's story is why I was proud to help introduce Jessie's Law. Sponsored by Representative WALBERG, this bill would seek to ensure that medical professionals have full knowledge of a patient's previous opioid addiction.

It seeks to do this by requiring the Secretary of Health and Human Services to develop standards for the prominent display of a patient's history of opioid addiction in their medical records when those patients consent to include that information and by ensuring that the information can more easily be shared among providers with consent.

While this legislation was only recently introduced and is not included in the current package of bills, I am hopeful we can work on bipartisan basis to bring this important bill to the floor before the end of this session.

I am very pleased with the legislation we are considering this week that will have a measurable impact to move the needle in finding this epidemic.

Among the 15 bills on the floor this week, half are part of the legislative agenda developed by the Bipartisan Task Force to Combat the Heroin Epidemic that I started with my colleague, Congressman GUINTA. Additionally, provisions of several other bills are included in legislation being considered.

So this week represents truly important progress in the House. It is critical that those who have engaged in the fight against the epidemic continue to press on in our efforts to include critical financial assistance for prevention, treatment, and recovery in our final bill.

As we reflect tonight on those we have lost to this epidemic and those who are still fighting it, let us continue to focus to ensure our communities have the help that they need to put this crisis behind is.

Again, I thank all of our colleagues who are working to stop this epidemic.

Mr. GUINTA. I want to thank the gentlewoman from New Hampshire for talking about Carl and our good friend Kriss and her stepdaughter Amber.

I yield to the gentleman from Pennsylvania (Mr. FITZPATRICK), my colleague.

Mr. FITZPATRICK. I thank Representative GUINTA for yielding and for his incredible and sustained leadership, along with Representative KUSTER and others, on this important bipartisan work.

I know that we all wonder if the work that we do here in the Nation's capital—the bills that we consider, the votes that we cast—is having an impact on individuals.

I truly believe—and I know that each of us do—that, if we can pass the bills that are being discussed here tonight, we can get them through the Senate and on the President's desk. If they could become law, we literally could save lives. We could see families being saved.

For some that we represent, the opioid drug use may seem a world away. But, sadly, the numbers remove any doubt about heroin's impact so close to home when we have heard those stories told over and over again this evening.

By every metric, the effects of heroin has reached epidemic levels. I heard Representative COURTNEY earlier today here on the floor speak about the epidemic as a national emergency. With that I agree.

In Pennsylvania, heroin overdoses and opioid abuse will kill more people than homicides or influenza. In some States, it is more deadly than automobile accidents.

There are several reasons for the rising statistics, Mr. Speaker, including the increased supply and decreased cost of heroin and the increasing number of Americans addicted to opioid painkillers.

At a townhall meeting last fall in Quakertown, Bucks County, Pennsylvania, in my district, graduates of the Bucks County Drug Court shared their inspirational journeys toward recovery.

These stories, while marked with tragedy, are also punctuated with the hope that their message can save others from the pain and the loss of heroin addiction. Their message is having an impact.

My community of Bucks County, Pennsylvania, and others around this country are joining in the fight against drug abuse. Just 2 weeks ago, Bucks County residents helped dispose of more than 10,394 pounds of old pills and prescription drugs.

I just heard this evening both Representative DOLD and Representative CHABOT speak about what they referred to as drug take-back days. We in Bucks County have removed literally tons of prescription drugs from the street, medicine cabinets, and from the water stream. Remove the supply as we work to remove the demand.

As a member of the task force, I am continuing to work with leaders like those speaking here tonight in both political parties toward a common goal of developing and enacting these national policies to stem the rising tide of drug use and drug abuse.

Through the hard work of this task force and the tireless efforts of local recovery advocates across our country, this week the House will take an important step toward passing comprehensive policies designed to help combat the opioid epidemic facing our Nation.

I am proud to be part of this effort that will undoubtedly help save others from the pain and the loss of addiction.

I thank Representative GUINTA for his leadership. We look forward to the success of these bills here this week.

Mr. GUINTA. I thank Congressman FITZPATRICK for his leadership on the bipartisan task force and for working with us to combat this significant challenge.

I yield to the gentleman from Staten Island, New York (Mr. DONOVAN).

Mr. DONOVAN. I thank Congressman GUINTA and Congresswoman KUSTER for their leadership in this area.

Mr. Speaker, this week the House of Representatives will act to pass a package of bills addressing the opioid crisis.

One of them, the Comprehensive Opioid Abuse Reduction Act, will authorize new grant programs for cities and nonprofits for education, treatment, and enforcement, and not a minute too soon.

Opioid abuse is an epidemic. It is everywhere you look. It is in our neighborhood, in our social circles, and in our schools. Too many parents have buried their sons and daughters or watched them struggle for years with addiction, treatment, and relapse. It has to stop.

An effective response needs to address three areas: education, treatment, and enforcement. Today's youth have to be educated about the dangers of addiction, and loved ones need to learn to recognize the early signs.

□ 2030

The legislation the House will pass this week authorizes new grants to prevent the next generation from abusing pills and heroin.

Proven diversion programs, like the drug treatment courts I participated in as district attorney of Staten Island

for 12 years, should have the resources and the staffing needed to accomplish their mission: To get users off of drugs.

The Comprehensive Opioid Abuse Reduction Act authorizes grants to establish new drug courts and expand those already in operation. However, we must follow up on our efforts this week and ensure that the grant application process is not overly complicated and onerous.

In the past, the Federal grant processes has discouraged effective treatment organizations from seeking the resources made available by Congress. This is a national health emergency, and the bureaucracy must not get in the way of treatment.

Mr. Speaker, this week marks a major step forward. Congress is directing resources towards programs and policies that have been effective, and will continue to evaluate what is working and what is not. By working together and getting the right tools to local experts, we can beat this demon of addiction.

Mr. GUINTA. Mr. Speaker, I thank the gentleman from New York for his work on the Opioid Abuse Reduction Act, I thank him for his work on the task force and continuing the fight in this epidemic.

Mr. Speaker, I yield to the gentleman from Illinois (Mr. RODNEY DAVIS).

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, I thank my colleagues, Mr. GUINTA, Ms. KUSTER, and the previous Special Order leader, Ms. CLARK. This is tremendously a great turnout for such an important subject, and for you three to lead it. Especially my good friend, Mr. GUINTA, I want to say thank you on behalf of the many families who have been affected by this epidemic in Central Illinois where I am blessed to serve. I think this shows how serious Congress is about addressing the issue of opioids and addiction in our country, and I am happy the House is going to consider important pieces of legislation this week.

I want to read a quote from today's Bloomington, Illinois, Pantagraph. It says: ''The profile of a typical heroin user shooting up in an alley or backstage at a rock concert no longer holds true.''

According to the CDC, there were more than 1,700 drug overdose deaths in my home State of Illinois in 2014, and the eighth highest in the Nation.

As of March of this year, the Illinois Department of Public Health reported that 761 deaths in 2015 were attributed to heroin alone. And while the majority of these occur in the Chicagoland area, our State's rural communities, the communities that I serve, have seen a noticeable rise of heroin-related deaths in recent years.

As a matter of fact, just yesterday in Bloomington, Illinois, the towns of Bloomington, Normal, McLean County, I was there. There have been seven deaths last year attributed in that one county to heroin use.

I had the opportunity to join McLean County Sheriff Jon Sandage and County Coroner Kathy Davis and talk about what they see firsthand.

Mr. Speaker, I saw for the first time in my life what heroin looked like in the evidence locker at the McLean County Sheriff's Office just yesterday. I also had the opportunity to ride along with McLean County Sheriff's Deputy Jonathan Albee, a handler in the department's K–9 Unit, and his dog, Keej, who liked to bark at me a lot while I was in that car.

We discussed the recent rise in heroin overdoses, as well as the 70 percent increase in arrests for controlled substance possession that the McLean County Sheriff's Office says they have seen in the last year. And during that ride-along, I got to experience a stop where drugs were found, but not heroin.

This is the community where my daughter just finished her freshman year in college. I have seen how this epidemic cannot just touch larger communities, many urban communities like Bloomington, Normal, and McLean County, it touches my home county of Christian County, too.

Mr. Speaker, just a few years ago our county health department director was arrested for heroin use and heroin possession. If it can happen to our own county health department director, it can happen to anyone, regardless of your socioeconomic status.

Mr. Speaker, there are many factors that have made this epidemic widespread, from prescription practices, to the actions of cartels south of the border; and that is why we are addressing this important issue this week in the House of Representatives.

I am proud to join with my colleague, Mr. GUINTA. I want to thank him and the rest of the colleagues who have come here tonight to support this important issue.

I can't wait to vote in a bipartisan way for every single bill we are going to take up this week to address this very important issue.

Mr. GUINTA. I thank the gentleman from Illinois for his being here this evening, his leadership. He has talked very eloquently over the last several months about constituents of his that he is working so closely to help in creating an opportunity for recovery. So I thank the gentleman and thank him for being here.

Mr. Speaker, I yield to the gentleman from West Chester, Pennsylvania (Mr. COSTELLO).

Mr. COSTELLO of Pennsylvania. Mr. Speaker, Kevin Steele, who is the district attorney in Montgomery County, one of the four counties that I represent a portion of in southeastern Pennsylvania, noted earlier this week that there were 2,500 drug overdose deaths in Pennsylvania over the past year, 60 alone in Montgomery County.

This is what he said: ''We're seeing numbers we haven't seen before. We're on pace to have the deadliest year for overdoses.''

Now, not all of them are heroin, but quite a good number of them are.

I did not plan on coming down here to the House floor and speaking about any particular individual who I know, and I won't name names; but I will say this, and this is a bit of a surreal moment for me.

Between the time that I left my office and I came to the House floor, my brother texted me to let me know that someone that he went to high school with, who he was goods friends with, who played in my backyard growing up, had passed away.

I then reached out to my other friend, who let me know that it was indeed, by all accounts, heroin. And in speaking with this friend, he shared with me the names of a few other individuals from my high school that I was completely unaware of who have passed away in the past 6 months, kids I haven't seen or heard from in 15 or 20 years, but nevertheless, it strikes very close to home for me and I am sure a lot of Members here tonight who have had firsthand experience with the epidemic.

As a member of the Bipartisan Task Force to Combat the Heroin Epidemic, I do want to thank Mr. GUINTA and his leadership. We have an opportunity this week to take constructive steps to combat the heroin and opioid epidemic that damages our communities and destroys families, and we have that opportunity by bringing a series of commonsense, bipartisan bills to the House floor for consideration.

Now, it is a package of bills. I won't get into the specifics of each one. I would rather paint with a little bit more of a broad brush here this evening and simply say that these legislative efforts to take constructive steps to get direct and immediate resources to those on the front line in this battle, our first responders, our physicians, and healthcare providers, our local and municipal officials, is a tremendous step forward in the right direction.

I served as a county commissioner, and I can tell you, I know the challenges that our local emergency responders and law enforcement professionals face each and every day.

Indeed, last week I was in Berks County, one of the four counties I represent, and had a roundtable with the county commissioners there, the district attorney, the director of the emergency department at the local hospital, and also drug treatment professionals.

It is very clear that we need a multilateral approach between drug treatment professionals, medical professionals, local officials. They each play a different role, but the theme is somewhat the same.

We have outdated regulations, we have insufficient resources, and we need to better align the resources that we are providing. And that is what we are going to do this week in the House, positive productive steps on a bipartisan basis to get those on the front lines in our communities, the resources they need. In doing so, we will better

empower our local first responders, our local law enforcement, and our community healthcare providers.

I would be remiss if I didn't also speak about the issue of prevention, prevention in the first instance. Abuse-deterrent medications are critical. Our life sciences industry in my district and across this country are making tremendous strides. It is a key component in preventing addiction for many in the first instance.

Let me conclude, though, with this, Mr. Speaker. As legislators, as lawmakers, we can't end this epidemic. A law, any number of laws that simply pass the House that may get signed into law are not going to end an epidemic. We understand that—and I want the American people to understand tonight—we are not saying that by passing laws, we end the epidemic.

But what we can do is improve collaboration and better align resources from and for the various stakeholders so that together we can turn the trajectory of this epidemic, which is on a very dangerous course, we can turn it into a declining direction, which is what we need to do. We need to turn this around.

We have a tremendous opportunity here in the House this week to take very positive steps in that direction, and I want to thank Mr. GUINTA for his leadership on this issue.

Mr. GUINTA. Mr. Speaker, I thank the gentleman from Pennsylvania (Mr. COSTELLO) for being here this evening and for his leadership in authoring the Prevent Drug Addiction Act of 2016, another mechanism by which we can provide opportunity to those who suffer from the ailment of addiction. His work is very well-regarded on the bipartisan task force and, again, I thank him for his leadership.

Mr. Speaker, I yield to another honorable gentleman from the great State of Pennsylvania (Mr. MEEHAN), my good friend.

Mr. MEEHAN. Mr. Speaker, I thank the gentleman from New Hampshire and all of my colleagues who have taken this approach to comprehensive discussion on what we can do with legislation to deal with the issue of not just heroin abuse, but the opioids that are now a precursor.

I would suggest that just about everybody who has come to this floor comes with a personal story. Mine is very personal as well.

The name of the act that I am sponsoring that is part of this comprehensive package is the John Thomas Decker Act.

John was an athlete of great talent. He was one of the record holders for more than a decade as a receiver who went on to Cornell as part of a program in which he was a lacrosse player, a program that won a national championship during his time there.

But John, like so many student athletes, suffered from a knee injury that impacted his ability to play, and like so many, he played through the pain. And one of the things that he used in order to deal with that pain was opioids, opioids that in the beginning were prescribed, and then subsequently were used by him without a prescription.

But that should not surprise you, because one of the things that we look at with respect to college athletes is that 23 percent of college athletes, according to one NCAA study, have been prescribed pain medications during the course of the year. Another 6 percent, on top of that, self-prescribe with opioids.

So as a result, we have almost 1 in 4—more than 1 in 4 dealing with opioids. The problem being that that leads, oftentimes, to an addiction. There is a misunderstanding, a belief among many that it is a much safer drug because it has been prescribed, but not a recognition that it can lead, in weeks and even days with daily use, to a psychological dependency, which can lead toward the addiction.

Many people think that because they have been able to get it under control, they will return to it at some time later at a dosage that they used before, and because of the concentration being higher, they will return, and oftentimes it can lead, as it did in John Thomas Decker's situation, to an overdose.

The John Tomas Decker Act is designed to enable, at the high school level, the Centers for Disease Control to reach out, study the impact of opioid use among high school athletes and better arm those who engage with them to monitor the use of those who have been prescribed it, to screen for history of current drug use, depression, other kinds of things that can lead to addiction, and begin to educate not just those student athletes, but those who are in charge of those student athletes about the great concern of opioid abuse, which can lead to heroin addiction and, ultimately, death.

□ 2045

I'm grateful for the leadership of my colleague from New Hampshire and her counterpart across the aisle for their work in this important area. I urge my colleagues from both sides of the aisle to support the John Thomas Decker Act, and I know that all of us will be committed to doing everything we can to stay ahead of this very, very challenging issue for our Nation.

Mr. GUINTA. I thank the gentleman from Pennsylvania (Mr. MEEHAN) for his leadership on the John Thomas Decker Act and his work in fighting this addiction as well.

Again, I thank the gentleman very much.

Mr. Speaker, I yield to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Mr. Speaker, the United States is in the middle of a drug crisis that is ravaging urban and rural communities alike. We have seen the overdose rates skyrocket in the United States in recent years. My home State of West Virginia sits atop the list, and I have seen firsthand the destruction that the disease of addiction has brought to our cities and towns.

But imagine for a moment actually starting your life in the throes of withdrawal. This is the tragic reality for thousands of newborns nationwide. During pregnancy, a baby is exposed to any drugs the mother takes. As soon as they are born, their bodies begin going through withdrawal from heroin, opioids, and other drugs. Not even babies are immune from the effects of this drug epidemic.

Until you see these babies going through withdrawal yourself, you cannot imagine their suffering. Their bodies shake with tremors. Their cries are heartbreaking. They are sensitive to noise, to light, and even to touch. No baby should have to go through withdrawal in their first hours, in their first days or weeks of his or her life.

We in the House are working together on this critical issue. We are passing much-needed legislation to create a path to recovery and a path to a healthy start in life for every child.

I am honored to have legislation included in this package of bills this week. The Nurturing and Supporting Healthy Babies Act will expand our knowledge of coverage and care for newborns with neonatal abstinence syndrome, or NAS, babies suffering from withdrawal after birth from the exposure during pregnancy.

The dramatic increase of NAS, the challenges to developing new models of care, and breaking down regulatory barriers are things I know all too well. I helped start Lily's Place in my hometown of Huntington, West Virginia, which treats NAS newborns in a standalone facility. The care given is complementary to the traditional hospital setting. Lily's Place offers clinical care by doctors and nurses, as well as social workers for families.

Hearing the cries of these newborns will forever change you. We owe it to each and every child to make sure they have a chance to start their lives healthy and happy.

I wish to thank Congressman GUINTA and Congresswoman KUSTER for their leadership on the Bipartisan Task Force to Combat the Heroin Epidemic. By working together, we can find solutions and build a brighter future.

Mr. GUINTA. I want to thank the gentleman from West Virginia for his leadership on the Nurturing and Supporting Healthy Babies Act. I look forward to voting this week in favor of the gentleman's legislation, and I appreciate the gentleman's compassion and passion for the issue.

Mr. Speaker, I yield to the gentleman from Georgia, Congressman CARTER.

Mr. CARTER of Georgia. Mr. Speaker, I thank the gentleman for holding this Special Order to discuss such an important issue.

Mr. Speaker, as a lifelong pharmacist, I have experienced firsthand

the struggles that medical professionals and Americans face with prescription drug abuse. Many don't realize, but medical professionals are not immune to prescription drug abuse. I have had several colleagues in the pharmacy profession who have struggled with prescription drug abuse.

In addition, I was the cosponsor in the Georgia General Assembly when the Georgia Prescription Drug Monitoring Program was created. I believe that PDMPs are one of the most important tools in the fight against prescription drug abuse. As a pharmacist, I experienced several customers who would walk into my store with an out-of-State driver's license. As you can imagine, I was a little hesitant to fill a prescription of someone who has a Kentucky driver's license when my store is in south Georgia.

I believe the best way to address this issue is to work as a team. Physicians, nurses, pharmacists, and anyone else who is part of an individual's medical team has a role to play. We must work together if we want to win against this powerful epidemic.

In addition, community leaders, community service centers, and any other entity that is involved in community health has a role to play. We must all work together as a community to help people who are struggling with addiction.

I encourage all of my colleagues to get involved in this issue. It is one that will destroy your communities and its families from the inside out, and you won't know you have a problem until it is almost too big to fight.

Again, I want to thank the gentleman from New Hampshire for holding this Special Order. I hope we can continue to work together on this issue because this work will never be done.

Mr. GUINTA. Mr. Speaker, I want to thank the gentleman from Georgia for his leadership, and particularly for his expertise in the area of pharmacology. It is a critical component of understanding that we need to achieve based on the opioid crisis. I appreciate the gentleman's leadership and his ability to work with the Congress to make sure that we are finding and striving for solutions beyond opioids for prescriptions for pain in the country.

Mr. Speaker, I yield to the gentleman from California, Congressman KNIGHT.

Mr. KNIGHT. I want to thank Congresswoman KUSTER and Congressman GUINTA for taking a leadership role in this epidemic. This is something that has gone across the country. We have seen huge rises in the Northeast and across the Midwest, but this is something that is not immune from any one of our districts.

I, along with Representatives ESTY and COSTELLO, are sponsoring legislation to establish education programs for both consumer awareness and practitioner training to get at the root of most of these addictions.

As a police officer for 18 years with the LAPD, I have seen an awful lot of drug addiction and drug addiction problems in our streets. We saw rock hit our streets many, many years ago, and that is still infiltrating many of our urban areas in America. Then we moved on to other drugs like meth and heroin.

Heroin was always one of those kind of taboo drugs, but today it is not. We have seen a lot of the kids that get addicted because they got a sports injury or they got some other issue and have gotten a prescription drug, and they have moved on from the oxys when they have run out of these opioids and they have moved on to heroin.

So it has not become a taboo drug. It has actually been a new drug that they can continue on their addiction; and they don't understand what it is doing to their body, and they don't understand the addictions that are hurting them and, in some instances, killing them.

We have seen heroin and fentanyl taking over our streets and not just moving from California to Maine, but absolutely taking over America and hurting our kids and killing our kids in record numbers.

My wife is also an NICU nurse. She has been an NICU nurse for about 20 years, and she has seen the effects of little babies that have come in and are now addicted to these drugs, and they are addicted to heroin. Seeing what this does to a baby that is born premature and now addicted to this drug makes your heart go out, but you also understand the problems that these babies are going to have probably for a very long time in their young lives.

If we don't do something, this will continue to ravage our kids, and it will continue to kill our kids on our streets. If Congressman GUINTA and Congresswoman KUSTER had not brought this forward, then somebody would have had to. But who? So I say I thank you to them both for doing this. I know it ravages your State of New Hampshire, but it also affects our States and our cities across the country. Without leadership, this would have continued to go on.

These bills that we are voting on will do something. They will have an effect. The local administrations have to have an effect. Our counties and our States have to have an effect or this will continue on.

So I say I thank you to the gentlewoman and the gentleman, and I encourage everyone to vote on these.

Mr. GUINTA. Mr. Speaker, I want to thank the gentleman from California (Mr. KNIGHT) for his service on the task force, his service for the last 18 years in uniform, and the gentleman's continued service here in the Congress. The gentleman's depth and understanding of the issue is critical to the passage of the legislation that we are bringing to the floor this week. I look forward to continuing our work with the gentleman, and I thank the gentleman.

Mr. Speaker, I now yield to the gentlewoman from our great State of New Hampshire (Ms. KUSTER), my esteemed colleague, who is the co-chairman of the bipartisan task force.

Ms. KUSTER. I thank the gentleman, Mr. GUINTA, for his leadership and to everyone who participated tonight.

The idea behind a Special Order to put a face on this terrible heroin epidemic and addiction, generally, is to create compassion and empathy both among our colleagues and for those of you who may be watching at home. We need a societal change in the way we approach substance use disorder. We need to understand that this is a disease. I say at home, frequently, every time you hear the word ''addict,'' think of the word ''diabetic.'' We don't say to someone: We can't treat you because you have just eaten cake. Essentially, we say: That is a really hard disease for you to live with, and we want to help you.

That is the message that we want to convey tonight to families in New Hampshire and all across this country. We want to be a part of the solution, and that is going to include prevention, education, treatment, access to treatment, expanding access to treatment, and then lifelong recovery.

We know that the brain changes under the misuse of prescription drugs or opiates or heroin, and we need to have the patience to help people get through not just the treatment itself, but the recovery period. We need homes where people can live in a substance-free environment, and we need supports and mental health supports. We have learned that four out of five heroin users have a co-occurring mental health issue typically untreated and typically not getting any kind of help with that. So in a sense, what you have are people that are self-medicating.

We also know that four out of five heroin users are coming to this through prescription medication, so we need to reach out and work with our healthcare providers. I am very proud that both the American Medical Association and the American Hospital Association are supporting many of the bills that we have coming forward on the floor this week.

So this is the beginning. Our work is not done, but the message tonight is that Congress is coming together in a bipartisan way to tackle this head-on, to help these families, to help people get treatment, and to put an end to this terrible, terrible disease.

I thank the gentleman from New Hampshire.

Mr. GUINTA. I want to thank the gentlewoman, my colleague from our State of New Hampshire, where, unfortunately, last year, 430 people perished due to opioid abuse and addiction. That is 1 out of every 3,000 of our residents. It is a significant challenge in our State, in the Northeast, and New England, but all across the country. Almost 50,000 people, last year, died of this epidemic.

It is not just an epidemic, but an emergency, one that I believe this Congress is firmly standing strong in a bipartisan way to find solutions, to do our part at the Federal level to make sure that we have every opportunity not just to help those who seek treatment and recovery, but also to strengthen law enforcement, to focus on those individuals who are selling these drugs across the country, from California to New Hampshire, but also being proactive in prevention and in education.

We often speak of our friends and constituents in New Hampshire that continue to suffer, but we also talk about our children. I have a 12-year-old and an 11-year-old that I hope will live lives without and free from drugs. I want to make sure that every seventh- and eighth-grader in the State of New Hampshire understands the severity of the problem and understands that this is something that is deadly that we cannot even take once.

As you mentioned, the challenge of fentanyl, lacing a pill of heroin with as many as three small pieces of fentanyl the size of grains of sand can kill a person. Most people don't realize that. This is a deadly, deadly epidemic.

□ 2100

This week the House of Representatives takes up a whole host of bills. After the Senate passed their CARA Act 94–1, we have had four committees of jurisdiction work and try to improve that piece of legislation.

I look forward to sharing a very strong bipartisan vote this week on a whole host of bills, going to conference with the Senate, and getting this bill to the President's desk. It is a mark of bipartisanship and it is a mark of leadership, something that the country needs to see from this institution and from this city.

I want to thank all of my colleagues who participated in this Special Order tonight to kick off Heroin and Opioid Awareness Week. We have heard stories of success and difficulty come in equal measure from every corner of the country.

I commend the House for passing a comprehensive bipartisan bill for the relief of the vulnerable, the victimized, and distressed in my district, in your district, and throughout the Nation. Any measure we take to lighten even slightly the burden of suffering patients and families can make the difference between fatal despair and renewal.

The House is scheduled to take up several similar measures this week. It is my hope that, when combined, our efforts will begin to form a solution to this harrowing and tragic national crisis. We will continue to work for safe communities and effective evidence-based treatments.

But I want to end this evening on a favorable note. I want to share the story of my friend, Abi Lizotte, who the gentlewoman from New Hampshire, Congresswoman KUSTER, knows all too well.

Abi Lizotte last year had been addicted to heroin for an extended period of time and had nowhere left to turn. Her family wouldn't help her. Her friends wouldn't help her. Even the people she bought drugs from wouldn't help her.

She was 8 months pregnant. She finally called a nurse, a nurse that had helped her earlier in the year, and asked for assistance. She went to the hospital and thankfully was able to see a physician. That physician told her that she was days away from dying while she was carrying her child.

Thankfully, through the grace of God and the help of people in New Hampshire, she was able to start the process of recovery. Today my friend Abi—and I am proud to call her my friend—has testified in front of our committee hearings in New Hampshire, has testified about the experience that she had and the loneliness and despair that she experienced. She is now 6 months clean with an 8-month-old son named Parker. It is a story of success.

She continues each and every day to strive for that success for others. She actually goes to schools in New Hampshire and speaks to kids about her experience in the hope that other people will not fall to the same experience she had over the last several years.

I count her as a friend, but I focus our work in her name, just as you focus your work in the name of Kriss Soterian's stepdaughter, Amber, because these are people we know. These are people that we don't just represent. They are people that we want to try to save.

I am very, very happy to see our leadership, the bipartisanship this week in the legislation that will come to this floor, and I pray that next year we don't see the same number of deaths, that we start to see a decline.

But, regardless, this is just the beginning of this process where we will continue to fight for every life, to fight for every person who is dealing with the disease of addiction, and will continue to work in a bipartisan way because people of our Nation deserve it.

I want to thank my colleague again, ANN KUSTER from New Hampshire, my co-chair of the bipartisan task force, for her leadership. I thank the speakers this evening. I look forward to a productive week and a productive year.

Mr. Speaker, I yield back the balance of my time.

ISSUES OF THE DAY

The SPEAKER pro tempore (Mr. WESTERMAN). Under the Speaker's announced policy of January 6, 2015, the Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 30 minutes.

Mr. GOHMERT. Mr. Speaker, we are back in session and things have continued to proceed on. I appreciate so much my colleagues calling attention to this national disaster, really. Opioids are being used at what seem to be unprecedented levels.

I know, since I have been here, there was basically a war against the use of methamphetamines. So we restricted law-abiding citizens' access to Sudafed, one decongestant that works on me and has since it was discovered.

We have had more drugs pouring across our southern border, according to what DEA agents and local law enforcement have been telling me in Texas and Border Patrol down at our border, DPS at our border. Drugs pouring in seem to have more purity and be more devastating to people that get hooked on them.

Obviously, we have had doctors and nurses. I have sentenced many professionals, a number of them at least, for crimes committed. And they are getting access to opioids, but it is a problem.

What concerns me, also, is that it appears this administration is saying: We will help you clean up the criminal justice inadequacies as long as you will pass bills that will get a lot of people, thousands and thousands of people, released from prison early.

We have seen from the figures that were provided to Senator JEFF SESSIONS, pursuant to his request, that, of all the people in Federal prison for possession of illegal substances, 77 percent of them are not citizens of the United States. That is 77 percent of those in Federal prison for possession are not U.S. citizens. So, obviously, this President has been giving illegal, unconstitutional amnesties out like they were water at a marathon.

Hopefully, the Supreme Court is once and for all going to assure that that stops. But it makes sense when you look at this as being an election year and the Democratic Governor of Virginia makes thousands of felons eligible to vote.

All they need is to get out of prison, and then this President wants thousands and thousands more released from prison. The old saying is true here in Washington: No matter how cynical you get, it is never enough to catch up.

We should do criminal justice reform. I have been pushing for it for the years I have been here, I guess for the last 8 years.

But if it is only going to get signed into law if it is combined with scrapping the sentences that were arrived at by judges agonizing over an appropriate sentence, then I hope and pray it will not happen until January of next year, when a new President is in office, so that it does not get linked.

I mean, the cynicism for an administration to say, ''Yeah. We will do the criminal justice reform that is necessary, but only if you will allow us to release thousands and thousands from prison,'' which there is no question that people will be murdered, people will be robbed, people will be assaulted, shot, burglarized in crimes that never would have happened if the President hadn't pushed the early release of so many criminals.

I hope and pray that we will be the guardians here in the House of those American citizens that would be killed, robbed, burglarized, assaulted, if the President gets his way and releases people early. We can't allow that to happen if we are going to keep our oath to the American people.

We have heard so often in this room and, goodness, we have heard right here across the street in front of the Supreme Court people that claim to be illegally in this country.

The only reason I am saying claim to be illegally in this country is we have heard that all the people in this country are in the shadows and we need to bring them out of the shadows.

These people that were claiming to be illegally here protesting in front of the Supreme Court recently were not in the shadows. They were in full sunlight out in front of the United States Supreme Court and, in fact, blocking traffic there right in front of the Supreme Court building. Ultimately, the police just shut off the streets because so many people were in the streets.

This story from yesterday in the Washington Examiner is entitled ''Cashing in: Illegal Immigrants get $1,261 more welfare than American families.''

The story says:

''Illegal immigrant households receive an average of $5,692 in Federal welfare benefits every year, far more than the average 'native' American household, at $4,431, according to a new report on the cost of immigration released Monday.

''The Center for Immigration Studies, in an analysis of federal cost figures, found that all immigrant-headed households—legal and illegal—receive an average of $6,241 in welfare''—

I will point out parenthetically here that that is an average. Obviously, not everybody gets welfare that is here legally and illegally. Obviously, there are lots of households that don't get welfare. But this is an average.

And the article says:

—''41 percent more than native households. As with Americans receiving benefits such as food stamps and cash, much of the welfare to immigrants supplements their low wage jobs.

''The total cost is over $103 billion in welfare benefits to households headed by immigrants. A majority, 51 percent, of immigrant households receive some type of welfare compared to 30 percent of native households, said the analysis of Census data.''

I would like to insert, Mr. Speaker, when STEVE KING and I visited in London, England, with the Social Security office equivalent there, they pointed out that, in order to receive Social Security-type benefits in England, the law requires proof that you have been in the country for 5 years before you are eligible.

We were told—I didn't see them, but we were told that, in applying to come to the country or being in the country, you had to agree not to apply for benefits for 5 years, the idea being, if they are just an immigrant magnet for people who want to come get welfare, they would go broke. That was their reasoning. And, actually, it is quite good reasoning.

□ 2115

As one of the leaders there in the office made clear, she said: ''Look, we want to make sure that people coming into England are going to be contributors to our society and not just takers from our society.''

I don't know if she has been successful. Apparently there are people who come in who are just takers there; but this idea is interesting. It puts to the test whether someone is just coming in to get welfare benefits one has never participated in, has helped pay for, or if one is coming in to help make America a better country.

Of course, some think: If I come to America and if they are paying me benefits, obviously, America is a better country because my getting welfare makes it a better country. But most of us would not necessarily agree with that. At least, I hope most would not.

But in seeing this figure that the total cost is over $103 billion for welfare benefits to households that are headed by immigrants, possibly as much as anything else, it ought to indicate that our immigration policies and certainly this administration need dramatic changes. Perhaps it would be good to put a pause on immigration until we get this worked out because we are doing great damage to our country and we are doing great damage to other countries.

Anyway, this goes on to read: ''Immigrants receiving the most, in the study of 2012 figures, come from Mexico and Central America. Their average annual taxpayer-funded welfare collection is $8,251, 86 percent higher than the benefits received by native households, said the report.''

Mr. Speaker, that is pretty staggering. These are, apparently, 2012 figures? Mexico and Central America? Immigrants from Mexico and Central America are receiving, on average, $8,251 per year.

It is pretty clear. You don't have to be that great of a mathematician. I was good at math in junior high and in high school. In college, I only had to study for 15 minutes for the final to make an A in algebra. But you don't have to be good at math to know that no nation can sustain itself when it is giving people who are rushing into the country over $8,000 without their ever contributing a dime to the ongoing of the country.

In any event, the article reads: ''The new report follows another that found President Obama seeking $17,613 for every new illegal minor, more than Social Security retirees get.''

That is just mind-boggling. In the words of Bo Pilgrim, that is mind-boggling. It is $17,613 that President Obama sought to provide to every illegal immigrant minor—a person under 18. They have come into the country, breaking our law to get here. Yes, I have been there at all hours of the day and night on the border. No one comes across that border unaccompanied. You can't get across the Rio Grande, in the areas they were coming across, unaccompanied—4-year-old, 6-year-old, 8-year-old children as they stand there. I have seen them come up from the bank, and they are being helped. You see a woman helping this child, and the child is looking to her for answers, looking to her for instructions, looking to her for help. Then she gets up there, and she asks: Oh, is this your child?

Oh, no. I don't know her at all. She is not accompanied. Nobody is with her.

Yes, you are with her, and all of these other people are with her, but we call it unaccompanied.

Then, of course, the President wants $17,613 for every new illegal immigrant who is under 18, which, as the article points out, is more than he would seek for Social Security retirees.

Again, from The Washington Examiner, it is talking about author Jason Richwine, who noted that illegal immigrants are barred from directly receiving welfare, but, instead, they get it via their legal children.

'' 'Illegal immigrants are barred from directly accessing most, though not all, welfare programs, but they can receive welfare through their U.S.-born children. Legal immigrant households, which have greater eligibility for welfare, cost $6,378, on average,' he wrote.

''The average household''—again, this is just an average household—''headed by an immigrant, legal or illegal, costs taxpayers $6,234 in Federal welfare benefits.

''The average immigrant household consumes 33 percent more cash welfare, 57 percent more food assistance, and 44 percent more Medicaid dollars than the average native household.

''At $8,251, households headed by immigrants from Central America and Mexico have the highest welfare costs of any sending region.

''The greater consumption of welfare dollars of immigrants can be explained in large part by their lower level of education and larger number of children compared to natives. Over 24 percent of immigrant households are headed by a high school dropout compared to just 8 percent of native households. In addition, 13 percent of immigrant households have three or more children versus just 6 percent of native households.''

So when you do the math, as some people actually have, our Nation is not long for the world unless we get on a lawful track. I have seen and had signs shoved in front of my face over in front of the Supreme Court that Jesus was an immigrant and that Jesus was a refugee. This thing I know from everything we have been taught, from everything that is in the Bible, is that Jesus was never an illegal immigrant. Jesus

made clear you render unto Caesar that which is Caesar's. You follow the law. He never broke the law nor advocated breaking the civilian law; though, those who crucified him clearly violated the law.

An article here from The Washington Free Beacon today, by Adam Kredo, reads: ''Report: Homegrown violent extremists planting roots across U.S.; foiled ISIS attacks, plots, and terror funding grows across Nation.''

''At least 75 homegrown violent extremists were found to be operating across the United States in 2015, with the largest portion of these individuals pledging allegiance to the ISIS terror group, according to recent figures published by New Jersey's Office of Homeland Security and Preparedness.

''The largest number of homegrown extremists were caught providing material support to various terror organizations, while at least 21 percent of the terrorists were found to be planning attacks in the United States, according to the figures.

''Another 10 percent successfully carried out terror attacks in California, New York, Tennessee, and Massachusetts, according to the data, which shows that the New York City area was home to the largest number of violent extremists.''

That term ''violent extremists'' is so beloved by this administration so they don't have to use the term ''radical Islamists'' or ''Islamic jihadists.''

Yet, here is an article from Craig Bannister today: ''Administration's Censorship of State Department Video Mirrors Deletion of Hollande's 'Islamist' Remark.''

The article reads: ''The State Department's censorship of an on-camera confession made by spokeswoman Jen Psaki appears identical to the recent censorship by the White House of video of French President Hollande speaking the words 'Islamist terrorism,' exposed by MRCTV.

''FOX News' James Rosen reported on Monday that the State Department edited out an on-camera admission by Psaki in 2013 that it is Obama administration's policy to lie to the American people, and that the Iran nuclear deal was 'a good example' of a time it did.

''The administration used the same censorship tactics earlier this year when it edited out audio of President Hollande calling 'Islamist terrorism' the root of terrorism today . . .' The White House Web site has censored a video of French President Francois Hollande saying that ''Islamist terrorism'' is at the ''roots of terrorism.'' The White House briefly pulled video of a press event on terrorism with President Obama, and when it reappeared on the whitehouse.gov Web site and YouTube, the audio of Hollande's translator goes silent, beginning with the words ''Islamist terrorism,'' then begins again at the end of his sentence.'

''The two censorships by the Obama administration follow the same pattern:

''A comment objectionable to the administration was edited out of the official video posted on a government Web site,

''The censorship was discovered and documented because the official government transcript had not been edited,

''The missing video was, somehow, found and restored to the version on the government Web site—after the censorship had been exposed, and

''The administration pleaded ignorance of the editing once it had been made public.

''Rosen's revelation begs a question posed to MRCTV multiple times since it broke the Hollande story:

''Is this an isolated incident, or are there other times the administration has edited out comments it doesn't want the American people to hear?''

Consistent with actions like preventing people from hearing the French President point out the truth that Islamic terrorism is at the root of all terrorism—most terrorism it certainly is—here is a front page magazine story: ''Obama Frees USS Cole Bombing Terrorist. American lives don't matter,'' from Daniel Greenfield.

''On Thursday morning, sailors on board the USS Cole were lining up for an early lunch. Seventeen of them died as an al Qaeda bomb on board a fishing boat tore through the hull outside the gallery. The dead included 15 men and two women, one of whom had a young child. For 3 weeks, the crew of the USS Cole struggled to keep their ship from sinking while working waste deep in water with bucket brigades, sleeping on the deck, and living surrounded by the terrible aftermath of the terrorist attack.

''The survivors, wounded and whole, received the words 'Glory is the Reward of Valor,' written on the bent steel removed from the site of the explosion that tore through their ship and their lives.

□ 2130

''The President of the United States promised that justice would be done:

'''To those who attacked them, we say: You will not find a safe harbor. We will find you and justice will prevail.'''

As the article says: ''Despite Clinton's words, justice did not prevail.''

The article goes on to point out all the injustice of what President Obama has done in freeing this bomber involved in the USS *Cole* bombing. He is a murderer of 17, wounder of three dozen or so in an attack on a United States military ship.

The United States cannot long exist when this is the way we treat those who are trying to destroy us.

In a May 5 account in The Weekly Standard's story, ''Obama's Foreign Policy Guru Boasts of How the Administration Lied to Sell the Iran Deal,'' it says:

''It's hardly any wonder that Deputy National Security Adviser Ben Rhodes has a 'mind meld' with his boss, the President. According to a David Samuels New York Times Magazine article to be published Sunday and already posted to the Web site, Rhodes, like Barack Obama, is contemptuous of 'the American foreign-policy establishment.' What Obama calls the 'Washington playbook' dictating the sorts of responses available to American policymakers, Rhodes calls the 'Blob.'''

This article points out what is in the news right now, that the Obama administration—and I am being careful—that the Obama administration was responsible for a lie perpetrated against the American people. They claim they were dealing with moderates in Iran. They knew they were dealing with radicals, and Ben Rhodes is lying. He brags about all the lying they did to keep the Senate from standing up and having the courage to say this is a treaty. It is being done with radical Islamists in Iran. It hurts all our friends, helps our enemies. We will not allow that to happen. We are taking a vote on the Iran treaty as a treaty.

And then when they did, if the Democrats tried to block it, then this, more than anything else they have ever taken up, would be something they should say, as HARRY REID did, we may not have 60, but this is critical. We vote on the Iran treaty and vote it down.

So 51 votes sets aside cloture, and they drive forward. It doesn't get the two-thirds vote, and we stop the radicals in Iran from getting the hundreds of billions that will flow not just in 1 year, but over a period of time.

I met with Baloch people, Baloch leaders today. The southern part of Iran, southern southwest part of Pakistan, those are indigenous Baloch areas. The most productive oilfields of Iran are Baloch areas.

They have been so unfairly terrorized and mistreated. They know what terrorists the leaders of Iran are.

We have friends in those areas of Iran and Pakistan, and this administration chose to lie to the American people to get the Senate to do nothing to stop them. And people around the world will die as a result of the lies that Ben Rhodes has now admitted to.

God help us all.

I yield back the balance of my time.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. HASTINGS (at the request of Ms. PELOSI) for today through May 13.

SENATE BILL REFERRED

A bill of the Senate of the following title was taken from the Speaker's table and, under the rule, referred as follows:

S. 546. An act to establish the Railroad Emergency Services Preparedness, Operational Needs, and Safety Evaluation (RESPONSE) Subcommittee under the Federal Emergency Management Agency's National

Advisory Council to provide recommendations on emergency responder training and resources relating to hazardous materials incidents involving railroads, and for other purposes; to the Committee on Transportation and Infrastructure.

BILLS PRESENTED TO THE PRESIDENT

Karen L. Haas, Clerk of the House, reported that on April 29, 2016, she presented to the President of the United States, for his approval, the following bills:

H.R. 2908. To adopt the bison as the national mammal of the United States.

H.R. 1493. To protect and preserve international cultural property at risk due to political instability, armed conflict, or natural or other disasters, and for other purposes.

ADJOURNMENT

Mr. GOHMERT. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 34 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, May 11, 2016, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5308. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Contract Term Limit for Energy Savings Contracts (DFARS Case 2015-D018) [Docket No.: DARS-2015-0050] (RIN: 0750-AI74) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5309. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Multiyear Contract Requirements (DFARS Case 2015-D009) [Docket No.: DARS-2015-0067] (RIN: 0750-A180) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5310. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Long-Haul Telecommunications (DFARS Case 2015-D023) [Docket No.: DARS-2015-0046] (RIN: 0750-AI72) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5311. A letter from the Director, Defense Procurement and Acquisition Policy, Department of Defense, transmitting the Department's final rule — Defense Federal Acquisition Regulation Supplement: Disclosure to Litigation Support Contractors (DFARS Case 2012-D029) [Docket No.: DARS-2014-0017] (RIN: 0750-AH54) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5312. A letter from the Secretary, Department of the Treasury, transmitting the Department's report entitled ''Audit of the Exchange Stabilization Fund's Fiscal Years 2015 and 2014 Financial Statements'', pursuant to 31 U.S.C. 5302(c)(2); Jan. 30, 1934, ch. 6, Sec. 10 (as amended by Public Law 97-258, Sec. 5302(c)(2)); (96 Stat. 994); to the Committee on Financial Services.

5313. A letter from the Assistant Secretary for Administration and Management, Department of Labor, transmitting the Department's direct final rule — Department of Labor Implementation of OMB Guidance on Nonprocurement Debarment and Suspension (RIN: 1291-AA38) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Education and the Workforce.

5314. A letter from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting the Department's final rule — Energy Conservation Program: Establishment of Procedures for Requests for Correction of Errors in Rules (RIN: 1904-AD63) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5315. A letter from the Secretary, Department of the Treasury, transmitting a six-month periodic report on the national emergency with respect to the situation in or in relation to the Democratic Republic of the Congo that was declared in Executive Order 13413 of October 27, 2006, pursuant to 50 U.S.C. 1641(c); Public Law 94-412, Sec. 401(c); (90 Stat. 1257) and 50 U.S.C. 1703(c); Public Law 95-223, Sec 204(c); (91 Stat. 1627); to the Committee on Foreign Affairs.

5316. A communication from the President of the United States, transmitting notification that the national emergency with respect to the Central African Republic, originally declared on May 12, 2014, by Executive Order 13667, is to continue in effect beyond May 12, 2016, pursuant to 50 U.S.C. 1622(d); Public Law 94-412, Sec. 202(d); (90 Stat. 1257) (H. Doc. No. 114—133); to the Committee on Foreign Affairs and ordered to be printed.

5317. A letter from the Assistant Legal Adviser, Office of Treaty Affairs, Department of State, transmitting a report concerning international agreements other than treaties entered into by the United States to be transmitted to the Congress within the sixty-day period specified in the Case-Zablocki Act, pursuant to 1 U.S.C. 112b(d)(1); Public Law 92-403, Sec. 1; (86 Stat. 619); to the Committee on Foreign Affairs.

5318. A letter from the Chairman, Council of the District of Columbia, transmitting D.C. ACT 21-378, ''Transportation Reorganization Amendment Act of 2016'', pursuant to Public Law 93-198, Sec. 602(c)(1); (87 Stat. 814); to the Committee on Oversight and Government Reform.

5319. A letter from the Attorney-Advisor, Office of General Counsel, Federal Transit Administration, Department of Transportation, transmitting a notification of a Designation of acting officer, pursuant to 5 U.S.C. 3349(a); Public Law 105-277, 151(b); (112 Stat. 2681-614); to the Committee on Oversight and Government Reform.

5320. A letter from the Chairman, National Credit Union Administration, transmitting the Inspector General's semiannual report for October 1, 2015, through May 31, 2016, pursuant to Sec. 5(b) of the Inspector General Act of 1978, as amended (Public Law 95-452); to the Committee on Oversight and Government Reform.

5321. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, Office of Protected Resources, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — List of Fisheries for 2016 [Docket No.: 150306230-6303-02] (RIN: 0648-BE88) received May 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. BRADY of Texas: Committee on Ways and Means. H.R. 3209. A bill to amend the Internal Revenue Code of 1986 to permit the disclosure of certain tax return information for the purpose of missing or exploited children investigations; with an amendment (Rept. 114–542). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. H.R. 2137. A bill to ensure Federal law enforcement officers remain able to ensure their own safety, and the safety of their families, during a covered furlough (Rept. 114–543). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. S. 125. An act to amend title I of the Omnibus Crime Control and Safe Streets Act of 1968 to extend the authorization of the Bulletproof Vest Partnership Grant Program through fiscal year 2020, and for other purposes (Rept. 114–544). Referred to the Committee of the Whole House on the state of the Union.

Mr. MILLER of Florida: Committee of Veterans' Affairs. H.R. 4590. A bill to authorize the Secretary of Veterans Affairs to carry out certain major medical facility projects for which appropriations are being made for fiscal year 2016, and for other purposes; with an amendment (Rept. 114–545). Referred to the Committee of the Whole House on the state of the Union.

Mr. MILLER of Florida: Committee on Veterans' Affairs. H.R. 4063. A bill to improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, to improve patient advocacy by the Secretary, and to expand the availability of complementary and integrative health, and for other purposes; with an amendment (Rept. 114–546, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. H.R. 4985. A bill to amend the Foreign Narcotics Kingpin designation Act to protect classified information in Federal court challenges (Rept. 114–547, Pt. 1). Ordered to be printed.

Mr. KLINE. Committee on Education and the Workforce. H.R. 4843. A bill to amend the Child Abuse Prevention and Treatment Act to require certain monitoring and oversight, and for other purposes; with an amendment (Rept. 114–548). Referred to the Committee of the Whole House on the state of the Union.

Mr. BISHOP of Utah: Committee on Natural Resources. H.R. 295. A bill to reauthorize the Historically Black Colleges and Universities Historic Preservation program; with an amendment (Rept. 114–549). Referred to the Committee of the Whole House on the state of the Union.

Mr. BISHOP of Utah: Committee on Natural Resources. H.R. 2009. A bill to provide for the conveyance of certain land inholdings owned by the United States to the Tucson Unified School District and to the Pascua Yaqui Tribe of Arizona; with an amendment (Rept. 114–550). Referred to the Committee of the Whole House on the state of the Union.

Mr. COLLINS of Georgia: Committee on Rules. House Resolution 720. Resolution providing for consideration of the bill (H.R. 4641) to provide for the establishment of an interagency task force to review, modify, and update best practices for pain management and prescribing pain medication, and for other purposes, and providing for consideration of the bill (H.R. 5046) to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize the Attorney General to make grants to assist State and local governments in addressing the national epidemic of opioid abuse, and for other purposes (Rept. 114–551). Referred to the House Calendar.

Mr. UPTON: Committee on Energy and Commerce. H.R. 1818. A bill to amend the Public Health Service Act to provide grants to States to streamline State requirements and procedures for veterans with military emergency medical training to become civilian emergency medical technicians; with an amendment (Rept. 114–552). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 3680. A bill to provide for the Secretary of Health and Human Services to carry out a grant program for co-prescribing opioid overdose reversal drugs; with an amendment (Rept. 114–553). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 3691. A bill to amend the Public Health Service Act to reauthorize the residential treatment programs for pregnant and postpartum women and to establish a pilot program to provide grants to State substance abuse agencies to promote innovative service delivery models for such women; with an amendment (Rept. 114–554). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4586. A bill to amend the Public Health Service Act to authorize grants to States for developing standing orders and educating health care professionals regarding the dispensing of opioid overdose reversal medication without person-specific prescriptions, and for other purposes; with an amendment (Rept. 114–555). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4599. A bill to amend the Controlled Substances Act to permit certain partial fillings of prescriptions; with an amendment (Rept. 114–556). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4976. A bill to require the Commissioner of Food and Drugs to seek recommendations from an advisory committee of the Food and Drug Administration before approval of certain new drugs that are opioids without abuse-deterrent properties, and for other purposes; (Rept. 114–557). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4969. A bill to amend the Public Health Service Act to direct the Centers for Disease Control and Prevention to provide for informational materials to educate and prevent addiction in teenagers and adolescents who are injured playing youth sports and subsequently prescribed an opioid; with an amendment (Rept. 114–558). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4978. A bill to require the Government Accountability Office to submit to Congress a report on neonatal abstinence syndrome (NAS) in the United States and its treatment under Medicaid; with an amendment (Rept. 114–559). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4982. A bill to direct the Comptroller General of the United States to evaluate and report on the in-patient and outpatient treatment capacity, availability, and needs of the United States; with an amendment (Rept. 114–560). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4981. A bill to amend the Controlled Substances Act to improve access to opioid use disorder treatment; with an amendment (Rept. 114–561, Pt. 1). Referred to the Committee of the Whole House on the state of Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committee on Armed Services discharged from further consideration. H.R. 4063 referred to the Committee of the Whole House on the state of Union.

Pursuant to clause 2 of rule XIII, the Committee on the Judiciary discharged from further consideration. H.R. 4981 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mrs. RADEWAGEN:

H.R. 5174. A bill to make certain improvements in the laws administered by the Secretary of Veterans Affairs relating to educational assistance, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. TAKANO:

H.R. 5175. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to disapprove, for purposes of the educational assistance programs of the Department of Veterans Affairs, programs of education determined to have utilized deceptive or misleading practices in violation of section 3696 of such title, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. TAKANO (for himself and Mrs. RADEWAGEN):

H.R. 5176. A bill to direct the Secretary of Labor to carry out a research program to evaluate the effectiveness of the Transition Assistance Program in addressing the needs of certain minority veterans; to the Committee on Armed Services.

By Mr. CURBELO of Florida (for himself and Mr. SIRES):

H.R. 5177. A bill to improve disaster mitigation programs, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. WENSTRUP (for himself, Mr. TAKANO, and Miss RICE of New York):

H.R. 5178. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to provide educational and vocational counseling for veterans on campuses of institutions of higher learning, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. AMASH:

H.R. 5179. A bill to limit the authority of personnel of the Department of Homeland Security to prohibit a citizen or permanent resident of the United States from boarding as a passenger on an aircraft or cruise ship based on inclusion of the individual in a watchlist, and for other purposes; to the Committee on Homeland Security.

By Mr. FLORES (for himself, Mr. WELCH, Mr. GOODLATTE, Mr. COSTA, Mr. WOMACK, and Mr. RICHMOND):

H.R. 5180. A bill to alleviate the ethanol blend wall under the renewable fuel program, and for other purposes; to the Committee on Energy and Commerce.

By Mr. KINZINGER of Illinois (for himself, Mr. TED LIEU of California, Mr. FITZPATRICK, Mr. LIPINSKI, Mr. LAMBORN, Mr. TAKAI, Mr. YOUNG of Indiana, Mr. CICILLINE, Ms. STEFANIK, Mr. QUIGLEY, Mr. GUTHRIE, and Mr. BRENDAN F. BOYLE of Pennsylvania):

H.R. 5181. A bill to counter foreign disinformation and propaganda, and for other purposes; to the Committee on Foreign Affairs.

By Mr. LONG (for himself and Mr. BEN RAY LUJÁN of New Mexico):

H.R. 5182. A bill to promote the development of safe drugs for neonates; to the Committee on Energy and Commerce.

By Mr. MOULTON (for himself and Mr. KING of New York):

H.R. 5183. A bill to amend title II of the Social Security Act to eliminate the five month waiting period for disability insurance benefits for individuals with amyotrophic lateral sclerosis (ALS); to the Committee on Ways and Means.

By Mr. PAULSEN:

H.R. 5184. A bill to amend the Internal Revenue Code of 1986 to expand rules related to investment by nonresident aliens in domestic mutual funds and business development companies; to the Committee on Ways and Means.

By Mr. POE of Texas:

H.R. 5185. A bill to amend the Internal Revenue Code of 1986 to provide for disclosure for charity employees and board members previously implicated in terror finance; to the Committee on Ways and Means.

By Mr. POLIQUIN:

H.R. 5186. A bill to amend the Internal Revenue Code of 1986 to exclude employer contributions to 529 plans from gross income and employment taxes and to allow a deduction for individual contributions to such plans; to the Committee on Ways and Means.

By Mr. TIBERI (for himself and Mr. LARSON of Connecticut):

H.R. 5187. A bill to amend the Internal Revenue Code of 1986 to increase the alternative simplified credit for research expenses; to the Committee on Ways and Means.

By Mr. BISHOP of Utah:

H.J. Res. 92. A joint resolution proposing an amendment to the Constitution of the United States to give States the right to repeal Federal laws and regulations when ratified by the legislatures of two-thirds of the several States; to the Committee on the Judiciary.

By Mr. GOHMERT:

H.J. Res. 93. A joint resolution proposing a balanced budget amendment to the Constitution of the United States; to the Committee on the Judiciary.

By Mr. VEASEY (for himself, Mr. PETERS, Ms. NORTON, Mr. RANGEL, Ms. CLARKE of New York, and Mr. PAYNE):

H. Res. 719. A resolution expressing support for designation of May 2016 as ''Health and Fitness Month''; to the Committee on Energy and Commerce.

By Mr. ISRAEL (for himself, Mr. RYAN of Ohio, and Mr. COURTNEY):

H. Res. 721. A resolution expressing support for the designation of May 8, 2016, through May 14, 2016, as Food Allergy Awareness Week; to the Committee on Energy and Commerce.

By Ms. NORTON (for herself, Mr. LYNCH, Mr. CUMMINGS, Mr. VAN HOLLEN, Mr. MEEKS, and Ms. JACKSON LEE):

H. Res. 722. A resolution expressing the sense of the House of Representatives supporting the Federal workforce; to the Committee on Oversight and Government Reform.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

217. The SPEAKER presented a memorial of the Legislature of the State of Tennessee, relative to House Joint Resolution No. 291, urging Congress to reform the federal requirements relative to high school graduation rates during the reauthorization of the Elementary and Secondary Education Act; which was referred to the Committee on Education and the Workforce.

218. Also, a memorial of the House of Representatives of the State of Florida, relative to House Resolution 1001, condemning the international Boycott, Divestment, and Sanctions (BDS) movement against the State of Israel and calls upon its governmental institutions to denounce hatred and discrimination whenever they appear; which was referred to the Committee on Foreign Affairs.

219. Also, a memorial of the House of Representatives of the State of Florida, relative to House Resolution 1001, condemning the international Boycott, Divestment, and Sanctions (BDS) movement against the State of Israel and calls upon its governmental institutions to denounce hatred and discrimination whenever they appear; which was referred to the Committee on Foreign Affairs.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submittal regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mrs. RADEWAGEN:

H.R. 5174.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. TAKANO:

H.R. 5175.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution of the United States.

By Mr. TAKANO:

H.R. 5176.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution of the United States.

By Mr. CURBELO of Florida:

H.R. 5177.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3: The Commerce Clause

By Mr. WENSTRUP:

H.R. 5178.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution.

By Mr. AMASH:

H.R. 5179.

Congress has the power to enact this legislation pursuant to the following:

The Due Process Clause (''[N]or shall any person . . . be deprived of life, liberty, or property, without due process of law . . .'')

Article I, Section 8, Clause 18 (''The Congress shall have Power . . . To make all Laws which shall be necessary and proper for carrying into Execution . . . all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof.'')

By Mr. FLORES:

H.R. 5180.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3 of the Constitution of the United States.

By Mr. KINZINGER of Illinois:

H.R. 5181.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution of the United States

By Mr. LONG:

H.R. 5182.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18 of the Constitution, which states ''To make all Laws which shall be necessary and proper in the Government of the United States or in any Department or Officer thereof.''

By Mr. MOULTON:

H.R. 5183.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the Constitution.

By Mr. PAULSEN:

H.R. 5184.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mr. POE of Texas:

H.R. 5185.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1

By Mr. POLIQUIN:

H.R. 5186.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 gives Congress the ''Power to lay and collect Taxes, Duties, Imposts and Excises.''

By Mr. TIBERI:

H.R. 5187.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8

By Mr. BISHOP of Utah:

H.J. Res. 92.

Congress has the power to enact this legislation pursuant to the following:

Article V

By Mr. GOHMERT:

H.J. Res. 93.

Congress has the power to enact this legislation pursuant to the following:

This resolution is enacted pursuant to the powers conferred by the United States Constitution upon Congress by Article V. which provides that ''The Congress, whenever two thirds of both Houses shall deem it necessary, shall propose Amendments to this Constitution . . . which shall be valid to all Intents and Purposes, as Part of this Constitution, when ratified by the Legislatures of three fourths of the several States . . .''

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 194: Mr. LATTA.

H.R. 213: Mr. STEWART.

H.R. 228: Mr. DUNCAN of Tennessee and Mr. BRENDAN F. BOYLE of Pennsylvania.

H.R. 239: Mr. BRADY of Pennsylvania.

H.R. 343: Mr. MEADOWS and Mr. MURPHY of Pennsylvania.

H.R. 353: Mr. EMMER of Minnesota.

H.R. 499: Mr. POE of Texas.

H.R. 546: Ms. GRAHAM.

H.R. 563: Mr. LEWIS and Ms. DELAURO.

H.R. 576: Ms. SLAUGHTER.

H.R. 605: Mr. SALMON.

H.R. 632: Mr. RANGEL, Mr. TAKAI, Mr. COURTNEY, Ms. PINGREE, Ms. DELAURO, and Mr. GUINTA.

H.R. 649: Mr. RUSH and Ms. MENG.

H.R. 711: Mr. KELLY of Pennsylvania.

H.R. 729: Mr. LANGEVIN.

H.R. 748: Mr. COSTELLO of Pennsylvania.

H.R. 756: Mr. TAKAI and Mr. MCGOVERN.

H.R. 799: Mr. GROTHMAN.

H.R. 842: Mr. RICHMOND.

H.R. 863: Mr. ROKITA.

H.R. 864: Mr. MEEHAN.

H.R. 865: Mr. PITTENGER.

H.R. 921: Mr. ZINKE, Mr. LANCE, Mr. SMITH of Missouri, Mr. HARRIS, and Mr. PITTENGER.

H.R. 923: Mr. COOK, Mr. GOHMERT, Mr. SMITH of Texas, Mr. CRAWFORD, Mr. LABRADOR, Mrs. WAGNER, Mr. THOMPSON of Pennsylvania, and Mr. MURPHY of Pennsylvania.

H.R. 973: Mrs. DINGELL, Mr. RUSH, Mr. DUNCAN of Tennessee, and Mr. ISRAEL.

H.R. 980: Mr. CRAWFORD and Mr. RUSSELL.

H.R. 1062: Mr. LAMALFA.

H.R. 1109: Mr. NOLAN.

H.R. 1111: Mr. MCDERMOTT.

H.R. 1112: Mr. LOWENTHAL and Mr. MOULTON.

H.R. 1117: Mrs. KIRKPATRICK.

H.R. 1130: Mrs. MILLER of Michigan and Mr. BOUSTANY.

H.R. 1171: Mr. GIBBS.

H.R. 1197: Mr. FRANKS of Arizona and Mr. MEEHAN.

H.R. 1220: Mr. BYRNE, Mr. KILDEE, Mr. HILL, and Mr. ZELDIN.

H.R. 1221: Mr. DAVID SCOTT of Georgia, Mr. BUTTERFIELD, and Mr. PAYNE.

H.R. 1233: Mr. SENSENBRENNER, Mr. GUINTA, and Mr. PAULSEN.

H.R. 1310: Mr. ENGEL and Mr. TED LIEU of California.

H.R. 1312: Mr. SHUSTER, Mr. AGUILAR, and Mr. STIVERS.

H.R. 1336: Mr. COOPER.

H.R. 1397: Mr. PETERS.

H.R. 1398: Mr. RUSH, Ms. MICHELLE LUJAN GRISHAM of New Mexico, and Ms. ESHOO.

H.R. 1421: Ms. DUCKWORTH.

H.R. 1427: Mr. RICHMOND, Mr. COOK, and Mr. POSEY.

H.R. 1453: Mr. AL GREEN of Texas.

H.R. 1519: Mr. WALZ.

H.R. 1594: Mr. MULLIN.

H.R. 1655: Mr. WENSTRUP.

H.R. 1667: Mr. CHAFFETZ.

H.R. 1718: Mr. HILL, Mr. CRAMER, and Mr. GARAMENDI.

H.R. 1779: Mr. TED LIEU of California.

H.R. 1818: Mr. ROKITA, Mr. NEAL, Mrs. BROOKS of Indiana, Mrs. WAGNER, Mr. PAULSEN, and Mr. TURNER.

H.R. 1854: Mr. BEYER.

H.R. 1887: Mr. TED LIEU of California.

H.R. 1911: Mr. SANFORD, Mr. YODER, and Mr. LUETKEMEYER.

H.R. 1942: Mr. CROWLEY and Mr. GOWDY.

H.R. 1943: Mr. SABLAN, Ms. WASSERMAN SCHULTZ, and Mr. CÁRDENAS.

H.R. 1961: Mr. TAKANO.

H.R. 1969: Mr. NORCROSS.

H.R. 2016: Mr. DAVID SCOTT of Georgia.

H.R. 2067: Mr. BYRNE.

H.R. 2090: Ms. SCHAKOWSKY, Mr. GRAYSON, Mr. CARSON of Indiana, Mr. VISCLOSKY, and Mr. HIMES.

H.R. 2096: Ms. HAHN.

H.R. 2121: Mr. MURPHY of Pennsylvania.

H.R. 2123: Mr. LAHOOD.

H.R. 2132: Mr. POCAN and Mr. TAKAI.

H.R. 2142: Mr. ZELDIN.
H.R. 2189: Mr. CÁRDENAS.
H.R. 2218: Mr. COOK, Mr. CONYERS, and Mr. KILMER.
H.R. 2221: Mr. RUSH.
H.R. 2254: Mr. RUSH, Ms. JUDY CHU of California, and Mr. LOEBSACK.
H.R. 2260: Mr. LYNCH and Mr. LOEBSACK.
H.R. 2290: Mr. BISHOP of Michigan.
H.R. 2293: Mr. GUTIÉRREZ and Mr. YOHO.
H.R. 2296: Mr. TAKAI and Mr. MCGOVERN.
H.R. 2309: Ms. DUCKWORTH.
H.R. 2315: Mr. CURBELO of Florida and Mr. PITTENGER.
H.R. 2350: Ms. MCCOLLUM and Mr. DENT.
H.R. 2450: Ms. JUDY CHU of California, Mr. CONYERS, and Ms. DEGETTE.
H.R. 2460: Mr. HARRIS and Mr. BOUSTANY.
H.R. 2526: Mr. RUSH.
H.R. 2654: Mr. AGUILAR.
H.R. 2658: Mr. MURPHY of Pennsylvania.
H.R. 2669: Mr. ZELDIN.
H.R. 2713: Mr. BRADY of Pennsylvania and Mr. AL GREEN of Texas.
H.R. 2726: Mr. PALAZZO, Mr. RANGEL, Mr. COURTNEY, and Mrs. LOWEY.
H.R. 2741: Ms. MOORE.
H.R. 2802: Mrs. WALORSKI.
H.R. 2811: Mr. AGUILAR and Ms. WILSON of Florida.
H.R. 2817: Mrs. NAPOLITANO, Mr. THOMPSON of Mississippi, and Mr. TED LIEU of California.
H.R. 2847: Ms. MCCOLLUM.
H.R. 2867: Mr. GRAYSON, Mr. RYAN of Ohio, and Mr. LOEBSACK.
H.R. 2883: Mrs. LOVE and Ms. DUCKWORTH.
H.R. 2903: Mr. HASTINGS, Mr. FATTAH, Mr. BRAT, Mrs. CAROLYN B. MALONEY of New York, Mr. THOMPSON of Pennsylvania, Mr. HULTGREN, and Ms. MATSUI.
H.R. 2966: Mr. REED.
H.R. 2976: Ms. DUCKWORTH.
H.R. 2980: Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. COSTA, and Mrs. BROOKS of Indiana.
H.R. 2992: Ms. LINDA T. SÁNCHEZ of California.
H.R. 3025: Mr. LOWENTHAL.
H.R. 3026: Mr. CALVERT.
H.R. 3054: Mr. GRAYSON.
H.R. 3099: Mr. MESSER, Ms. JENKINS of Kansas, and Ms. MOORE.
H.R. 3110: Mr. LARSON of Connecticut and Mr. PALLONE.
H.R. 3119: Ms. DEGETTE.
H.R. 3177: Mr. TED LIEU of California.
H.R. 3178: Mr. COFFMAN.
H.R. 3179: Mr. COFFMAN.
H.R. 3180: Mr. BOST, Mr. ZELDIN, and Mr. COFFMAN.
H.R. 3209: Mr. COSTELLO of Pennsylvania.
H.R. 3222: Mr. STIVERS, Mr. CHAFFETZ, Mr. WALKER, Mr. MOOLENAAR, and Mrs. BLACKBURN.
H.R. 3226: Mrs. LOWEY.
H.R. 3229: Mr. MEEHAN and Mr. SMITH of New Jersey.
H.R. 3235: Mr. BLUMENAUER, Mr. BRADY of Pennsylvania, and Mr. FOSTER.
H.R. 3286: Mr. HUNTER.
H.R. 3308: Mr. BEN RAY LUJÁN of New Mexico.
H.R. 3309: Mr. JONES.
H.R. 3380: Mr. PITTENGER, Mr. BUCHANAN, and Mr. ZELDIN.
H.R. 3381: Mr. RICHMOND, Ms. JENKINS of Kansas, Mr. NEAL, Mr. BRENDAN F. BOYLE of Pennsylvania, and Mr. ZELDIN.
H.R. 3514: Mr. SMITH of Washington, Mr. LARSON of Connecticut, Mr. HECK of Washington, Mr. HUFFMAN, Mr. VEASEY, Mr. HIMES, and Mr. CROWLEY.
H.R. 3632: Ms. SCHAKOWSKY and Mr. PALLONE.
H.R. 3666: Mrs. BEATTY.
H.R. 3680: Mr. SHUSTER and Ms. MCSALLY.
H.R. 3687: Ms. MOORE.
H.R. 3691: Mrs. NOEM, Mr. BRADY of Pennsylvania, Mr. KILMER, and Mr. TURNER.
H.R. 3713: Mr. LEVIN, Mr. DAVID SCOTT of Georgia, Mr. FOSTER, and Mrs. NAPOLITANO.
H.R. 3720: Ms. ESHOO.
H.R. 3722: Ms. STEFANIK.
H.R. 3765: Ms. SPEIER.
H.R. 3779: Mr. LOWENTHAL.
H.R. 3793: Ms. DUCKWORTH and Mr. AGUILAR.
H.R. 3799: Mr. MEADOWS, Mr. LAMBORN, Mr. WEBER of Texas, Mr. GOHMERT, and Mr. MULVANEY.
H.R. 3834: Mr. AL GREEN of Texas.
H.R. 3861: Mr. KATKO, Mr. HASTINGS, and Mr. VARGAS.
H.R. 3870: Mr. GUTIÉRREZ, Mrs. DINGELL, and Mr. LOEBSACK.
H.R. 3913: Ms. BONAMICI.
H.R. 3957: Ms. WILSON of Florida and Mr. GOSAR.
H.R. 3989: Mr. ROYCE.
H.R. 4006: Mr. MASSIE.
H.R. 4013: Mr. AL GREEN of Texas.
H.R. 4016: Mr. GRAVES of Missouri and Mr. ROSKAM.
H.R. 4062: Mr. RUSH, Mr. REED, and Mr. JONES.
H.R. 4073: Mr. PERLMUTTER.
H.R. 4160: Mr. TAKAI.
H.R. 4165: Mrs. BEATTY.
H.R. 4167: Mr. KING of Iowa.
H.R. 4172: Mr. NORCROSS.
H.R. 4223: Ms. ESHOO.
H.R. 4230: Mrs. LOWEY and Mr. NORCROSS.
H.R. 4236: Mr. RICHMOND.
H.R. 4247: Mr. SMITH of Missouri.
H.R. 4262: Mr. FLORES and Mrs. WALORSKI.
H.R. 4321: Mr. LAHOOD.
H.R. 4352: Mr. LAMBORN.
H.R. 4383: Mr. THOMPSON of Mississippi.
H.R. 4422: Mr. RUSH.
H.R. 4435: Mr. ENGEL.
H.R. 4447: Mr. DEFAZIO and Ms. FRANKEL of Florida.
H.R. 4448: Mr. WILLIAMS.
H.R. 4450: Mr. BLUMENAUER.
H.R. 4479: Mr. NORCROSS, Mr. HIMES, Ms. ESHOO, Mr. HECK of Washington, Ms. LORETTA SANCHEZ of California, Mr. AL GREEN of Texas, Mr. CLAY, Mr. BISHOP of Georgia, and Mrs. BEATTY.
H.R. 4488: Mr. SHERMAN, Ms. LEE, Mr. RANGEL, Ms. ESHOO, and Mr. VEASEY.
H.R. 4491: Mr. BERA, Ms. TITUS, and Miss RICE of New York.
H.R. 4554: Mr. KATKO.
H.R. 4559: Mr. COLLINS of New York and Mrs. MCMORRIS RODGERS.
H.R. 4586: Mr. ROKITA, Mr. PAULSEN, Mr. TURNER, and Ms. MCSALLY.
H.R. 4599: Mr. TURNER and Ms. MCSALLY.
H.R. 4602: Mrs. NAPOLITANO and Mr. MEEHAN.
H.R. 4606: Mr. HASTINGS.
H.R. 4611: Mr. BEYER.
H.R. 4613: Ms. MCSALLY.
H.R. 4615: Mr. AGUILAR and Mr. DOGGETT.
H.R. 4623: Mr. AL GREEN of Texas.
H.R. 4625: Mr. NORCROSS and Mr. JONES.
H.R. 4640: Mrs. DINGELL, Mr. JOYCE, and Ms. STEFANIK.
H.R. 4653: Mr. SMITH of Washington, Mr. HASTINGS, Mr. BRADY of Pennsylvania, and Ms. BONAMICI.
H.R. 4656: Mr. RUSH.
H.R. 4662: Ms. SCHAKOWSKY and Mr. YOUNG of Alaska.
H.R. 4665: Mr. COSTA, Mr. ZINKE, Mrs. WALORSKI, and Ms. BONAMICI.
H.R. 4681: Mr. FOSTER, Ms. SLAUGHTER, and Mrs. DINGELL.
H.R. 4701: Mr. PETERSON and Mr. COLLINS of New York.
H.R. 4715: Mr. ROSKAM, Mr. LAHOOD, Mr. COOPER, Mr. MURPHY of Pennsylvania, Mr. ROONEY of Florida, and Mr. SMITH of Texas.
H.R. 4717: Mr. PITTS.
H.R. 4718: Ms. JENKINS of Kansas.
H.R. 4730: Mr. COFFMAN, Mrs. NOEM, and Mr. ROKITA.
H.R. 4732: Mr. KILMER.
H.R. 4740: Ms. JUDY CHU of California and Mrs. DINGELL.
H.R. 4764: Ms. KAPTUR and Mr. POSEY.
H.R. 4766: Mr. RATCLIFFE, Mr. RUSSELL, and Mr. BRIDENSTINE.
H.R. 4768: Mr. MCCAUL, Mr. LAMBORN, and Mr. POSEY.
H.R. 4773: Mr. AUSTIN SCOTT of Georgia, Mr. CHAFFETZ, Mr. ABRAHAM, Mrs. LOVE, Mr. SHUSTER, and Mrs. LUMMIS.
H.R. 4774: Mr. POCAN and Mr. KILMER.
H.R. 4792: Mr. TONKO and Ms. NORTON.
H.R. 4797: Mr. HUFFMAN.
H.R. 4806: Mr. HUFFMAN.
H.R. 4833: Mrs. KIRKPATRICK, Mr. HONDA, Ms. JACKSON LEE, Ms. LEE, and Mrs. NAPOLITANO.
H.R. 4843: Mr. WILSON of South Carolina, Mr. GUTHRIE, and Mr. TURNER.
H.R. 4856: Mr. SMITH of Texas, Mr. YOHO, and Mr. MULVANEY.
H.R. 4880: Mr. WILLIAMS and Mr. REICHERT.
H.R. 4893: Ms. MCCOLLUM, Mr. BOUSTANY, and Mr. MULVANEY.
H.R. 4904: Ms. KAPTUR and Mr. TAKANO.
H.R. 4924: Mr. MURPHY of Pennsylvania.
H.R. 4928: Mr. COOK, Mr. BOUSTANY, and Mr. ROKITA.
H.R. 4932: Ms. HAHN and Mrs. DINGELL.
H.R. 4942: Mr. THOMPSON of Pennsylvania.
H.R. 4956: Mr. EMMER of Minnesota and Mr. LUCAS.
H.R. 4958: Mr. CRAMER.
H.R. 4969: Mr. PAULSEN and Ms. MCSALLY.
H.R. 4978: Mr. ROKITA, Mr. KILMER, and Mr. TURNER.
H.R. 4980: Mr. STEWART, Mr. BRAT, and Mrs. BLACK.
H.R. 4982: Mr. KILMER and Mr. TURNER.
H.R. 4985: Mr. PITTENGER.
H.R. 4991: Mr. RUSH.
H.R. 4994: Mr. TAKANO.
H.R. 4999: Mrs. COMSTOCK.
H.R. 5001: Mr. MEEHAN.
H.R. 5015: Mr. HUNTER.
H.R. 5028: Mr. MOOLENAAR and Mr. BISHOP of Michigan.
H.R. 5031: Mr. DESANTIS.
H.R. 5047: Mr. CÁRDENAS.
H.R. 5063: Mr. HURT of Virginia, Mr. POSEY, Mr. GOWDY, Mr. POE of Texas, Mr. DESANTIS and Mr. FORBES.
H.R. 5073: Ms. BROWN of Florida and Mrs. LAWRENCE.
H.R. 5082: Mr. DELANEY, Mr. AGUILAR, Mr. STIVERS, and Mr. RENACCI.
H.R. 5113: Mr. BUTTERFIELD.
H.R. 5130: Ms. WASSERMAN SCHULTZ and Mr. BUTTERFIELD.
H.R. 5135: Mr. EMMER of Minnesota and Mr. MOONEY of West Virginia.
H.R. 5142: Mr. BENISHEK.
H.R. 5148: Ms. NORTON and Ms. LEE.
H.R. 5165: Mrs. DINGELL and Mr. BEN RAY LUJÁN of New Mexico.
H.R. 5166: Mr. RUSH, Mrs. LOVE, Mr. ROYCE, and Mrs. BLACK.
H.R. 5170: Mr. DOLD, Mr. LARSON of Connecticut, Mr. REED, Mr. BLUMENAUER, Mr. PAULSEN, Mr. MEEHAN, and Mrs. BLACK.
H. Con. Res. 19: Mr. DEFAZIO and Mr. KING of Iowa.
H. Con. Res. 40: Mr. CALVERT, Mr. FOSTER, Mr. KILMER, Mr. CICILLINE, Mr. JEFFRIES, Ms. KELLY of Illinois, Mr. HECK of Washington, and Mr. LEVIN.
H. Con. Res. 50: Mr. GUTHRIE.
H. Con. Res. 89: Mr. DUNCAN of South Carolina and Mr. LUCAS.
H. Con. Res. 100: Mrs. HARTZLER.
H. Con. Res. 128: Mr. FLEMING, Mr. MCCLINTOCK, and Mr. ROUZER.
H. Con. Res. 129: Mr. LAMBORN, Mr. WEBER of Texas, Mr. ZELDIN, Ms. WASSERMAN

SCHULTZ, Mr. CICILLINE, Ms. WILSON of Florida, Mr. BILIRAKIS, Mr. ENGEL, Mr. TED LIEU of California, Mr. JEFFRIES, Miss RICE of New York, Mr. BRENDAN F. BOYLE of Pennsylvania, Mrs. LOWEY, Mr. CURBELO of Florida, Mr. SIRES, Mr. SMITH of New Jersey, and Mr. CONYERS.

H. Res. 28: Mr. REED.

H. Res. 54: Mr. REED.

H. Res. 207: Mrs. DINGELL and Mr. RENACCI.

H. Res. 263: Mr. VARGAS.

H. Res. 318: Mr. COSTELLO of Pennsylvania.

H. Res. 551: Mr. VEASEY and Ms. LINDA T. SÁNCHEZ of California.

H. Res. 569: Mr. CAPUANO.

H. Res. 591: Mr. YODER, Mr. AGUILAR, Mr. LATTA, Mr. JENKINS of West Virginia, and Mr. ADERHOLT.

H. Res. 605: Ms. ESTY.

H. Res. 647: Mr. HONDA.

H. Res. 650: Mrs. WATSON COLEMAN, Mr. CLAY, Mr. CONYERS, and Mr. MCGOVERN.

H. Res. 660: Mr. MOULTON, Ms. KAPTUR, and Mr. CICILLINE.

H. Res. 681: Mrs. DINGELL.

H. Res. 686: Ms. BASS, Mr. CAPUANO, and Ms. MOORE.

H. Res. 690: Mr. KEATING and Mr. CÁRDENAS.

H. Res. 691: Ms. JUDY CHU of California.

H. Res. 693: Mr. FLEMING and Mr. POSEY.

H. Res. 707: Mr. WALKER and Mr. RENACCI.

H. Res. 712: Mr. PETERS, Ms. MOORE, Mrs. DINGELL, and Mr. LOBIONDO.

H. Res. 716: Mr. KEATING, Mr. MEEHAN, Mr. CICILLINE, Mr. PASCRELL, Mr. QUIGLEY, Mr. LYNCH, Mr. MOULTON, Mr. WELCH, Mr. CARNEY, Mr. TONKO, Mr. FITZPATRICK, Mr. COSTELLO of Pennsylvania, Mr. MURPHY of Pennsylvania, Mr. KILDEE, Ms. TSONGAS, Mr. BRADY of Pennsylvania, and Ms. CLARK of Massachusetts.

PETITIONS, ETC.

Under clause 3 of rule XII,

60. The SPEAKER presented a petition of Mr. Gregory D. Watson, a citizen of Austin, TX, relative to urging Congress to enact legislation clarifying that, in the future, no change may be made in the design and appearance of U.S. coinage or paper currency without first being approved by both houses of Congress via the standard legislative process; which was referred to the Committee on Financial Services.

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of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE *114th* CONGRESS, SECOND SESSION

Vol. 162 WASHINGTON, TUESDAY, MAY 10, 2016 *No. 73*

Senate

The Senate met at 2:15 p.m. and was called to order by the Honorable ROB PORTMAN, a Senator from the State of Ohio.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, help us to so live that the generations to come will know of Your mighty acts.

Today, guide our Senators in the path You have created, inspiring them with the potency of Your powerful presence. May they trust You in times of adversity and prosperity, knowing that they will reap a productive harvest if they persevere. Lord, keep them from underestimating the power of Your great Name, inspiring them never to forget that nothing is impossible with You. Give them the wisdom to solve the hard problems of our times and grace to live in harmony with one another.

We pray in Your strong Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. HATCH).

The senior assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, May 10, 2016.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable ROB PORTMAN, a Senator from the State of Ohio, to perform the duties of the Chair.

ORRIN G. HATCH,
President pro tempore.

Mr. PORTMAN thereupon assumed the Chair as Acting President pro tempore.

The ACTING PRESIDENT pro tempore. The Senator from Delaware.

Mr. COONS. Mr. President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

ENERGY AND WATER DEVELOPMENT APPROPRIATIONS BILL

Mr. MCCONNELL. Mr. President, yesterday we had another opportunity to move the energy security and water infrastructure funding bill forward, and I was disappointed to see it stalled once again.

I wish to reiterate what Senator ALEXANDER, the chairman of the Energy and Water Subcommittee, said. Advancing this funding bill is important—not only for policy but also for process. Members worked in committee and arrived at a bill they reported out unanimously. Many more Members had their voices heard on the floor, where we processed 17 amendments from both Democrats and Republicans.

Now, after much research, debate, and input from both sides, we are almost ready to move this bill across the finish line. We have one outstanding issue to address. It is the amendment authored by Senator COTTON, and we will have a vote on it no later than tomorrow. Senator COTTON was rightly concerned about the administration's recent announcement that it would purchase so-called heavy water from Iran, so he filed an amendment that would keep the funds we are appropriating through this bill from being spent on future heavy water purchases from that country.

Let me repeat that point. This amendment does not impact the current heavy water agreement. Instead, it aims at preventing future funds from going to Iran—funds that country could use to procure ballistic missiles or air defenses that could be used against us or our allies.

I agree with Senator COTTON's objective, and I will be supporting his amendment, which aims to keep Americans safe. But regardless of Members' positions on this issue, we will each have an opportunity to have our opinions count with a vote. Whether or not Senators support the amendment, this is the way the process works.

The amendment is a restriction on the use of funds—clearly a matter related to the use of appropriated funds.

No matter how Senators choose to vote on this amendment, we all know the importance of moving forward with this Energy and Water appropriations bill.

I leave colleagues with one last point offered by Senator ALEXANDER yesterday. This energy security and water infrastructure funding bill is one that ''virtually every Senator in this body has some interest in,'' and passing it would help us ''set a good example for the other 11 appropriations bills.''

We will soon have the opportunity to keep moving forward.

Mr. President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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The senior assistant legislative clerk proceeded to call the roll.

Mr. CASEY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

ENERGY AND WATER DEVELOPMENT AND RELATED AGENCIES APPROPRIATIONS ACT, 2016

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will resume consideration of H.R. 2028, which the clerk will report.

The senior assistant legislative clerk read as follows:

A bill (H.R. 2028) making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes.

Pending:

Alexander/Feinstein amendment No. 3801, in the nature of a substitute.

McConnell (for Cotton) amendment No. 3878 (to amendment No. 3801), of a perfecting nature.

The ACTING PRESIDENT pro tempore. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I ask unanimous consent to speak as in morning business.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

UNANIMOUS CONSENT REQUESTS—EXECUTIVE CALENDAR

Mr. CASEY. Mr. President, I rise to talk today about judges, specifically district court judges across our country. We have a number of judges in Pennsylvania who have not moved forward, and I want to speak to that today.

I think it is a case of or a story about obstruction. It is as simple as that, and there is no excuse for this kind of obstruction. These nominees came from Senators of both parties, and that applies to Pennsylvania, as well, and have had all their credentials vetted and approved by the Judiciary Committee.

Pennsylvania currently has four nominees to the district court, and one seat on the Third Circuit Court of Appeals is vacant as well. All of these excellent nominees deserve immediate consideration and confirmation.

The Pennsylvania judges were agreed to by my colleague from Pennsylvania, Senator TOOMEY. We worked together to arrive at a consensus. Just by way of example, the two we are talking about today, in particular, Judge Susan Baxter and Judge Marilyn Horan, are Pennsylvania judges who have sterling qualifications and credentials, were selected on a bipartisan basis, as I mentioned, in our State, were unanimously approved by the Senate Judiciary Committee, and they have been languishing now for months, even after Judiciary Committee consideration.

We have two other Pennsylvania district court nominees, Judge John Colville and Judge Milton Younge, who are still inexplicably stuck in the Judiciary Committee, despite being equally qualified and nominated the same day as Judge Baxter and Judge Horan.

So the old expression applies here: Justice delayed is justice denied. That is what we are seeing when we have this kind of obstruction preventing the confirmation of judges who have come through the Judiciary Committee.

The American people have fundamental basic rights. I believe one of those rights is to expect that their courts are working with a full complement of judges. President Obama has seen just 17 judges confirmed in the last 2 years of his Presidency so far—I know we are still in the midst of those 2 years but 17 judges to date in the last 18 months, roughly—compared to 68 when Democrats controlled the Senate the last years of President Bush's administration.

We have seen the same obstruction at all levels of the court system. For example, we know the chief judge of the District of Columbia Court of Appeals, Judge Merrick Garland, has in fact been completely obstructed—not even getting a hearing, not even getting a vote of any kind. That might be the most glaring and egregious example of obstruction. So when it comes to Judge Garland and his consideration to be a member of the Supreme Court, I hope our Republican colleagues would simply do their job. That is what the Constitution tells us we must do. The Constitution says advise and consent, not advise and consent when you feel like it or when it is politically expedient.

One last point about the judiciary, in terms of how essential it is to our democracy, is that we pride ourselves as a nation having a judiciary which is independent—separate from the legislative branch, separate from the executive branch—an independent and in fact coequal branch of government, not an institution that is the instrument of one party, especially the party in power.

So when it comes to Judge Garland, we simply ask Republican Senators to do their job: allow a hearing, conduct a hearing, ask a lot of questions, and then have a vote on Judge Garland to be a Justice.

On district court nominees, it is as simple as agreeing to what has already been agreed to; that all these candidates are of the highest caliber and they are through the Judiciary Committee. All we need now is for folks in the Senate to come together and make a collective decision to move these district court judges forward.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. Will the Senator withhold his suggestion of an absence of a quorum?

Mr. CASEY. Yes.

The ACTING PRESIDENT pro tempore. The Senator from Maryland.

Mr. CARDIN. Mr. President, I thank my colleague from Pennsylvania, Senator CASEY, for bringing to the attention of this body the fact that we have not met our constitutional responsibility in the advice and consent of appointments made by the President to the courts.

I think we all understand the challenge on the Supreme Court of the United States, where the failure to hold a hearing on Judge Garland, basically saying the President's term is no longer 4 years but 3 years in an election year, makes no sense at all. We have all been talking about that, but as Senator CASEY pointed out, this is now becoming a matter for our district courts.

Let me share with my colleagues. This past week, I went by the U.S. District Court in Greenbelt, MD, and had a chance to talk with some of the judges who were there. They were telling me there is a serious urgency to fill the vacancies on the Maryland District Court. We have two vacancies on the Maryland District Court. One was appointed by the President in March of last year, Paula Xinis, to fill the vacancy. We have a judicial emergency in Maryland. The President did his job in making the nomination in March of 2015. For reasons I don't quite understand, it took 6 months before the Judiciary Committee reported out that nomination, but they did. They reported it out in September 2015, 6 months later. This is not a controversial appointment. It passed by voice vote out of the Judiciary Committee.

Paula Xinis is well qualified. She has clerked for judges. She has a distinguished record in public service, public interest law as well as in private law. I could go through her full record. I have done it before, but Paula Xinis has now been waiting over a year for consideration.

So I am sort of puzzled. Is the Republican leadership now telling us that the term of a President is no longer 4 years but 2 years for the appointment of district court judges? This is a noncontroversial appointment that should have been confirmed well before now and is still on the calendar. As my friend from Pennsylvania pointed out, when we look at the number of actions this Congress has taken on President Obama's appointments—17 confirmations by the Senate—compared to a comparable number in 2008, when the Democrats controlled the Senate and it was in the last 2 years of President Bush's term, 68 nominations were filled in that year.

Currently, we have 20 nominations on the Executive Calendar waiting for action that have been approved by noncontroversial votes of the Judiciary Committee. The number of vacancies has increased in these 2 years from 43 to 79.

I know the distinguished leader is on the floor. I am hopeful we will find a

way forward so we can act on some of these nominations.

Mr. President, I yield the floor to my colleague from Pennsylvania.

The ACTING PRESIDENT pro tempore. The Senator from Pennsylvania.

Mr. CASEY. Mr. President, I ask unanimous consent that the Senate proceed to executive session to consider the following nominations: Calendar No. 307, Calendar No. 357, Calendar No. 358, Calendar No. 359, Calendar No. 362, Calendar No. 363, Calendar No. 364, Calendar No. 459, Calendar No. 460, Calendar No. 461, Calendar No. 508; further, that the Senate proceed to vote without intervening action or debate on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be made in order to the nominations; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The ACTING PRESIDENT pro tempore. Is there objection?

Mr. MCCONNELL. Mr. President, reserving the right to object.

The ACTING PRESIDENT pro tempore. The majority leader.

Mr. MCCONNELL. Mr. President, as I had noted before we left for recess, the way to look at these judicial appointments is to talk about apples and apples, not apples and oranges.

At this point in President Bush's 8 years, he had 303 judicial nominations confirmed. President Obama so far has had 324. According to my math, that is 21 more judges confirmed during the 8 years of President Obama to this point than during the 8 years of President Bush to this point.

That said, we are looking to see if we can set up another vote on a judicial nominee, but until that process is complete, I object.

The ACTING PRESIDENT pro tempore. Objection is heard.

The Senator from Maryland.

Mr. CARDIN. Mr. President, as I pointed out to my colleagues, the number of vacancies has increased during this term from 43 to 79. We have judicial emergencies in our State and many States around the Nation. So I am going to try a smaller number and see whether we can get agreement on that.

I ask unanimous consent that the Senate proceed to executive session to consider the following nominations: Calendar No. 307, Xinis; Calendar No. 357, Martinotti; Calendar No. 358, Rossiter; Calendar No. 359, Stanton; that the Senate proceed to vote without intervening action or debate on the nominations in the order listed; that the motions to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order to the nominations; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The ACTING PRESIDENT pro tempore. Is there objection?

The majority leader.

Mr. MCCONNELL. Mr. President, reserving the right to object.

As I indicated a moment ago, the way to measure a President's success in getting judges confirmed is to compare two Presidencies—President Bush, who was in office for 8 years, and President Obama, who will be in office for 8 years—to this point. At this point, President Obama has received 21 more judicial confirmations than President Bush did to this point. So he has been treated very fairly.

Therefore, I object.

The ACTING PRESIDENT pro tempore. Objection is heard.

The Senator from Delaware.

Mr. COONS. Mr. President, I ask unanimous consent that the Senate proceed to executive session to consider the following nomination: Calendar No. 307, Paula Xinis, nominee for the District of Maryland; that the Senate proceed to vote without intervening action or debate on the nomination; the motion to reconsider be considered made and laid upon the table with no intervening action or debate; that no further motions be in order to the nomination; that any related statements be printed in the RECORD; that the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The ACTING PRESIDENT pro tempore. Is there objection?

Mr. MCCONNELL. I object.

The ACTING PRESIDENT pro tempore. Objection is heard.

The Senator from Delaware.

Mr. COONS. Mr. President, there are today 81 vacancies in our Federal courts, 29 of which are judicial emergencies.

I note, with respect, that the majority leader has compared the number of district court nominees confirmed under the previous President and the current President; but, in my view, what matters most is that there are 29 judicial emergencies in district courts across this country and that there are 20 district court nominees who were voted out of the Judiciary Committee on unanimous voice votes that continue to await action on this floor—the one that I just sought a unanimous consent for, Paula Xinis of the District of Maryland, and 19 others. At this point, 1½ years into this Congress, only 17 judges have been confirmed to district courts in this United States, and last year the Senate matched a record for confirming the fewest in more than half a century—11 for the entire year.

What I am most concerned about is its impact on the operations of the courts of the United States. As a member of the Judiciary Committee, I am frustrated and concerned. We have 24 nominees waiting for a hearing in the committee as well; 7 of these nominees are to courts of appeals, including AUSA Rebecca Ross Haywood, who has been nominated to serve on the U.S. Court of Appeals for the Third Circuit, the appellate court covering my home State of Delaware.

Then, of course, there are ongoing concerns about the vacancy on the Supreme Court. It has been 55 days since President Obama nominated Chief Judge Merrick Garland—a consensus candidate who was previously confirmed to his seat on the DC Circuit by a bipartisan majority of the previous Congress—to our Nation's highest Court.

Last week, a bipartisan group of former Solicitors General—Paul Clement, Todd Olson, and Ken Starr, former SGs who have served in both Republican and Democratic administrations—endorsed Judge Garland as ''superbly qualified,'' having ''demonstrated the temperament, intellect, and experience to serve'' on the Supreme Court. I am gravely concerned that we have sunk to a level in terms of the delays in confirmation of qualified judicial nominees to the courts at all levels in our country, that we are having a significant ongoing and negative impact on the functioning of our courts and access to justice in this country. Sadly, obstruction in this body has allowed too many of our courts to grind to a halt on the important business of our Federal judicial system. I believe it is time we do our jobs. There are vetted, qualified Americans ready, willing, and able to serve in our Nation's justice system. We should embrace their willingness to serve and let them get to work.

Mr. President, I yield the floor.

Mr. MCCONNELL. Mr. President, was there a unanimous consent request?

The ACTING PRESIDENT pro tempore. No further consents are pending.

The Senator from Utah.

REMEMBERING ROBERT F. BENNETT

Mr. LEE. Mr. President, I rise to pay tribute to a man who was truly a giant in my home State of Utah and in this institution, the U.S. Senate.

He was a friend to everyone he met and someone whose life of service to the people of Utah we celebrate. At the same time, we mourn his passing: Senator Robert F. Bennett.

Senator Bennett loved the political arena. Though his heart was always with his family in Utah, he spent many years working on Capitol Hill in both the Senate and the House, and later as a congressional liaison for the Department of Transportation. He also spent many years in business, where his management abilities and his keen mind helped build a successful corporation and earn him awards such as Inc. Magazine's ''Entrepreneur of the Year.''

But Senator Bennett's true passion was for sound public policy, for the development of good policy. He cared little about who wrote policy, and he cared even less for who would get the credit for good policy. So long as wise politics were enacted into law, he was

happy. That was his objective, and it was a noble one at that.

This was apparent to me after a memorable conversation I had with him in 2010, just a few days before our State's Republican nominating convention, at which we were both candidates. I was in the lobby of a local radio and television station, waiting to go on the air and watching the national news on a large television screen. I don't remember the exact issue that was being discussed, but I remember the general topic, and I will never forget what happened as I watched this broadcast.

Senator Bennett walked into the lobby and, seeing me, simply strolled over to stand next to me. To be honest, I was anticipating the type of understandably awkward interaction that might occur between candidates near the end of a heated political contest. Instead, with his charismatic and characteristic charm and affability, he quickly put me at ease by nodding toward the screen and saying rather diplomatically, ''You know, there's a pretty good chance that you will be the person who has to deal with this issue.''

Having gracefully diffused the situation and diffused any tension that might have otherwise been between us at that moment, he proceeded to share some words of wisdom and personal insights, imparting to me some of the lessons he had learned from his own experience on that matter. It was clear to me that he had not only thought long and hard about it but that he was ultimately less concerned with who addressed the issue, less concerned with who would get credit for fixing the problem, and more concerned with ensuring that the problem was dealt with thoughtfully, wisely, and in a manner most likely to result in a good outcome for the American people. In Senator Bennett's view, there was no such thing as a political opponent; there were only potential political allies.

Although Senator Bennett was a serious statesman, he was also one who did not take himself too seriously. This is one of the many reasons people everywhere were drawn to him. Many Utahns will remember his flair for self-deprecating humor emblazoned on his campaign billboards in 2004. Summarizing Senator Bennett's most distinctive qualities, one billboard read: ''Bold. Brilliant. Beanpole.'' In a slight variation on the same theme, another one of his billboards read: ''Big Heart. Big Ideas. Big Ears.'' And perhaps everyone's favorite declared: ''Better looking than Abraham Lincoln,'' adding parenthetically, ''just barely.'' In the political arena, where inflated egos loom large, Bob Bennett was a breath of fresh air.

Senator Bennett's command of public policy was legendary. He could speak extemporaneously and at length on everything from the Federal budget, to Utah's changing demographics, to business trends, and he could do so without any notes.

He was a master storyteller, one who had the uncanny ability to entertain and challenge his audience at the same time—the result of a lifetime of learning and profound thinking. He always maintained an open mind, never unwilling to rethink policy issues in light of new information. These qualities are but a few of the reasons he was a trusted colleague, and he was trusted by colleagues on both sides of the aisle of this Chamber.

Although much has been written about his public and his political accomplishments, there was a side to him that does not receive the attention it probably deserves. A day in the life of a U.S. Senator is often stressful and invariably unpredictable. Under such circumstances, the likelihood of error is high, and as one of his staffers once told me, ''There were plenty of times that scheduling mistakes were made, and anger at us''—the staff—''certainly would have been justified.'' But these same staffers also said that in 18 years in the U.S. Senate, they never saw Bob Bennett get angry or even so much as raise his voice at any of his staff members. He was always kind, patient, and understanding with them, and they were committed and loyal to him in return. I am convinced that one of the reasons so many Members of the Senate trusted Bob Bennett so completely was that they saw how his own staff treated him and how he returned that trust.

I have been the beneficiary of the staff that he built. Some of my very best staffers were those whom I hired from Senator Bennett's office, who not only helped me get my office up and running but helped keep it running efficiently and effectively as the trained professionals they were, having been mentored by one of the greats of this institution.

Senator Bennett was a man of the utmost integrity and was the same calm, deliberate, and thoughtful person whether speaking in public or speaking to close confidants. At 6 feet 6 inches, he towered over most people, but that didn't prevent him from meeting people where they were, treating everyone with dignity and respect, and exhibiting true understanding and true compassion for all with whom he interacted.

Whether he was talking with ranchers in Iron County or consulting a grieving parent visiting him in his Salt Lake office or debating the Chairman of the Federal Reserve during a Banking Committee hearing, Bob Bennett treated everyone the same—with kindness, respect, and concern.

He often quoted President Reagan's famous aphorism that ''there is no limit to what a man can do or where he can go if he doesn't mind who gets the credit.'' But Senator Bennett didn't just recite those words; he lived them. They were part of who he was and what he did.

On more than one occasion, he worked for months on end to craft a legislative solution to a difficult issue, only to discover at the last moment that the price of its passage would be to give all the credit to someone else. Because his objective was—first and foremost—to make sure the right thing was done, this was a price Senator Bennett was always willing to pay. This was an obstacle from which he never shied away. This was something that never deterred him from doing the right thing.

Since the election of 2010, I have been asked countless times about my relationship with Senator Bennett. My answer invariably reminds me of the great privilege it is to serve the State of Utah in his seat. Our conversations were always meaningful and focused on innovative approaches to dealing with difficult and important policy issues. A consummate statesman and a classic gentleman, he always made clear to me that good policy is always good politics in the end.

Senator Bennett's achievements were numerous, and he will be remembered for his tremendous impact on the State of Utah. However, I am certain that if he were to make a list of his greatest accomplishments, it would likely say nothing about his business successes or his political endeavors. Rather, it would focus entirely on his family—on his dear wife Joyce, the 6 children they raised together, and on their 20 grandchildren.

Senator Bennett truly was, in every way, a giant. He was a man of integrity, a man whose word was truly his bond, and a man who left both the State of Utah and his country better than he found them. He was a man who had a firm and unwavering commitment to his faith in God and was true to that faith until the very end.

It is my hope and prayer that Senator Bennett's wife Joyce, his children, and his grandchildren are comforted at this difficult time, knowing that our State and our country are forever grateful for their husband, father, and grandfather's exemplary life of service.

I yield the floor.

The PRESIDING OFFICER (Mr. LANKFORD). The majority whip.

Mr. CORNYN. Mr. President, I wish to thank my colleague from Utah for his generous remarks about our friend, Senator Bob Bennett. I had the opportunity to serve with Senator Bennett for a number of years. Those of us who are of a certain age, who were raised in the Star Wars period—sometimes I think about Bob Bennett as the Jedi Master, the Obi-Wan Kenobi, one of the wise men of the Senate whom it has been my pleasure to come to know and learn from. Certainly, we will miss him. We send our very best wishes and condolences to Joyce and their entire family, along with 20 grandchildren. It is a huge, wonderful family of which I know he was very, very proud.

WORKING TOGETHER IN THE SENATE AND CRIMINAL JUSTICE AND MENTAL HEALTH REFORM

Mr. President, I want to talk a little bit about the Senate's work and what

we have been able to do and what we still have to do. In the past we knew there had been an experiment, principally under the leadership of the former majority leader, now the minority leader, Senator REID, of basically not allowing the Senate to function and not allowing Senators, including Members of the majority party, to offer amendments, lest people be forced to vote on things they later would be held accountable for by the voters. What a concept that is.

In fact, we have seen a different approach at work under the leadership of Senator MCCONNELL, the Senate majority leader in the 114th Congress, over the last, roughly, year and a half. It is one where everyone gets to participate, and when people have a better idea, they are allowed to offer that by way of an amendment and constructive proposal to improve legislation and to try to do what they can to build consensus, to get legislation passed in the Senate and the House, and get it on the President's desk. We are going to have differences. Of course we are. But it is important that we try and that we not just come here to make speeches and vote no on everything, but we actually try to find some way of getting to yes, particularly where it doesn't violate our principles and where we are able to make incremental progress on the work we have been sent to do.

Fortunately, we have seen the Senate get back to work. We just recently passed important legislation, such as the Energy Policy Modernization Act—a bill that will update our country's energy policies. This follows on the heels of a vote late last year where we lifted the antiquated ban on crude oil exports. It is something to give our domestic producers access to global prices for their products, something that encourages domestic production and helps us become less dependent on foreign imports and helps us help our friends and allies around the world who are sometimes dependent for their source of energy on some pretty unsavory characters who can cut it off, using energy as a weapon. But, particularly, it is important in terms of getting Americans back to work.

While the unemployment rate continues to tick down to roughly about 5 percent, the untold story is the percentage of people actually participating in the workforce is at a 30-year low, and people have, unfortunately, given up looking for work in too many instances, making that 5-percent unemployment statistic a little bit misleading. We learned again last week, I think it was, that our economy grew at 0.5 percent.

I remember when we used to talk around here about the economy growing at 4 percent or 3 percent, at least. In other words, as population increases, the only way more jobs get created is for our economy to continue to grow. There are not a lot of problems that America has that couldn't be made better by a growing economy. Unfortunately, we have seen the negative consequences of some of the policies, particularly of the executive branch when it comes to regulation, which have made that very difficult. We have been making some progress in the Energy Policy Modernization Act as part of that. It has passed consumer-friendly legislation that will help people get access to energy help and provide the incentives for them to conserve.

We have also done things such as pass a reauthorization of the Federal Aviation Act, the FAA. That may not seem like a big deal unless, of course, you fly in an airplane and care about safety. The legislation we passed—I think the Senate has done that—has helped regulate the growing number of remotely run aircraft or drones to make sure those don't conflict with passenger planes, so those will be safer. That is just another example.

We have also passed important legislation to deal with this prescription drug abuse crisis. Many call it the opioid abuse crisis, which happens too often. When people can't get access to the addictive prescription painkilling drugs they have been prescribed, they turn to the cheaper forms of addictive drugs such as heroin. We were able to pass the Comprehensive Addiction and Recovery Act back in March, and I know the House of Representatives—I believe this week—is taking up this same legislation. My hope is that we can continue to work together to bring relief to those struggling with addictions and to help save those who would otherwise suffer from a fatal overdose of drugs. We still have a lot of work ahead of us.

We started the appropriations process last month, which I know has been an enormous frustration to a lot of people. I remember all too clearly, as the Presiding Officer does, the alternative, which was doing it in a 12-step process. The regular appropriations process was to do an omnibus appropriations bill at the end of the year, which is a lousy way of doing business. We would have one bill that would spend roughly $1 trillion. That process lacked the transparency and accountability that necessarily goes into a step-by-step process, where we move 12 separate appropriation bills across the floor. We all said we wanted to do this. This basic work is done by the legislature so we can pay the bills according to the limits we have agreed upon in terms of spending, but we keep running into roadblocks.

Last night we had a vote to try to get back on the Water and Energy appropriations bill. The obstacle appears to be that our friends on the other side of the aisle don't want to vote on the germane amendment that was offered by the Senator from Arkansas. As a result of their objections to proceeding in the normal way to consider germane amendments like that one, the fact is, the majority leader had to file for cloture on that bill in order to guarantee that there will be a vote on that amendment. Hopefully, once that is resolved, we will get back on final passage of that appropriations bill and then move on to the Transportation, Housing and Urban Development appropriations bill. After that, I believe the plan is to move on to the VA-Military Construction appropriations bill. In other words, it is not fancy work, but it is our work, and it is something we should be doing in a transparent and methodical sort of way.

These bills actually represent the fundamentals of legislating—the sort of blocking and tackling. They include resources to fund our military, which is something we all say we are for. We need to keep our commitments to our veterans, which is a sacred obligation, and we need to help provide the necessary infrastructure across our country. We need to keep the folks who serve our country in diplomatic posts abroad and those who protect our borders here at home safe. I hope we can grind our way through this so we can take up and pass all 12 appropriations bills. The people who have elected us deserve that and not some end-of-the-year mad dash to the finish line, where everybody comes away pretty much dissatisfied by the process.

Beyond the appropriations process, I also want to point out some important work being done at the committee level in the Senate. I serve on the Judiciary Committee under the leadership of Chairman CHUCK GRASSLEY from Iowa. At the end of April, I was proud to join a number of my colleagues, on a bipartisan basis, to announce major proposals to reform our criminal justice system. Back when I went to law school, more years ago than I would like to recount, we were told the criminal law was supposed to be used to punish people who violated the law, to deter others who might be tempted to commit crimes in the future, and to rehabilitate people who made a mistake and ended up in prison. My experience and observation has been we have largely forgotten the rehabilitation process.

Beginning in 2007, in Texas and other States, we began to provide incentives for low-risk offenders who were in prison who, if given the opportunity, would begin the process of turning their lives around. They might be dealing with a drug or alcohol addiction or an education deficit, such as the fellow I heard about when I was in a prison in East Texas recently. The shop teacher at that prison said: I have guys in my shop class in this prison who can't even read a ruler. How in the world are they supposed to get a job on the outside? How in the world are they supposed to turn their lives around once they get out of prison? We simply seem to forget that people who are in prison will usually get out of prison, and the only question is: How well equipped will they be to work in civil society and to hopefully turn their lives around and become productive members of society.

I am not naive enough to say or to think that everyone will take advantage of those opportunities, but we know that many will take advantage of those opportunities. That is not just conjecture, that is based on the experience of States like Texas, Georgia, and North Carolina.

As former attorney general and longtime Federal district judge in New York, Michael Mukasey, said: The gold standard in terms of criminal justice reform is the crime rate. I know there has been some discussion about the incarceration rate, and some people want to talk about other things, but he said the real question has to do with the crime rate. If the crime rate is going down, you are doing something right. If the crime rate is going up, you are doing something wrong. The good news is the crime rates in places like Texas have gone down as a result of some of these programs which help to prepare those who are willing to take and accept this help so they can turn their lives around. It has also helped us deal with the ballooning prison system cost. Indeed, in Texas alone we have been able to shut down three prisons as a result of reducing the population, slowing down and in many cases eliminating this turnstile, where people go to prison, get out, commit other crimes, and end up right back in prison again. This is an example of criminal justice reform which I know the President is for.

There is another component of sentencing reform which I think very sensibly deals with some of the mandatory prison sentences that were passed many years ago with the best intentions but some of which have really overshot the mark. The most important element, when it comes to a criminal sentence, is the certainty of the sentence, not the length of the sentence. Again, Judge Mukasey, former Attorney General of the United States said: Many times people who commit crimes have impulse-control problems, and they are not thinking about what is going to happen to them 25 years from now or 50 years from now. They are thinking about what will happen to them next week, today, or later tomorrow. So I believe the certainty of punishment is a more important consideration than the length of the punishment.

It may make some people feel good to say we are going to put somebody away for the rest of their lives, and in some instances that is the appropriate punishment, but when it involves a nonviolent offense and they are stacking mandatory sentences in a way that is disproportionate to the offense that was committed, I think it is appropriate to consider changing the mandatory minimum sentencing.

We also created a safety valve. Nobody who is currently in prison gets the benefit of the changes in the mandatory minimum sentences without appearing in front of the same Federal district judge who sentenced that person to prison in the first place. That Federal district judge will be able to not only consider the circumstances of the crime but the postconviction and postincarceration conduct as well as the comments and input of any victims of the crime. This way they can determine—based on all of the circumstances—whether you ought to be given the benefit of that reduced mandatory minimum sentence. It is not a get-out-of-jail-free card. It gives that person a right to be considered by a Federal district judge as long as it does not involve a serious crime as defined by Federal law. We categorically excluded that to make sure this is focused primarily on nonviolent offenders, those who are least likely to put the community at risk.

There is one other area that I think we have an opportunity to work on and perhaps succeed with because there seems to be no real objection to the idea; that is, how to deal with people who have mental illness in our society. Back in the old days, people with mental illness used to be put in institutions. They were basically locked up and the key was thrown away. Well, we know that didn't work very well. It was basically warehousing people with mental illness. Someone had the idea to deinstitutionalize those with mental illness. That way they would get to live in the community and would then receive the sort of followup help, assistance, and care they needed in order to maximize their potential, whatever it might be. It was good in theory, but after the deinstitutionalization took place, people ended up living in the streets—the homeless whom all of us see. They are obviously mentally ill, but they live on the streets or end up in our criminal justice system because they are not getting the treatment that might help them to become more adaptive and productive.

I told this story before, and I will repeat it briefly now. I have a friend who is the sheriff of Bexar County, in San Antonio, TX. While at a meeting recently here in Washington, DC, he said: How would you like to meet the largest mental health provider in America. I said: Sure. She said: Let me introduce you to the sheriff of Los Angeles County. In other words, the person who runs the LA County jail. In addition to the homeless who are living on our streets or crowding our emergency rooms with a variety of illnesses—real and imagined—a large number of people end up in our jails.

Thanks to great innovative programs like that in Bexar County, San Antonio, TX, and as a result of what Sheriff Pamerleau and others have done, we began to address the problem at its root and are making sure that people who need help are not just warehoused in jail but are actually diverted to a treatment facility. I have introduced legislation which I think might help the situation, and that is called the Mental Health and Safe Communities Act. The fact is, Adam Lanza's mother—Adam Lanza was the shooter at Sandy Hook who stole his mother's gun, killed his own mother, and then went on to murder those poor, innocent children at Sandy Hook Elementary School—basically had two choices: One is she could seek an involuntary, temporary commitment to a mental institution, after which he gets out, he is angry at her, their relationship deteriorates even more, and she has nowhere else to turn or we could have a mechanism where she could go to a civil court and ask a judge to enter a court order requiring her son to undergo outpatient treatment, to make sure he saw a psychologist or mental health professional and was actually compliant with the doctor's orders in terms of taking his medication.

One of the biggest problems in the mental health area is that people will simply start to feel better and then quit taking their medicine. As a result, they end up becoming sicker and sicker and sicker. In Adam Lanza's case—because his mother really didn't have any mechanism to make him comply with his doctor's order to take his medication—he basically became more and more mentally ill until this tragedy occurred. I am not saying this would have necessarily prevented that tragedy, but I think it would provide another tool that loved ones can use, and I believe need, when a member of their family suffers from symptoms of mental illness and simply refuses to deal with it and comply with their doctor's orders.

This month is actually National Mental Health Awareness Month, and it is an appropriate time for us to talk not only about the solution—or at least something that will improve the status quo, when it comes to mental illness in our country—but it is also a time to educate people about mental health issues and to highlight ongoing efforts and to support those who are struggling.

I dare to say that there is not a single family in America that is not affected by this problem or, perhaps, if it is not an immediate family member, then it is somebody they know or somebody with whom they live in the community. So we have a lot of work to do.

Criminal justice reform and mental health reform are two issues that are absolutely the opposite of partisan; they are nonpartisan issues. There are issues where people have different points of view, and that is fine. Let's see where we can build consensus and what things we may have to leave for future legislation. The basic point is that, even though the media is obsessed with what is happening in the Presidential race and the primaries on both sides, we have been able to continue to do the people's work here. There is a lot to be done, and, frankly, there is a lot more that we can do. But we have an opportunity to build on nearly a year and a half of a strong bipartisan record of accomplishment, one

that has benefitted both those in the majority and the minority. Frankly, the focus shouldn't be on us—on who is up and who is down—but on what we are able to do together to pass legislation that helps the American people.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. SULLIVAN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE ADMINISTRATION'S POLICIES IN THE MIDDLE EAST

Mr. SULLIVAN. Mr. President, we all know that the Obama administration's 8 years in office is beginning to wind down. As it does, as is natural for a President ending his time in office, the President and the members of his team are starting to focus on their legacy and on how they want to be remembered.

Now with regard to this administration's policies in the Middle East, unfortunately for them, the legacy and narrative that is beginning to take hold is one of not leveling with the American people—not one of honesty. That should concern all of us—all of us in this body, whether Democrats or Republicans.

When the President of the United States is in open disagreement with the Secretary of Defense and with the Chairman of the Joint Chiefs of Staff on one of the most critical issues our Nation faces—whether to send our sons and daughters into combat—it should be cause for significant concern for all of us in this body and across the country.

President Obama has repeatedly told the American people that U.S. troops in the Middle East are not in combat. In 2010, he announced that we were ''ending our combat mission in Iraq,'' and in 2014, he used the same words to talk about Afghanistan. More recently, he said that our mission in Syria ''will not involve American combat troops fighting on foreign soil.''

Yet, just less than 2 weeks ago, in a Senate Armed Services Committee hearing, when Secretary of Defense Ash Carter and the Chairman of the Joint Chiefs of Staff, General Dunford, were asked if our troops in the Middle East, Syria, and Iraq are engaged in combat, these two senior U.S. officials unequivocally said: Yes, they are. To the members of our military serving overseas, particularly in the Middle East, Secretary Carter and General Dunford were stating the obvious. Indeed, there have been recent news reports in the Washington Post and in the Military Times that describe up to 200 Marines at a place called Fire Base Bell in northern Iraq, firing artillery missions on a daily basis in support of Iraqi troops in order to kill ISIS terrorists. Our soldiers serving in the Middle East as part of the Joint Special Operations Command conduct regular counterterrorism missions to kill and capture terrorists in the Middle East. Of course, we see on a daily basis our brave pilots from all the different services, who have dropped approximately 40,000 bombs in Iraq and Syria in close air support missions, focused on destroying and killing ISIS members and their infrastructure and their logistics bases.

Since 2014, almost 1,200 bombs and close air support missions have been conducted in Afghanistan. Just yesterday, we were informed of a successful strike—again, a coalition strike with fighter aircraft—that killed three ISIS leaders.

These missions have entailed risk. Some of the members of our military have been killed and others have been wounded, but there is no doubt that all of what I have just described is the very definition of combat. The Secretary of Defense and the Chairman of the Joint Chiefs of Staff have both stated this.

Indeed, in a lead editorial in the Military Times on Friday entitled ''It's a combat mission, Mr. President,'' the editorial concluded by saying:

> When U.S. and allied troops are on Islamic State turf with the mission of wiping it from existence, they are on a combat mission. Calling it anything else is wrong.

To Secretary Carter's credit, at a hearing last week, he agreed and stated unequivocally that ''these [members of our military] are in combat . . . and I think we need to say that clearly.''

This is the Secretary of Defense. Well, apparently the White House didn't get the memo. Last week, when asked about a very brave Navy SEAL who unfortunately was killed in a fierce firefight involving U.S. Special Operations forces, Kurdish commandos, and Islamic State fighters, White House spokesman Josh Earnest told reporters that ''the relatively small number of U.S. servicemembers that are involved in these operations are not in combat but are in a dangerous place.''

That is the White House—''relatively small'' and ''not in combat.''

Why does President Obama and his White House continue to peddle the fiction that U.S. forces are not engaged in combat? That is a really important question that we need to be asking. Why? The whole world knows that we are. Why are they peddling this fiction to the American people?

Perhaps the Commander in Chief is truly unaware that our military forces are in combat, and there are hundreds of them that are. If that is the case, that would be very troubling indeed. What is more likely is that the President has told the American people repeatedly that he will end wars and won't send combat troops to the Middle East, and so the word contortions coming from the White House are part of the twisted attempt to salvage and protect the President's legacy. But by spinning the truth for political purposes, the President is coming perilously close to leaving a legacy of dishonesty when it comes to our military involvement in the Middle East.

Much more worrisome, this dishonesty comes with a cost. First and foremost, it diminishes the service and sacrifice of our troops and their families. Again, in the Military Times editorial on this very topic, on Friday it stated:

> Calling it a training mission [in the Middle East] is cold comfort to the parents, spouses and children of the deployed troops. . . . The more the White House insists these troops are not part of a combat mission, the more distrust it breeds in the ranks [of our military] and among the public. It's viewed as the sort of condescending semantics Washington plays to deny the obvious. That can only serve to erode support for the [important] mission.

Americans serving in Iraq, Syria, and Afghanistan know that they are in combat. The Commander in Chief needs to acknowledge this fact and the bravery it entails and not disguise the true nature of their duty.

Second, the costs that come with this dishonesty is that it further undermines the administration's very tenuous foreign policy credibility regarding its stated goal of degrading and destroying ISIS. While this is the correct goal, a series of missteps in the Middle East, including the President's failure to enforce his own redline when it was crossed by Bashar al-Assad in Syria has brought us to the point where our adversaries and our allies question U.S. credibility and resolve. Islamic State terrorists know that they are in combat against American forces. They see it every day. But when the President says otherwise, it signals a lack of conviction, making it harder for us to defeat these terrorists.

Third, this dishonesty about the role of our troops allows Presidential candidates to duck a tough issue. For example, Presidential candidate Hillary Clinton has repeatedly said—unchallenged by anyone, including in the media—that she would continue the President's policies of not sending combat troops to Syria and Iraq. But the President is sending combat troops to Syria and Iraq.

Finally, and more broadly, by playing fast and loose with the facts about our policies in the Middle East, the Obama administration is making it harder to gain congressional support for its policy. I strongly believe that when the executive branch and the legislative branch on national security and foreign policy issues are in agreement and working together, that is when we are strongest as a country. I have been critical of this administration's policies in certain areas and supportive in others. If Congress feels like the administration is being played and the American public is not getting the courtesy of the truth, support in this body for these important policies will crumble.

We saw an extreme example of this over the weekend in a remarkable New York Times Magazine piece about the

President's Deputy National Security Advisor, who is credited with selling the Iran nuclear deal to Congress and the American people. We see line after line in a very lengthy article about not leveling with the American people on that deal, which we debated here on the Senate floor.

Let me give you a couple of quotes from that article. One is just how they sold the deal. Now I am quoting the article.

The way in which most Americans have heard the story of the Iran deal presented—that the Obama administration began seriously engaging with Iranian officials in 2013 in order to take advantage of a new political reality in Iran, which came about in 2013 because of elections that brought moderates to power in that country—was largely manufactured [by the White House] for the purpose of selling the deal.

So here we have White House officials saying they manufactured a story to sell the nuclear deal to the Congress and the American people.

Another quote talked about a speech the President gave on the deal—a very important speech—and it says:

While the President's statement and speech was technically accurate—

This is about the timing of the negotiations—

it was also actively misleading.

So again a top White House official is pretty much admitting that he was fabricating a narrative to get the American people and the Congress of the United States to ''sell'' and ''buy off'' on the Iran deal.

You know, reading this article, one gets the sense that to some of the people in the White House, this is all a game. Facts don't matter, but cleverness does. The quotes in the article from young White House officials are almost gleeful when they recount how they sold the nuclear deal to ''clueless reporters''—any of the press listening, I hope you like that adjective—and Members of Congress and how the White House created an ''echo chamber'' and were the puppet masters, literally putting words in the mouths of Members of Congress and reporters to sell this deal.

My colleagues should read this article. Again, it is like a game. But, of course, this is not a game. All of this—American troops in combat, whether the world's largest state sponsor of terrorism should obtain a nuclear weapon—this is not a game. This is a deadly serious reality.

I was reminded of this serious reality this past week when I spent much of my recess with the assessment and selection team of the Marine Corps' Special Operations Command. It wasn't clever 30-somethings with fine arts degrees out in the field, working on little sleep, but 20-somethings of all backgrounds, from every corner of America, going through some of the most rigorous military training possible. Some of these young marines will make the cut for Special Operations Command and others won't, but all are striving for the honor of defending their Nation during challenging times. No doubt in due time many will be heading to the Middle East and other parts of the world, doing their duty to keep us safe.

The Obama administration owes these brave young Americans the truth, not spin. The Obama administration owes Congress the truth, not spin. The Obama administration certainly owes the American people the truth, not spin. The sooner the President and his White House start leveling with the American people about our roles and our policies in the Middle East, the better it will be for all of us.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. MURPHY. Mr. President, before I give my intended remarks and while the Senator from Alaska is still on the floor, let me just share with him—although I probably would not have used some of the pejorative terms, let me agree with him that this distinction that has been made between combat troops and noncombat troops in the Middle East is ridiculous.

We need a more fulsome discussion on the floor of the Senate as to the scope of our deployment there. We just heard evidence last week that we have U.S. troops on the ground in Yemen in addition to Iraq and Syria. Frankly, the appropriate forum to have that discussion is a debate on an authorization of the use of military force to fight our enemies in the region.

So, while I might not share the way in which the sentiments were expressed, I think that this conversation about brave men and women—American soldiers—putting their lives on the line as we speak in the Middle East is as important as it gets. The fact that we are not having a broader discussion about this is deeply problematic. So I thank the Senator for raising the issue. I hope it is something on which we can come together as we provide legal cover and perhaps restrictions on the use of force in the region. So I thank the Senator for bringing up this important subject.

GUN VIOLENCE

Mr. President, I am here today to talk about the 21,000 people a year, 2,600 a month, 86 a day—these are rough numbers—who are killed by guns all across the country. A lot of the kids who grow up in neighborhoods like the North End of Hartford or the East End of Bridgeport—it feels like a war zone because they fear for their life every day as they are walking to school. The levels of PTSD—when virtually every one of these kids knows someone very close to them who has been shot, it rivals the diagnoses that come back from war zones abroad.

Today, in my campaign to try to bring the voices of victims to the floor of the Senate, I want to talk about one aspect of this epidemic that is all across the country; that is, the epidemic of young children being killed accidentally by guns. The numbers are really hard to believe, that in this country, in any one given year, there are somewhere between 2,000 and 3,000 children and teens who die from guns in the United States. That does not even count all of the kids who suffer nonfatal gun injuries; in 2010, the official number was about 18,000. There is a lot of reporting that suggests that the numbers we know are dramatically lower than what the actual numbers are, that there are a lot of injuries that happen in the home because of guns that are not reported as part of the official statistics.

Here are just a handful of headlines from recent papers, including this New York Times headline: ''One Week in April, Four Toddlers Shot and Killed Themselves.''

On average, last year, in 2015, people were getting shot by toddlers on a weekly basis. I think it is time that we start talking about this epidemic of young kids—as young as 1 or 2 years old—getting their hands on weapons and either killing themselves or killing their parents or their brothers or their sisters and that we start talking about the fact that this is not happening anywhere else in the world.

Here are the rates of gun deaths per 100,000—this is children and teens. We are going to take high-income countries. I mean, it is not close. Canada, our neighbor, is the next highest with 0.75 per 100,000, but 3.24 children and teens die from gun homicides, gun deaths—accidental, intentional—every year. Other countries barely register. There is nothing unique about the nature of American children that explains this away. The only thing that can explain this is the large number of unsafe weapons that are available to children. So I want to talk for a little bit today about what is happening out there.

Here is the broader number. On average, every day 46 people are shot or killed by accident with a gun. In 2015 there were at least 278 unintentional shootings at the hands of young children and teenagers. So these are young kids and teenagers unintentionally firing a weapon. We know there are at least 278. The New York Times found that unintentional shootings occurred roughly twice as often as the records indicate because of idiosyncrasies in terms of how such deaths from accidental shootings are classified.

We know there are about 1.7 million children and youth under the age of 18 who are living in homes with loaded and unlocked firearms. Some 1.7 million kids are in homes with loaded and unlocked firearms. A Harvard survey showed that children who live in gun-owing households, by a rate of 70 percent—these are kids under the age of 10—70 percent of kids under the age of 10 who live in households that have a gun knew where their parents stored the guns, even when they were hidden, and 36 percent of those kids under 10 years old reported that they themselves had handled the weapons. One

out of three kids under 10 had found the weapon and had handled the gun. One analysis found that 70 percent of unintentional child deaths from firearms could have been prevented if that firearm had simply been stored, locked, or unloaded.

So this is a part of the story of gun violence in this country that does not often get talked about, but given this one horrific week we had in April, maybe we can have a conversation about what we can do to try to reduce the number of accidental shootings that happen at the hands of little kids. My goal in these speeches is to tell you who these victims are, so, as hard as it is, let me tell you a little bit about some of the children who passed away in this week during April.

Holston Cole was a 3-year-old from Dallas, GA, who shot himself with his father's loaded gun on April 26. The gun, according to his father, was located in a backpack. Holston removed it from the backpack and then accidentally fired the weapon. Autopsy results confirmed that the shot was both accidental and self-inflicted. After the gun fired, Holston's father called 911. I wouldn't recommend that you listen to the recording. You will hear the father wailing: ''No, no! Stay with me, Holston. Can you hear me? Daddy loves you. Holston. Holston, please. Please.''

This was a kid who was full of energy from morning until night, as his relatives described. His pastor, who officiated Holston's funeral, remembered Holston as a boy who loved superheroes and sometimes wrestled cardboard boxes. He loved to play in small, inflatable bouncy castles whenever he could.

Sha'Quille Kornegay was 2 years old when, on April 21, in Kansas City, MO, she died after accidentally shooting herself in the head with her father's gun. She had been taking a nap with her father when she found the gun under a pillow on the bed, where her father generally kept it. Her father woke up from the nap to Sha'Quille by his bed bleeding and crying, the gun at her feet. Sha'Quille's mother was devastated by her daughter's loss and noted that the daughter's first word was ''daddy.'' She was buried in a pink coffin, her favorite doll by her side and a tiara strategically placed to hide the self-inflicted gunshot wound to her forehead.

Finally, and I promise I will stop, Kiyan Shelton, 2 years old, same week, Indianapolis, IN, shot and killed himself with a handgun that he found in his mother's purse. She had briefly stepped away when the toddler climbed on to the kitchen counter and reached for his mother's purse, where her cell phone was ringing, and he found the weapon. He fired the weapon, and he was wounded in his shoulder. In critical condition, he was quickly taken to a nearby hospital, but he died shortly thereafter.

A neighbor who lived across the street remembered that Kiyan had just learned how to ride a bicycle. He was out on his little bike with training wheels. Everybody knew his mother used to keep watch of the stray dogs in the neighborhood, trying to keep her son safe. He was 2 years old. He died because he was reaching for a ringing cell phone in his mom's bag and shot himself.

There is a way to solve this. I know we are not supposed to have props on the floor, but this is a cell phone. It opens and closes based on my fingerprint. There is technology ready and available to make sure that a weapon can only be fired by the owner of that weapon. Yet there is a pretty open conspiracy in the gun industry today to prevent that technology from becoming available to consumers. Smith & Wesson tried. They tried to develop a smart weapon, but they were boycotted. They were boycotted by the rest of the gun industry. When retailers have tried to sell smart guns in their stores, they have faced boycotts regularly and in some cases even threats of physical violence.

It doesn't make sense to most people. Why on Earth would the gun industry not want—or the gun lobby not want safe guns to be an option, to be available? From what I understand, it is rooted in a law that was passed a decade ago by New Jersey that says if smart-gun technology is developed, it will be mandatory. First, that is one State's law, so there is no national conspiracy to mandate that every single gun be a smart gun. But let's play this out. Let's say that technology was developed so that you could ensure that no gun could be fired if it wasn't fired by you or another authorized user of the gun. I think it would be logical for us to have a conversation as to whether that should be mandatory. Maybe we won't develop technology that is fail-safe enough. Maybe it will always make sense to have that as an option. But when we figured out how to make cars safer, we required that technology to be built in as a part of the car.

I don't think we are to the point where we could discuss making that technology mandatory on guns, but I wouldn't suggest that it should be something we should rule out. To the extent that a retailer or a gunmaker wants to invest in understanding how to make a gun more fail-safe, how to build in this kind of technology—whether it be your fingerprint or other biometrics, other guns connected to a wristband that you may wear—they should be able to sell those. They should be able to make them without facing reprisals from the rest of the gun lobby and the gun industry.

Shouldn't we try to do something to prevent these deaths, one every week last year? That is just people who were shot by toddlers, in addition to the dozens more children who accidentally injured or killed themselves with a weapon.

I struggle to try to figure out the ways in which we can come together on this issue. I certainly understand there are difficult compromises on issues like the prohibition of certain weapons. But smart-gun technology is something on which we should be able to come together.

The President has taken steps on his own. He has started a process by which Federal agencies would help to stimulate research in smart-gun technology, maybe with the goal of a pilot program being developed at a law enforcement agency to try to buy some of these weapons. The President has taken steps on his own, but we could do something together, and we should because it is only a problem here. It is not a problem anywhere else. To me, that has to tell us that we are doing it wrong and that there is something more we can do so that this reality—that U.S. children and teens are 17 times more likely to die from a gun than children in the 25 other high-income countries combined—isn't a reality for much longer. If there is anything we could do to stop there from being another Kiyan, another Sha'Quille, and another Holston, we should do it.

Mr. President, I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. WHITEHOUSE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. WHITEHOUSE. Mr. President, I ask unanimous consent that I be allowed to speak as in morning business for up to 20 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

CLIMATE CHANGE

Mr. WHITEHOUSE. Mr. President, today I rise for the 136th time in my series of speeches on the continuing threat of global climate change. Real science—the peer-reviewed kind—continues to prove the established connection between carbon pollution and the startling changes we see in our climate and oceans, changes that are so profound that we will leave to our children and grandchildren a world very different from the one we knew growing up. Nonetheless, powerful fossil fuel interests still willfully spread disinformation about climate science. There are obvious similarities between the fossil fuel industry's denial of its products' climate effects and the tobacco industry's denial of its products' health effects. These similarities are sufficient that a proper inquiry should be made about pursuing a civil lawsuit like the one the Justice Department brought and won against Big Tobacco.

I have made that suggestion and, wow, did that set off an outburst. The rightwing climate denial outfits and the fossil fuel industry mouthpieces went into high gear. I think there were about 100 spontaneous reactions to my

Washington Post op-ed and to a related question that I asked Attorney General Lynch. This outburst was interesting. There was usually only a degree or two of separation between the outlets and mouthpieces engaged in this outburst and the fossil fuel industry. Most of the arguments were the same, with the same telling falsehoods, omissions, and oversights. Among these misstatements, various outlets said that the aim of any such investigation would be to ''silence climate dissidents'' and squelch ''independent thought''; indeed, that such an inquiry would be ''an affront to the scientific method.'' Any investigation of fraud would be an attack on science.

Well, maybe if most of your science is fraud, you see things that way, but the charge is just not true in any ordinary sense of the words involved. And the language was nearly hysterical. I was the Grand Inquisitor Torquemada and mighty ExxonMobil was lonely Galileo; the State attorneys general were involved in a ''Soviet-style investigation'' and ''gangster government.'' Oh, it was big talk indeed.

It does raise this question: If the Wall Street Journal editorial page and the other fossil fuel industry mouthpieces were such resolute guardians of the scientific method, where were they when actual peer-reviewed climate scientists were investigated and harassed and bullied for doing their jobs? We took a look, and here is what you see from the mouthpieces: possible civil investigation of the fossil fuel industry, massive indignation, actual investigations of legitimate climate scientists, silent equanimity.

Here is some of the history. This February, the chairman of the House Science Committee issued a government subpoena to NOAA Administrator Kathy Sullivan, seeking to investigate NOAA scientists' deliberative materials. And this was not the first time. The chairman issued a previous government subpoena against NOAA scientists after the journal Science published a NOAA report debunking the fossil-fuel-funded climate deniers' contention that global warming had paused. So the junior Senator from Rhode Island mentions a possible inquiry into fossil fuel industry fraud, and industry mouthpieces go ape. The committee chairman actually issues subpoenas against scientists and not a peep.

In 2005, the former chairman of the House Energy and Commerce Committee thought to investigate the personal emails of a climate scientist after he published a study showing the rapid increase in global temperatures. This investigative effort was so rank that even fellow Republicans objected. Sherwood Boehlert, then a Republican Congressman from New York, expressed his ''strenuous objections'' to the chairman's ''misguided and illegitimate investigation.'' Even with that public warning of a misguided and illegitimate investigation against scientists, there was not a peep from the mouthpieces.

In 2010, Attorney General Ken Cuccinelli of Virginia launched an investigation against a University of Virginia faculty member—a climate scientist, of course. The Attorney General served the University of Virginia with a series of civil investigative demands to produce documents related to the work of the offending UVA faculty member. Well, to its credit, UVA refused, and won a multiyear legal battle with the Attorney General that went all the way to the Virginia Supreme Court.

Again, attorneys general consider investigating the fossil fuel industry, and all the mouthpieces go ape. An actual attorney general harasses an actual climate scientist to the point where the university has to send its lawyers to defend him, and from the mouthpieces, there was not a peep through all those years of litigation.

In 2011, as the Cuccinelli investigation was underway, an oil industry front group called the American Tradition Institute, which is now known as the Energy & Environment Legal Institute, doubled down and sought identical materials from UVA through a Freedom of Information Act request. Again, UVA objected, and in 2014 the Supreme Court of Virginia unanimously threw that out, too, based on—and I quote the Supreme Court of Virginia—''the concept of academic freedom and the interest in protecting research.''

So you suggest an investigation of the industry, and the denial apparatus goes ape. But here an industry front group actually went out to investigate climate scientists in a way that caused the Supreme Court of Virginia to call in the concept of academic freedom against them. And they are still at it. Despite the UVA loss in court, the Energy & Environment Legal Institute has since filed FOIA requests against scientists at NASA, Texas A&M, Texas Tech, the University of Alabama in Huntsville, the University of Delaware, and the University of Arizona. That is some double standard.

In 2009, a hacker stole more than 1,000 emails and 3,000 other documents from climate scientists at the University of East Anglia in Britain who were working on a United Nations report on climate change. Naturally, the climate denial apparatus went to work to select passages from the emails to assert that the climate scientists manipulated data. This turned out after multiple—yes—investigations to be false. Six official investigations ensued, clearing everyone of any wrongdoing: a three-part Penn State University investigation, two separate reviews commissioned by the University of East Anglia, a United Kingdom Parliamentary report, an investigation by the NOAA inspector general's office, and an investigation by the National Science Foundation's inspector general's office.

Throughout all of these investigations of the climate scientists, was there a peep of concern out of these mouthpieces about investigative intrusion on science? Nope.

Here in this Chamber, a Senator, then the ranking member on the Environment and Public Works Committee, our senior Senator from Oklahoma, publicly called for a criminal investigation into American and British scientists who had worked on the U.N. report or had communications with the University of East Anglia's Climate Research Unit. The Senator claimed that scientific data ''was contrived and fabricated'' and that ''in an attempt to conceal the manipulation of climate data, information disclosure laws may have been violated.'' He even named 17 key players in the controversy, including—wouldn't you know it—that UVA scientist who had been the subject of harassment by the attorney general. His staff report suggested that the scientists violated fundamental ethical principles and ''may have violated Federal law.'' He called scientists at the Climate Research Unit ''scientists who commit crimes.''

Wow. There you go—a Senator calling for criminal investigation of actual climate scientists. That must have set these mouthpieces squawking about the intrusion of investigation into science; right? Well, actually, no. Again, there was not a peep of concern.

Mr. President, climate science constantly finds itself in the crosshairs of a climate denial apparatus that has an ugly side. InsideClimate News reports climate scientists often face death threats, vituperation, claims of fraud, and other forms of intimidation. And science is starting to look at that denial apparatus. Sound, peer-reviewed academic work shows how a carefully built apparatus of disinformation has been misleading the public and policymakers about the risks of carbon. That is scientific work. Sound, peer-reviewed academic scientific work shows how disinformation campaigns, funded by fossil fuel interests, have sowed doubt about climate science and have been effective in shaping American public opinion.

A recent study by 16 scientists, including John Cook of the University of Queensland, Naomi Oreskes of Harvard University, and Peter Doran of Louisiana State University, examined the discrepancy between what the public thinks and what scientists know about climate change, and they found ''the consensus that humans are causing recent global warming is shared by 90–100 percent of publishing climate scientists.'' Why the gap in public recognition from what the scientists know? Because of a persistent effort ''manufacturing doubt about the scientific consensus on climate change.''

Part of the work of this denial apparatus has been to harass and investigate climate scientists over and over and over again. So when these mouthpieces with one or two degrees of separation from the fossil fuel industry

have an outburst about the sanctity of science from any investigation, well, that deserves an eyebrow. And when the only time their concern for scientific integrity appears is when an investigation might look at the fossil fuel industry, but they are quiet as mice whenever actual climate scientists are being investigated, well, that merits further skepticism.

There are a lot of reasons why the scientific integrity argument doesn't apply to a fraud investigation of the fossil fuel industry and its front groups. Actually, there are too many reasons for me to go into here and now in the allotted time. But here is the bottom line. No. 1, the argument is a phony, designed to protect from investigation an industry that may well have engaged in deliberate fraud on a massive scale. No. 2, the clamor is phony, whipped up a hundredfold but through industry mouthpieces. And, No. 3, the sincerity is completely phony because the mouthpieces have had nothing to say for years, when real climate scientists were actually investigated. They only swung into action when the possibility emerged that the fossil fuel industry may have to face investigation for fraud.

There is a wooden cross in faraway Antarctica memorializing the Scott expedition to the South Pole. It is carved with the closing line from Alfred Lord Tennyson's ''Ulysses'': ''To strive, to seek, to find, and not to yield.''

To the real physicists, chemists, oceanographers, meteorologists, geologists, and climatologists actually engaged in climate science, let me say, you embody this spirit of discovery and perseverance. The real scientists have not shrunk in the face of fossil fuel threats, investigations, and intimidation. The fossil fuel campaign of denial has not stymied the flow of new climate research nor dimmed the fervor with which the real climate scientists pursue and share their knowledge. These men and women—hardworking and often unsung—deserve our praise, and, after some of the nonsense they have been put through, they probably also deserve an apology. But right now they must be looking on in wonderment—and, I hope, with some wry humor—at the sudden outburst of newfound concern from fossil fuel mouthpieces for the so-called sanctity of the scientific process. Of all the people to make that claim, this crew has the least business making it.

I yield the floor.

The PRESIDING OFFICER (Ms. AYOTTE). The Senator from Arkansas.

TRIBUTE TO MARY LORRAINE WOOD BORMAN

Mr. COTTON. Madam President, today I would like to honor Mary Lorraine Wood Borman, of Fayetteville, AR, as this week's Arkansan of the Week for her commitment to the National Down Syndrome Society as a self-advocate ambassador for the great State of Arkansas. Her advocacy to improve the quality of life for those living with Down syndrome is noteworthy, and she is a joy and inspiration to many across the State.

Outside her work as an activist, Mary is an involved and multitalented junior at Fayetteville High School in Fayetteville, AR. Not only does she excel academically—as indicated by her track record as an honor roll student—but she is also a gifted athlete and has won awards in swimming events at the Arkansas State Special Olympics for 3 years. Mary is also a talented dancer and actress, specializing in hip-hop, jazz, and the waltz.

I recently had the pleasure of meeting with Mary when she visited my Washington, DC, office while in town for the Buddy Walk, hosted each year by the National Down Syndrome Society. Because of Mary's advocacy and compelling reasoning, I cosponsored the ABLE to Work Act of 2016 shortly after our meeting. This bill will help persons with disabilities save additional amounts in their ABLE accounts.

Mary has big dreams, and I am confident she will achieve them. I look forward to keeping track of her many accomplishments in the future. Arkansas is lucky to have someone like Mary Borman fighting to make our State a better place, and I applaud her for her work. Her story is a testimony of our spirit as Arkansans, and I am certain it will inspire others to take action on causes they believe in.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. GARDNER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO ADMIRAL WILLIAM GORTNEY

Mr. GARDNER. Madam President, I rise to recognize and commend ADM Bill Gortney, who will retire on June 1 of this year after 39 years of exceptional leadership and service to our country. Most recently, Admiral Gortney served as commander of the North American Aerospace Defense Command and U.S. Northern Command headquartered at Peterson Air Force Base in Colorado Springs, CO.

In his current capacity, Admiral Gortney is responsible for homeland defense, defense support for civil authorities, and theater security cooperation with Mexico and the Bahamas. Additionally, as head of the binational NORAD command with Canada, he is responsible for aerospace warning, aerospace control, and maritime warning in the defense of North America. For those of you who have children, I think you may know what NORAD also does, which is, of course, the very famous Santa tracker every year on Christmas Eve. It has been a tremendous pleasure to work closely with Admiral Gortney since joining the Senate. In particular, as the chairman of the Foreign Relations Subcommittee on East Asia and the Pacific, I have often sought his advice and counsel to gauge the threat of North Korea's nuclear and ballistic missile program to our homeland.

Born to William and Gloria Gortney in La Jolla, CA, Admiral Gortney is no stranger to military service. He is a second-generation naval aviator. His father retired as a captain in the Navy in 1970, after 28 years of service that included time in World War II, the Korean war, and Vietnam.

Admiral Gortney received his Wings of Gold in 1978 at Naval Air Station in Beeville, TX, and began an illustrious career as a naval aviator under the call sign ''shortney.''

Admiral Gortney has completed numerous successful fleet and staff assignments both in the United States and abroad. His first opportunity for command was on board the USS *Theodore Roosevelt* from 1994 to 1995. From there he amassed an impressive resume of command experience, including three command tours in the U.S. Central Command area of operations, providing support to maritime security operations and combat operations of Operations Enduring Freedom and Iraqi Freedom. These assignments included commander of U.S. Naval Forces Central Command/U.S. 5th Fleet/Combined Maritime Forces, Bahrain; commander of Carrier Strike Group 10 on board the USS *Harry S. Truman*; and commander of Carrier Air Wing 7 on board the USS *John F. Kennedy*.

His first flight tour was as the deputy chief of staff for Global Force Management and Joint Operations, U.S. Fleet Forces Command, Norfolk, VA. More recently, he served as director of the Joint Staff, then commanded U.S. Fleet Forces Command prior to taking command at NORAD and USNORTHCOM.

Admiral Gortney has flown over 5,360 mishap-free flight hours on the Corsair II and F/A–18 Hornet and completed 1,265 carrier-arrested landings. His military decorations include: the Defense Distinguished Service Medal, two awards; Navy Distinguished Service Medal, two awards; Defense Superior Service Medal; Legion of Merit, four awards; and Bronze Star, among many others.

From other nations, his military decorations include: the French National Order of the Legion of Honor Award; the Bahrain Medal, First Class; the Secretary of the National Defense for Mexico Military Merit 1st Class Medal; and Secretary of the Mexican Navy Naval Distinction 2nd Class Medal.

Admiral Gortney's unique combination of operational experience, charismatic leadership, and unyielding patriotism has served him well in a lifetime of military service. Today we honor his admirable service to our Nation and all the airmen, sailors, soldiers, marines, and civilians who have served alongside him.

We offer our heartfelt appreciation to Bill, his wife Sherry, their children Stephanie and Billy, daughter-in-law Jackie, and grandchildren Gavin and Grayson for all of their sacrifice and support to our country.

On behalf of the Senate and a grateful nation, I congratulate him on a job well done and wish him the best as he begins a hard-earned retirement. I just wish that his retirement would land him in Colorado Springs, but I think he has other ideas.

Admiral Gortney, we thank you for your service.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. DURBIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GARDNER). Without objection, it is so ordered.

REMEMBERING BOB BENNETT

Mr. DURBIN. Mr. President, this morning I joined many of my colleagues in bidding a formal farewell to our colleague, Senator Bob Bennett, who died last week. It was great to see Senators from both sides of the aisle at Senator Bennett's viewing and funeral service. It was fitting. Bob Bennett was a proud conservative, he was an old-fashioned conservative, but he understood that the Senate only really works when we talk to each other and reason things out. He was old school. He understood that principled compromise is not a moral or political sin. It is an ideal we should strive for. It is how we solve big problems in America. It is the only way the Senate can work.

I served with Bob Bennett for years on the Senate Appropriations Committee. He was an honorable man, a dyed-in-the-wool fiscal conservative. He had an 84-percent lifetime approval rating from the American Conservative Union, but he was a real-world conservative, not an ideologue. No vote demonstrated that more clearly than the vote he cast in 2008 to create the Troubled Asset Relief Program, known as TARP.

I am not going to forget the day when Hank Paulson, Treasury Secretary under President George W. Bush, came to talk to us about the economy. Lehman Brothers had just declared bankruptcy. Secretary Paulson told us that the entire U.S. financial system could collapse within days, maybe hours. He warned that such a collapse of the U.S. financial system would trigger a global economic cataclysm.

Bob Bennett knew that he was taking a supreme political risk, but Bob Bennett voted to create the TARP program anyway. He risked his political career rather than risk the life savings of untold millions in America and around the world. He paid a price for it. In 2010 Bob Bennett became the first incumbent Senator in Utah in 70 years to lose reelection after he was toppled in his party caucus.

Senator Bennett challenged orthodoxy on a lot of other issues as well. Bob Bennett, a devout Mormon, supported embryonic stem cell research, with very careful restrictions. In 1996 he was one of only three Senators from his party to vote against amending the U.S. Constitution to criminalize flagburning. He said that he thought flagburning was reprehensible—as we all do—but that it occurred far too infrequently to warrant changing the Constitution. That amendment failed in the Senate by one vote.

When the Senate passed comprehensive immigration reform in 2006, Senator Bob Bennett of Utah was one of the many Members of his party to stand up and support it. Four years later, when the Senate voted on the DREAM Act—a key part of that earlier bill and one that I introduced 15 years ago—the political winds on the right had shifted dramatically. There were only three of my colleagues from across the aisle on the Republican side who supported passing the DREAM Act in 2010. Bob Bennett was one of them. I will never forget it. I will always be grateful to him for that courageous vote. He understood that we needed a realistic, humane way to deal with immigration in this Nation of immigrants.

Robert Bennett was a member of one of his State's leading families. His grandfather, Heber J. Grant, was the president of the Church of Jesus Christ of Latter-day Saints. His father, Wallace Bennett, served four terms in the Senate.

Bob came to Washington in 1962 to work as an aide in his father's office, when such arrangements were still allowed. In 1969 he took a job as a top congressional liaison for the U.S. Transportation Department under President Nixon. His short tenure at Transportation earned him an unlikely footnote in history. For decades, some conspiracy theorists speculated that he was Deep Throat—the Nixon administration insider who helped steer the Washington Post's Bob Woodward and Carl Bernstein in reporting the Watergate scandal. That theory was finally disproved with the death of former FBI Deputy Director Mark Felt, who was, in fact, the real Deep Throat.

Bob Bennett did not need public service. He had already built a successful career in business before he decided to run in 1992 for the seat his father once held. He took a pay cut to serve his State and our Nation in the Senate.

Bob Bennett and I disagreed on many issues. When we did, he was always principled and polite. I suspect that was a reflection of his upbringing, watching his father serve in the Senate, where Members of differing political parties could disagree without questioning the other Senator's motives.

In his last political race in 2010, Senator Bennett was targeted by the force we now refer to as the tea party. After his loss, he spoke to a reporter for the Salt Lake Tribune. He said, ''The political atmosphere obviously has been toxic, and it is very clear that some of the votes I have cast have added to that toxic environment.''

Then Bob Bennett said something that any Senator would be fortunate to be able to say at the end of his tenure. ''Looking back on them—with one or two very minor exceptions—I wouldn't have cast any of them any differently even if I'd known at the time it would cost me my career because I have always done the best I can to cast the vote that I think is best for the state and best for the country.''

I extend my condolences to Senator Bennett's family—a wonderful, large family—that includes his brother and sister, his widow Joyce, their six children—Julie, Robert, James, Wendy, Heather, and Heidi—and 20 grandchildren. There are so many of Bob Bennett's former staffers and friends who join me in paying this great tribute.

AMENDMENT NO. 3878

Mr. President, Congress is supposed to be working on an appropriations bill, and we were moving in that direction until the Senator from Arkansas sought to add an amendment to the Energy and Water appropriations bill. This amendment was designed to undermine the historic agreement that the Obama administration reached with Iran for the sole purpose of preventing Iran from acquiring nuclear weapons.

The Senator who offered this amendment had led an unprecedented letter to Iranian hardliners in the middle of President Obama's negotiations. He said to the hardliners in Iran—with a letter signed, I believe, by 46 other Republican letters—that they were wasting their time negotiating with this President, that whatever he agreed to would be undermined by Congress and particularly by the next President.

In all of the time I have followed the history of the Senate, I cannot remember a letter of that nature being sent by Senators of either political party to undermine a delicate negotiation involving peace in an important part of the world.

Now we are stuck until we deal with his amendment. Regardless of whether you agree with the Iran agreement, adding this amendment to the Energy and Water appropriations bill would destroy all of the hard work that Senators ALEXANDER and FEINSTEIN have put into drafting this bipartisan bill.

I wish to tell you why this amendment from the Senator from Arkansas is a poison pill. This amendment would prevent the Department of Energy from spending any fiscal year 2017 funds to purchase heavy water produced in Iran.

The JCPOA agreement closed four pathways through which Iran could get to breakout time for a nuclear weapon in less than a year. It bought valuable

time for Israel, for other nations in the Middle East, and for the United States before Iran could violate the agreement and build a nuclear weapon.

As part of this agreement, Iran agreed to limit the amount of heavy water it would accumulate. Any heavy water in excess of 130 metric tons had to be disposed of, moved out of Iran.

The Department of Energy has announced that its Isotope Program will purchase 32 metric tons of heavy water from Iran to fulfill a significant amount of the domestic heavy water needed in America for research and industrial applications. There is no American domestic source for this heavy water. This transaction provides U.S. industry with a critical product, and it enables Iran to rid itself of excess heavy water, ensuring this product will never be used for developing a nuclear weapon.

Heavy water is used in the development, production, and sale of compounds used in biomedical and diagnostic research such as MRIs and pharmaceutical development, as well as chemistry, physics, and environmental analysis.

A portion of this heavy water will be used at the Spallation Neutron Source, or SNS, at Oak Ridge National Laboratory in Tennessee. The heavy water will increase the intensity of the beam, which will—according to Laboratory Director Thom Mason—benefit hundreds of research teams.

While the administration does not anticipate undertaking another purchase of heavy water from Iran, we should not give up—with this amendment offered by the Senator from Arkansas—the ability to ensure that this material, which potentially could be used in Iran's nuclear industry, is instead put to use in the United States by our industry for peaceful research and product development.

The amendment offered by the Senator from Arkansas really focuses on one thing—to undermine this agreement with Iran. After we have seen tons of fissile material removed from Iran, 16,000 centrifuges destroyed, and a major potentially dangerous reactor decommissioned, this Senator from Arkansas believes it was a bad agreement and we ought to let the Iranians go about their business.

I couldn't disagree more. Taking this heavy water out of Iran makes that region of the world safer for Israel and for the other countries in the region. For Iran to keep this heavy water is a temptation that we should eliminate by defeating this amendment by the Senator from Arkansas.

His amendment will jeopardize an historic agreement that limits Iran's ability to produce nuclear arms. That is an important protection for the entire world. It would deny researchers and industries in our country a resource they need to make new scientific discoveries, medical diagnoses, and probably save lives. That is more than enough reason to reject the amendment being offered by the Senator from Arkansas.

I urge my colleagues to do so.

ZIKA VIRUS

Mr. President, 3 months ago, the President asked Congress for funding to help prepare for and combat the Zika virus. That very week I sat in an Appropriations Committee hearing with the representatives for the Centers for Disease Control and Prevention and the National Institutes of Health, who talked about how time sensitive that request was.

In the 13 weeks since that hearing, Republicans have put up roadblocks, set preconditions, and really mocked the administration for arguing that there was urgency to fight the Zika virus—a virus which is dangerous for pregnant women, children, and many others.

What has happened in the 13 weeks while the President's request for $1.9 billion has languished before the Republican-controlled Congress?

Over 1,100 Americans in 43 States, Washington, DC, and U.S. territories—including over 100 pregnant women—have contracted the Zika virus. Six more have contracted Guillain-Barre syndrome, an autoimmune disorder that can cause paralysis and death.

Recently, the first Zika-caused death was reported in Puerto Rico. In Illinois, 13 people have tested positive for Zika, with at least 3 pregnant women. Over the last 13 weeks, while the Republican leadership in Congress has ignored the President's request for emergency funding, we have learned even more about Zika and its danger. We now know it is linked to serious neurological damage and birth defects. We now know it can be sexually transmitted. Warmer weather is coming, and we know the spread of Zika will grow even worse. It seems as if everyone across the world recognizes the urgency of this public health threat to the United States except for the Republicans in Congress.

Last week, Major League Baseball announced it was canceling two scheduled ball games to be played in Puerto Rico because the players were concerned about contracting the Zika virus.

I spoke with CDC Director Tom Frieden 2 weeks ago. He told me this is no way to seriously fight a public health danger. We need a multiyear commitment so CDC, NIH, and public health departments can begin studies to understand the risks to others, improve our surveillance system, study how long these mosquitoes actually carry the virus, and develop a vaccine as quickly as possible.

The CDC takes this seriously. The Centers for Disease Control is the frontline of defense of the United States of America when it comes to public health danger. How seriously do they take the Zika virus? They have dedicated 1,000 staff members to fighting it. They understand this is a public health emergency, and we have a limited opportunity to catch up and try to stop its spread.

Last week I held a roundtable event in Chicago with local health department officials, medical professionals, and vector control experts. They are doing everything they can to prepare for Zika in high-risk areas—laying traps to collect mosquitoes for testing and ramping up health communications to providers and the public. We are lucky because in our part of the United States there is no evidence of the mosquito that is the carrier. However, travelers who have contracted the virus in other places can bring it back to our region, and they can be the carriers for it to be spread to other people.

As a major transportation hub in Chicago and Illinois, we must be prepared to deal with these travelers carrying the Zika virus. I have the highest confidence in our State and in local health officials, but they need a helping hand.

Because congressional Republicans have refused to pass the emergency supplemental Zika funding, the administration has been forced to divert resources from Illinois to States such as Florida, Texas, Louisiana, and Mississippi to fight Zika. We are taking public health resources out of other States to send them to the frontline States on the Zika virus. I understand it, but it is totally unnecessary. If the Republican leadership in Congress accepted their responsibility, took this seriously, and realized lives were at stake, we would have approved the President's emergency request long ago.

My State of Illinois and the city of Chicago just lost a total of $2 million in CDC public health emergency preparedness grants—money diverted from our State to deal with local public health challenges with the Zika virus in frontline States.

The Illinois Public Health Director told me: ''We don't get to be eight percent less prepared, even with eight percent less money'' from the CDC.

Health departments across Illinois use these grants to prepare and respond to outbreaks of all kinds, such as Ebola, Zika, and a new bacterial outbreak—Elizabethkingia. Already that has taken six people's lives in my State. So we are removing the money to protect the people in Illinois to go to the frontline of the Zika virus attack because the Republican majority in Congress will not approve the President's emergency supplemental request.

Robbing Peter to pay Paul is shortsighted. We need to ensure we aren't diverting necessary Ebola money to use for the Zika virus. I don't understand it. In the last election, many Republicans were making a big issue about Ebola and its threat to the United States, and now they are so sanguine and so calm as to take the money away from protecting us from the spread of Ebola and spend it on Zika on a temporary basis because

they won't address the serious threat of both problems. The CDC, incidentally, is reporting new flare-ups of Ebola in Guinea after learning that the virus can stay in a man's system for over a year. Just because it may not be front-page news anymore, the Ebola crisis, incidentally, is not over. Funding is still needed.

We have seen Zika coming for many months. We were warned, and we have had the administration's detailed comprehensive plan sitting on the desk of the Republican leaders in the House and Senate.

Right before Congress adjourned 2 weeks ago, Senate Democrats sent a letter to Republican leader Senator MITCH MCCONNELL urging immediate action on the Zika supplemental, and we introduced a bill to provide the necessary funding. We tried to bring it up. We were blocked by the Republican leadership.

So what do Republicans think we should do—send a memo to mosquitoes telling them not to buzz and bite until they get around to funding the President's emergency request?

I have news for them. The summer mosquito season is about to hit and hit hard in some parts of our country. Where this mosquito that carries the Zika can be found, people will be in danger.

Researchers at NASA have forecasted that by midsummer, cities nationwide, such as St. Louis, Kansas City, New York City—not just southern cities like Miami and Houston—could possibly be a venue for these Zika-carrying mosquitoes. They found that not just geography but rainfall, transportation hubs, and challenging socioeconomic conditions translate to less air conditioning and worse housing infrastructure. They can all contribute to the presence of these mosquitoes. We are learning more and more about Zika and the cases are growing.

As we near the summer travel season and we start hearing more about the Rio Olympic Games, inaction and further delay will put many women—particularly childbearing women—and their kids in danger.

I urge my Republican colleagues in both chambers: Work with us to approve this money this week before it is too late.

Mr. President, I ask unanimous consent to speak on one additional issue.

The PRESIDING OFFICER. Without objection, it is so ordered.

JUDICIAL NOMINATIONS

Mr. DURBIN. Mr. President, there are publications given to us on the floor of the Senate. One of them is the Executive Calendar.

This Executive Calendar and parts of it may be characterized as a political obituary column because, you see, these are the nominees of the Obama administration for important posts across America—the names on here—and many of them have been sitting for months and some for over a year, and they are waiting for Senate action.

So far this Congress we have approved 17 Federal judges—2 circuit court judges, and 15 district court judges. There are 20 judicial nominees still sitting on this calendar. You think to yourself: Well, they must be pretty controversial if they are still sitting on the calendar.

Every single one of them was reported unanimously from the Senate Judiciary Committee. There were no dissenting votes, no objections. Still they just sit and sit and sit on the calendar.

Why? Well, we know we have a serious problem with not just these 20, but there is the fact that we have 87 vacancies in the Federal judiciary, many of them in an emergency situation.

Why? Why in the world would some of these nominees, some of whom have been supported by Republican Senators—why aren't they being called for a vote, a routine vote on the floor of the Senate? It is part of the obstruction that the Republican Party has decided to make part of their leadership in the Senate. And, of course, exhibit A in that obstruction is the vacancy on the U.S. Supreme Court, occasioned by the untimely death of Justice Antonin Scalia.

It has been nearly 2 months since President Obama nominated Chief Judge Merrick Garland to fill the Scalia vacancy on the Supreme Court. It has been 3 months since Justice Scalia passed away—3 months—and still the Republican-led Senate has refused to consider President Obama's nominee to fill the Supreme Court vacancy. We ought to be doing that right now.

Today we received all of the investigative materials and binders and questionnaire answers from Judge Garland—boxes and boxes, thousands of pages—available to be reviewed by the Senate Judiciary Committee and every Member of the Senate. It is the Senate's constitutional obligation under article II, section 2, to provide advice and consent when the President submits such a nomination.

Mr. President, it is rare for a political figure or a publicly elected official to stand up and use the word ''never,'' but I am about to use it. We have never—never in the history of the U.S. Senate—denied a Supreme Court nominee from a President a hearing or a vote—never. For 100 years, these nominees have been sent through the Senate Judiciary Committee with a public hearing. And every pending nominee for an open Supreme Court vacancy has been voted upon at some point by Senators.

We had a press conference today, and we talked about the precedent. Senator FRANKEN of Minnesota noted the time when John Adams had lost the Presidential election but filled a vacancy on the Supreme Court by nominating John Marshall to be a member of that Court. So here was John Adams, a defeated President, making a nomination to fill a vacancy on the Supreme Court.

In the Senate, in those days, there were still Founding Fathers, men who had actually written the Constitution. Five of them were Members of the Senate when John Marshall's nomination came before them. If there was ever a lameduck, it was John Adams, who had been defeated for reelection and had a few months more to serve but who made a nomination for the Supreme Court and, by voice vote, the U.S. Senate approved him, including the five Founding Fathers who joined in that effort.

The argument being made on the Republican side is: Well, we can't fill this vacancy until after the election. We have to wait to see if President Trump will be chosen by the American people, and then he will get to fill this vacancy on the Supreme Court. Interesting. I missed it. I read the Constitution and thought for sure that President Obama was elected for 4 years in 2012. By the Republicans' math, it was 3 years and 2 months. He's a lameduck and has no power left. Well, they are wrong. By a margin of 5 million votes, Barack Obama was reelected President over Mitt Romney. Now this decision by the Republicans to stop this President from exercising his constitutional authority is just wrong.

What about Judge Garland? Judge Garland is one of the most extraordinary nominees ever presented to this Senate. He is now the chief judge of the DC Circuit Court. That is the second highest court in the land. He is well respected. He has received the endorsement of many different groups, and people who are conservative and liberal alike respect his judgment, as they should. He has done his job and done it well, but the Republicans in the Senate refuse to do their job. They say it is because they want the next President to fill that seat. I cannot even imagine the nominee that a President Donald Trump would send to the Senate.

Last week, the chairman of the Republican National Committee, a man named Reince Priebus, announced that Mr. Trump was the presumptive nominee of the Republican Party. It is astonishing to me that Senate Republicans would seriously want to put Donald Trump in charge of filling Supreme Court vacancies. How would they explain that to their constituents? Most of them are saying they are not even going to attend the Republican convention for fear of what it will do to their political reputations, and yet they are trusting the judgment of Donald Trump to shape the highest Court of the United States of America?

Make no mistake. By failing to move on Merrick Garland's nomination now in a timely and fair way, Republicans have cast their lot with Mr. Trump. That is a risky bet for the American people. The American people also understand Merrick Garland is well qualified and rock solid. Every week we see more praise for him.

Last week, nine former Solicitors General, Republicans and Democrats

alike, sent a public letter praising Judge Garland. The list of people who signed this letter includes prominent Republicans and Democrats: Ken Starr, Drew Days, Walter Dellinger, Ted Olson, and Paul Clement. We know the Solicitor General serves as the Federal Government's chief advocate before the U.S. Supreme Court. They know the Supreme Court as well as anyone, and they know a good judge when they see one. Here is what they said about Judge Garland:

As a group, we have argued hundreds of cases before the United States Supreme Court and the Federal Courts of Appeals. Each of us has served as the United States Government's top representative before the Supreme Court. And while we have served in different administrations, we are unified in our belief that Judge Garland is superbly qualified to serve on the Supreme Court if he were confirmed. We are confident that Judge Garland would bring his brilliance, work ethic, and broad experience to the cases that come before him.

That is very high praise, isn't it? Clearly, President Obama selected a nominee highly regarded by advocates who know the Supreme Court better than most. Yet my Republican colleagues will not even give this superbly qualified nominee the dignity of a public hearing. They would rather keep a Supreme Court seat vacant for more than a year and allow the Court to deadlock for a year with 4-to-4 votes on key cases and wait in hopes they can roll the dice with President Donald Trump and his Supreme Court nominee. It is hard to fathom how this strategy is respectful of the constitution or in the best interest of our Nation.

Not only are Senate Republicans failing to do their job in considering Judge Garland's nomination, they are obstructing 20 other well-qualified judicial nominees who are currently pending on the Senate floor.

The Senate Republicans, as I have said, have held votes on only 17 judicial nominees this Congress. That is the lowest total in decades, far fewer than the 68 judges the Democratic-controlled Senate confirmed in the last 2 years of George W. Bush's administration. Republicans are apparently content to leave vacancies on courts across the United States and even on the Supreme Court of the United States. Is that why they were elected, to leave vacancies on these courts? They cannot hide from the fact that there is a need in this country for competent jurists to guide us in these Federal courts.

I hope a few more of my Republican colleagues will come to their senses. Rather than saving judicial seats for Donald Trump to fill, they should do their job and give President Obama's well-qualified nominees a hearing and a vote, and they should start with Merrick Garland.

Mr. President, I ask unanimous consent to have printed in the RECORD the letter from these Solicitors General.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

MAY 5, 2016.

Hon. MITCH MCCONNELL,
Majority Leader, U.S. Senate, Washington, DC.
Hon. HARRY REID,
Minority Leader, U.S. Senate, Washington, DC.
Hon. CHUCK GRASSLEY,
Chairman, Committee on the Judiciary, U.S. Senate, Washington, DC.
Hon. PATRICK LEAHY,
Ranking Member, Committee on the Judiciary, U.S. Senate, Washington, DC.

DEAR MAJORITY LEADER MCCONNELL, MINORITY LEADER REID, CHAIRMAN GRASSLEY, AND RANKING MEMBER LEAHY: Each of us headed the Office of the Solicitor General. Our service took place under both Republican and Democratic Presidents. We write collectively in support of Judge Merrick Garland's qualifications to serve as an Associate Justice of the United States Supreme Court. We believe that Judge Garland has demonstrated the temperament, intellect, and experience to serve in this capacity.

Merrick Garland has a history of excellence in the Law. He served in high ranking Justice Department posts, as a partner at a major law firm, an Assistant United States Attorney, a law clerk on the United States Supreme Court, a law clerk on the Second Circuit for the legendary Judge Henry Friendly, and, of course, for nearly the last two decades, as a Judge on the United States Court of Appeals for the D.C. Circuit. He presently serves as the Chief Judge of that Circuit, where he is known for his collegiality and is widely respected by his colleagues and litigants who have come before him.

As a group, we have argued hundreds of cases before the United States Supreme Court and the federal Courts of Appeals. Each of us has served as the United States Government's top representative before the Supreme Court. And while we have served in different Administrations, we are unified in our belief that Judge Garland is superbly qualified to serve on the Supreme Court if he were confirmed.

We are confident that Judge Garland would bring his brilliance, work ethic, and broad experience to the cases that come before him. Please do not hesitate to contact us if you have questions.

Respectfully submitted,

Neal K. Katyal (Acting Solicitor General, 2010–2011), Gregory G. Garre (Solicitor General, 2008–2009), Paul D. Clement (Solicitor General, 2005–2008), Theodore B. Olson (Solicitor General, 2001–2004), Barbara D. Underwood (Acting Solicitor General, 2001), Seth P. Waxman (Solicitor General, 1997–2001), Walter E. Dellinger III (Acting Solicitor General, 1996–1997), Drew S. Days III (Solicitor General, 1993–1996), Kenneth W. Starr (Solicitor General, 1989–1993).

Mr. DURBIN. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO VIETNAM VETERANS

Mr. SCOTT. Mr. President, I would like to say welcome home and thank you to our Vietnam veterans, our true American heroes, as our community honors their courage and allegiance today in Moncks Corner, SC. Their celebration, which took place on May 6, 2016, is one small way we can take the time to show gratitude and appreciation for the men and women who fought for our Nation.

With one brother in the military and one recently retired after 30 years, I know firsthand the sacrifices our veterans and their families have made in order to protect and serve our amazing country.

We should celebrate these heroes every day. It is our responsibility to say thank you in tangible ways, such as this party. The Vietnam war era was one of the most challenging in our Nation's history, and it is truly my honor to recognize the service of our brave veterans who sacrificed for our freedom. Their dedication will never be forgotten.

You all put your lives on the line for our country, and because of people like you, I am proud to be an American. Thank you for your service. You deserve praise, recognition, and respect. God Bless America.

ADDITIONAL STATEMENTS

RECOGNIZING THE UNIVERSITY OF MOUNT UNION CONCERT CHOIR

● Mr. BROWN. Mr. President, today I wish to honor the University of Mount Union Concert Choir as it continues its spring tour, which began Sunday, May 8, at the National Cathedral in Washington, DC.

Mount Union's concert choir prides itself as one of the oldest collegiate choirs in the United States and has been part of the school's history since 1896. Arts at the collegiate level can enrich the student experience, giving music students and nonmusic students the opportunity to practice their vocal or instrumental skills and share their talents with both the campus and the local community. The group, comprised of individuals from almost every academic department, is a testament to the school's strong liberal arts mission.

The group is led by Dr. Grant Cook III, the director of choral activities and an associate professor of music at Mount Union, an accomplished musician and conductor. His commitment

to the arts gives these vocalist the opportunity to do what they love and be part of a strong team of singers.

I am thrilled these young musicians have the opportunity to travel from Ohio to our Nation's Capital to kick off a tour that will take them from the National Cathedral to Virginia to Pennsylvania to New Jersey. This is an opportunity to see new parts of the country and show others what their university and our State have to offer.

I wish all the students the best for a safe tour, including Tim Anderson, Alexandria Augustine, Angelica Bartholomew, Erin Bell, Anthony Bucci, Ali Caldwell, George Carr, Ian Donaldson, Sarah Donkin, Collin Edwards, Nick Embrogno, Caelyn Eppler, Abbie Fox, Connor Funk, Elizabeth Galloway-Purcell, Bradley Geist, Victoria Ginty, Matt Gorman, Jennifer Gotschall, Ben Hayes, Zach Henkels, Kyle Herman, Sarah Hohenadel, Kenan Irish, Rachel Irwin, Zak Jaeb, Jacqueline Jepsen, Abigail Lantz, David Lenahan, Jason Lopez, Patrick McKitrick, Paige Morris, Marcus Morrison, Hunter Munroe, Megan Ostrofsky, Rebecca Passer, Jesse Reed, Natalie Ricciutti, Abbigail Robertson, Jacob Rogers, Emily Siedel, Clinton Simmons III, Mary Anne Snyder, Chris Tucker, Abigail Van Auken, Alex Waitinas, Haley Walls, Tony Walsh, Jenna Waterman, Tommy Wines, Sarah Yannie, Martin Zapata, and Megan Zwart.●

100TH ANNIVERSARY OF SINCLAIR OIL CORPORATION

● Mr. CRAPO. Mr. President, today I wish to recognize the 100th anniversary of the founding of Sinclair Oil Corporation.

Spanning a remarkable century of operation, Sinclair Oil has been resolute amid good and hard times in our Nation and helped shape our growing country. Built by the ingenuity and drive of Harry Ford Sinclair, Sinclair Oil employs more than 1,200 people nationwide. Harry F. Sinclair, who founded the company in 1916; Earl Holding, who purchased Sinclair Oil in 1976 and led the company for more than three decades; and Ross B. Mathews, who currently serves as chief executive officer of Sinclair, must be recognized for their innovation and determination in building Sinclair into an American pioneer. Their commitment and the support of their families and exceptional employees have enabled Sinclair to stand and succeed through the test of 100 years.

Sinclair Oil Corporation is immensely diversified. Twenty-four States are home to 1,300 Sinclair stations. The company is engaged in the exploration, refining, and distribution of gasoline, diesel, jet fuel, asphalt, and petrochemical feedstock. It also owns and operates cattle ranches and several renowned hotels and resorts, including Sun Valley Resort, The Grand America Hotel, and the Little America hotels and travel centers. The resourcefulness, skill, and initiative of the company's leadership and staff drive it forward into a new century of opportunity. I commend them all for the strong legacy they have built.

I have been blessed to have the Holdings as friends over the years. The Holdings were always very kind and supportive to my wife, Susan, and me, and I have valued the involvement Sinclair has had in shaping our communities, State, and Nation. America's success is built on the hard work and know-how of the men and women who have overcome challenges and turned their ideas into successful businesses that boost our economy and generate jobs. Countless individuals have benefited from Sinclair Oil Corporation and the goods and services it provides. I congratulate all those involved with the company on a century of achievements and wish them all the best for continued accomplishments.●

TRIBUTE TO UNIVERSITY OF KANSAS SCHOOL OF LAW PROFESSORS

● Mr. MORAN. Mr. President, education is a critical to ensuring a bright future for both individuals and our society at large. There is no more important or more noble profession than teaching. Many of us have had teachers who changed our lives—myself included—educators who taught us not only the facts and figures but also instilled in us a love for learning and an interest in the world beyond the city limits of our hometowns.

As a U.S. Senator representing the great State of Kansas and as an alumnus of the University of Kansas School of Law, it is my privilege to celebrate the careers of three outstanding legal academics: Mike Davis, Sandra Craig McKenzie, and Martin Dickinson.

Mike Davis began teaching at the University of Kansas School of Law in 1971, but his academic life in Kansas began years earlier. Davis earned his bachelor's degree with honors from Kansas State University in Manhattan, KS. After completing his undergraduate education, Davis attended the University of Michigan Law School, where he was an editor on the Michigan Law Review.

After earning his juris doctor and practicing law in the private sector, Davis went on to work with the Office of Economic Opportunity, culminating in becoming the associate director of planning and research for the legal services program. Davis then became a legislative assistant for Representative Louis Stokes before returning to Kansas to begin his career in teaching future lawyers.

Professor Davis joined the KU Law faculty in 1971 and has had an impactful and storied career. He earned the ''Immel Award for Teaching Excellence'' and the title of Centennial Teaching Professor of Law. In addition to earning teaching accolades, Davis served as dean of KU Law School for 9 years and served as the interim dean from 2005 to 2006. Outside his teaching duties, he served as the American Bar Association standards and accreditation committees chair and was of counsel to the Kansas City firm of Stinson Morrison Hecker for 20 years.

Colleagues at the law school praised Professor Davis's dedication to promoting the university's law school program. Students were also grateful for his commitment to maintaining a challenging and rewarding learning environment. The Kansas community thanks Mike Davis for his service, dedication, and contributions to the university's law school and the State of Kansas.

Sandra Craig McKenzie arrived at KU Law in 1979 and has been a positive presence in Kansas ever since.

McKenzie's legal life did not begin in our State, but she arrived in Lawrence with high accolades. McKenzie earned a bachelor's degree from the University of New Mexico and then went on to the University of New Mexico's School of Law, where she graduated magna cum laude and was a member of the New Mexico Law Review.

After the receipt of her juris doctor, McKenzie went on to serve as a law clerk to the Honorable Oliver Seth of the U.S. Court of Appeals for the Tenth Circuit and later spent 4 years working in tax and estate planning in Albuquerque before turning her talents to teaching.

Sandra Craig McKenzie joined the KU Law faculty in 1979 as one of the institution's first female law professors. Professor McKenzie was KU Law's Elder Law LL.M. program director and an esteemed contributor to the elder law community, as well as a sought-after voice in Kansas local government law. McKenzie served as the law school's ombudsman and was a member of Phi Beta Kappa, Phi Kappa Phi, and the Order of the Coif.

Friends and colleagues say her tenure was marked by accessibility as a teacher, dedication to women in the law, and leadership in making KU's law community a safe and equitable space for all students. The University of Kansas was without question enriched by Sandra McKenzie's committed 36-year career at the school of law, and her many contributions are appreciated throughout the university community.

Martin B. Dickinson is the longest serving faculty member at the University of Kansas School of Law, where his distinguished 48-year tenure has earned him the highest regard from the university community. Dickinson received a bachelor of arts degree from KU in 1960 and then went on to receive a master of arts degree from Stanford University in 1961 and his juris doctor from the University of Michigan in 1964, where he was editor-in-chief of the Michigan Law Review. After finishing at Michigan, Dickinson became an associate at Holme, Roberts & Owen in Denver, where he practiced until joining KU Law.

Dickinson joined the KU Law faculty in 1967 and quickly rose through the ranks, moving from assistant professor to associate professor in just 2 years. In 1971, Dickinson was named dean and professor of law at KU, a title he held until 1980. While serving as dean, Dickinson made great strides in strengthening the school's profile both in Kansas and nationally, creating new admission criteria, successfully appealing to the Kansas Legislature to fund a new building for KU Law and recruiting outstanding new faculty. These accomplishments put the KU Law community on a path toward growth and sustainability, and the university thanks him for these contributions.

As his impressive decade as dean drew to a close, Dean Dickinson returned his focus to teaching alongside an of cousel position at Barber, Emerson, Springer, Zinn & Murray in Lawrence, KS.

He also served on numerous State-level advisory committees related to property taxes, income tax, estate tax, and trust administration—all of which have made recommendations leading to important revisions of Kansas law. Additonally, Dean Dickinson gained nationally recognized authority in estate planning and taxation and became a coauthor of standard publications in those fields.

In 1986, Professor Dickinson was named the Robert A. Schroeder Distinguished Professor of Law, KU Law's top honor. As a highly respected teacher and mentor in the KU Law community, Dickinson also received other top awards, including: the ''Chancellor's Award for Excellence'' in 1988; the ''Moreau Student Counseling Award'' in 1988, 1995, 1997, and 2009; the ''Immel Award for Teaching Excellence'' in 1997; and a Kemper Fellowship for Teaching Excellence in 2002.

The Kansas Bar Association conferred the ''President's Award for Outstanding Service'' on Dickinson, as well as the Phil Lewis Medal of Distinction. He also received the ''ALI-ABA Harrison Tweed Award'' for excellence in continuing legal education and is a fellow at the American College of Trust and Estate Counsel, the American College of Tax Counsel, and the American Bar Foundation.

Professor Dickinson retired from the University of Kansas School of Law in 2015, as professor emeritus, leaving behind a rich legacy that has deeply impacted the entire KU community. The university will remember Dean Dickinson as a highly respected teacher, mentor, and friend.

In the fall 2015 edition of the KU Law magazine, Dickinson was quoted as saying, ''Over the last five decades, KU Law has demonstrated an impressive capacity to respond to changes in Kansas, the nation, the world and the legal profession while continuing to honor its rich tradition.''

It is without question that KU Law has been able to navigate these changes because of Martin Dickinson's leadership, and KU's continuing tradition is no doubt marked by his impressive tenure at KU Law.

Professors Dickinson, McKenzie, and Davis were intrumental in my own education and those of countless others. The products of their work, within academia and beyond, are vast, and my words today seek to reflect those contributions to the University of Kansas, the State itself, and the many communities to where their lessons were extended by way of their former students. As Professors Davis, McKenzie, and Dickinson near retirement, let us say thank you and celebrate their accomplished careers and the impact they had on the University of Kansas, their communities, and the State of Kansas.●

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. VITTER, from the Committee on Small Business and Entrepreneurship:

Special Report entitled ''Summary of Legislative and Oversight Activities During the 113th Congress'' (Rept. No. 114–252).

By Mr. ROBERTS, from the Committee on Agriculture, Nutrition, and Forestry, without amendment:

S. 2917. An original bill to reauthorize the Commodity Futures Trading Commission, to ensure protections of futures customers, to provide relief for farmers, ranchers, and end-users that manage risk to help keep consumer costs low, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. BOOKER (for himself and Mr. MENENDEZ):

S. 2908. A bill to designate the facility of the United States Postal Service located at 1265 Hurffville Road in Deptford Township, New Jersey, as the ''First Lieutenant Salvatore S. Corma II Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

By Mr. NELSON (for himself and Mr. RUBIO):

S. 2909. A bill to amend the Terrorism Risk Insurance Act of 2002 to allow for the use of certain assets of foreign persons and entities to satisfy certain judgments against terrorist parties, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. ROUNDS:

S. 2910. A bill to require the Secretary of Defense to implement processes and procedures to provide expedited treatment of fetal anomalies under the TRICARE program; to the Committee on Armed Services.

By Mr. GRASSLEY:

S. 2911. A bill to amend the Packers and Stockyards Act, 1921, to make it unlawful for a packer to own, feed, or control livestock intended for slaughter; to the Committee on Agriculture, Nutrition, and Forestry.

By Mr. JOHNSON:

S. 2912. A bill to authorize the use of unapproved medical products by patients diagnosed with a terminal illness in accordance with State law, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. FRANKEN (for himself and Ms. KLOBUCHAR):

S. 2913. A bill to amend titles 10 and 38, United States Code, to provide certain benefits in connection with service in the Selected Reserve for preplanned missions in support of the combatant commands, and for other purposes; to the Committee on Armed Services.

By Mr. GRASSLEY (for himself and Ms. KLOBUCHAR):

S. 2914. A bill to amend the Foreign Narcotics Kingpin Designation Act to protect classified information in Federal court challenges; to the Committee on the Judiciary.

By Mr. FLAKE:

S. 2915. A bill to enhance public awareness of federally funded research and development projects, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. UDALL (for himself and Mr. HEINRICH):

S. 2916. A bill to provide that the pueblo of Santa Clara may lease for 99 years certain restricted land, and for other purposes; to the Committee on Indian Affairs.

By Mr. ROBERTS:

S. 2917. An original bill to reauthorize the Commodity Futures Trading Commission, to ensure protections of futures customers, to provide relief for farmers, ranchers, and end-users that manage risk to help keep consumer costs low, and for other purposes; from the Committee on Agriculture, Nutrition, and Forestry; placed on the calendar.

By Mr. TESTER:

S. 2918. A bill to amend title 5, United States Code, to clarify the eligibility of employees of a land management agency in a time-limited appointment to compete for a permanent appointment at any Federal agency, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. WYDEN (for himself and Mr. MERKLEY):

S. Res. 460. A resolution commemorating the 50th anniversary of Cascade Head Preserve, an Oregon natural icon; to the Committee on Energy and Natural Resources.

ADDITIONAL COSPONSORS

S. 257

At the request of Mr. MORAN, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 257, a bill to amend title XVIII of the Social Security Act with respect to physician supervision of therapeutic hospital outpatient services.

S. 368

At the request of Mr. TOOMEY, the name of the Senator from Utah (Mr. LEE) was added as a cosponsor of S. 368, a bill to amend title 18, United States Code, to require that the Director of the Bureau of Prisons ensure that each chief executive officer of a Federal penal or correctional institution provides a secure storage area located outside of the secure perimeter of the Federal penal or correctional institution for firearms carried by certain employees of the Bureau of Prisons, and for other purposes.

S. 386

At the request of Mr. THUNE, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 386, a bill to limit the authority of States to tax certain income of employees for employment duties performed in other States.

S. 498

At the request of Mr. CORNYN, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 498, a bill to allow reciprocity for the carrying of certain concealed firearms.

S. 539

At the request of Mr. CARDIN, the name of the Senator from Mississippi (Mr. WICKER) was added as a cosponsor of S. 539, a bill to amend title XVIII of the Social Security Act to repeal the Medicare outpatient rehabilitation therapy caps.

S. 579

At the request of Mr. GRASSLEY, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 579, a bill to amend the Inspector General Act of 1978 to strengthen the independence of the Inspectors General, and for other purposes.

S. 624

At the request of Mr. BROWN, the name of the Senator from New Jersey (Mr. MENENDEZ) was added as a cosponsor of S. 624, a bill to amend title XVIII of the Social Security Act to waive coinsurance under Medicare for colorectal cancer screening tests, regardless of whether therapeutic intervention is required during the screening.

S. 681

At the request of Mrs. GILLIBRAND, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 681, a bill to amend title 38, United States Code, to clarify presumptions relating to the exposure of certain veterans who served in the vicinity of the Republic of Vietnam, and for other purposes.

S. 683

At the request of Mr. BOOKER, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 683, a bill to extend the principle of federalism to State drug policy, provide access to medical marijuana, and enable research into the medicinal properties of marijuana.

S. 752

At the request of Mr. CRAPO, the name of the Senator from Georgia (Mr. ISAKSON) was added as a cosponsor of S. 752, a bill to establish a scorekeeping rule to ensure that increases in guarantee fees of Fannie Mae and Freddie Mac shall not be used to offset provisions that increase the deficit.

S. 857

At the request of Ms. STABENOW, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 857, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of an initial comprehensive care plan for Medicare beneficiaries newly diagnosed with Alzheimer's disease and related dementias, and for other purposes.

S. 1112

At the request of Mr. FRANKEN, the names of the Senator from Oregon (Mr. MERKLEY) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of S. 1112, a bill to amend the Occupational Safety and Health Act of 1970 to expand coverage under the Act, to increase protections for whistleblowers, to increase penalties for high gravity violations, to adjust penalties for inflation, to provide rights for victims or their family members, and for other purposes.

S. 1277

At the request of Ms. HIRONO, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 1277, a bill to improve energy savings by the Department of Defense, and for other purposes.

S. 1555

At the request of Ms. HIRONO, the name of the Senator from Wyoming (Mr. ENZI) was added as a cosponsor of S. 1555, a bill to award a Congressional Gold Medal, collectively, to the Filipino veterans of World War II, in recognition of the dedicated service of the veterans during World War II.

S. 1562

At the request of Mr. WYDEN, the names of the Senator from Georgia (Mr. ISAKSON) and the Senator from New York (Mr. SCHUMER) were added as cosponsors of S. 1562, a bill to amend the Internal Revenue Code of 1986 to reform taxation of alcoholic beverages.

S. 1566

At the request of Mr. FRANKEN, the names of the Senator from Delaware (Mr. COONS) and the Senator from New York (Mr. SCHUMER) were added as cosponsors of S. 1566, a bill to amend the Public Health Service Act to require group and individual health insurance coverage and group health plans to provide for coverage of oral anticancer drugs on terms no less favorable than the coverage provided for anticancer medications administered by a health care provider.

S. 1831

At the request of Mr. TOOMEY, the name of the Senator from California (Mrs. BOXER) was added as a cosponsor of S. 1831, a bill to revise section 48 of title 18, United States Code, and for other purposes.

S. 2067

At the request of Mr. WICKER, the names of the Senator from New Hampshire (Mrs. SHAHEEN) and the Senator from Arkansas (Mr. COTTON) were added as cosponsors of S. 2067, a bill to establish EUREKA Prize Competitions to accelerate discovery and development of disease-modifying, preventive, or curative treatments for Alzheimer's disease and related dementia, to encourage efforts to enhance detection and diagnosis of such diseases, or to enhance the quality and efficiency of care of individuals with such diseases.

S. 2151

At the request of Mr. THUNE, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 2151, a bill to amend the Public Health Service Act to provide liability protections for volunteer practitioners at health centers under section 330 of such Act.

S. 2230

At the request of Mr. CRUZ, the names of the Senator from Oklahoma (Mr. INHOFE), the Senator from Kansas (Mr. ROBERTS) and the Senator from Kansas (Mr. MORAN) were added as cosponsors of S. 2230, a bill to require the Secretary of State to submit a report to Congress on the designation of the Muslim Brotherhood as a foreign terrorist organization, and for other purposes.

S. 2386

At the request of Mrs. GILLIBRAND, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2386, a bill to authorize the establishment of the Stonewall National Historic Site in the State of New York as a unit of the National Park System, and for other purposes.

S. 2388

At the request of Mr. CRUZ, the name of the Senator from Wisconsin (Mr. JOHNSON) was added as a cosponsor of S. 2388, a bill to amend the Federal Food, Drug, and Cosmetic Act to provide for reciprocal marketing approval of certain drugs, biological products, and devices that are authorized to be lawfully marketed abroad, and for other purposes.

S. 2440

At the request of Mr. DAINES, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of S. 2440, a bill to amend the Real ID Act of 2005 to repeal provisions requiring uniform State driver's licenses and State identification cards, and for other purposes.

S. 2464

At the request of Mr. PAUL, the name of the Senator from South Dakota (Mr. ROUNDS) was added as a cosponsor of S. 2464, a bill to implement equal protection under the 14th Amendment to the Constitution of the United States for the right to life of each born and preborn human person.

S. 2487

At the request of Mrs. BOXER, the names of the Senator from Minnesota (Ms. KLOBUCHAR), the Senator from Wisconsin (Ms. BALDWIN) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. 2487, a bill to direct the Secretary of Veterans Affairs to identify mental health care and suicide prevention programs and metrics that are effective in treating women veterans as part of the evaluation of such programs by the Secretary, and for other purposes.

S. 2595

At the request of Mr. CRAPO, the name of the Senator from Colorado (Mr. GARDNER) was added as a cosponsor of S. 2595, a bill to amend the Internal Revenue Code of 1986 to permanently extend the railroad track maintenance credit.

S. 2605

At the request of Mr. DURBIN, the name of the Senator from Connecticut (Mr. MURPHY) was added as a cosponsor of S. 2605, a bill to amend title XIX of the Social Security Act to provide States with an option to provide medical assistance to individuals between the ages of 22 and 64 for inpatient services to treat substance use disorders at certain facilities, and for other purposes.

S. 2628

At the request of Mr. COONS, the name of the Senator from New Hampshire (Mrs. SHAHEEN) was added as a cosponsor of S. 2628, a bill to authorize the National Emergency Medical Services Memorial Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

S. 2653

At the request of Mrs. MURRAY, the name of the Senator from Washington (Ms. CANTWELL) was added as a cosponsor of S. 2653, a bill to direct the Secretary of Education to establish an award program recognizing excellence exhibited by public school system employees providing services to students in prekindergarten through higher education.

S. 2675

At the request of Mr. MENENDEZ, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 2675, a bill to provide for the adjustment of the debts of the Commonwealth of Puerto Rico, and for other purposes.

S. 2676

At the request of Mr. MENENDEZ, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 2676, a bill to provide for the adjustment of the debts of the Commonwealth of Puerto Rico, and for other purposes.

S. 2686

At the request of Mr. ALEXANDER, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of S. 2686, a bill to clarify the treatment of two or more employers as joint employers under the National Labor Relations Act.

S. 2707

At the request of Mr. SCOTT, the name of the Senator from Kentucky (Mr. PAUL) was added as a cosponsor of S. 2707, a bill to require the Secretary of Labor to nullify the proposed rule regarding defining and delimiting the exemptions for executive, administrative, professional, outside sales, and computer employees, to require the Secretary of Labor to conduct a full and complete economic analysis with improved economic data on small businesses, nonprofit employers, Medicare or Medicaid dependent health care providers, and small governmental jurisdictions, and all other employers, and minimize the impact on such employers, before promulgating any substantially similar rule, and to provide a rule of construction regarding the salary threshold exemption under the Fair Labor Standards Act of 1938, and for other purposes.

S. 2748

At the request of Ms. BALDWIN, the names of the Senator from New York (Mrs. GILLIBRAND) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. 2748, a bill to amend the Public Health Service Act to increase the number of permanent faculty in palliative care at accredited allopathic and osteopathic medical schools, nursing schools, social work schools, and other programs, including physician assistant education programs, to promote education and research in palliative care and hospice, and to support the development of faculty careers in academic palliative medicine.

S. 2756

At the request of Mr. ROUNDS, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 2756, a bill to impose sanctions with respect to Iranian persons responsible for knowingly engaging in significant activities undermining cybersecurity, and for other purposes.

S. 2770

At the request of Mr. ROBERTS, the name of the Senator from Missouri (Mr. BLUNT) was added as a cosponsor of S. 2770, a bill to amend the Communications Act of 1934 to require providers of a covered service to provide call location information concerning the telecommunications device of a user of such service to an investigative or law enforcement officer in an emergency situation involving risk of death or serious physical injury or in order to respond to the user's call for emergency services.

S. 2826

At the request of Mr. WARNER, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 2826, a bill to ensure the effective and appropriate use of the Lowest Price Technically Acceptable source selection process.

S. 2840

At the request of Mr. CORNYN, the names of the Senator from Indiana (Mr. DONNELLY), the Senator from West Virginia (Mr. MANCHIN) and the Senator from Kentucky (Mr. MCCONNELL) were added as cosponsors of S. 2840, a bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize COPS grantees to use grant funds for active shooter training, and for other purposes.

S. 2897

At the request of Mr. BLUMENTHAL, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 2897, a bill to amend title 9, United States Code, with respect to arbitration.

S. 2903

At the request of Mr. REID, the name of the Senator from Georgia (Mr. ISAKSON) was added as a cosponsor of S. 2903, a bill to award a Congressional Gold Medal to former United States Senator Max Cleland.

S. RES. 373

At the request of Ms. HIRONO, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. Res. 373, a resolution recognizing the historical significance of Executive Order 9066 and expressing the sense of the Senate that policies that discriminate against any individual based on the actual or perceived race, ethnicity, national origin, or religion of that individual would be a repetition of the mistakes of Executive Order 9066 and contrary to the values of the United States.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 460—COMMEMORATING THE 50TH ANNIVERSARY OF CASCADE HEAD PRESERVE, AN OREGON NATURAL ICON

Mr. WYDEN (for himself and Mr. MERKLEY) submitted the following resolution; which was referred to the Committee on Energy and Natural Resources:

S. RES. 460

Whereas 2016 marks the 50th anniversary of Cascade Head Preserve, a 270-acre preserve that is located north of Lincoln City, Oregon, and was protected from development in 1966;

Whereas, nestled within lands managed by the United States Forest Service, Cascade Head Preserve is home to many species of wildlife, plants, and grassland communities that were once abundant along the Oregon coast;

Whereas the local community and volunteers helped protect Cascade Head Preserve 50 years ago and, along with The Nature Conservancy, have remained actively engaged in its stewardship;

Whereas Cascade Head Preserve, along with the adjacent segment of the Siuslaw National Forest, has been recognized as a National Scenic Research Area and a United Nations Biosphere Reserve for its ecological significance;

Whereas it is estimated that more than 15,000 people visit Cascade Head Preserve annually, using it as a laboratory of nature to learn about grassland restoration and threatened species, such as the Oregon silverspot butterfly, or to enjoy recreational activities along the Pacific Ocean and its coastal estuaries;

Whereas Cascade Head Preserve is known for harboring rare and endemic plants, including 99 percent of the known Cascade Head catchfly flower population;

Whereas Cascade Head Preserve has hosted teams of well-known ecologists and experts from universities, zoological institutions, and Federal and State agencies who have employed cutting-edge science to catch, rear

in captivity, and reintroduce into nature the threatened Oregon silverspot butterfly;

Whereas tourism and recreation in Cascade Head Preserve have helped stimulate the local economy by supporting seasonal and full-time jobs and by driving economic activity along the Oregon coast; and

Whereas Cascade Head Preserve also serves as a classroom for youth from across the United States who learn about the importance of restoring habitats adjacent to Cascade Head Preserve, including the restoration of tidal wetlands that provide a vital habitat for salmon and the recent protection of 122 square miles of marine reserves along the Oregon coast, which support community fisheries and local livelihoods: Now, therefore, be it

Resolved, That the Senate—

(1) commemorates the 50th anniversary of Cascade Head Preserve; and

(2) applauds the outstanding commitment of the stewards of Cascade Head Preserve, naturalists, volunteers, and community leaders for—

(A) protecting the ecological significance of Cascade Head Preserve; and

(B) supporting the local economy through tourism and recreation.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3890. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table.

SA 3891. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, supra; which was ordered to lie on the table.

SA 3892. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, supra; which was ordered to lie on the table.

SA 3893. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, supra; which was ordered to lie on the table.

SA 3894. Mr. MCCONNELL (for Mrs. ERNST) proposed an amendment to the bill H.R. 4336, to amend title 38, United States Code, to provide for the burial in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service.

SA 3895. Mr. MCCONNELL (for Mrs. ERNST) proposed an amendment to the bill H.R. 4336, supra.

TEXT OF AMENDMENTS

SA 3890. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

On line 1, strike ''4 days'' and insert the following: ''3 days''.

SA 3891. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

This Act shall become effective 4 days after enactment.

SA 3892. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

This Act shall become effective 1 day after enactment.

SA 3893. Mr. REID submitted an amendment intended to be proposed by him to the bill H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, and for other purposes; which was ordered to lie on the table; as follows:

At the end, add the following:

This Act shall become effective 2 days after enactment.

SA 3894. Mr. MCCONNELL (for Mrs. ERNST) proposed an amendment to the bill H.R. 4336, to amend title 38, United States Code, to provide for the burial in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service; as follows:

On page 2, line 1, strike ''**BURIAL**'' and insert ''**INURNMENT**''.

On page 2, line 8, strike ''that'' and insert ''that,''.

On page 2, line 11, insert ''above ground'' before ''inurnment''.

SA 3895. Mr. MCCONNELL (for Mrs. ERNST) proposed an amendment to the bill H.R. 4336, to amend title 38, United States Code, to provide for the burial in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service; as follows:

Amend the title so as to read: ''An Act to amend title 38, United States Code, to provide for the inurnment in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service.''.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on May 10, 2016, at 10 a.m., in room SR–253 of the Russell Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on May 10, 2016, at 2 p.m., in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Can Evidence Based Practices Improve Outcomes for Vulnerable Individuals and Families?''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on May 10, 2016, at 10 a.m., to conduct a hearing entitled ''Terrorism and Instability in Sub-Saharan Africa.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on May 10, 2016, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Understanding Dyslexia: The Intersection of Scientific Research & Education.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on May 10, 2016, at 9:30 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Oversight and Reauthorization of the FISA Amendments Act: The Balance between National Security, Privacy and Civil Liberties.''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. COTTON. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on May 10, 2016, at 2:30 p.m., in room SH–219 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON EMERGING THREATS AND CAPABILITIES

Mr. COTTON. Mr. President, I ask unanimous consent that the Subcommittee on Emerging Threats and Capabilities of the Committee on Armed Services be authorized to meet during the session of the Senate on May 10, 2016, at 3:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON PERSONNEL

Mr. COTTON. Mr. President, I ask unanimous consent that the Subcommittee on Personnel of the Committee on Armed Services be authorized to meet during the session of the Senate on May 10, 2016, at 11 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON READINESS AND MANAGEMENT SUPPORT

Mr. COTTON. Mr. President, I ask unanimous consent that the Subcommittee on Readiness and Management Support of the Committee on Armed Services be authorized to meet during the session of the Senate on May 10, 2016, at 2 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON SEAPOWER

Mr. COTTON. Mr. President, I ask unanimous consent that the Subcommittee on Seapower of the Committee on Armed Services be authorized to meet during the session of the Senate on May 10, 2016, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON STRATEGIC FORCES

Mr. COTTON. Mr. President, I ask unanimous consent that the Subcommittee on Strategic Forces of the Committee on Armed Services be authorized to meet during the session of the Senate on May 10, 2016, at 5:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. SULLIVAN. Mr. President, I also ask unanimous consent that privileges of the floor be granted to the following member of my staff: Dave Deptula, during the remainder of today's session.

The PRESIDING OFFICER. Without objection, it is so ordered.

CHILDREN OF FALLEN HEROES SCHOLARSHIP ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the HELP Committee be discharged from further consideration of S. 1352 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 1352) to increase Federal Pell Grants for the children of fallen public safety officers, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. I ask unanimous consent that the bill be read a third time and passed, and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 1352) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 1352

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Children of Fallen Heroes Scholarship Act''.

SEC. 2. CALCULATION OF ELIGIBILITY.

Section 473(b) of the Higher Education Act of 1965 (20 U.S.C. 1087mm(b)) is amended—

(1) in paragraph (2)—

(A) in the matter preceding subparagraph (A), by inserting ''(in the case of a student who meets the requirement of subparagraph (B)(i)), or academic year 2015–2016 (in the case of a student who meets the requirement of subparagraph (B)(ii)),'' after ''academic year 2009–2010''; and

(B) by amending subparagraph (B) to read as follows:

''(B) whose parent or guardian was—

''(i) a member of the Armed Forces of the United States and died as a result of performing military service in Iraq or Afghanistan after September 11, 2001; or

''(ii) actively serving as a public safety officer and died in the line of duty while performing as a public safety officer; and'';

(2) in paragraph (3)—

(A) by striking ''Notwithstanding'' and inserting the following:

''(A) ARMED FORCES.—Notwithstanding'';

(B) by striking ''paragraph (2)'' and inserting ''subparagraphs (A), (B)(i), and (C) of paragraph (2)''; and

(C) by adding at the end the following:

''(B) PUBLIC SAFETY OFFICERS.—Notwithstanding any other provision of law, unless the Secretary establishes an alternate method to adjust the expected family contribution, for each student who meets the requirements of subparagraphs (A), (B)(ii), and (C) of paragraph (2), a financial aid administrator shall—

''(i) verify with the student that the student is eligible for the adjustment;

''(ii) adjust the expected family contribution in accordance with this subsection; and

''(iii) notify the Secretary of the adjustment and the student's eligibility for the adjustment.''; and

(3) by adding at the end the following:

''(4) TREATMENT OF PELL AMOUNT.—Notwithstanding section 1212 of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796d–1), in the case of a student who receives an increased Federal Pell Grant amount under this section, the total amount of such Federal Pell Grant, including the increase under this subsection, shall not be considered in calculating that student's educational assistance benefits under the Public Safety Officers' Benefits program under subpart 2 of part L of title I of such Act.

''(5) DEFINITION OF PUBLIC SAFETY OFFICER.—For purposes of this subsection, the term 'public safety officer' means—

''(A) a public safety officer, as defined in section 1204 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796b); or

''(B) a fire police officer, defined as an individual who—

''(i) is serving in accordance with State or local law as an officially recognized or designated member of a legally organized public safety agency;

''(ii) is not a law enforcement officer, a firefighter, a chaplain, or a member of a rescue squad or ambulance crew; and

''(iii) provides scene security or directs traffic—

''(I) in response to any fire drill, fire call, or other fire, rescue, or police emergency; or

''(II) at a planned special event.''.

SEC. 3. CALCULATION OF PELL GRANT AMOUNT.

Section 401(b)(2) of the Higher Education Act of 1965 (20 U.S.C. 1070a(b)(2)) is amended—

(1) in subparagraph (A), in the matter preceding clause (i), by striking ''The Amount'' and inserting ''Subject to subparagraph (C), the amount''; and

(2) by adding at the end the following new subparagraph:

''(C) In the case of a student who meets the requirements of subparagraphs (A), (B)(ii), and (C) of section 473(b)(2)—

''(i) clause (ii) of subparagraph (A) of this paragraph shall be applied by substituting 'from the amounts appropriated in the last enacted appropriation Act applicable to that award year, an amount equal to the amount of the increase calculated under paragraph (7)(B) for that year' for 'the amount of the increase calculated under paragraph (7)(B) for that year'; and

''(ii) such student—

''(I) shall be provided an amount under clause (i) of this subparagraph only to the extent that funds are specifically provided in advance in an appropriation Act to such students for that award year; and

''(II) shall not be eligible for the amounts made available pursuant to clauses (i) through (iii) of paragraph (7)(A).''.

SEC. 4. BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the Senate Budget Committee, provided that such statement has been submitted prior to the vote on passage.

SEC. 5. EFFECTIVE DATE.

This Act, and the amendments made by this Act, shall take effect on July 1, 2015.

AMERICAN MANUFACTURING COMPETITIVENESS ACT OF 2016

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 4923, which was received from the House.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (H.R. 4923) to establish a process for the submission and consideration of petitions for temporary duty suspensions and reductions, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 4923) was ordered to a third reading, was read the third time, and passed.

PROVIDING FOR THE BURIAL IN ARLINGTON NATIONAL CEMETARY OF THE CREMATED REMAINS OF CERTAIN PERSONS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Veterans' Affairs be discharged from further consideration of H.R. 4336 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (H.R. 4336) to amend title 38, United States Code, to provide for the burial in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Ernst amendment be agreed to, the bill, as amended, be read a third time and passed, the Ernst title amendment be agreed to, and the motions to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment (No. 3894) was agreed to, as follows:

(Purpose: To improve the bill)

On page 2, line 1, strike ''**BURIAL**'' and insert ''**INURNMENT**''.

On page 2, line 8, strike ''that'' and insert ''that,''.

On page 2, line 11, insert ''above ground'' before ''inurnment''.

The amendment was ordered to be engrossed, and the bill to be read a third time.

The bill was read the third time.

The bill (H.R. 4336), as amended, was passed.

The amendment (No. 3895) was agreed to, as follows:

(Purpose: To amend the title)

Amend the title so as to read: ''An Act to amend title 38, United States Code, to provide for the inurnment in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service.''.

RECOGNIZING HAFSAT ABIOLA, KHANIM LATIF, YOANI SANCHEZ, AND AKANKSHA HAZARI FOR THEIR SELFLESSNESS AND DEDICATION TO THEIR RESPECTIVE CAUSES

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of Calendar No. 450, S. Res. 418.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 418) recognizing Hafsat Abiola, Khanim Latif, Yoani Sanchez, and Akanksha Hazari for their selflessness and dedication to their respective causes, and for other purposes.

There being no objection, the Senate proceeded to consider the resolution.

Ms. COLLINS. Mr. President, I wish to honor and congratulate the Vital Voices Global Partnership and the 2016 Vital Voices Award recipients.

Over the last 15 years, the Vital Voices Global Partnership has trained and mentored more than 14,000 women in 144 countries. Vital Voices equips these women leaders with the management, business development, marketing, and communication skills required to expand their enterprises, provide for their families, and create jobs in their communities. By helping to identify, invest in, and bring visibility to these extraordinary women around the world, Vital Voices is helping to unleash the enormous leadership potential of these women to transform lives and accelerate the pace of peace and prosperity.

This year's award recipients include: Hafsat Abiola of Nigeria, founder of the Kudirat Initiative for Democracy that campaigns to end violence against women—Hafsat trains young female leaders and works to increase civic participation; Khanim Latif of Iraq, the director of Asuda—Khanim places her life at risk to provide safe-haven to victims of sexual and gender-based violence, works to protect survivors of domestic violence, and fights threats of honor killings, female genital cutting, and sexual violence; Yoani Sanchez of Cuba, creator of Generacion Y—Yoani created this blog in April 2007 to capture daily life in Cuba in an effort to encourage political change and increase public awareness and engagement; and Akanksha Hazari of India—Akanksha fights to deliver basic necessities such as clean water and electricity to impoverished communities and to empower the underserved in India.

Such leaders, through their selfless efforts and advocacy, continue to advance social justice, support democracy, and work to increase stability across the globe.

I am pleased to have submitted this resolution, along with my friend and colleague Senator FEINSTEIN, recognizing the 2016 Vital Voices Global Partnership Award recipients and commending them for their efforts to advance economic opportunity, increase political and public leadership, combat violence against women, and empower women to address global instability.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 418) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of April 12, 2016, under ''Submitted Resolutions.'')

ORDERS FOR WEDNESDAY, MAY 11, 2016

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m., Wednesday, May 11; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate then resume consideration of H.R. 2028; I further ask that notwithstanding rule XXII, if cloture is not invoked on the Cotton amendment No. 3878, there be an hour of debate equally divided in the usual form, and that following the use or yielding back of time, Senator COTTON or his designee be recognized to withdraw the amendment without any intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 6:17 p.m., adjourned until Wednesday, May 11, 2016, at 9:30 a.m.

EXTENSIONS OF REMARKS

HONORING THE 2016 ARMED FORCES ENLISTEES FROM FREDERICKSBURG, VA

HON. ROBERT J. WITTMAN

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. WITTMAN. Mr. Speaker, I rise today to recognize the 121 high school seniors in the Fredericksburg, Virginia area who plan to enlist in the United States Armed Forces after graduation. These students have excelled in their academic and extracurricular activities, and I offer my sincere congratulations upon their high school graduation.

Altizer, Zachary; Barrett, Isiah Thomas; Buckley, Jacob Thomas; Croce, Reed; Dingus, Adam Jacob; Dreyer, Jacob Clark; Eiley III, Raymond; Fones, Sean Tyler; Gill, Tyler James; Gordon, Jarrett Reid; Hanse, Martin; Hardy, Tanner Ramsey; Hebdon, Curtis Allen; Higgins, Draylon C; Holmes, Gregory Rolland; Jackson, Anthony; Kelly, Benjamin Wyatt; Knowles, Trent Hunter; Krieter, Jacob Andrew; Krieter, Joseph Paul; Lawson, Ethan William; Lisovich, Thomas Jerome; Lloyd, Coby Jacob; McAllister, William Edward; Michalechen, Alec; Moore, Jahlil; Nelson, Jacob Robert; Oliviera, Logan; Ross, Mathew Andrew; Shay, Matthew Ellis; Sivigny, Douglas; Tibbs, Lytesha Tayquona; Vangorder, Tanner Clyde; Ziadeh, Clinton Austin.

Manuel, Jackson; Ewer, Winter; Patterson, Chance William; Gaskins, Taquana Athalia; Foley, Michael Andrew; Andah, Kow Issiw; Pierson, Thomas Richard; Huber, Colby Toler; Hayes, William Cody; Leitch, Nicholas Ashley; Apperson, Brandon Alex; Martinez, Carlos Everardo; Kirkpatrick, Jacob Aaron; Ruff, Jordan Thomas Philip; Dileo, Robert Gerard; Rock, Desmond Marcell; Gainey, English Blake; Whitaker, Bradley Eugene; Cook, John Lee; Bermudez, Brency; Broussard, Nicole Lynn; Shivers, Jonathan Jay; Snyder, Andrew Thomas; Kinsella, Sean William; Green, Heaven Leigh; Lee, Kelsey Reed; Sublett, Gregory Allen; Sanat, Reza Emanuel; Mariner, Robert Anthony; Abielmona, Mazen; Silver, Benjamin Isaac Landon; Good, Connor David; Straughan, Jessica Lee; Aron, Curtis Davion; Stillabower, Adam Bradley; Sampath, Vimal Ganapathy; Dogra, Praveen; Sanit Asante, Kweku; Valencia Alvarez, Mario Gabriel; Cory, Hunter; Dunn, Sean; Garcia, Jose; Grant, Jame; Isom, Khaliyah; Licht, Benjamin; Moffo, Borian; Owens, Tomomi; Patterson, Arielle; Smith, Toby; Abdullah, Arahim; Cross, Nygel; Sporney, Kory.

Dejesus, Sarah; Herin, Justin; Travers, Carrington; Williams, Namon; Lowery, Krystal; Lober, Zachary; Gilstrap, Jaclyn; Alexander, Mikayla; Patton, David; Deputy, William; Smith, Gary.

Auerbach, Anthony; Baskerville, Dre'Shawn; Beitzel, Nathaniel; Castellino, Rachel; Dale, John Barron; Davis, Brody Logan; Eubanks, Lamont; Fuller, Corey; Gray, Kevin; Hicks, Zahn; Holman, Andrew James; Holmes, Kendall; Howard, Alxendra; Hunley, David; Jolly, Autumn Nicole; Mamboyo, Juan E. Balguin; McGovern, Samuel; Mullins, Blaine; Prince, Colton Dean; Proudfoot, Garrison A.; Savoie, Henry; Soper, Charles Grayson; Stauber, June Maria, Jacob, Lydia.

These students will be honored by the Greater Fredericksburg Chapter of Our Community Salutes at their 5th Annual Military Enlistee Recognition Ceremony on Saturday, May 14, 2016 at the University of Mary Washington in Fredericksburg, VA.

Mr. Speaker, I ask my colleagues to join me in thanking these young men and women and their families for their dedication to serving this great Nation. We owe them and the many Americans who have served, and will serve, a debt of gratitude.

HONORING JANE EHRLICH

HON. CHRISTOPHER P. GIBSON

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. GIBSON. Mr. Speaker, I rise to honor Jane Ehrlich, who served for nearly two decades as Columbia Memorial Hospital's chief executive officer.

Jane is this year's Columbia County Association's Distinguished Citizen Award recipient. She has always been passionate about the healthcare field and expanding access in Columbia and Greene Counties.

From an early age, Jane knew she was called to the healthcare profession; tending to her dolls and pets as patients. By the age of 16, she was working in health care. Jane took advantage of a program that allowed high school juniors entering their senior year to work full-time as a nurse's aide and rotate through the hospital.

Following nursing school, Jane worked as a clinical nurse in New York City and Boston. Eventually she was introduced to the administration side of healthcare, to which she took an interest. This led Jane to pursue an MBA with a major in Health Care Administration.

Jane was ultimately offered the position of CEO at Columbia Memorial Hospital in 1994. At the time, the hospital was nearly bankrupt and was losing patients to other area facilities. Shortly after assuming the role, Jane brought the board of directors together and improved the hospital's financial stability and performance, made technological upgrades, and improved staff accommodations and morale. Through these successes, the surrounding community was presented with expanded care and access to vital medical services.

By 1997, Jane's leadership put the hospital in the fiscal position to add a new unit called The Family Birthplace. This state of the art facility encouraged birth as a family experience and was shortly followed by the Kellner Wing. The Kellner Wing housed the Emergency Department and Surgical Services. These important expansions proved the hospital was poised for a bright future.

Jane further worked to expand the hospital's physician network that focused on patient-centric care and a nearly fully integrated system.

Mr. Speaker, Jane Ehrlich has distinguished herself throughout her remarkable twenty-plus-year career with Columbia Memorial Hospital where she has expanded care and choice in Upstate New York. I ask my colleagues to join me in congratulating her on her countless achievements during a remarkable career, thank her for what she did to expand healthcare access for my home county and the surrounding area, and wish her all the best in her retirement.

SAN DIEGO ZOO GLOBAL CELEBRATES 100 YEARS

HON. SUSAN A. DAVIS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mrs. DAVIS of California. Mr. Speaker, I am proud to stand in recognition of one of our nation's most iconic institutions as it celebrates its 100th anniversary. The San Diego Zoo is one of our city's most cherished landmarks, and has been consistently recognized among the world's top zoos. But it is much more than a zoo—it is an economic driver, it educates thousands of children and teachers, and it includes the largest zoo-based conservation research center in the world. It is a place where generations of families have come to appreciate and celebrate the great significance of our planet's most amazing creatures.

The San Diego Zoo was founded in 1916 by Dr. Harry M. Wegeforth, Dr. Paul Wegeforth, Dr. Fred Baker, Dr. Joseph C. Thompson, and naturalist Frank Stephens. It began as a sanctuary for animals abandoned after the 1915–1916 Panama-California Exposition held in San Diego, and it quickly became a home for exotic animals donated by private owners, purchased from circuses and other zoos, and recovered from challenging situations in the wild. It is now one of the largest and most important institutions in our city of San Diego and in the State of California.

Under current President and CEO Doug Myers' stewardship and vision, the San Diego Zoo has transformed into San Diego Zoo Global, an internationally acclaimed conservation organization. With the mission to ''Save species worldwide by uniting our expertise in animal care and conservation science with our dedication to inspiring a passion for nature,'' this truly global organization aids recovery efforts around the world. San Diego Zoo Global's Institute for Conservation Research took the lead in saving the California condor by designing and implementing a successful captive-breeding program. Thanks to their tireless efforts, a species that was on the brink of extinction 25 years ago now has a population of over 420, with more than 200 living in the wild in California, Arizona, Utah, and Mexico.

San Diego Zoo Global is also investing in the future of conservation. Its Global Wildlife

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Biobank, which stores frozen viable cell cultures, tissue samples, and DNA of more than 10,000 individual animals representing 1,000 species, is perhaps the most important biological vault in the world. This invaluable resource will help San Diego Zoo Global in its mission to lead the fight against extinction, and researchers, universities, and scientific institutions around the world will use it for generations to come.

San Diego Zoo Global is not only a catalyst for wildlife conservation, it is an economic driver, attracting more than five million visitors annually and employing our citizens in its parks and research facilities. In 2014, a San Diego Taxpayers Association research study reported that San Diego Zoo Global had an annual economic impact of $1.2 billion—roughly the GDP of Australia. It is one of our city's largest and most stable private employers with 1,610 full-time employees, approximately a quarter of whom have been with the institution for more than 20 years.

In addition, San Diego Zoo Global is making an immediate and lasting impact in our nation's classrooms, producing educational materials for children and hosting hands-on conservation research workshops for middle and high school teachers from around the country. Educating and inspiring the next generation to be passionate about wildlife conservation is vital for long-term conservation efforts, and it all begins with one teacher inspiring one classroom.

David Attenborough once said, ''People are not going to care about animal conservation unless they think that animals are worthwhile.'' San Diego Zoo Global and their tireless dedication to saving species has not only taught us all that animals are indeed worthwhile—they have set a new standard for zoological institutions worldwide to adopt and share their commitment to wildlife conservation. San Diego Zoo Global has educated generations to appreciate and understand that all creatures, from the African elephant to the kangaroo rat, are vitally important to life here on Earth—and that we all have a role to play in their care and conservation.

On behalf of San Diego's Congressional Delegation, I graciously commend San Diego Zoo Global on their 100th Anniversary, for being a beacon for our city of San Diego—driving our economy, educating our students, and bringing the world's animals into our lives, our classrooms, and our consciousness—and leading the fight to end extinction.

RECOGNIZING OLDER AMERICANS MONTH

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HIGGINS. Mr. Speaker, it is with great pride that I stand before you today to recognize the contributions of past and current older persons to our country, in particular, those who defended our country. Every President since Kennedy has issued a formal proclamation during or before the month of May, asking the entire nation to pay tribute in some way to older persons in their communities. Older Americans Month is celebrated across the country through ceremonies, events, fairs, and other such activities. Centers such as the Salvation Army Golden Age Center in Buffalo, New York are dedicated to serving those who have given so much.

When Older Americans Month was established in 1963, only 17 million living Americans had reached their 65th birthday. About a third of older Americans lived in poverty and there were few programs to meet their needs. Interest in older Americans and their concerns was growing. A meeting in April 1963 between President John F. Kennedy and members of the National Council of Senior Citizens led to designating May as ''Senior Citizens Month,'' the prelude to ''Older Americans Month.''

Older Americans Month includes a community of older Americans who deserve recognition for their contributions to our nation and recognizes that older adults are trailblazers—advocating for themselves, their peers, and their communities—paving the way for future generations. This act is committed to raising awareness about issues facing older Americans and helping all individuals to thrive in communities of their choice for as long as possible. We appreciate the value of inclusion and support in helping older adults successfully contribute to and benefit from their communities.

I wholeheartedly believe that our community can provide opportunities to enrich the lives of individuals of all ages by, promoting and engaging in activity, wellness, and social involvement; emphasizing home and community-based services that support independent living and ensuring community members can benefit from the contributions and experience of older adults.

Mr. Speaker, thank you for allowing me a few moments to honor and recognize Older Americans Month. I urge every resident to take time this month to acknowledge older adults and the people who serve them as powerful and vital individuals who greatly contribute to our community, such as those at the Salvation Army Golden Age Center.

HONORING LORRAINE MIVILLE IN CELEBRATION OF HER 85TH BIRTHDAY

HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. GUINTA. Mr. Speaker, I would like to express my congratulations to Lorraine Miville in celebration of her reaching the milestone 85th birthday.

As she reflects on the great memories and milestones that have highlighted the past eighty five years, I know she will think fondly on all that she's accomplished and the positive impact she's had on New Hampshire.

It is with great admiration that I congratulate Ms. Miville on achieving this wonderful milestone, and wish her the best on all future endeavors.

CELEBRATING THE ACCOMPLISHMENTS AND LIVING LEGACY OF ROSE SCHETROMPF ON HER 100TH BIRTHDAY

HON. BILL SHUSTER

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. SHUSTER. Mr. Speaker, today I would like to celebrate Rose Schetrompf of Bedford County for recently turning 100 years old. As this tremendous milestone illustrates, Rose is truly a remarkable person. She is a loving parent and grandparent, a long-time small business owner, and a pillar in the community.

Starting in the 1950s, at the Murphy building in Everett, Pennsylvania, Rose opened up Rose Schetrompf Beauty Shop, which she subsequently managed until she was 95 years old. While the location of Rose Schetrompf Beauty Shop may have moved around Everett over the years, one thing always stayed the same: her business's reliable and quality work, which is evidenced by the fact that some of Rose's most loyal customers went to the shop for over 40 years.

I think everyone who went to Rose over the years has their own story, but one that stands out is her commitment to serving her customers. Nothing could stop Rose, including a broken bone. As the story goes, when Rose sustained a broken wrist, she worked right through the injury instead of taking time off, like many people with a physically demanding job might have. Additionally, she is known for her continued willingness to learn the newest hairstyles, which ensured her long-standing business success over the years. When Rose isn't working, she has always been known for finding ways to give back to the community, and that is something that may be just as memorable as her beauty shop.

When people are asked to describe Rose, one of the first things they say is that she is a genuinely great person. During Rose's recent birthday celebration, one of her grandchildren asked her what she attributed her long and full life to. Rose's answer was, ''hard work.'' So today on behalf of the people of Bedford County I would like to thank and recognize Rose for her hard work and role in the community.

RECOGNIZING NORTHWEST INDIANA'S NEWLY NATURALIZED CITIZENS

HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. VISCLOSKY. Mr. Speaker, it is with great pleasure and sincerity that I take this time to congratulate thirty-one individuals who will take their oath of citizenship on Friday, May 13, 2016. This memorable occasion, presided over by Judge Joseph Van Bokkelen, will be held at the United States Courthouse and Federal Building in Hammond, Indiana.

America is a country founded by immigrants. From its beginning, settlers have come from countries around the world to the United States in search of better lives for their families. Oath ceremonies are a shining example

of what is so great about the United States of America—that people from all over the world can come together and unite as members of a free, democratic nation. These individuals realize that nowhere else in the world offers a better opportunity for success than here in America.

On May 13, 2016, the following people, representing many nations throughout the world, will take their oaths of citizenship in Hammond, Indiana: Inger Adriana Hamilton, Allen Grayson Oliver, Filip Kaevski, Deepa Majumdar, Mary Kumba Narsu Nyuma, Harnek Singh Bhangoo, Leda Louie Medera Sarmiento, Reynaldo Zavala Reyes, Dhruti Dharmesh Shah, Shaymaa Kareem Abdulameer, Saima Ali Khan, Lyubov Mykolayivna Shteyn, Obren Gutovic, Eugenio Miranda Leon, Andrea Leal Espino, Carlos Grageda Arzate, Mary Cruz Aguilar, Mia Bella Alvarado, Arturo Amezcua, Elena Leona Bowser, Sherry Chen, Jose Estrada, Fatima Dinora Vazquez, Maria Concepcion Gonzalez, Tin Mang Hlawnceu, Emilia Tabas Jagier, Jesse Jimenez, Mirlym Italia Milfort, Dimitar Vladimir Paunche, Rose Tran, and Chinelo Marilyn Udokoro.

Although each individual has sought to become a citizen of the United States for his or her own reasons, be it for education, occupation, or to offer their loved ones better lives, each is inspired by the fact that the United States of America is, as Abraham Lincoln described it, a country ''. . . of the people, by the people, and for the people.'' They realize that the United States is truly a free nation. By seeking American citizenship, they have made the decision that they want to live in a place where, as guaranteed by the First Amendment of the Constitution, they can practice religion as they choose, speak their minds without fear of punishment, and assemble in peaceful protest should they choose to do so.

Mr. Speaker, I respectfully ask you and my other distinguished colleagues to join me in congratulating these individuals who will become citizens of the United States of America on May 13, 2016. They, too, are American citizens, and they, too, are guaranteed the inalienable rights to life, liberty, and the pursuit of happiness. We, as a free and democratic nation, congratulate them and welcome them.

HONORING JACK BERITZHOFF

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HUFFMAN. Mr. Speaker, I rise today in honor of Jack Beritzhoff, who passed away on Thursday, April 21 in San Rafael, California at the age of 97. A Merchant Marine who served in both World War II and the Korean War, Mr. Beritzhoff advocated for the federal government to recognize his service and the service of nearly a quarter million other WWII Merchant Mariners.

After a sea accident curtailed his Navy service, Mr. Beritzhoff joined the war effort as a Merchant Marine, a civilian sailor on ships carrying military cargo and supplies. During the war, he and his fellow Mariners delivered 203 million tons of materials, including bombs, guns, tanks, and troops, at great personal risk. Although the WWII Merchant Marines faced the second highest casualty rate, they were not officially recognized as Veterans. During the war, President Franklin Roosevelt had promised that the Mariners would receive full Veterans' benefits, but when he passed away that promise died with him. Mr. Beritzhoff and his fellow mariners were left out of the G.I. Bill, and it was not until an act of Congress in 1988 that they became eligible for Veteran status, which allowed them to enter VA hospitals, among other services.

In the years since, Mr. Beritzhoff was a fierce advocate for recognizing the Mariners' contributions to the war, lobbying the White House and Congress and writing a book about his experience at sea. Last year, my colleagues JANICE HAHN and JOHN DUNCAN introduced H.R. 563, the World War II Merchant Mariners Act. If passed, the bill would recognize the 3,000–5,000 eligible WWII Merchant Marines ''for their bravery and sacrifice,'' and award them $25,000 each.

A lifelong Californian, Mr. Beritzhoff will be remembered for his sense of humor, love for his family, and steadfast devotion to his cause. It is therefore appropriate that we pay tribute to him today and express our deepest condolences to his surviving family and friends.

HONORING REVEREND JON PEDIGO

HON. ZOE LOFGREN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Ms. LOFGREN. Mr. Speaker, I rise today to recognize the 25th Anniversary of Ordination of our pastor and friend, Reverend Jon Pedigo.

Reverend Pedigo currently serves as a pastor of Our Lady of Guadalupe Church in East San Jose and has been a fixture in our community's spiritual life for over two decades. His dedicated and adroit leadership in the issues of immigrant and workers' rights, LGBT rights, and a focus on carving a path forward to a more peaceful world have been well known and a source of pride throughout our community. As a pastor at St. Julie Billiart Parish in South San Jose, Reverend Pedigo delivered his homily on the story of Bartimaeus in this way: ''Physical sight was Bartimaeus's issue,'' he said, ''but the real sin was the blindness in the seeing-people around him. Seeing-people see skin color, status, age, gender, weight, orientation, education level, etc. They do not see the real you.'' Reverend Pedigo has been and continues to be a strong advocate for equal rights and fairness before our laws and in our culture.

As he now serves the community at Our Lady of Guadalupe Church, a spiritual haven to many working class immigrant families, Reverend Pedigo helps draw together multiple generations of parishioners of diverse cultural and socioeconomic backgrounds and preaches inclusivity and mutual respect in the face of the issues that sometimes divide our society. ''In a time of hate, we must be love,'' he has said. ''At a time of exclusion, we must be inclusive.''

Mr. Speaker, I am delighted to honor Reverend Pedigo for his twenty-five years of service to our community. Reverend Jon Pedigo is an exemplar of selfless service to others. With his dedicated work, he has served to improve the lives of the parishioners who come to him for solace, respite, and guidance. I know that his many friends and colleagues join me in recognizing this milestone in his life.

RECOGNIZING APRIL 17 AS WORLD HEMOPHILIA DAY

HON. SCOTT H. PETERS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. PETERS. Mr. Speaker, I rise today to recognize April 17 as World Hemophilia Day.

Hemophilia is among the range of disorders that impacts fewer than 200,000 annually—thereby classifying it as a rare disease. It is a genetic disorder in which the blood doesn't clot, causing excessive bleeding and easy bruising. Without proper treatment, it can lead to organ damage, serious joint and muscle problems, and terrible pain. More than 20,000 Americans suffer from hemophilia, including an estimated 400 newborns.

In my district, the Hemophilia Association of San Diego County provides educational programming and support services for families in San Diego. They have worked with national organizations and industry partners to improve healthcare, support research, and provide necessary resources for the bleeding disorders community since 1973.

Today, there are about 141 federally-funded treatment centers and programs across the country, including two Hemophilia Treatment Centers in San Diego; Rady Children's Hospital and the University of California San Diego Health. The financial burden for individuals with severe hemophilia is often $250,000 a year or more. It is important to acknowledge the financial burden for individuals with severe hemophilia and their families. We must continue to invest in research and support efforts to make treatment more accessible to help improve the quality of life for people with Hemophilia.

RECOGNIZING ROSEANNE BUTLER-SMITH AS SHE IS HONORED BY THE AMHERST WOMEN'S INTERCLUB COUNCIL

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HIGGINS. Mr. Speaker, I rise today to recognize Ms. Roseanne Butler-Smith for her honorable service and dedication to our communities, especially our libraries, on the occasion of the Kentucky Derby Luncheon at the Buffalo Niagara Heritage Village, hosted by the Amherst Women's Interclub Council.

Ms. Butler-Smith earned her B.A. degree in History from Canisius College, as well as a Master's in Library Science and Information from the State University of New York at Buffalo. She is an active member of the community who loves to garden, travel, and even serves as a Boy Scout Leader with Troop 468. She currently serves as the Director of the Amherst Public Libraries, which includes the Williamsville Branch Library. Ms. Butler-Smith

is a member of the New York State Library Association, American Library Association and Public Library Association.

In 2005, budget cuts eliminated funding for the Williamsville Library, which had been a fixture of the town for over 100 years. Ms. Butler-Smith, along with a few dedicated others, raised funds to enable the library to remain open. Afterward, the Williamsville Business Association's Community Enhancement Committee founded the "Love Your Village; Love your Library" movement in support of the Williamsville Library. In 2012, the first annual gala fundraiser for the library was held. In the last five years, the event has grown enormously, and has successfully raised thousands of dollars for the Williamsville branch.

As Amherst Library Director, Ms. Butler-Smith manages the use of this funding. Ms. Butler-Smith's leadership has resulted in great accomplishments for the Williamsville library, including the ability for the library to remain open every Saturday throughout the year.

Ms. Butler-Smith's dedication to our community is equaled only by her commitment to her family. With her husband of 25 years, Gordie Smith, they have raised three children: Ryan, Conner, and Colleen.

Mr. Speaker, thank you for allowing me a few moments to honor the work of Mrs. Roseanne Butler-Smith. I ask that my colleagues join me in expressing thanks for her admirable work for Western New York.

COMMENDING LOCAL 2016 HIGH SCHOOL GRADUATES FOR THEIR DECISION TO ENLIST IN THE UNITED STATES ARMED FORCES AND OUR COMMUNITY SALUTES OF HENRICO, VIRGINIA FOR HOSTING THE FIRST ANNUAL HIGH SCHOOL ENLISTEE RECOGNITION CEREMONY

HON. DAVE BRAT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. BRAT. Mr. Speaker, I rise today to recognize the 39 Henrico County, Virginia area high school seniors who plan to enlist in the United States Armed Forces after graduation. These students have excelled in their academic and extracurricular activities, and I offer my sincere congratulations for their selflessness and courageous decision to serve their country upon their high school graduation.

I commend these student leaders for their selflessness and courageous decision to serve their country as members of the United States Armed Forces.

Anderson, Darius; Burch, Jayvon; Byron, Charles; Carter, Samuel; Castro, Juan; Christiani, Josiah; Clune, Thomas; Collins, Michael; Dickerson, Caralos; Englehart, Austin; Feggins, Roman; Ferguson, Kobe; Goodwin, Deberry; Gootee, Nabeel; Grammer, Cameron; Hairiston, Bronzel; Hall, Charles; Hopper, Cameron; James, Donavan; Johnson, Dustin; Kelly, Terrell; Kern, Joshua; Lane, Desmond; Lopez, Arnulfo; Lumpkin, Eric; Marks, Preston; Martin, Kolton; Mayer, Ryan; Miller, Dion; Morin, Kobe; Peatross, Jahmal; Porter, John; Scheerer, Grayson; Stanley, Markus; Testroet, David; Tyler, Gavin; Warren, Nyquan; Whiteside, Henry; and Williams, Michael.

These students will be honored by the Henrico Chapter of Our Community Salutes at their Annual Military Enlisted Recognition Ceremony on Tuesday, May 10 at Hermitage High School in Henrico, VA.

Mr. Speaker, I ask my colleagues to join me in thanking these young men and women and their families for their dedication to serving this great Nation. We owe them and the many Americans who have served and will serve a debt of gratitude.

CONGRATULATING JEFF GRANT ON WINNING A GOLDEN APPLE AWARD

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. ROSKAM. Mr. Speaker, I am pleased to congratulate Mr. Jeff Grant on winning a Golden Apple award.

Jeff Grant, A.P. biology, anatomy and physiology teacher at Downers Grove North High School, was awarded with a 2016 Golden Apple Award for Excellence in Teaching. The Golden Apple is awarded to only twelve high school teachers in Illinois and is a testament to Jeff's commitment to enriching the lives of our nation's students.

Jeff, a Downers Grove North grad himself, has invested his time and energy into connecting students with science, experts from the field, and real hands-on research. His classroom is filled with pictures of Nobel Prize winners and astronauts, many of which have written to his class and sent personal messages to students after Jeff reached out to them. Downers Grove North principal Scott Kasik described him saying, "He's always searching for ways to connect kids with science, to make science real, to get them excited about the wonder of science. Jeff is a self-described science geek, but I think he's made being a science geek a really cool thing to be."

We as a nation benefit greatly from teachers like Jeff, who dedicate themselves to the pursuit of academic excellence among our students today.

Mr. Speaker and my distinguished colleagues in the House, please join me in congratulating Jeff Grant on receiving a Golden Apple award.

AN AMERICAN WITH A FELONY CHARGE IS STILL AN AMERICAN

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Ms. SEWELL of Alabama. Mr. Speaker, today on this Restoration Tuesday, I rise to acknowledge the continued voter suppression around the country during this election year and the ongoing battle for protection of the constitutional right to vote.

Across the country, voting polls have been shut down and voters have been shut out. New voter ID laws have been passed and eligible voters have been passed up. The American people want to vote. With so many new state laws that have made it harder for voters to get to the polls, we must take a hard look around and ask the question—why don't we want people to vote? Why make voting for eligible voters harder and not easier? The leaders in Congress need to have an answer to this question. Suppression of the right to vote is especially un-democratic and ultimately un-American.

Not only are voting rights being attacked through its process, but there are Americans in this country that have been targeted as well. A felony charge does not automatically make someone any less American. Why then, should Americans who have served their time be removed from the democratic process? Just last month, Governor McAuliffe of Virginia had a response to this question; and his action made a clear statement—former felons are still Americans and they still have rights. Faced now with not only severe scrutiny but a lawsuit as well, Governor McAuliffe boldly did what he believes to be constitutional, democratic and right when he restored the voting rights of all Virginians with a prior felony conviction who fully served their time and have been released from supervised probation or parole.

The state of Virginia is not alone. On March 10 of this year, Maryland also restored the right to vote for an estimated 40,000 individuals with past felony convictions. On that date, Maryland joined 13 other states as well as the District of Columbia in putting a stop to this continued disenfranchisement that plagues the majority of states in the country, including Alabama. We may be faced with great opposition, but fear of a fight is not an excuse to run away from doing what is right.

I don't have to remind anyone that this is an election year. But when I look around and see the ongoing suppression of the right to vote, I feel obligated to remind us all of what is at stake in this election. Every vote counts. Everyone who calls the USA their home will have to deal with the consequences of this election. Americans who are convicted felons will have to deal with the consequences. They should not have to deal with these consequences in silence. They too have a voice and they too must be heard.

Voting rights need protection and eligible voters need proponents of the Constitution and the democratic process to fight for them—to fight for their rights. The suppression needs to stop, the oppression needs to stop and the excuses need to stop. There is too much at stake this election year and Congress needs to stand up and do something about it now.

On this Restoration Tuesday, I give us all the charge to battle against the continued suppression of the American vote and stand strong by our principles of democracy, liberty and justice for all.

Mr. Speaker, my Republican colleagues should join the 168 Members of Congress and support H.R. 2867—the Voting Rights Advancement Act of 2015. Let's restore the Voting Rights Act of 1965. It is the right thing to do.

HONORING NELS JOHNSON

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HUFFMAN. Mr. Speaker, I rise today to recognize Nels Johnson of Fairfax, California, for more than 40 years of outstanding reporting at the Marin Independent Journal (IJ), the largest daily newspaper in Marin County. Mr. Johnson's columns and articles have sparked conversations and changed policies in our community for decades, and his presence in the paper will be sorely missed.

A graduate of Rutgers University in New Jersey, Mr. Johnson initially came to California in a Volkswagen van on a cross-country road trip in the early 1970s. After working briefly at a weekly paper in Tiburon, he joined the IJ as a reporter in May of 1972, where he continued to work through his retirement on April 28 of this year.

Mr. Johnson's encyclopedic knowledge of Marin County and its government is unparalleled. During his tenure, he covered some of the largest stories in the North Bay. From the Trailside Killer to the Mount Vision Fire to monitoring Supervisors' expense accounts, Mr. Johnson was at the forefront of the news he covered—and once, famously, became part of the story himself. When an elderly couple in Inverness disappeared in 1994, his reporting led investigators to find the truck in nearby Lake Nicasio.

Throughout my years as a California State Assemblyman and now as Member of Congress, I always found his coverage to be tough, fearless, and fair. He often used his voice to empower the voiceless, particularly in elevating threats facing local fisheries and fishers. I appreciate the unbridled passion for journalism Mr. Johnson brought to the Marin IJ, and his honest approach to both big and small stories.

I know I am not the only one of his readers who will miss Mr. Johnson's dogged reporting, insight into local news and issues, and, of course, his column on fishing. Mr. Speaker, it is therefore fitting that we honor and thank Nels Johnson for his immeasurable contributions to civic life in Marin County and California.

RECOGNIZING DEBORAH HABES AS SHE IS HONORED BY THE AMHERST WOMEN'S INTERCLUB COUNCIL

HON. BRIAN HIGGINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HIGGINS. Mr. Speaker, I rise today to recognize Ms. Deborah Habes for her honorable service and dedication to our community on the occasion of the Kentucky Derby Luncheon at the Buffalo Niagara Heritage Village, hosted by the Amherst Women's Interclub Council.

A resident of the Village of Williamsville since 1977, Ms. Habes has been the cornerstone to her community for several years. She has been the Village of Williamsville Deputy Clerk since 2001, and previously occupied the role of Village Building Department Clerk from 1991 to 2001.

In addition to her official duties, Ms. Habes volunteers extensively. She is a member of the Williamsville Business Association (WBA) on the Board of Directors. Currently she is Chair of the WBA Community Enhancement Committee, Chair of the 'Love Your Village, Love Your Library Mad Hatter Returns!' Fundraiser Gala since 2012, volunteer member of the Village Beautification Committee since 1990, and Volunteer Chair of the Village of Williamsville Garden Walk since 2010, and Volunteer Chair of the annual Village/WBA Main Street in Bloom Project. As a village resident, village volunteer and a village employee, she aids in this committee's mission to bring together Village residents, businesses and the Village government as a unified community force.

In 2005, drastic budget cuts eliminated the branch from county funding. After the great, and much appreciated efforts of other dedicated community members enough funds were raised to allow the library to remain open, but with very limited hours. Under Ms. Habes' leadership the committee picked up the reins, and continued to support this library by starting the 'Love Your Village; Love Your Library' movement and presented the inaugural Gala Fundraiser inside the Williamsville Library in February 2012. They have now celebrated 5 years of increasing success for this now signature Village-centric event, and the Committee is happy to report that through a combined effort, thousands of dollars have been raised in the last 5 years solely for the support of the Williamsville Branch.

Mr. Speaker, thank you for allowing me a few moments to honor the work of Mrs. Deborah Habes. I ask that my colleagues join me in expressing our thanks for her admirable work to better the Village of Williamsville.

HONORING THE NORTHWEST INDIANA BUSINESS AND INDUSTRY HALL OF FAME CLASS OF 2016

HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. VISCLOSKY. Mr. Speaker, it is with deep respect and admiration that I rise to commend numerous exceptional leaders from Indiana who were honored as the Northwest Indiana Business and Industry Hall of Fame's Class of 2016. While there were many deserving nominees, the individuals selected as this year's inductees include: Greg Ludkovsky, Frank Schilling, Harley Snyder, JoAnn Birdzell, Urschel Laboratories, Incorporated, and State Senator Earline Rogers. For their many contributions to the advancement of Northwest Indiana, these honorees were recognized at a ceremony at the Radisson Hotel Celebrity Ballroom in Merrillville, Indiana, on Tuesday, May 10, 2016.

Since 2007, Greg Ludkovsky has been vice president of global research and development at ArcelorMittal. He has been a driving force for global customer relations, which has changed ArcelorMittal from a materials supplier to a solutions supplier. Greg works directly with automotive original equipment manufacturers to develop one-of-a-kind steel. In addition, he has been a leader in engaging East Chicago school students by bringing them into the facility to teach them about the science and technology that takes place at ArcelorMittal each day.

Frank Schilling is the president of Schilling Home Improvement Center. Schilling Home Improvement Center has been very successful and currently serves more than 400 contractors. In addition, Schilling Development currently has 1,000 lots ready for housing development in Northwest Indiana. Frank and his wife, Shirley, have put much time and effort into building the Shrine of Christ's Passion, located in Saint John. This moving interactive prayer trail illustrates the last days of the life of Jesus Christ. Frank is very active in charitable organizations and is involved with the Women's Crisis Center and the American Heart Association.

Harley Snyder is a real estate and land development executive and the president of HSC, Incorporated. He recently completed ten years as the governor's founding appointee to the Northwest Indiana Regional Development Authority. In this position, he worked on the development of the Gary/Chicago International Airport, as well as the expansion and improvement of the South Shore commuter rail line. Throughout his truly impressive career, Harley has helped to develop some 3,000 homes in Lake and Porter Counties. In 1976, he became the first chairman of the Realtor's Equal Opportunity Committee, which created the first non-discrimination agreement. This helped to ensure that people of any race or religion could own a home. In addition, Harley has served on the board of Valparaiso University for twenty years, is a member of the Porter County Community Foundation, and was the first chairman of the Northwest Indiana Forum.

JoAnn Birdzell is the chief executive officer (CEO) for Saint Catherine Hospital in East Chicago. JoAnn has been a leader in healthcare administration for many years. In 1995, she was named senior vice president of operations for Ancilla Systems, where she oversaw seven hospitals throughout Indiana and Illinois. In 2001, she assisted in the merger of Saint Catherine Hospital and Saint Mary Medical Center with the Community Healthcare System. As CEO of Saint Catherine Hospital, JoAnn leads through modern management techniques and follows the hospital's mission to serve all in need of medical care. In addition, she is a member of the Indiana Hospital Association Board, has helped to promote Medicaid expansion in Indiana, and assisted in the founding of the Nazareth Home in East Chicago.

The recipient of the Enterprise of the Year Award is Urschel Laboratories, Incorporated. For over 100 years, Urschel Laboratories has been known for its innovation, excellent customer service, and generosity. Recently, the company completed construction of its new $80 million facility. In March of this year, the Urschel family sold the company to its employees in order to ensure a secure retirement for each of them. In addition, the Urschel family has given much of its time, effort, and contributions throughout the years to the Boys and Girls Clubs of Porter County, the Valparaiso Family YMCA, and the William E. Urschel Pavilion ice rink in Valparaiso.

The recipient of the Partners in Progress Award and the keynote speaker for the event is the Honorable Earline Rogers, Indiana State

Senator. For decades, Senator Rogers has been one of the Indiana General Assembly's most valuable and impactful leaders. Earline served eight years in the Indiana House of Representatives before she was elected to the Indiana State Senate in 1990, and the effect she has had on the community of Northwest Indiana and beyond is truly inspiring and immeasurable. To name just a few of her countless accomplishments, Senator Rogers helped to create casino gaming in Indiana, co-authored riverboat gaming legislation, helped to raise the age at which the death penalty can be applied in Indiana to the age of eighteen, assisted with the creation of the Northwest Indiana Regional Development Authority, and has been instrumental in major education reform. In addition, Senator Rogers serves as a member of the Northwest Indiana Transportation Study Commission and the Indiana Lakes Management Work Group, and is president of the board of trustees for the Gary YWCA.

Mr. Speaker, I ask you and my distinguished colleagues to join me in commending these outstanding leaders upon their induction into the Northwest Indiana Business and Industry Hall of Fame. They are truly deserving of this honor, and for their exceptional leadership and unwavering commitment to the community of Northwest Indiana and beyond, each of them is worthy of the highest praise.

HONORING JUDGE TERRY TALLMAN FOR HIS SERVICE TO MORROW COUNTY AND THE STATE OF OREGON

HON. GREG WALDEN

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. WALDEN. Mr. Speaker, I rise today to recognize my good friend Judge Terry Tallman for his many years of dedicated public service in Morrow County. Terry is set to retire at the end of his term after serving 18 years as Morrow County Judge, the longest in history, and I would like to pay tribute to his leadership for the people of Morrow County and the Columbia Basin.

Terry grew up working on his family's farm in Adrian, Oregon. After graduating high school in 1963, Terry continued working on the farm until he joined the Navy amidst the Vietnam War in 1969. Serving aboard the USS *Kitty Hawk,* Terry was responsible for maintaining the ship's ultrasound systems and making repairs on the aircraft, skills he enjoyed learning and putting to use.

It was through the Navy that Terry met Cheryl, his wife of 42 years. While stationed in California the couple was introduced by Cheryl's brother with whom Terry served. The two were married in 1974 following Terry's discharge from the Navy. Terry then took the opportunity to attend college at both the University of Oregon and Oregon State University before returning to the family farm in Adrian. With the continuing development of irrigated agriculture in the Columbia Basin at the time, Terry and his brother saw a wonderful opportunity to put their skills to use on their own, and, in 1978, Terry and Cheryl moved to the Boardman area.

After establishing a successful custom farming operation in Boardman, Terry began to take interest in serving his community. His efforts and success on the City of Boardman Planning Commission led numerous community members to encourage him to run for Mayor of the City of Boardman, a position he won and held for 5 years. In 1999, the position of County Judge was vacated and Terry successfully ran for the seat.

Since then, Terry's career has been marked by an impressive long term vision for Morrow County. His skill at administering the county budget and staying fiscally responsible has left the county in a markedly better financial position. Under Terry's leadership, Morrow County has seen substantial growth in a broad range of economic activities from wind turbine projects to value-added agriculture processing and data centers.

With federal forests, an Army chemical depot and a Navy bombing range located within the county, communities experience plenty of federal hurdles while striving to grow their economies. Terry and I worked closely on many of these issues as he made sure the needs of the local communities were not ignored by the federal government. Throughout, I appreciated and counted on his counsel and suggestions as we plotted a path forward to a solution. Whether it was wind energy and transmission line development on the edge of the bombing range, or ensuring the Army turns the Umatilla Depot land over to the communities as planned, I knew I would find Terry in the middle of the issue working to foster economic growth and balance the national security needs at the sites. Thanks to Terry's dedicated efforts over the past 18 years to tackle these issues and invest in the future, Morrow County has welcomed that growth with room to take advantage of new opportunities ahead.

As Terry begins his transition into retirement, I know he will look forward to free time to spend with his 3 children and grandchild, as well as plenty of time to spend doing what he loves on his farm again.

Mr. Speaker and my colleagues, please join me in recognizing and thanking my good friend, Judge Terry Tallman, for his many years of leadership and wise counsel in Morrow County.

HONORING CHARLES BLACK

HON. JARED HUFFMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HUFFMAN. Mr. Speaker, I rise today in honor of Charles Black, who passed away on Monday, March 14 in Corte Madera. Born in Sydney, Australia, Mr. Black was a World War II Veteran who supported American troops in the Pacific with the Royal Australian Air Force. In his retirement, he and his wife settled in Marin County, where they continued to visit new places, sail, and enjoy life and family.

Born in 1926, Mr. Black developed an early love for travel and boating. His family spent summers in New Zealand, and at the age of 10, took a 9-month trip around the world—which included a visit to the almost-completed Golden Gate Bridge. As a teenager, he witnessed WWII firsthand when a Japanese submarine fired torpedoes on American ships. When Mr. Black turned 18, he joined the Royal Australian Air Force to fight with the Allied troops in the Pacific Theatre.

Following the war, he worked as a purser on ships sailing throughout the South Pacific and Asia, serving his entire career with Burns Philip. In 1972, he married Joanne Holloway of Corte Madera. In 1982, they began spending half the year in Sydney and half in Tiburon, and later settled full-time in Marin County. There, Mr. Black was an active member of the Tiburon Rotary Club, and was able to pursue his passion for sailing.

Mr. Black will be remembered for his extraordinary kindness, spirit of adventure, and love for his family. He is survived by his children Liza and John, and his grandchildren Thomas, David and Claire. For his civic engagement and service during WWII, it is appropriate that we pay tribute to Charles Black today and express our deepest condolences to his surviving family and friends.

IN RECOGNITION OF COLONEL DREW T. DOOLIN

HON. DUNCAN HUNTER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HUNTER. Mr. Speaker, I rise today to recognize and celebrate the service of Colonel Drew T. Doolin, of the Joint Improvised-Threat Defeat Agency, or JIDA, who will retire from the United States Marine Corps on July 1, 2016, after 30 years of distinguished and faithful service to our nation. Colonel Doolin significantly contributed to the global fight against Improvised Explosive Devices during his final tour of duty as JIDA's Chief of Staff. His direction and oversight were crucial in ensuring our Soldiers, Sailors, Airmen and Marines serving in harm's way had the necessary capabilities and training to protect them from improvised threats.

Colonel Doolin's service has spanned a variety of command and staff billets to include Chief of Staff and assistant Chief of Staff for Aviation Ground Support at Third Marine Aircraft Wing; Commanding Officer, Marine Wing Support Group 37; Commanding Officer, Combat Logistics Battalion 7 during two combat deployments to Iraq; Director, Chairman of the Joint Chiefs of Staff Exercise Training Branch J–7; Director, Lifecycle Management Branch, Headquarters, U.S. Marine Corps; Director, Logistics Operations Team, Headquarters, U.S. Marine Corps; Commandant of the Marine Corps' Executive Research Fellow at the Brookings Institute; and Military Aide to Vice President Dick Cheney.

Colonel Doolin's decorations include the Legion of Merit Medal with gold star in lieu of second award, Bronze Star Medal, Defense Meritorious Service Medal with gold star in lieu of second award, the Meritorious Service Medal with two gold stars in lieu of third award, the Navy and Marine Corps Commendation Medal with Gold Star in lieu of second award, the Joint Staff Badge, and the Vice Presidential Service Badge.

By his side throughout his successful career and arduous deployments have been Maribeth, his wonderful wife of 28 years, and their children Kendra, Ryan, Delayna and Caroline. Their love and support has aided and strengthened Colonel Doolin throughout

his service and I congratulate them as well on this special occasion. I am proud to share in the celebration of Colonel Doolin's military career, and as he and his family move to this next chapter of his life, I wish Colonel Doolin ''fair winds and following seas'' as he embarks on his future endeavors. Semper Fidelis Marine.

IN RECOGNITION OF CHIEF JAMES BURKUSH AND HIS SERVICE TO THE CITIZENS OF NEW HAMPSHIRE

HON. FRANK C. GUINTA

OF NEW HAMPSHIRE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. GUINTA. Mr. Speaker, I rise today to honor a Granite State first responder for his thirty-nine years of service to the Manchester Fire Department in Manchester, NH.

Chief James Burkush joined the Manchester Fire Department in 1977 and became Chief in 2008. Firefighter Burkush was a standout member of the department and worked through the ranks of the department over the next thirty one years before being appointed Chief on February 19, 2008. Throughout his storied career Chief Burkush responded to many different calls, but it is the efficiency and professionalism with which Chief Burkush handled every situation, no matter how dire, that makes him an exceptional leader and role model. Chief Burkush remains an exemplary public servant, and I applaud his dedication to making his community a better, safer place to live.

On April 29, 2016 Chief Burkush retired from the Manchester Fire Department with thirty nine years of service to the people of Manchester and the Granite State. He will now take on the role of Chief with the Hooksett Fire and Rescue Department. On behalf of the people of the First Congressional District of New Hampshire, I thank him for his dedicated service to the community and wish him all the best in his future endeavors.

RECOGNIZING MR. MARTY MARASCO'S CONTRIBUTIONS TO AND RETIREMENT FROM THE ALTOONA-BLAIR COUNTY DEVELOPMENT CORPORATION

HON. BILL SHUSTER

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. SHUSTER. Mr. Speaker, I rise today to recognize Mr. Martin Marasco's many invaluable contributions to and retirement from the Altoona-Blair County Development Corporation.

Mr. Marasco has been the President and CEO of the Altoona-Blair County Development Corporation, known as ABCD Corp, since 1994. His work has been fundamental in helping the industrial and commercial economic expansion in Blair County. Specifically, under his leadership, ABCD Corp. has facilitated over 800 economic development projects, totaling in excess of $1.5 billion in total project costs that have resulted in the creation and retention of over 19,000 jobs. Thanks to his hard work, Blair County has seen the growth and introduction of businesses, which in turn have helped improve the standard of living for many families and individuals in Blair County.

Among his many responsibilities, Mr. Marasco was the Executive Director of the Blair County Industrial Authority and Blair County General Authority, which are public agencies that help provide information and pathways for public funding and taxable and tax-exempt financing.

Furthermore, I am happy to highlight that this dedication has not gone unnoticed, as Mr. Marasco has been the recipient of awards from the Council of Development Finance Agencies (CDFA), Boy Scouts of America, Kiwanis Club, Italian Heritage Society and others.

Mr. Speaker, I am honored today to recognize Mr. Marasco, who has devoted his life to serving Blair County. On behalf of the many people he has positively impacted, I offer our tremendous gratitude. I am proud to serve constituents like Mr. Marasco, and wish him well in retirement.

HONORING NATIONAL TEACHER APPRECIATION WEEK

HON. CARLOS CURBELO

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. CURBELO of Florida. Mr. Speaker, I rise today to recognize this week as National Teacher Appreciation Week. This is an opportunity to demonstrate our heartfelt gratitude to all the exceptional men and women who dedicate their life's work towards the education of our youth. As a former member of the Miami-Dade County's School Board, I know firsthand the commitment and sacrifices our teachers make to ensure that our students have a solid educational foundation. Our teachers are the key to guiding our students in becoming the productive citizens and future leaders of our nation. With each lesson they teach, they bring wisdom, instill growth, inspire love, and enlighten the path for our youth. It is with profound honor and humility that I thank teachers universally for being mentors and motivators.

COMMEMORATING THE LIFE AND ACHIEVEMENTS OF MR. GERVAIS OXENDINE

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor the life of my dear friend Mr. Gervais Oxendine and to commemorate the legacy of service to North Carolina he left behind.

Mr. Gervais Oxendine (''Mr. Gervais'' as he was affectionately referred to by folks in Robeson County) was born on August 18, 1943 in Robeson County. After growing up in the area and attending Pembroke State College (now UNC Pembroke), Gervais was commissioned as an officer in the U.S. Navy. He served his country for four years during the Vietnam War aboard the USS *Forrestal*.

Mr. Gervais' lifetime of service to our country continued even after his enlistment ended. His son, Eric Oxendine, is currently a U.S. Navy Captain. Gervais was also an integral member of the Lumbee Warriors Association, a local non-profit group that helps veterans across the region who are struggling with PTSD. Additionally, Gervais was a lifetime member of VFW Post 2843 in Pembroke.

Gervais was a successful businessman, working more than 32 years in key management positions for Abbott Laboratories. Gervais played an important role in the company's expansion into the Caribbean, Puerto Rico and the Dominican Republic, and received Abbott Lab's President's Award on four separate occasions.

More than any of his notable career or military accomplishments, folks across North Carolina knew Gervais as a man who fought fiercely for Robeson County and the Lumbee Native American Tribe. Mr. Gervais served on the UNC Pembroke Board of Trustees for eight years, during which time he worked closely with North Carolina Board of Governors officials to advocate for UNCP. He was also a key leader for issues facing the Lumbee Tribe, and aggressively supported efforts for federal tribal recognition, along with additional state and federal resources for his people.

Mr. Gervais was seen as the go-to-guy in Robeson County when it came to turning political ideas into real policy reforms to help the region. He was one of my first supporters in the area, and I'll never be able to repay the debt of gratitude I owe for his friendship and counsel over the years. I'm going to dearly miss my friend, Gervais Oxendine, but I know his legacy will live on through his wonderful wife, Dr. Olivia Holmes Oxendine, his two sons and three grandsons.

Mr. Speaker, please join me today in commemorating the life of Mr. Gervais Oxendine for his service to Robeson County and his commitment to bettering the lives of everyone in our community and state.

HONORING PETER ''P-B'' BIELAK

HON. CHRIS COLLINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. COLLINS of New York. Mr. Speaker, I rise today to congratulate Peter ''P-B'' Bielak of Washington, D.C., who recently received the Silver Beaver Award for his outstanding contributions to the Boy Scouts of America here in the District of Columbia.

P-B has dedicated his life to furthering the scouting movement and preserving its storied legacy in the United States. A Scout Historian for over 40 years and enthusiastic vexillologist, P-B is the person scouts go to with questions about old patches, uniforms and flags. A symbol of his dedication to getting more boys involved in scouts, P-B recently helped found the Helping Other Scout Troops Incorporate Needed Gear (HOSTING) program, which collects uniforms, sleeping bags, backpacks, tents, and cooking gear for financially needy youth and adults all over the D.C. area. Due to its overwhelming success, the HOSTING program outgrew its warehouse space and plans to increase its imprint on the community.

P-B is also the founder of the History Of Scouting Trail (H.O.S.T.), located in Washington, D.C. This set of four interactive hikes allows scouts and leaders to learn about the founders of the Boy Scouts of America while exploring the nation's capital.

As Chairman of the Congressional Scouting Caucus, I have had the privilege of working with P-B on a number of occasions to promote scouting on a national level. P-B embodies the twelve points of the Scout Law, so I know he is always prepared and doing his best in every aspect of life.

A role model for young scouts, P-B is a tireless advocate for the D.C. scouting community. His receipt of the Silver Beaver Award is certainly well-deserved. I congratulate him on this honor and look forward to working with him to increase the positive impact scouting can have on our nation's young men.

WILLIAM P. THOMAS

HON. THOMAS MacARTHUR

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. MACARTHUR. Mr. Speaker, I rise today to honor the memory and life of William P. Thomas, of the Third Congressional District, and to express my sincerest condolences to his family and loved ones he has left behind, and to recognize his service, as well as his career and community engagement.

William, a resident of Stafford Township, New Jersey, was a graduate of Cardinal Hayes Memorial High School in New York City and attended Princeton University before he enlisted in the U.S. Army to defend our country during World War II as part of the Fifth Ranger Battalion. For his honorable service, he received five medals, including the Purple Heart and Bronze Star. When he returned home from the war, determined to provide for his family, he started his own company, William P. Thomas Builders. The company was successful and completed projects, which included 500 homes, motels, a 55-unit oceanfront condominium in Ship Bottom and work on the Ocean County Courthouse. He also developed Deer Lake Park in Stafford.

William began selling real estate in 1953 and was extremely prosperous, eventually becoming president of the New Jersey Association of Realtors and the New Jersey Shore Multiple Listing. Thomas ultimately became the broker-owner of Prudential Zack Shore Properties in Toms River, which recently became Berkshire Hathaway Home Services Zack Shore Realtors, a business now overseen by his son and sister.

Mr. Speaker, the people of New Jersey's Third Congressional District are tremendously honored to have had William P. Thomas as a hardworking and dedicated member of their community. It is with a heavy heart that I commemorate his honorable service to our country, as well as his fruitful career and life, and recognize the lasting legacy that he has left behind, before the United States House of Representatives.

CONGRATULATING ZIM SCHWARTZE ON RECEIVING THE MISSOURI 9-1-1 DIRECTOR OF THE YEAR AWARD

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. LONG. Mr. Speaker, I rise today to congratulate Springfield-Greene County, Missouri, 9-1-1 Emergency Communications Director Zim Schwartze on receiving the Missouri 9-1-1 Director of the Year Award.

The 9-1-1 Director of the Year award is given annually at the Missouri Public Safety Communications Conference, and honors a director who has performed in an exceptional manner for that year. The winner is chosen by a combination of Missouri Chapters of Association of Public Safety Communications Officials, the National Emergency Number Association and the Missouri 9-1-1 Directors Association.

Schwartze retired as a captain in the Columbia Police Department before her current role as emergency communications director. She had previously served as director for the Boone County Joint Communications 9-1-1 and in the Office of Energy Management. In addition to her primary job, she is also an adjunct professor at the Law Enforcement Training Institute in Columbia and the Northwestern University School of Police Staff and Command, the treasurer of the Missouri 9-1-1 Directors Association, and has volunteered for the Missouri Special Olympics for over 25 years.

Mr. Speaker, Zim Schwartze has dedicated her life to serving the Missouri community. In addition to her immense service through her police work, her leadership and organization of the Missouri emergency services has been invaluable. She is the model of an ideal public servant, and I urge my colleagues to join me in expressing my deep appreciation and gratitude for all she has done for Missouri. On behalf of the 7th district, I thank Zim for her service and extend my congratulations on this well-deserved award.

HONORING THE HARTVILLE EAGLES BOYS BASKETBALL TEAM

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the Hartville Eagles Boys Basketball team for winning the Class 2 Missouri State Championship to finish their already impressive season. Coach Brett Reed led the team to a dominant 64–37 win over Iberia in the championship game at Mizzou Arena earlier this spring.

The final victory came at the end of an 18 game win streak, concluding the best boys basketball season in Hartville history. In addition to winning the first Class 2 Missouri State Championship for Hartville, the team also won the Clever Tournament, the Mountain Grove Tournament, the Summit Conference, and became the Class 2 District 9 Champions for the fourth straight year. Ending with an overall record of 29–4, the team showed its ability to compete on a statewide level, with their only losses coming from opponents in higher classes.

The Missouri Basketball Coaches Association recognized the outstanding success of the Eagles' season by naming Brett Reed the Class 2 Boys Basketball Coach of the Year as well as naming Ryan Ward the Class 2 Boys Basketball Player of the Year. In addition, Ryan Ward and Deric Jones were both named members of the All-State Class 2 Boys Basketball Team.

For these exceptional achievements, it is my honor to recognize and congratulate the Hartville Eagles Boys Basketball Team before the United States House of Representatives.

HONORING RABBI NORTON D. SHARGEL

HON. NITA M. LOWEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mrs. LOWEY. Mr. Speaker, I rise to recognize my fellow congregant, Rabbi Emeritus Norton Shargel, who is celebrating the 70th anniversary of his Bar Mitzvah on Saturday, May 14th.

I have had the great pleasure of knowing Rabbi Shargel since moving to Westchester County and joining his congregation. He has served as a spiritual leader for the Jewish Community Center of Harrison (JCCH) since 1970. Throughout his time as Rabbi, he has enriched our community with his insight and warm demeanor, and his dedication to his congregation is unflinching.

Throughout his life, Rabbi Shargel has committed himself to his rabbinical studies. He holds a Bachelor's degree in Philosophy and Semitics from Johns Hopkins University, and a degree in Religious Education from Baltimore Hebrew College. He first entered the Jewish Theological Seminary in 1954 and studied at the Hebrew University in Jerusalem before earning his Master of Hebrew Letters and Rabbinical Degree in 1959. He also holds a degree of Doctor of Hebrew Letters and an honorary Doctorate of Divinity from the Jewish Theological Seminary of America.

Beyond his impressive academic resume, the Rabbi has worked as a spiritual leader in various communities. In 1959, Rabbi Shargel served as an army chaplain at Fort Benning, Georgia, where he was an active member of the local Jewish community. He then moved to Easton, Pennsylvania, where he served as leader of the Bnai Abraham Synagogue. During his time in Easton he founded ''ProJect,'' an interfaith, interracial group devoted to improving the community.

Since 1970, Rabbi Shargel has served JCCH and has worked to improve interfaith cooperation in the community. He organized an interfaith Bible Study Group and has developed an ongoing dialogue with local clergy. He has served as President of the Westchester Board of Rabbis and helped create the first Westchester Clergy Institute, a seminar for clergy of all faiths. Since 1998, Rabbi Shargel has served as an Adjunct Professor of Religion at Manhattanville College in Purchase, New York, teaching courses in Judaism and Holocaust Studies.

Mr. Speaker, I am proud to call Rabbi Shargel my friend, confidant, and spiritual leader. I congratulate him on a lifetime of commitment to the Jewish community, and I urge my colleagues to join me in celebrating the 70th anniversary of his Bar Mitzvah.

RECOGNIZING HARRY CORNELL, THE FORMER CEO OF CARTHAGE, MISSOURI'S LEGGETT & PLATT INCORPORATED

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. LONG. Mr. Speaker, I rise today to recognize Harry Cornell, the former CEO of Carthage, Missouri's Leggett & Platt, Incorporated. Harry's contributions are to be memorialized with a statue in his likeness on the manufacturer's campus, which will also be renamed in his honor.

Born to Mack and Marjorie Cornell in 1928, Harry is a true Missourian. He went to the University of Missouri and, upon graduation, immediately joined Leggett & Platt. After 3 years, Harry was selected to be a plant manager at their factory in Ennis, Texas, and was elected to Leggett & Platt's Board of Directors a mere five years later in 1958. Seeing an opportunity to expand the company, he purchased a majority of the stock for Leggett & Platt and was soon appointed CEO.

Cornell served as CEO for Leggett & Platt for nearly 40 years, and was instrumental in creating the thriving company that we know today. Under his tenure, Leggett & Platt experienced unprecedented growth; Leggett & Platt sales increased exponentially, moving from $7 Million a year to over $3.7 Billion in sales. Furthermore, Harry oversaw the company when it was added to the Standard & Poor's 500 (S&P 500) index and continued to serve on Leggett & Platt's Board of Directors after his tenure as CEO until 2008—retiring after 50 years with the company.

Those who worked with Harry during his four decades leading Leggett & Platt knew that he subscribed to the following unattributed quote, which was prominently displayed in his office or repeated by him: ''Success is founded on a constant state of discontentment, interrupted by brief periods of satisfaction on the completion of a job particularly well done.''

Mr. Speaker, Harry Cornell is not only a shining example of the business acumen that makes America the great country it is, but he is also a true Missourian to his core. I would like to extend my thanks, both personally and on behalf of the 7th district, for his integral role in developing Leggett & Platt into one of Missouri's true titans of industry, creating countless jobs and keeping our economy strong and healthy. I urge my colleagues to join me as I congratulate Harry on his storied and influential career, which is a living testament to the American Dream.

HONORING THE LIFE AND LEGACY OF COL. HOWARD L. WILLIAMS (RET)

HON. ALCEE L. HASTINGS

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HASTINGS. Mr. Speaker, I rise today to commemorate the passing of Colonel Howard L. Williams (Ret), affectionately known as ''Chappie,'' who sadly passed away on March 25, 2016.

Born and raised in Emporia, VA, Chappie worked briefly in the Norfolk Navy Yard after high school and then, in 1943, enlisted in the United States Marine Corps with the 123rd Platoon at Montford Point Camp, New River, North Carolina. After completing segregated boot training, he served with honor in the Asiatic-Pacific Theater of WW II as a member of the 1st Marine Ammunition Company 7th Depot. His company provided ammunition support in the Marshall Islands, Saipan and landed on D Day at Okinawa in support of the 1st & 6th Marines Division.

In September 1945, Chappie went ashore with the first troops of the 1st Marine Division 3rd Amphibious Corps in North China to perform occupation duty.

He was honorably discharged from the Marines in 1946, and as a result of the GI Bill attended Virginia State University, where he graduated in 1950 with a Bachelor's Degree in Industrial Education. While attending Virginia State he was commissioned as a second Lieutenant in the ROTC. Chappie served in the military for over 30 years in numerous assignments with the United States Marines Corp, Army National Guard and the US Army Reserves. He retired with the rank of full Colonel as the Director for Supply and Transportation in the 510th Field Depot, United States Army.

After college, he began a long career teaching in the Baltimore City Public Schools at Harlem Park Middle, Dunbar High, and at Baltimore City College, finally retiring from the Baltimore City School Board in 1994.

Chappie was the recipient of numerous awards for his contributions to organizations in the community. In June 2012, he received the Congressional Gold Medal for his service in the segregated Marine Corp units known as the Montford Point Marines.

He leaves behind his wife of 56 years, Marilyn, and two devoted sons, Michael and David.

Mr. Speaker, I am extremely proud to remember the life and legacy of Colonel Howard L. Williams (Ret), who served this nation with honor and distinction. He will be dearly missed by all.

RECOGNIZING MILDRED JANE WORSHAM AND LANDON WORSHAM

HON. ROBERT HURT

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HURT of Virginia. Mr. Speaker, I submit these remarks in recognition of the service and dedication of Mildred Jane Worsham and Landon Worsham to the Chatham Presbyterian Church and the entire Chatham community.

Mildred Jane Worsham has been serving the Chatham Presbyterian Church congregation as their organist for over 70 years. Mrs. Worsham began playing for Chatham Presbyterian in 1945 at the age of sixteen. Over the years, she shared that duty with the late Augusta Parrish on an every-other-month basis, and she now serves as the sole organist.

In addition to her duties as organist, Mrs. Worsham has also served as the church's longstanding session clerk, Choir Director, taught Sunday School, Bible School and Bible Studies, and Mrs. Worsham had the honor of being named the first female elder of Chatham Presbyterian Church and was one of the church's first female deacons. She was also a commissioner for the Presbytery of the Peaks, which included 129 churches spanning parts of Central Virginia, Southside, the New River Valley and Allegheny Highlands, and served as the Commissioner to the General Assembly of Presbyterian Church in the United States. Mrs. Worsham has also been a member of the Sylvania Garden Club, the Homemaker's Club, and assisted her husband's work as Chief of the Chatham Volunteer Fire Department for over 50 years.

For decades, Landon Worsham's service to the Chatham community has extended far beyond firefighting. In 2013, I had the privilege of joining the Town of Chatham, Virginia to honor Mr. Worsham for his 60 years of service to Chatham as a volunteer firefighter, 50 of which he spent as fire chief. In addition to this tremendous accomplishment, Mr. Worsham has been an active volunteer at the Chatham Presbyterian Church, serving as the superintendent of Chatham Presbyterian's Sunday school for over 50 years and counting. Mr. Worsham is also an elder at the church and has served numerous times on the session.

Mr. Worsham also served as a leader in the Chatham Lions Club and the Chatham Jaycees, as well as serving as the Vice President of the Pittsylvania County Fire-Rescue Association. He also served his country in the U.S. Air Force during World War II, and was wounded in New Guinea and awarded the Purple Heart.

I ask the members of this House of Representatives to join with me and the entire Chatham community in thanking and honoring the service and dedication of Mildred Jane and Landon Worsham to the Chatham Presbyterian Church and the Town of Chatham, and to the surrounding counties and our great nation.

HONORING COLONEL GREGORY BAINE

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. POE of Texas. Mr. Speaker, I would like to recognize the fine career and honorable service of a man whose actions have helped maintain the safety and security of our nation's fight against terrorism, Colonel Greg Baine. After 29 years of faithful service to our country, Colonel Baine is retiring from the United States Army. It is with great pride and honor that I recognize Colonel Baine for his tireless devotion to the wellbeing of our nation.

After graduating from Beaumont Charlton Pollard High School, Colonel Baine earned his political science degree from Texas A&M University. Colonel Baine began his military career in 1987 with the United States Army, where he was commissioned as a First Lieutenant with a duty in Sinai, Egypt. As a natural leader, he earned the esteemed rank of Colonel by serving our nation in duties in Saudi Arabia, Kosovo, Germany and two combat tours in Iraq and Afghanistan. Colonel Baine is a true patriot; devoted and loyal, an honorable defender of liberty and freedom.

Colonel Baine commanded the 2nd Battalion, 30th Infantry Regiment during his 14 month combat tour in support of Operation Iraqi Freedom. I had the privilege of meeting Colonel Baine while in Iraq in 2008. His role in our nation's fight on terrorism will never be forgotten. After Iraq, he volunteered for another 13 month combat tour to Afghanistan, where he commanded Regional Support Command South in support of Operation Enduring Freedom.

Throughout his career, Colonel Baine's service and dedication have consistently earned him the recognition of his superiors. The list of this model citizen's accomplishments will have enduring effects on our nation.

A dedicated family man, Colonel Baine married his college sweetheart, Heidi. Together they are the proud parents of two grown children, Gary Baine, II and Alexia.

On behalf of the Second Congressional District of Texas, I commend this remarkable Texan for his exemplary service and dedication to not only the State of Texas, but the nation as a whole. Thank you, Colonel Baine, for a lifetime of selfless service to our country.

And that is just the way it is.

REMEMBERING JUDGE JOHN J. GARRITY

HON. STENY H. HOYER

OF MARYLAND

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. HOYER. Mr. Speaker, I rise to pay tribute to an outstanding public servant for Maryland, Judge John J. Garrity, who sadly passed away on April 14 at the age of eighty-two. John and I had been friends for many years, going back to the 1960's, when I was a young State Senator and he was an Assistant State's Attorney and President of the Prince George's County Young Democrats.

John began his life in the St. Joseph's Orphanage in Burlington, Vermont, and after finishing secondary school joined the U.S. Navy, where he served honorably from 1955–1959. During that time he married his wife, Bertha Ann, with whom he would spend sixty wonderful years and raise two sons, Kevin and John Jr. He earned undergraduate and law degrees from American University and began practicing law in Maryland in 1964.

John first served as Assistant State's Attorney for Prince George's County in 1967 and two years later became Assistant Attorney General for the State of Maryland. He was selected as a Prince George's County Commissioner in 1970 and then elected to the Prince George's County Council the following year, serving as its Chair in 1973. In 1974, the people of Maryland Legislative District Twenty-Two sent him to the House of Delegates in Annapolis, and in 1978 he became my colleague in the State Senate, when I was serving as its President. While in the Senate, John stood up for the rights of crime victims and sponsored legislation to ensure that victim impact statements could be given during sentencing, ensuring their voices would be heard in court. In 1982, John was appointed to the Court of Special Appeals, where he served with distinction for twelve years.

Mr. Speaker, I will miss John Garrity very dearly, and I will never forget his friendship or his kind spirit. He was so proud of his service to Maryland and to our nation, and he was proud as well of his Irish roots. My thoughts and prayers are with his Ann, Kevin, John Jr., daughter-in-law Karen, and grandchildren Kelly, Colleen, and Kerry. I hope my colleagues will join me in thanking Judge John J. Garrity for lending talents and wisdom to the work of securing justice and creating opportunity for Marylanders throughout his life and career.

HONORING PACE UNIVERSITY'S LIENHARD SCHOOL OF NURSING

HON. NITA M. LOWEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mrs. LOWEY. Mr. Speaker, I rise to recognize the fiftieth anniversary of Pace University's Lienhard School of Nursing, and to applaud its work in educating generations of nurses.

Founded in 1966, the Lienhard School of Nursing was Westchester County, New York's, first collegiate nursing program. Over the past fifty years, the School has maintained its commitment to excellence and scholarship by embracing change and always focusing on meeting the health needs of the general public.

The School has offered the highest level of education to nursing students and has paved the way in designing innovative new nursing programs, including the first nurse-managed health care unit on a college campus, one of the first nursing programs in the country for second career individuals, and was an early Doctor of Nursing Practice Program. This leadership in the field of nursing makes the School one of the finest in the country.

Mr. Speaker, I am proud to have the Lienhard School of Nursing in my district. I urge my colleagues to join me in honoring the School during its fiftieth anniversary year.

RECOGNIZING THE 150TH ANNIVERSARY OF PALATINE, ILLINOIS

HON. PETER J. ROSKAM

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. ROSKAM. Mr. Speaker, I am pleased to commemorate the 150th anniversary of the incorporation of Palatine, Illinois.

Since its origin, Palatine has been dedicated to building a friendly and welcoming community for residents and visitors alike and has been a model for Illinois towns to follow. It is no surprise that the village motto is, ''A Real Home Town''.

In the years since its first settler, George Ela, and its incorporation on April 2nd, 1866, Palatine has become a center of culture and commerce, serving as a home to families, businesses, professionals, churches and organizations that have made this a vibrant and thriving community. Palatine boasts a population of over 60,000 people, a large multinational corporation, and a four year college. Over the years, Palatine has developed a well-deserved reputation as a village with small-town heritage, big city ambition, and hometown charm.

On the occasion of this 150th Anniversary, we join together to celebrate Palatine's legacy of growth and prosperity and to look ahead to the opportunities facing this great village and our nation.

Mr. Speaker and Distinguished Colleagues, please join me in recognizing the 150th anniversary of the incorporation of Palatine, Illinois and wishing her residents a very successful year ahead.

CONGRATULATING DALE HUHNKE OF MUNCIE, INDIANA

HON. LUKE MESSER

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. MESSER. Mr. Speaker, I rise today to recognize the exceptional volunteer effort of the Grace Evangelical Lutheran Church volunteers, led by Dale Huhnke of Muncie, Indiana, on October 24, 2015.

On this day, known as Make a Difference Day, Dale managed a group of church volunteers in an effort to help struggling Muncie families. Their targeted acts of giving included everything from providing a family a fresh bag of groceries to giving a needed haircut. Dale's strong leadership on Make a Difference Day helped more than 180 Muncie families enjoy a better and happier quality of life.

Dale will be recognized for his extraordinary efforts this year at the Make A Difference Day National Awards Luncheon on May 12, 2016. Each winner is awarded a $10,000 donation to ensure they are able to continue their community projects in the future.

Today, I am proud to thank Dale for his leadership and the Grace Evangelical Lutheran Church volunteers for their philanthropic spirit and ongoing commitment to improving the lives of Muncie families. I hope that fellow Hoosiers will be inspired by Dale to be a force of good in their own communities as well.

HOUSTON FIREFIGHTERS ANSWER THE ALARM

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. POE of Texas. Mr. Speaker, I want to recognize the station numbers of the Houston Firefighter who answered the call of the Spring Branch Fire in Houston, Texas on May 5th, 2016.

Station Number 2, Station Number 4, Station Number 5, Station Number 6, Station

Number 8, Station Number 10, Station Number 11, Station Number 12, Station Number 13, Station Number 15, Station Number 17, and Station Number 22.

Station Number 24, Station Number 28, Station Number 30, Station Number 31, Station Number 38, Station Number 39, Station Number 42, Station Number 49, Station Number 50, Station Number 51, Station Number 57, and Station Number 60.

Station Number 62, Station Number 66, Station Number 67, Station Number 69, Station Number 75, Station Number 77, Station Number 78, Station Number 83, Members from OEC (Office of Emergency Communications), and Village Fire Department (Mutual Aid).

TRIBUTE TO TIM COOPER

HON. JASON SMITH

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. SMITH of Missouri. Mr. Speaker, I rise today to celebrate the hard work and dedication of Tim Cooper. Mr. Cooper went to work as a custodian for the North St. Francois County R–1 School District on April 8, 1970. He was 20 years old. He retires from that same school district on June 30, 2016, just a day shy of his 67th birthday.

Mr. Cooper has been a custodian who took his job very seriously, but at the same time, he took every opportunity to be a friend to the students and staff he saw every day. He worked first at Desloge Elementary School, then preferred a change of scene at the high school. But, a year later, he returned to the elementary students and staff he loved so well at the same school, now called Parkside Elementary.

His Principal, Brandon Gregory, calls Tim ''one of the greatest men I have ever worked with who takes care of everyone around here. He seeks neither praise nor recognition.'' His coworkers say he is what ''makes Parkside.'' Former students say they always looked up to him—and they still do. One former student recalls him helping her dig through the lost and found until they located her purple winter coat. He is respected and loved by all.

Mr. Cooper has lived the motto that whatever you do, do it well. He has loved his work and that has shown through every one of the 46 years he's been a part of the North County district.

For his dedicated service to the students and staff of the North St. Francois County School District, it is my privilege to honor Tim Cooper today before the United States House of Representatives.

RECOGNIZING THE BROWARD SENIOR HALL OF FAME INDUCTEES

HON. LOIS FRANKEL

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Ms. FRANKEL of Florida. Mr. Speaker, I rise today to congratulate the 2016 inductees to the Dr. Nan S. Hutchinson Broward Senior Hall of Fame, which recognizes Broward County residents over 60 for their volunteer work.

This is the 33rd year that the Aging & Disability Resource Center of Broward County has inducted residents into the Hall of Fame. The names of this year's 10 honorees are the following: Sandra K. Both, Mitchell ''Mitch'' Ceasar, Commissioner Sue Gunzburger, Moshin Jaffer, Marie Goodrum Johnson, George A. Kling, Arlene Lakin, Patti Lynn, Judge Ronald J. Rothschild, and Jack Shifrel.

I am pleased to honor this year's inductees and thank them for their contribution to our community.

HONORING ROCK AND WRAP IT UP & LENA AND JOSEPH MANDELBAUM HUMANITARIAN AWARD

HON. KATHLEEN M. RICE

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Miss RICE of New York. Mr. Speaker, I rise today to recognize Rock and Wrap it Up, a nationwide nonprofit organization based in New York's fourth congressional district. This incredible organization has spearheaded an extremely effective and innovative effort to fight hunger and poverty by collecting and donating surplus food and supplies from music and sports venues, hotels, and schools.

Rock and Wrap it Up started on a relatively small and local scale, partnering with the Nikon at Jones Beach Theater in my district to collect and distribute food that had been prepared by the venue but not sold. Over the past two decades, Rock and Wrap it Up has grown exponentially both in size and scope, partnering with several renowned music groups, dozens of professional sports teams, international hotel chains, and more than 300 schools nationwide, to help collect surplus food, toiletries, school supplies and other assets and sharing them with various anti-poverty agencies.

Today Rock and Wrap it Up has more than 5,000 members in 500 cities and five countries. The organization not only helps feed millions of hungry people each year but it also teaches its partners and interested groups how to leverage their contracts and resources to ensure that leftover food and supplies are donated, allowing its network and mission to grow even when the organization is not directly involved. Rock and Wrap it Up has touched millions of lives across the country and around the world, and I am truly grateful for all of their work and extremely proud that this organization calls our district home.

I would also like to thank Beth and Lenny Fliegel, recipients of the Rock and Wrap It Up Lena and Joseph Mandelbaum Humanitarian Award, for their incredible support and dedication to this organization and its mission.

AMERICAN PATRIOTISM—TAKING CARE OF OUR HEROES

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. POE of Texas. Mr. Speaker, while patrolling the blue South Pacific seas, two American Stallion helicopters collided off the coast of Hawaii. It was January 14, 2016. Twelve U.S. Marines on board perished. Despite rescue efforts by air and sea, the Marines were never found. Their watery graves are only known to God. Major Shawn Campbell, 41, and Corporal Matthew Drown, 23, were Texas' own.

In the aftermath of this tragic loss, the military community banded together, ready to support the family who had just experienced one of the most traumatic moments that a young family can possibly be faced with. The U.S. military always takes care of its own. That is one reason why our warriors, and their families make the U.S. Military the best in the world.

In particular, Kalie Rhodes and her mothers group (Mothers of Preschoolers) quickly sprang into action, ready to lend a hand and shoulder to those who were distraught by tragedy. The MOPS meet twice a month, joining together in fellowship to connect and learning different parenting and life skills. Katie is the wife of Captain Johnathan Rhodes, a 2002 graduate of Kingwood High School and 2006 graduate of West Point.

Kalie and her team provided support for the visiting families of the missing Marines. They not only prepared meals and cared for some of the smaller children, they also bought and distributed a wide variety of gift cards for food, gas and clothing. The support and encouragement from MOPS and Kalie to the families of those killed is impressive.

As the search continued John Hedley's (USMA '68) Veterans coffee shop in NC donated over $500 and Craig Carson's (USMA '68) company in Indiana donated over $5,000. The Military community never stops supporting each other. We were shown this once again as the Wingman Foundation (ex-Naval and Marine aviators) served as a clearing house for the monetary donations and reimbursed the moms for out-of-pocket expenses. In addition, they donated $50,000 to the families.

Furthermore, the Johnny Mac Soldiers Fund (USMA '86) has provided scholarships for all the children of the deceased Marines. This scholarship program for the kids of the fallen Marines is commendable and inspiring. This is an excellent way to take care of those that have lost a parent.

The fallen Marines were honorably doing their duty, taking care of America. Now Americans are returning the favor by taking care of those military families. These individuals who spring to action, ready to help at a moment's notice are fiercely patriotic. They are the backbone of a rare breed—the American breed that protects us.

And that is just the way it is.

GINGER ONTIVEROS RECOGNIZED FOR SERVICE TO VVC FOUNDATION

HON. PAUL COOK

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. COOK. Mr. Speaker, I rise today to recognize the 15 years of service given by Ginger Ontiveros to the Victor Valley College Foundation. Recently, Ginger announced that she will be stepping down from her role as Executive Director of the foundation.

Under Ginger's leadership, the Victor Valley College Foundation was transformed into a regional powerhouse. Her expertise resulted in the foundation raising over $27 million since 2012. In addition, her tireless efforts led to the securing of $15 million in California Career Pathways funding.

Ginger was also instrumental in professionalizing the foundation staff. She recruited seven development professionals, implemented an award-winning public relations campaign, and produced a quarterly magazine to connect the community with the college.

Ginger may be leaving the Victor Valley College Foundation, but her legacy will undoubtedly live on. She truly made a difference in her community, but most importantly she improved the educational opportunities for students at the college.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,190,059,553,782.20. We've added $8,563,182,504,869.12 to our debt in 6 years. This is over $7.5 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

CONGRATULATING BIG BROTHERS, BIG SISTERS OF THE OZARKS ON RECEIVING THE BIG BROTHERS, BIG SISTERS OF AMERICA GOLD STANDARD AWARD

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. LONG. Mr. Speaker, I rise today to congratulate Big Brothers, Big Sisters of the Ozarks on recently being selected as a Gold Standard Award recipient by the Big Brothers, Big Sisters of America.

Each year, Big Brothers, Big Sisters of America selects 16 local chapters out of more than 300 to receive the Gold Standard Award, which is bestowed in recognition of their having contributed extraordinary improvements to their communities.

Springfield based Big Brothers, Big Sisters of the Ozarks has earned the award for the first time since the chapter's inception 33 years ago. This year, they recruited more than 250 new men and women, resulting in an escalated number of matches between mentors and their mentees. To build on their success, the organization aims to recruit an additional 130 members this year, which would expand their reach to more than 600 at-risk youths.

Mr. Speaker, Big Brothers, Big Sisters of the Ozarks provides a virtually immeasurable value to my constituents in Missouri's Seventh Congressional District. By giving children in our community stable role-models to look up to, they've pivotally redirected young lives toward drastically brighter futures. I urge my colleagues to join me in congratulating Big Brothers, Big Sisters of the Ozarks on achieving this well-deserved commendation, and sincerely thank them for their dedication to America's future generations.

PERSONAL EXPLANATION

HON. ROBERT PITTENGER

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. PITTENGER. Mr. Speaker, on roll call no. 166 through roll call no. 172, I would have voted as follows: Roll Call no. 166, I would have voted YEA, Roll Call no. 167, I would have voted YEA, Roll Call no. 168, I would have voted YEA, Roll Call no. 169, I would have voted YEA, Roll Call no. 170, I would have voted NAY, Roll Call no. 171, I would have voted YEA, and Roll Call no. 172, I would have voted YEA.

IN HONOR OF MY PHAM

HON. BARBARA COMSTOCK

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mrs. COMSTOCK. Mr. Speaker, I rise today to honor Ms. My Pham on her recent recognition as Giant Food's 2015 Community Leader of the Year Award. This award is given annually to a Giant Food employee who is recognized as a leader who has demonstrated a desire to give back to their local community and enrich the lives of those around them. Ms. Pham was selected for her leadership on community engagement initiatives from a consideration pool that consisted of 82 Giant district stores. What a remarkable accomplishment.

Ms. Pham won this award due to her ongoing, proactive work in Leesburg and the greater Loudoun area where she strives to be a role model to the community and help those less fortunate. Currently, Ms. Pham is working with the local Rotary Club in Ashburn to fill more than 600 backpacks with much needed school supplies for children in the community. Ms. Pham's efforts are joined by Ms. Sharon Wright, owner of Loudoun Clear Marketing and Leesburg Girl Scout Troop 913 Leader, along with Girl Scout troops throughout Loudoun County.

Together, they are decorating the donation bins and handing out fliers during this ''school supply blitz'' to ensure each backpack is full of necessary school supplies. Additionally, the Ashburn Rotary Club is crafting store-specific posters and coordinating pickup and delivery of the school supplies.

Ms. Pham has collaborated with eight counterparts from other local Giant stores to host this ''school supply blitz,'' which is scheduled to launch on July 21st of this year and I look forward to monitoring both Ms. Pham and Giant Food's efforts to serve the needy across Loudoun County. Ms. Pham's ''school supply blitz'' is much needed and most appreciated by our community and will do so much for children and families in our area. I am honored to recognize Ms. Pham and the work she has done to bring local businesses, children, and other organizations together to achieve a common goal of helping less fortunate members of our community.

RECOGNIZING THE LIFE AND DEDICATED SERVICE OF THE HONORABLE DENNIS ''NICK'' NICHOLSON

HON. JEFF MILLER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. MILLER of Florida. Mr. Speaker, I rise to recognize the life and dedicated service of the Honorable Dennis ''Nick'' Nicholson. Northwest Florida suffered a tremendous loss with Commissioner Nicholson's passing on April 29, 2016; however, the legacy of this truly remarkable man will be remembered for many years to come.

Commissioner Nicholson was a Georgia native born in Hiawassee on June 23, 1936 to Everett and Grace Nicholson. Raised in Ohio, he graduated from Canton Timken High School in 1954 and enlisted in the United States Air Force. Commissioner Nicholson served his country with honor and distinction for 26 years, retiring at the rank of Senior Master Sergeant.

Although his military service culminated at Hurlburt Field in 1981, Commissioner Nicholson's passion for public service continued. Following two terms on the Fort Walton Beach City Council, he was elected to serve on the Okaloosa Board of County Commissioners from 1995 to 2002. Additionally, Commissioner Nicholson served on several local boards, including the Okaloosa County Tourist Development Council and the Air Force Enlisted Village—home to surviving spouses of retired enlisted U.S. Airmen. He was also a dedicated member of the Fort Walton Beach Elks Club and a board member for the First United Methodist Church of Fort Walton Beach.

Most will remember Commissioner Nicholson as a man of integrity and a consummate public servant who was instrumental in establishing the Emerald Coast Conference Center, constructing the handicapped access at Marler Park, and helping Okaloosa Island recover from the devastation caused by Hurricane Opal in 1995. Those who are blessed to have known him best will also remember this lifelong Ohio State and Cleveland Browns football fan as a compassionate and devoted family man.

Mr. Speaker, on behalf of the House of Representatives, I am privileged to recognize the Honorable Dennis ''Nick'' Nicholson and pay tribute to his honorable lifetime of service to the Northwest Florida community and our great Nation. Vicki and I extend our heartfelt prayers and deepest condolences to Josie, his best friend and wife of nearly 60 years; their four children. Deborah Demyan (Andrew) of Shalimar, Florida; Scott Nicholson (Michele) of Shalimar, Florida; Sandra Thompson, of Pensacola, Florida and Suzy Nicholson Hunt (Rich) of Destin, Florida; grandchildren: Shelby Demyan, Cody Nicholson, Hannah Miller (Marshall) of Annapolis, Maryland and Shane Nicholson; and the entire Nicholson family.

HONORING TAIWANESE AMERICAN HERITAGE WEEK

HON. JOHN KATKO

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. KATKO. Mr. Speaker, I rise today to recognize Taiwanese American Heritage Week. During this week, celebrations of Taiwanese culture, the history of Taiwan, and the contributions of Taiwanese Americans will take place across our country, including in my district, in Central New York.

This year marks the 37th anniversary of the enactment into law of the Taiwan Relations Act which functions as the cornerstone of U.S.-Taiwanese relations. Today, this law continues to provide a strong foundation for the bond between the people of both countries.

Taiwanese Americans have made invaluable contributions to the diversity and prosperity of American society. Taiwanese Americans have succeeded as successful and notable artists, Nobel Laureate scientists, researchers, human rights activists, business leaders and so much more.

Taiwanese American Heritage Week provides us with an opportunity to learn more about the outstanding contributions men and women from Taiwan have made to our nation, and to the world. During this special week, we are able to embrace America's diversity and celebrate the spirit of community that binds us together as one nation.

HONORING ANTHONY RUSSO III

HON. THOMAS MacARTHUR

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. MACARTHUR. Mr. Speaker, I rise today to honor the memory and life of Anthony ''Tony'' Russo III, of the Third Congressional District, and to express my sincerest condolences to his family and loved ones he has left behind, as well as to recognize his career and community engagement.

Tony was one of Burlington County's most well-known and respected farmers and was a former member of the Burlington County Board of Agriculture and was described as both ''a pillar of the Tabernacle community'' and ''a giant in New Jersey agriculture.'' His farm celebrated its 75th anniversary last year and is one of the most well-known farm stands in South Jersey, in very large part due to Tony who took over operations of the farm after the death of his father in 1991.

Tony and his wife Maryann were married for 50 years and enjoyed working together on the farm, along with his son and daughter-in-law. A tragic accident claiming his life has left a devastating void in the lives of his family, friends, and loved ones.

Mr. Speaker, the people of New Jersey's Third Congressional District are tremendously honored to have had Anthony ''Tony'' Russo III as a selfless and dedicated member of their community, whose generosity and vivacious spirit will never be forgotten. It is with a heavy heart that I commemorate his career and life, and recognize the lasting legacy that he has left behind, before the United States House of Representatives.

IN HONOR OF MARY CATHERINE (KITTY) VAN BORTEL

HON. CHRIS COLLINS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. COLLINS of New York. Mr. Speaker, I rise today to honor a constituent of mine who was recently awarded one of the highest honors in her industry.

Mary Catherine (Kitty) Van Bortel, president of Van Bortel Subaru in Victor, New York, which is located in my Congressional district, was named the 2016 TIME Dealer of the Year. Ms. Van Bortel received this highest honor out of a select group of dealers from across the country recognized at the 99th annual National Automobile Dealers Association (NADA) Convention & Exposition in Las Vegas on April 1st.

The TIME Dealer of the Year award is one of the automobile industry's most prestigious and highly coveted honors. Recipients are among the nation's most successful auto dealers who also demonstrate a long-standing commitment to community service. In fact, Ms. Van Bortel was one of only 50 auto dealers from 16,000 nationwide—nominated for the 47th annual award.

The award is sponsored by TIME in association with Ally Financial, and in cooperation with NADA. A panel of faculty members from the Tauber Institute for Global Operations at the University of Michigan selects one finalist from each of the four NADA regions and one national Dealer of the Year.

A 1972 graduate of Palmyra-Macedon Central High School in Palmyra, New York, Ms. Van Bortel earned a B.A. in psychology from Wells College in Aurora, New York, in 1976. Although her father was a car dealer who owned 17 franchises at one time, she began her career at a dealership independent of her family.

Having first worked at Ridley Ford in Webster, New York where she became the top salesperson, Ms. Van Bortel was later a sales manager at Holtz Mercedes-Benz and BMW in Rochester, New York, before opening a used-car lot—her first step toward owning a dealership.

She later convinced Subaru to give her a chance and opened Van Bortel Subaru in 1991 vowing to make it the largest-volume Subaru dealership in the nation. Within seven years, that goal was achieved. Her business has since expanded to include Van Bortel Chevrolet in Macedon, New York, and Van Bortel Ford in East Rochester, New York, both of which she owns with her brother.

The reputation which she has built over the last 30 years has been the most rewarding part of her automotive career. And that reputation includes an unwavering commitment to giving back to her community. A nine-year breast cancer survivor, Ms. Van Bortel is dedicated to spreading the word that early detection is the cure. She has raffled off pink Ford Mustangs, given countless speeches to those who would listen and become a major contributor to the Breast Cancer Coalition of Rochester. Other organizations Ms. Van Bortel supports include: National Susan B. Anthony Museum & House in Rochester; The National Center for Missing & Exploited Children; American Diabetes Association Tour de Cure (fundraising cycling event); Warrior Salute (assists veterans as they transition back to civilian life); Vistor/Farmington Food Cupboard (Thanksgiving baskets); IAC Kids: It's About Caring for Kids (help families in the Greater Rochester region going through financial hardships due to their child's severe illness); House of Mercy in Rochester (homeless shelter and advocacy group); Open Door Mission in Rochester (homeless shelter); Catholic Charities USA and many other local organizations.

In addition, Ms. Van Bortel has received numerous awards for her community service and business leadership, including the 2009 Herbert W. Vanden Brul Entrepreneurial Award from the Saunders School of Business at Rochester Institute of Technology; 2011 Athena Award from the Women's Council of the Rochester Business Alliance and 2009 Rochester Women's Network ''W'' Award.

In 2005, she was named one of the ''100 Leading Women in the North American Auto Industry'' by Automotive News.

Ms. Van Bortel was nominated for the TIME Dealer of the Year award by Robert Vancavage, president of the New York State Automobile Dealers Association.

Mr. Speaker, on behalf of all of the members of the New York Congressional delegation, please allow me to once again congratulate Ms. Mary Catherine (Kitty) Van Bortel on this prestigious award and thank her and her family for their involvement in the Rochester area.

I wish her, her family, and her employees at the dealerships a prosperous and bright future.

HONOR OF POLICE WEEK—MAY 15–21, 2016

HON. BETTY McCOLLUM

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Ms. MCCOLLUM. Mr. Speaker, I rise to recognize the men and women who support and defend our communities by putting their lives on the line each and every day.

Police Week is a time set aside to honor not only our fallen heroes, but all men and women in law enforcement work tirelessly to protect our neighborhoods. While it is often in emergencies that we remark at their courage and perseverance, we know that they remain vigilant every day. I send my deepest condolences to the friends and family members of these brave women and men who so proudly wore the police uniform.

One hundred twenty-eight officers lost their life last year, including one from Minnesota. Investigator Steven Martin Sandberg was shot and killed on Sunday, October 18, 2015. His selfless dedication to protect and serve the community of Aitkin County will be forever remembered.

This week, we honor Officer Steven Sandberg and the other law enforcement officers who lost their lives last year. With profound gratitude we thank them for all they do to keep our cities safe. Congress must continue to ensure that our law enforcement professionals have the resources they need to protect our communities.

THANKING MELISSA LEAYM-FERNANDEZ FOR HER CHARITY AND SERVICE

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. KILDEE. Mr. Speaker, I ask the United States House of Representatives to join me in recognizing Ms. Leaym-Fernandez for the support she has offered to the city of Flint and its students during the Flint Water Crisis.

Ms. Leaym-Fernandez is a professional artist and visual arts teacher in Flint Community Schools. Flint schools have an art budget of less than one dollar per student annually, but Ms. Leaym-Fernandez makes it her mission to combat this by providing opportunities and resources for Flint students to express themselves artistically. She has worked tirelessly to find funding opportunities to empower both her visual arts program and the students within it since she took the lead two years ago.

Ms. Leaym-Fernandez emphasizes the importance of artistic expression by focusing her efforts on the population of disenfranchised students in her district who need her help the most, especially those students who attend an alternative education institution. Fostering success in students who vary from being teen parents, on probation, or have learning or discipline difficulties is a commendable mission. Especially in light of the ongoing water crisis. By striving to give students the resources they need to express themselves creatively and artistically, Ms. Leaym-Fernandez sets an admirable example for teachers and community members alike.

It is my honor to represent such active and charitable members of our community, and Melissa Leaym-Fernandez is a shining example. The type of direct and individual care that Ms. Leaym-Fernandez has shown is exactly what the students of Flint need.

Mr. Speaker, I applaud the work done by Ms. Leaym-Fernandez and thank her for the service she has provided to the students and city of Flint.

THANKING HOLT PUBLIC SCHOOLS STUDENTS FOR THEIR CHARITY AND SERVICE

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. KILDEE. Mr. Speaker, I ask the United States House of Representatives to join me in recognizing the students of Holt Public Schools for the support they have offered to the city of Flint and its residents during the Flint Water Crisis.

Seven students from Washington Woods Middle School and Dimondale Elementary have embarked on a campaign to donate a truckload of drinking water to Flint residents. The students quickly accomplished their fundraising mission by selling rubber ducks at local community events, and cooperation with Meijer stores and UFCW Local 951 assisted in their donation effort. The student group is continuing their successful community service campaign and plans on raising funds for the delivery of another truckload of water.

To date, over $4,500 has been raised by the group's Truck of Water for Flint GoFundMe fundraiser. This has allowed a truckload of over 36,000 water bottles to be delivered to Flint residents, and the second load of drinking water is forthcoming. The type of direct care that these students have shown is exactly what the residents of Flint need. It is my honor to represent such active and charitable members of our community, and this group of young students is a shining example.

Mr. Speaker, I applaud the work done by these Holt Public Schools students, and I thank them for the service they have provided to the city of Flint.

CONGRATULATING KILLOTTA TARTT-WALL ON BEING NAMED NATIONAL HEAD START TEACHER OF THE YEAR

HON. DANIEL T. KILDEE

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, May 10, 2016

Mr. KILDEE. Mr. Speaker, I ask the United States House of Representatives to join me in recognizing Ms. Killotta Tartt-Wall for her unwavering commitment to equal educational opportunities and student success.

Ms. Tartt-Wall has worked in the educational field for 12 years. She has worked as an Early Childhood Special Education Teacher for five years and has worked for the Head Start program for seven years. For two summers she also taught the Tot Lot summer Preschool Program. All of her teaching has been done in the Flint area with Flint families and children.

Ms. Tartt-Wall is dedicated to making a difference in the lives of young children and their families. She believes that one of the pathways out of poverty is having a good educational foundation that focuses on partnering with families to help ensure the success of the children she works with.

Head Start is the national commitment to give every child, regardless of circumstances at birth, an opportunity to succeed in school and in life. When Head Start was first launched in 1965, the idea of providing comprehensive health, nutrition, and education services to children in poverty was revolutionary. The Head Start Model, developed over the decades has been built on evidence-based practices and is constantly adapting—using the best available science and teaching techniques to meet the needs of local communities.

This year, Ms. Tartt-Wall was nominated for the National Head Start Teacher of the Year by her peers. She has a reputation of having endless enthusiasm and a passion for working with at-risk families and children. Ms. Tartt-Wall is an outstanding example of what one person can do to bring hope and success to the children and families affected by the Flint Water Crisis.

Mr. Speaker, I applaud Ms. Killotta Tartt-Wall for her dedication to the families of Flint and commitment to educational success.

Daily Digest

HIGHLIGHTS

See Résumé of Congressional Activity.

Senate

Chamber Action

Routine Proceedings, pages S2653–S2674

Measures Introduced: Eleven bills and one resolution were introduced, as follows: S. 2908–2918, and S. Res. 460. **Page S2669**

Measures Reported:

Special Report entitled ''Summary of Legislative and Oversight Activities During the 113th Congress''. (S. Rept. No. 114–252)

S. 2917, to reauthorize the Commodity Futures Trading Commission, to ensure protections of futures customers, to provide relief for farmers, ranchers, and end-users that manage risk to help keep consumer costs low. **Page S2669**

Measures Passed:

Children of Fallen Heroes Scholarship Act: Committee on Health, Education, Labor, and Pensions was discharged from further consideration of S. 1352, to increase Federal Pell Grants for the children of fallen public safety officers, and the bill was then passed. **Page S2673**

American Manufacturing Competitiveness Act: Senate passed H.R. 4923, to establish a process for the submission and consideration of petitions for temporary duty suspensions and reductions. **Page S2673**

Women Airforce Service Pilot Arlington Inurnment Restoration Act: Committee on Veterans' Affairs was discharged from further consideration of H.R. 4336, to amend title 38, United States Code, to provide for the inurnment in Arlington National Cemetery of the cremated remains of certain persons whose service has been determined to be active service, and the bill was then passed, after agreeing to the following amendments proposed thereto: **Pages S2673–74**

McConnell (for Ernst) Amendment No. 3894, relative to inurnment in Arlington National Cemetery. **Page S2674**

McConnell (for Ernst) Amendment No. 3895, to amend the title. **Page S2674**

Recognizing Hafsat Abiola, Khanim Latif, Yoani Sanchez, and Akanksha Hazari: Senate agreed to S. Res. 418, recognizing Hafsat Abiola, Khanim Latif, Yoani Sanchez, and Akanksha Hazari for their selflessness and dedication to their respective causes. **Page S2674**

Measures Considered:

Energy and Water Development and Related Agencies Appropriations Act—Agreement: Senate continued consideration of H.R. 2028, making appropriations for energy and water development and related agencies for the fiscal year ending September 30, 2016, taking action on the following amendments proposed thereto: **Pages S2654–67**

Pending:

Alexander/Feinstein Amendment No. 3801, in the nature of a substitute. **Page S2654**

McConnell (for Cotton) Amendment No. 3878 (to Amendment No. 3801), of a perfecting nature. **Page S2654**

A unanimous-consent-time agreement was reached providing for further consideration of the bill at approximately 9:30 a.m., on Wednesday, May 11, 2016; and that notwithstanding rule XXII, if cloture is not invoked on McConnell (for Cotton) Amendment No. 3878 (to Amendment No. 3801) (listed above), there be an hour of debate equally divided in the usual form, and that following the use or yielding back of time, Senator Cotton, or his designee, be recognized to withdraw the amendment without any intervening action or debate. **Page S2674**

Additional Cosponsors: **Pages S2669–71**

Statements on Introduced Bills/Resolutions: **Pages S2671–72**

Additional Statements: **Pages S2667–69**

Amendments Submitted: **Page S2672**

Authorities for Committees to Meet:

Pages S2672–73

Privileges of the Floor: Page S2673

Adjournment: Senate convened at 2:15 p.m. and adjourned at 6:17 p.m., until 9:30 a.m. on Wednesday, May 11, 2016. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S2674.)

Committee Meetings

(Committees not listed did not meet)

AUTHORIZATION: DEFENSE

Committee on Armed Services: Subcommittee on SeaPower met in closed session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2017.

AUTHORIZATION: DEFENSE

Committee on Armed Services: Subcommittee on Personnel met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2017.

AUTHORIZATION: DEFENSE

Committee on Armed Services: Subcommittee on Readiness and Management Support met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2017.

AUTHORIZATION: DEFENSE

Committee on Armed Services: Subcommittee on Emerging Threats and Capabilities met in open session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2017.

AUTHORIZATION: DEFENSE

Committee on Armed Services: Subcommittee on Strategic Forces met in closed session and approved for full committee consideration, those provisions which fall within the jurisdiction of the subcommittee, of the proposed National Defense Authorization Act for fiscal year 2017.

NOMINATION

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the nomination of Peggy E. Gustafson, of Maryland, to be Inspector General, Department of Commerce, after the nominee, who was introduced by Senator McCaskill, testified and answered questions in her own behalf.

EVIDENCE BASED PRACTICES

Committee on Finance: Committee concluded a hearing to examine whether evidence based practices improve outcomes for vulnerable individuals and families, after receiving testimony from Gordon L. Berlin, MDRC, New York, New York; James Lee Sorenson, Sorenson Impact Center, Salt Lake City, Utah; Tesha Bright, Nurse-Family Partnership of Essex and Morris Counties, Newark, New Jersey; and Robert Doar, American Enterprise Institute, Washington, D.C.

TERRORISM IN SUB-SAHARAN AFRICA

Committee on Foreign Relations: Committee concluded a hearing to examine terrorism and instability in Sub-Saharan Africa, after receiving testimony from Linda Thomas-Greenfield, Assistant Secretary, Bureau of African Affairs, and Justin Siberell, Acting Coordinator for Counterterrorism, Bureau of Counterterrorism, both of the Department of State; Linda Etim, Assistant Administrator for Africa, United States Agency for International Development; Abdoulaye Mar Dieye, United Nations Development Program Regional Bureau for Africa, New York, New York; and Christopher Fomunyoh, National Democratic Institute, Washington, D.C.

UNDERSTANDING DYSLEXIA

Committee on Health, Education, Labor, and Pensions: Committee concluded a hearing to examine understanding dyslexia, focusing on the intersection of scientific research and education, after receiving testimony from Sally Shaywitz, Yale University School of Medicine Center for Dyslexia and Creativity, New Haven, Connecticut; Guinevere F. Eden, Georgetown University Medical Center Center for the Study of Learning, Washington, D.C.; David Boies, Boies, Schiller and Flexner, LLP, Armonk, New York; E. Mark Mahone, Kennedy Krieger Institute, Baltimore, Maryland; Ameer Baraka, Terrytown, Louisiana; and April Hanrath, Salt Lake City, Utah.

FISA AMENDMENTS ACT REAUTHORIZATION OVERSIGHT

Committee on the Judiciary: Committee concluded an oversight hearing to examine reauthorization of the Foreign Intelligence Surveillance Act Amendments Act, focusing on the balance between national security, privacy, and civil liberties, after receiving testimony from David Medine, Chairman, and Rachel L. Brand, both of the Privacy and Civil Liberties Oversight Board; Kenneth L. Wainstein, Cadwalader,

Wickersham, and Taft LLP, and Elizabeth Goitein, New York University School of Law Brennan Center for Justice, both of Washington, D.C.; and Matthew G. Olsen, IronNet Cybersecurity, Fulton, Maryland.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 14 public bills, H.R. 5174–5187; and 5 resolutions, H.J. Res. 92–93; and H. Res. 719, 721 and 722 were introduced. **Pages H2213–14**

Additional Cosponsors: **Pages H2214–16**

Reports Filed: Reports were filed today as follows:

H.R. 3209, to amend the Internal Revenue Code of 1986 to permit the disclosure of certain tax return information for the purpose of missing or exploited children investigations, with an amendment (H. Rept. 114–542);

H.R. 2137, to ensure Federal law enforcement officers remain able to ensure their own safety, and the safety of their families, during a covered furlough (H. Rept. 114–543);

S. 125, to amend title I of the Omnibus Crime Control and Safe Streets Act of 1968 to extend the authorization of the Bulletproof Vest Partnership Grant Program through fiscal year 2020, and for other purposes (H. Rept. 114–544);

H.R. 4590, to authorize the Secretary of Veterans Affairs to carry out certain major medical facility projects for which appropriations are being made for fiscal year 2016, and for other purposes, with an amendment (H. Rept. 114–545);

H.R. 4063, to improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, to improve patient advocacy by the Secretary, and to expand the availability of complementary and integrative health, and for other purposes, with an amendment (H. Rept. 114–546, Part 1);

H.R. 4985, to amend the Foreign Narcotics Kingpin Designation Act to protect classified information in Federal court challenges (H. Rept. 114–547, Part 1);

H.R. 4843, to amend the Child Abuse Prevention and Treatment Act to require certain monitoring and oversight, and for other purposes, with an amendment (H. Rept. 114–548);

H.R. 295, to reauthorize the Historically Black Colleges and Universities Historic Preservation program, with an amendment (H. Rept. 114–549);

H.R. 2009, to provide for the conveyance of certain land inholdings owned by the United States to the Tucson Unified School District and to the Pascua Yaqui Tribe of Arizona, with an amendment (H. Rept. 114–550);

H. Res. 720, providing for consideration of the bill (H.R. 4641) to provide for the establishment of an inter-agency task force to review, modify, and update best practices for pain management and prescribing pain medication, and for other purposes, and providing for consideration of the bill (H.R. 5046) to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize the Attorney General to make grants to assist State and local governments in addressing the national epidemic of opioid abuse, and for other purposes (H. Rept. 114–551);

H.R. 1818, to amend the Public Health Service Act to provide grants to States to streamline State requirements and procedures for veterans with military emergency medical training to become civilian emergency medical technicians, with an amendment (H. Rept. 114–552);

H.R. 3680, to provide for the Secretary of Health and Human Services to carry out a grant program for co-prescribing opioid overdose reversal drugs, with an amendment (H. Rept. 114–553);

H.R. 3691, to amend the Public Health Service Act to reauthorize the residential treatment programs for pregnant and postpartum women and to establish a pilot program to provide grants to State substance abuse agencies to promote innovative service delivery models for such women, with an amendment (H. Rept. 114–554);

H.R. 4586, to amend the Public Health Service Act to authorize grants to States for developing standing orders and educating health care professionals regarding the dispensing of opioid overdose reversal medication without person-specific prescriptions, and for other purposes, with an amendment (H. Rept. 114–555);

H.R. 4599, to amend the Controlled Substances Act to permit certain partial fillings of prescriptions, with an amendment (H. Rept. 114–556);

H.R. 4976, to require the Commissioner of Food and Drugs to seek recommendations from an advisory committee of the Food and Drug Administration before approval of certain new drugs that are opioids without abuse-deterrent properties, and for other purposes (H. Rept. 114–557);

H.R. 4969, to amend the Public Health Service Act to direct the Centers for Disease Control and Prevention to provide for informational materials to educate and prevent addiction in teenagers and adolescents who are injured playing youth sports and subsequently prescribed an opioid, with an amendment (H. Rept. 114–558);

H.R. 4978, to require the Government Accountability Office to submit to Congress a report on neonatal abstinence syndrome (NAS) in the United States and its treatment under Medicaid, with an amendment (H. Rept. 114–559);

H.R. 4982, to direct the Comptroller General of the United States to evaluate and report on the inpatient and outpatient treatment capacity, availability, and needs of the United States, with an amendment (H. Rept. 114–560); and

H.R. 4981, to amend the Controlled Substances Act to improve access to opioid use disorder treatment, with an amendment (H. Rept. 114–561, Part 1). **Pages H2212–13**

Speaker: Read a letter from the Speaker wherein he appointed Representative Weber (TX) to act as Speaker pro tempore for today. **Page H2161**

Recess: The House recessed at 12:21 p.m. and reconvened at 2 p.m. **Page H2163**

Recess: The House recessed at 2:10 p.m. and reconvened at 3:30 p.m. **Page H2164**

Suspensions: The House agreed to suspend the rules and pass the following measures:

Fallen Heroes Flag Act of 2016: S. 2755, to provide Capitol-flown flags to the immediate family of firefighters, law enforcement officers, members of rescue squads or ambulance crews, and public safety officers who are killed in the line of duty; **Pages H2164–66**

Jason Simcakoski PROMISE Act: H.R. 4063, amended, to improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, to improve patient advocacy by the Secretary, and to expand the availability of complementary and integrative health; **Pages H2166–72**

Agreed to amend the title so as to read: "To improve the use by the Secretary of Veterans Affairs of opioids in treating veterans, and for other purposes.". **Page H2172**

Designating the Federal building located at 99 New York Avenue, N.E., in the District of Columbia as the "Ariel Rios Federal Building": H.R. 4957, to designate the Federal building located at 99 New York Avenue, N.E., in the District of Columbia as the "Ariel Rios Federal Building", by a ⅔ yea-and-nay vote of 401 yeas with none voting "nay", Roll No. 180; **Pages H2172–73, H2192–93**

Kingpin Designation Improvement Act of 2016: H.R. 4985, to amend the Foreign Narcotics Kingpin Designation Act to protect classified information in Federal court challenges; **Pages H2173–75**

Transnational Drug Trafficking Act: S. 32, to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity; **Pages H2175–79**

Good Samaritan Assessment Act of 2016: H.R. 5048, to require a study by the Comptroller General of the United States on Good Samaritan laws that pertain to treatment of opioid overdoses; **Page H2179**

Opioid Program Evaluation Act: H.R. 5052, amended, to direct the Attorney General and the Secretary of Health and Human Services to evaluate the effectiveness of grant programs that provide grants for the primary purpose of providing assistance in addressing problems pertaining to opioid abuse, by a ⅔ yea-and-nay vote of 410 yeas to 1 nay, Roll No. 181; **Pages H2181–84, H2193–94**

Bulletproof Vest Partnership Grant Program Reauthorization Act: S. 125, to amend title I of the Omnibus Crime Control and Safe Streets Act of 1968 to extend the authorization of the Bulletproof Vest Partnership Grant Program through fiscal year 2020; **Pages H2184–86**

Federal Law Enforcement Self-Defense and Protection Act: H.R. 2137, to ensure Federal law enforcement officers remain able to ensure their own safety, and the safety of their families, during a covered furlough; and **Pages H2186–89**

Recovering Missing Children Act: H.R. 3209, amended, to amend the Internal Revenue Code of 1986 to permit the disclosure of certain tax return information for the purpose of missing or exploited children investigations. **Pages H2189–92**

Recess: The House recessed at 6:27 p.m. and reconvened at 6:30 p.m. **Page H2192**

Senate Message: Message received from the Senate by the Clerk and subsequently presented to the House today appears on page H2164.

Senate Referral: S. 546 was referred to the Committee on Transportation and Infrastructure.

Pages H2164, H2211–12

Quorum Calls—Votes: Two yea-and-nay votes developed during the proceedings of today and appear on pages H2192–93 and H2193. There were no quorum calls.

Adjournment: The House met at 12 noon and adjourned at 9:34 p.m.

Committee Meetings

WILL PRESIDENT OBAMA PRIORITIZE THE RELEASE OF PRISONERS OF CONSCIENCE IN VIETNAM?

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a hearing entitled "Will President Obama Prioritize the Release of Prisoners of Conscience in Vietnam?". Testimony was heard from a public witness.

A BILL TO PROVIDE FOR THE ESTABLISHMENT OF AN INTER-AGENCY TASK FORCE TO REVIEW, MODIFY, AND UPDATE BEST PRACTICES FOR PAIN MANAGEMENT AND PRESCRIBING PAIN MEDICATION, AND FOR OTHER PURPOSES; COMPREHENSIVE OPIOID ABUSE REDUCTION ACT OF 2016

Committee on Rules: Full Committee held a hearing on H.R. 4641, to provide for the establishment of an inter-agency task force to review, modify, and update best practices for pain management and prescribing pain medication, and for other purposes; and H.R. 5046, the "Comprehensive Opioid Abuse Reduction Act of 2016". The committee granted, by voice vote, a structured rule for H.R. 4641. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment the amendment in the nature of a substitute recommended by the Committee on Energy and Commerce now printed in the bill and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part A of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part A of the report. The rule provides one motion to recommit with or without instructions. Additionally, the rule grants a structured rule for H.R. 5046. The rule provides one hour of general debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary. The rule waives all points of order against consideration of the bill. The rule makes in order as original text for the purpose of amendment an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–52 and provides that it shall be considered as read. The rule waives all points of order against that amendment in the nature of a substitute. The rule makes in order only those further amendments printed in part B of the Rules Committee report. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question. The rule waives all points of order against the amendments printed in part B of the report. The rule provides one motion to recommit with or without instructions. Testimony was heard from Representatives Issa, Jackson Lee, Donovan, Danny K. Davis of Illinois, Mica, Keating, Rothfus, Levin, Brooks of Indiana, Kennedy, and Carter of Georgia.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D469)*

H.R. 1493, to protect and preserve international cultural property at risk due to political instability, armed conflict, or natural or other disasters. Signed on May 9, 2016. (Public Law 114–151)

H.R. 2908, to adopt the bison as the national mammal of the United States. Signed on May 9, 2016. (Public Law 114–152)

COMMITTEE MEETINGS FOR WEDNESDAY, MAY 11, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Armed Services: closed business meeting to mark up the proposed National Defense Authorization Act for fiscal year 2017, 9:30 a.m., SR–222.

Committee on Commerce, Science, and Transportation: to hold hearings to examine leveraging the United States science and technology enterprise, 10 a.m., SR–253.

Committee on Finance: to hold an oversight hearing to examine the Customs and Border Protection agency, 10 a.m., SD–215.

Full Committee, to hold hearings to examine the nominations of Charles P. Blahous, III, and Robert D. Reischauer, both of Maryland, both to be a Member of the Board of Trustees of the Federal Hospital Insurance Trust Fund, a Member of the Board of Trustees of the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund, and a Member of the Board of Trustees of the Federal Supplementary Medical Insurance Trust Fund, 3 p.m., SD–215.

Committee on Indian Affairs: business meeting to consider S. 1163, to amend the Native American Programs Act of 1974 to provide flexibility and reauthorization to ensure the survival and continuing vitality of Native American languages, S. 2580, to establish the Indian Education Agency to streamline the administration of Indian education, and S. 2739, to provide for equitable compensation to the Spokane Tribe of Indians of the Spokane Reservation for the use of tribal land for the production of hydropower by the Grand Coulee Dam; to be immediately followed by hearings to examine S. 2417, to amend the Indian Health Care Improvement Act to allow the Indian Health Service to cover the cost of a copayment of an Indian or Alaska Native veteran receiving medical care or services from the Department of Veterans Affairs, and S. 2842, to amend and reform the Johnson-O'Malley Act to award contracts to certain tribal organizations, Indian corporations, school districts, States, and consortia of tribal organizations, 2:15 p.m., SD–628.

Committee on Judiciary: Subcommittee on Privacy, Technology and the Law, to hold hearings to examine the proposed Federal Communications Commission privacy rules, 2:30 p.m., SD–226.

Committee on Small Business and Entrepreneurship: to hold hearings to examine the Administration's overtime rule and the rising costs of doing business, 9:30 a.m., SR–428A.

House

Committee on Appropriations, Subcommittee on Defense, markup on the Defense Appropriations Bill, FY 2017, 5:30 p.m., H–140 Capitol. This markup will be closed.

Committee on Armed Services, Subcommittee on Oversight and Investigations, hearing entitled ''U.S. Industry Perspectives on the Department of Defense's Policies, Roles and Responsibilities for Foreign Military Sales'', 10 a.m., 2212 Rayburn.

Committee on Energy and Commerce, Subcommittee on Health, hearing entitled ''Health Care Solutions: Increasing Patient Choice and Plan Innovation'', 10 a.m., 2322 Rayburn.

Subcommittee on Commerce, Manufacturing, and Trade, hearing entitled ''Daily Fantasy Sports: Issues and Perspectives'', 10:15 a.m., 2123 Rayburn.

Subcommittee on Energy and Power, markup on H.R. 4775, the ''Ozone Standards Implementation Act of 2016''; and H.R. 4979, the ''Advanced Nuclear Technology Development Act of 2016'', 5 p.m., 2123 Rayburn.

Committee on Foreign Affairs, Subcommittee on Asia and the Pacific, hearing entitled ''FY 2017 Budget Priorities for South Asia: Recovery, Development, and Engagement'', 2 p.m., 2172 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''The U.S. Role in Helping Nigeria Confront Boko Haram and Other Threats in Northern Nigeria'', 2:30 p.m., 2255 Rayburn.

Committee on the Judiciary, Full Committee, markup on H.R. 5063, the ''Stop Settlement Slush Funds Act of 2016'', 10:15 a.m., 2141 Rayburn.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Reforming the Postal Service: Finding a Viable Solution'', 10 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Energy, hearing entitled ''Department of Energy Oversight: Office of Fossil Energy'', 10 a.m., 2318 Rayburn.

Committee on Small Business, Full Committee, hearing entitled ''Inspiring Entrepreneurs: Learning from the Experts'', 11 a.m., 2360 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Economic Opportunity, markup on H.R. 3286, the ''HIRE Vets Act''; H.R. 4138, to authorize the Secretary of Veterans Affairs to recoup relocation expenses paid to or on behalf of employees of the Department of Veterans Affairs; a draft of the ''Veterans Education Enhancement Act of 2016''; a draft of the ''Veterans Success on Campus Act of 2016''; a draft bill to direct the Secretary of Labor to carry out a research program to evaluate the effectiveness of Transition Assistance Program in addressing needs of certain minority veterans; and a draft of the ''GI Bill Oversight Act of 2016'', 11 a.m., 334 Cannon.

Subcommittee on Disability Assistance and Memorial Affairs, markup on H.R. 4892, to amend title 38, United States Code, to pay special compensation to certain veterans with the loss or loss of use of creative organs; H.R. 3715, the ''Final Farewell Act of 2015''; H.R. 4758, to amend title 38, United States Code, to authorize the award of the Presidential Memorial Certificate to certain deceased members of the reserve components of the Armed Forces and certain deceased members of the Reserve Officers' Training Corps; H.R. 4087, the ''Fair Treatment for Families of Veterans Act''; H.R. 4759, to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to pay costs relating to the transportation of certain deceased veterans to veterans' cemeteries owned by a State or tribal organization; H.R.

4782, the ''Veterans' Compensation Cost-of-Living Adjustment Act of 2016''; H.R. 4757, to amend title 38, United States Code, to expand the eligibility for headstones, markers, and medallions furnished by the Secretary of Veterans Affairs for deceased individuals who were awarded the Medal of Honor and are buried in private cemeteries; and H.R. 3936, the ''VET Act'', 1 p.m., 334 Cannon.

Committee on Ways and Means, Full Committee, markup on H.R. 5170, the ''Social Impact Partnerships to Pay for Results Act''; H.R. 2990, the ''Accelerating Individuals into the Workforce Act''; H.R. 5169, the ''What Works to Move Welfare Recipients into Jobs Act''; H.R. 2959, the ''TANF Accountability and Integrity Improvement Act''; H.R. 2966, the ''Reducing Poverty through Employment Act''; and H.R. 2952, the ''Improving Employment Outcomes of TANF Recipients Act'', 10 a.m., 1100 Longworth.

Subcommittee on Health, hearing entitled ''Implementation of the Medicare Access and CHIP Reauthorization Act of 2015 (MACRA)'', 2 p.m., 1100 Longworth.

Résumé of Congressional Activity

SECOND SESSION OF THE ONE HUNDRED FOURTEENTH CONGRESS

The first table gives a comprehensive résumé of all legislative business transacted by the Senate and House. The second table accounts for all nominations submitted to the Senate by the President for Senate confirmation.

DATA ON LEGISLATIVE ACTIVITY

January 4 through April 30, 2016

	Senate	*House*	*Total*
Days in session	56	50	..
Time in session	326 hrs., 13′	226 hrs., 54′	..
Congressional Record:			
Pages of proceedings	2,600	2,152	..
Extensions of Remarks	..	644	..
Public bills enacted into law	18	17	35
Private bills enacted into law	..	..	..
Bills in conference	..	..	..
Measures passed, total	138	198	336
Senate bills	26	20	..
House bills	17	131	..
Senate joint resolutions	..	1	..
House joint resolutions	..	1	..
Senate concurrent resolutions	4	4	..
House concurrent resolutions	7	10	..
Simple resolutions	84	31	..
Measures reported, total	* 97	148	245
Senate bills	73	2	..
House bills	7	119	..
Senate joint resolutions	..	..	..
House joint resolutions	..	1	..
Senate concurrent resolutions	..	..	..
House concurrent resolutions	..	4	..
Simple resolutions	17	22	..
Special reports	3	..	..
Conference reports	1	..	..
Measures pending on calendar	287	47	..
Measures introduced, total	591	1,031	1,622
Bills	463	851	..
Joint resolutions	5	12	..
Concurrent resolutions	10	25	..
Simple resolutions	113	143	..
Quorum calls	..	1	..
Yea-and-nay votes	65	87	..
Recorded votes	..	91	..
Bills vetoed	1	1	..
Vetoes overridden	..	..	..

* These figures include all measures reported, even if there was no accompanying report. A total of 48 written reports have been filed in the Senate, 148 reports have been filed in the House.

DISPOSITION OF EXECUTIVE NOMINATIONS

January 4 through April 30, 2016

Civilian nominations, totaling 262 (including 181 nominations carried over from the First Session), disposed of as follows:

Confirmed	25
Unconfirmed	228
Withdrawn	9

Other Civilian nominations, totaling 679 (including 97 nominations carried over from the First Session), disposed of as follows:

Confirmed	320
Unconfirmed	358
Withdrawn	1

Air Force nominations, totaling 3,475 (including 181 nominations carried over from the First Session), disposed of as follows:

Confirmed	3,460
Unconfirmed	15

Army nominations, totaling 3,827 (including 1,740 nominations carried over from the First Session), disposed of as follows:

Confirmed	2,634
Unconfirmed	1,193

Navy nominations, totaling 319 (including 5 nominations carried over from the First Session), disposed of as follows:

Confirmed	109
Unconfirmed	209
Withdrawn	1

Marine Corps nominations, totaling 1,239 (including 3 nominations carried over from the First Session), disposed of as follows:

Confirmed	757
Unconfirmed	482

Summary

Total nominations carried over from the First Session	2,207
Total nominations received this Session	7,594
Total confirmed	7,305
Total unconfirmed	2,485
Total withdrawn	11
Total returned to the White House	0

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, May 11

Senate Chamber

Program for Wednesday: Senate will continue consideration of H.R. 2028, Energy and Water Development and Related Agencies Appropriations Act, and vote on the motion to invoke cloture on McConnell (for Cotton) Amendment No. 3878 (to Amendment No. 3801), at 10:30 a.m. If cloture is not invoked on McConnell (for Cotton) Amendment No. 3878 (to Amendment No. 3801), Senate will vote on the motion to invoke cloture on Alexander/Feinstein Amendment No. 3801, at approximately 12 noon.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9:30 a.m., Wednesday, May 11

House Chamber

Program for Wednesday: Consideration of H.R. 4641—To provide for the establishment of an inter-agency task force to review, modify, and update best practices for pain management and prescribing pain medication (Subject to a Rule). Consideration of the following measures under suspension of the rules: (1) H.R. 4843—Infant Plan of Safe Care Improvement Act, (2) H.R. 4976—Opioid Review Modernization Act of 2016, (3) H.R. 3680—Co-Prescribing to Reduce Overdoses Act of 2016, (4) H.R. 4978—NAS Healthy Babies Act, (5) H.R. 3691—Improving Treatment for Pregnant and Postpartum Women Act of 2016, (6) H.R. 1818—Veteran Emergency Medical Technician Support Act of 2016, (7) H.R. 4969—John Thomas Decker Act of 2016, (8) H.R. 4586—Lali's Law, (9) H.R. 4599—Reducing Unused Medications Act of 2016, (10) H.R. 4982—Examining Opioid Treatment Infrastructure Act of 2016, and (11) H.R. 4981—Opioid Use Disorder Treatment Expansion and Modernization Act.

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